(9)

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO. _____ OF 2026

[W.P.[LODGING NO.35697 OF 2026]

Rekha Vijaykumar Rane and ors **PETITIONERS**

VERSUS

State of Maharashtra and ors **RESPONDENTS**

INDEX

SR. NO.	EXHIBITS	PARTICULARS	PAGES FROM	PAGES TO
1.		PROFORMA	I	IV
2.		SYNOPSIS AND LIST OF DATES	A	D
3.		MEMO OF WRIT PETITION	01	23
4.		VAKALATNAMA	24	29
5.		MEMORANDUM OF REGISTERED ADDRESS OF THE PETITIONER.	30	30
6.		LIST OF DOCUMENTS.	31	34
7.	A	True copy of the Particulars of the facts of Petitioner No. 1 and other Petitioners.	35	35
8.	B	True copy of the Office orders issued for appointment of Petitioner No.1	36	43
9.	C	True copy of the Government Resolution dated 19/04/2022.	44	50

10.	D	True copy of the Judgment dated 11/08/2017 in Public Interest Litigation No. 188 of 2015.	**51**	**63**
11.	E	True copy of the First representation alongwith annexure which was made on 30/09/2023, 05/12/2023 and 04/06/2024.	**64**	**167**
12.	F	True copy of the Letter dated 05/01/2024 sent to the Principal Secretary and The RLA, Law and Judiciary Department, Mantralay, Mumbai.	**168**	**169**
13.	G	True copy of the Reminder Letter dated 10/05/2024 sent to the Principal Secretary and The RLA, Law and Judiciary Department, Mantralay, Mumbai.	**170**	**171**
14.	H	True copy of Letter dated 19/06/2024 issued by Law and Judiciary, Mantralaya, Mumbai.	**172**	**172**
15.	I	Translation copy of Letter dated 19/06/2024 issued by Law and Judiciary, Mantralaya, Mumbai.	**173**	**174**
16.	J	True copy of the Reply dated 01/08/2024 by Shri. E. B. Shivakumar, Addl. Registrar/ Addl. Prothonotary and Senior Master, High Court, Bombay.	**175**	**189**

17.	K	True copy of the Letter dated 09/10/2024 received by Smt. Meena Koli, Desk Officer, Govt. of Maharashtra, Mantralay, Mumbai.	**190**	**190**
18.	L	Translation copy of Letter dated 09/10/2024 received by Smt. Meena Koli, Desk Officer, Govt. of Maharashtra, Mantralay, Mumbai.	**191**	**193**
19.	M	True copy of the Reply dated 06/12/2024 of Shri. Rahul B. Bhagwat, Registrar (Original Side), High Court, Bombay.	**194**	**203**
20.	N	True copy of the Letter dated 15/07/2025.	**204**	**205**
21.	O	True copy of the Letter dated 06/06/2025 issued by Law & Judiciary Department, Mantralay, Mumbai.	**206**	**207**
22.	P	The copy of English translation of Letter dated 06/06/2025 issued by Law and Judiciary Department, Mantralay, Mumbai.	**208**	**209**
23.	Q	True copy of the Representation dated 01/12/2025.	**210**	**212**
24.	R	True copy of the Response dated 19/01/2026 of the Ld. Registrar, (Original Side), High Court, Bombay.	**213**	**214**

25.	S	True copy of the Judgment dated 10/03/2023 in Writ Petition No. 2853 of 2022.	**215**	**234**
26.	T	True copy of the Judgment dated 29/02/2024 in Writ Petition No. 4759 of 2022.	**235**	**242**
27.	U	True copy of the Judgement passed by the Honourable Supreme Court in D.S. Nakar V/s Union of India Air (1983) SCC 305.	**243**	**283**
28.		AFFIDAVIT IN SUPPORT OF THE WRIT PETITION	**284**	**286**
29.		ADVOCATE CERTIFICATE.	**287**	**287**
		LAST PAGE	**287**	

SHUBHAM H. MISAR
ADVOCATE FOR THE PETITIONER

BOMBAY
13/10/2026

9612477

I

PRAFORMA

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
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VERSUS

The State of Maharashtra and another **RESPONDENTS**

Office Notes. Office Memorandum of Coram appearance. Court's Orders or direction and Prothonotaryte Orders	Court's or Judge's Orders.

II

II

Office Notes. Office Memorandum of Coram appearance. Court's Orders or direction and Prothonotaryte Orders	Court's or Judge's Orders.

Office Notes. Office Memorandum of Coram appearance. Court's Orders or direction and Prothonotaryte Orders	Court's or Judge's Orders.

IV

Office Notes. Office Memorandum of Coram appearance. Court's Orders or direction and Prothonotaryte Orders	Court's or Judge's Orders.

A

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

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SYNOPSIS

[I] CHALLENGE IN BRIEF:-

Sr. No.	Date	Events and Particulars	Page No.
1.	**19.04.2022**	Government Resolution for sanctioning the proposal of the Hon'ble High Court for implementation of revision of pay-scales.	EXH-C
2.	**30.09.2023**	Submission alongwith its enclosures submitted by Mrs. Rekha Rane, Judicial Officer and other four Judicial Officers to the Hon'ble Registrar, Original Side, High Court, Mumbai for the implementation of Old Pension Scheme to the abovenamed Judicial Officers.	EXH-E
3.	**05.01.2024**	Letter submitted by Shri. Rahul B. Bhagwat, Registrar, Original Side to the Principal Secretary and R.L.A, Mantralaya, Mumbai for the Representation made by Mrs. Rekha V. Rane, Company Registrar and 5 other Officers and Mrs. Nandini Y. Deshpande, Second Assistant Master working on the establishment of High	EXH-F

B

		Court, Original Side, Bombay for implementation of Old Pension Scheme.	
4.	**10.05.2024**	Reminder – I Letter submitted by Shri. Rahul B. Bhagwat, Registrar, Original Side to the Principal Secretary and R.L.A, Mantralaya, Mumbai for the Representation made by Mrs. Rekha V. Rane, Company Registrar and 5 other Officers and Mrs. Nandini Y. Deshpande, Second Assistant Master working on the establishment of High Court, Original Side, Bombay for implementation of Old Pension Scheme.	EXH-G
5.	**19.06.2024**	Letter submitted by Law and Judiciary Department, Mantralaya to the Registrar, High Court, Original Side, Bombay.	EXH-H
6.	**01.08.2024**	Letter alongwith Annexure -H submitted by Shri. E.B.Sivakumar, Addl. Registrar (O.S.)/ Addl. Prothonotary and Senior Master, High Court, Bombay to Smt. Meena Koli, Desk Officer, Law & Judiciary Department, Mantralaya, Mumbai.	EXH-J
7.	**09.10.2024**	Letter submitted by Law and Judiciary Department, Mantralaya to the Registrar, High Court, Original Side, Mumbai.	EXH-K

8.	**06.12.2024**	Letter submitted by Shri. Rahul B. Bhagwat, Registrar, Original Side to the Smt. Meena Koli, Desk Officer, Law and Judiciary Department, Mantralaya, Mumbai.	EXH-M
9.	**15.07.2025**	Letter issued by Mr. Dhanaji A. Jadhav, Registrar, Original Side, High Court, Bombay to the Mrs. Rekha Rane, Judicial Officer and other two Judicial Officers viz. Mrs. Nandini Deshpande and Mrs. Jyoti S. Bidye and Other five Associates along with letter dated 06.06.2025 of Law and Judiciary Department, Mantralaya of rejection application for Old Pension Scheme by the officers of this Court.	EXH-N EXH-O

[III] <u>POINTS TO BE URGED :-</u>

1. In this background, the Petitioners submit that the correspondence dated 9th October 2024, the reply dated 6th December 2024, and consequentially the letter dated 6th June 2025 proceed on an erroneous and wholly irrelevant premise of examining whether or not the Petitioners are Judicial Officers.

2. The real issue is not whether the Petitioners fall within the Judicial Service under Articles 233 to 237 of the Constitution of India, but whether there exists a binding Government Resolution which has already extended the pay scale of Civil Judge, Junior Division (ACP-1), along with retirement benefits, to the Petitioners.

3. Once it is found that the Government Resolution dated 19th April 2022 expressly uses the expression "including retirement benefits" and has been acted upon by granting the

D

pay scale and arrears to the Petitioners, the entire field stands covered by the said Government Resolution, and there was no occasion for the Respondents to deny the corresponding pensionary benefits.

[IV] RELEVANT STATUTORY PROVISION
Constitution of India 1950.

[V] CASE LAW
NIL AT PRESENT

SHUBHAM H. MISAR
ADVOCATE FOR THE PETITIONERS

BOMBAY
DATED 13/10/2026

9612477

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO. _____ OF 2026

W.P. [LODGING] NO.35697 OF 2026

IN THE MATTER OF ARTICLE 226 OF THE CONSTITUTION OF INDIA, 1950.

AND

IN THE MATTER OF ARTICLE 229 OF THE CONSTITUTION OF INDIA, 1950.

AND

NOTARY SANJEEV GOPAL GHANEKAR GREATER MUMBAI REGN. NO. 61072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

IN THE MATTER OF ARTICLE 235 OF THE CONSTITUTION OF INDIA, 1950.

AND

IN THE MATTER OF GOVERNMENT RESOLUTION NO. MISCELLANEOUS 2021/M 95/ D-6, LAW AND JUDICIARY DEPARTMENT, GOVERNMENT OF MAHARASHTRA, DATED 19.04.2022.

1. Rekha Vijaykumar Rane
Age 50 Years, Occupation: Service,
at present working as Insolvency Registrar,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at: 701 Girivihar CHS
Ram Maruti cross road
Thane West.602.

2. Nandini Yogesh Deshpande
Age 53 years, Occupation: Service.
At present working as 1st Asst. to Court Receiver
High Court Bombay.
Residing at Flat no. 32, Sagar Building,
8th floor, B Road, Opp. Sydenham college,
Pandit Shobhnath Mishra Marg,
Churhgate Mumbai -20.

3. Charushila Madhukar Vaidya
Age 49 Years, Occupation: Service,
at present working as Master & Assistant Prothonotary
(Judl.), in the High Court of Judicature of Bombay,
on the Original Side,

NOTARY GOVT. OF INDIA

residing at : B/203, Pride Enclave,
Apollo bldg. Baji Prabhu Deshpande Rd. ,
Vishnu Nagar Naupada Thane 400602.

4. Varsha Nitin Ubale
Age 46 Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at : B-404, Skyline Sparkle,
Bhandup Village Road, Nahur West,
Mumbai -400 078.

5. Jyoti Santosh Bidye
Age 43 Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :5/602 Mahadev Complex,
Ramdev Park Road, Mira Road East,
Thane 401107.

6. Malini R. Bhalerao
Age 44 Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :Room no 11, 1st floor,
Naval CHS, Rajbhar Nagar,
Chinchpada Roas, Katemanivali,
Kalyan East, dist- Thane 42130

7. Pratiksha Nikhil Sawant,
Age- 38,Years,Occupation :Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :5/32, Artist Village,
Sector-8, CBD Belapur,
Navi Mumbai-400614.

NOTARY SANJEEV GOPAL GURAV'D GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2020 GOVT. OF INDIA

4

8. Arun Dattatraya Shirsat,
Age-37, Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :Room No. 001, Gr. Floor,
Ashtavinayak Avenue, Phase 1,
Usarli Khurd, Panvel, Dist
Raigad-410206.

9. Vilas Gunaji Pawar,
Age-35, Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :R/O. Flat No 8, B wing,
Gaganmhal building,
Sir Pochkhanwala Road
Worli, Mumbai-400 030.

PETITIONERS

VERSUS

1. State of Maharashtra
Through its Chief Secretary

[Summons to be served
on the learned Government Pleader
at Original Side
appearing for State of Maharashtra
under Order 27 Rule 4 of the
Code of Civil Procedure 1908].

2. The Principal Secretary
Finance Department,
Government of Maharashtra,
Mantralaya, Mumbai – 400 032.

NOTARY
GOVT. OF INDIA

3. The Principal Secretary
Law & Judiciary Department,
Government of Maharashtra
Mantralaya, Mumbai – 400 032.

4. Registrar General
High Court of Bombay
Mumbai – 400 032.

RESPONDENTS

TO

**THE HONOURABLE THE CHIEF JUSTICE
AND THE COMPANION HONOURABLE
JUDGES OF HIGH COURT OF
JUDICATURE AT BOMBAY
ORIGINAL SIDE**

THE ABOVE-NAMED PETITIONERS MOST RESPECTFULLY SHEWETH:

The Petitioners are approaching this Hon'ble Court, being constrained to do so, for non-extension to the Petitioners herein of benefits arising out of Government Resolution dated 19th April 2022.

The Petitioners state with utmost respect that they are seeking only a limited and clarificatory relief in relation to the applicability of the said Resolution to Petitioners.

The facts and circumstances from which the present Writ Petition arises are capsualised herein below for the sake of ready reference and convenience.

DESCRIPTION OF THE PARTIES

1. Petitioners are working as Insolvency Registrar, First

Assistant to Court Receiver, Master & Assistant Prothonotary (Judicial) and Associates respectively appointed by Registrar General, High Court of Bombay.

2. Respondent No. 1 is State of Maharashtra who has issued the Government Resolution dated 19.04.2022.

3. Respondent No. 2 to 4 who are implementing authority and representations by the Petitioners are made to Respondent No. 1 to 3, through Respondent No. 4.

4. Hence, all are state within the meaning of Article 12 of the Constitution of India, 1950.

FACTS OF THE PETITION

1. The Petitioners respectfully submit that their grievance pertains to non-extension of certain aspects of the pay scale of Civil Judge, Junior Division (ACP-1), particularly including retirement benefits and service conditions, though other components of the said Resolution have been extended.

2. The facts are stated briefly, with utmost respect, for the convenience of this Hon'ble Court.

3. The Petitioners crave leave to place on record the facts of Petitioner No. 1 as illustrative. The Petitioners respectfully submit that the position of the remaining Petitioners is identical in all material respects. Their particulars are annexed collectively as **EXHIBIT "A".**

4. Petitioner No. 1 respectfully submits that she is a B.A., LL.M. graduate and, after a brief period of legal practice, entered service with Respondent No. 2 on 26th March 2007 as an Associate.

5. She was thereafter promoted as Second Assistant to the Court Receiver. It is most respectfully pointed out that the pay scale attached to the said post was the same as that of the earlier post, and therefore the said advancement did not carry any substantive financial enhancement.

6. The Petitioner was subsequently promoted to the post of Company Registrar I/c Testamentary Registrar on 4th August 2023. Thereafter, she has been transferred as Insolvency Registrar with effect from 1st March 2025 and is presently serving in that capacity. A copy of the said office order's are hereto annexed and marked as **EXHIBIT "B"** .

7. The Petitioners most respectfully submit that all Petitioners are similarly situated officers serving the institution of the Hon'ble High Court in various capacities, as set out in EXHIBIT "A".

8. The Petitioners respectfully invite the attention of this Hon'ble Court to the Government Resolution dated 19th April 2022. The Petitioners understand the said Resolution to provide for application of the pay scale of Civil Judge, Junior Division (ACP-1), along with admissible allowances and perquisites, including retirement benefits and service conditions, with retrospective effect. Copy of this Government

Resolution is enclosed hereto and marked as **EXHIBIT "C"**.

9. The Petitioners most respectfully submit that the monetary component of the said Resolution, including arrears, has been extended to them.

   However, the component relating to retirement benefits does not appear to have been extended.

10. The Petitioners, with utmost humility, submit that in their reading of the Government Resolution, the phrase "including retirement benefits" appears to form an integral part of the benefit conferred.

11. In these circumstances, the Petitioners most respectfully submit that they are submitting that merely a partial implementation of the said Resolution, by extending only pay and arrears but not retirement benefits, could never have been intended, and in the respectful submission of the Petitioner the entire Government Resolution including Pensions Benefit is extended to the Petitioners.

12. The Petitioners further respectfully place reliance upon the judgment of this Hon'ble Court in PIL No. 188 of 2015 (Vihar Durve), wherein issues relating to pensionary entitlements of judicial officers were considered. Copy of that judgment is enclosed hereto and marked as **EXHIBIT "D"**. The Petitioners submit this only to assist this Hon'ble Court in appreciating the broader context of pension as part of service conditions.

NOTARY GOVT. OF INDIA

13. The Petitioners most respectfully submit that pension and retirement benefits are legally always treated to be a part of service conditions and, in that sense, may form part of the benefit structure contemplated under the Government Resolution.

14. The Petitioners most humbly submit that the issue raised herein is a narrow one and pertains only to the interpretation and full implementation of the Government Resolution dated 19th April 2022.

15. In the above circumstances, the Petitioners most respectfully and with utmost humility pray that this Hon'ble Court may be pleased to examine whether the benefit of retirement benefits, as mentioned in the said Government Resolution, ought also to be extended to the Petitioners.

16. The Petitioners make this request with the greatest respect for the Respondents and with full awareness that the matter involves administrative and policy considerations. The Petitioners would be grateful for any necessary direction that this Hon'ble Court may deem fit to grant.

I. Introduction and Background

17. The Petitioners invite the attention of this Hon'ble Court to the Government Resolution dated 19th April 2022 issued by the Law and Judiciary Department, Government of Maharashtra, whereby the proposal of the Hon'ble High Court regarding revision of pay scales came to be sanctioned.

18. The schedule appended to the said Government Resolution refers to 19 posts, some of which are held by the present Petitioners. The Petitioners state that pursuant to the said Resolution, the revised pay scales were duly approved on the recommendation of the Hon'ble High Court and have in fact been implemented.

II. Representations by the Petitioners

A. Initial Representation

19. The Petitioners state that the first representation was made on 30th September 2023 by Petitioner No. 1 to 3 and representation dated 4th June 2024 by Petitioner No. 4 to 8 and representation dated 5th Decemeber 2023 by Ms.Nandini Deshpande at presently working as 1st Asst. to Court Receiver. , inter alia seeking extension of the Old Pension Scheme to the Petitioners. A copy of the said representations, along with annexures, is annexed hereto and marked as **EXHIBIT-E .**

B. Forwarding by Registrar (Original Side) and Reminder

20. Thereafter, by letter dated 5th January 2024, Shri Rahul B. Bhagwat, Registrar (Original Side), forwarded the aforesaid representation of Petitioner No. 1, along with similar representations of other officers including Smt. Nandini Y. Deshpande, Second Assistant Master, High Court (Original Side), Bombay, to the Principal Secretary and the RLA, Law and Judiciary Department, Mantralaya, Mumbai, for

consideration and for implementation of the Old Pension Scheme. A copy of the said letter is annexed hereto and marked as **EXHIBIT-F.**

21. A reminder in that regard was issued on 10th May 2024 by the Registrar (Original Side) to the Principal Secretary and RLA, reiterating the request for implementation of the Old Pension Scheme for the Petitioners and Smt. Nandini Y. Deshpande. A copy of the said communication is annexed hereto and marked as **EXHIBIT-G.**

III. Correspondence with Law and Judiciary Department.

A. Clarification Sought by Government

22. By letter dated 19th June 2024, the Law and Judiciary Department, Mantralaya, addressed a communication to the Registrar, High Court (Original Side), Bombay, seeking clarification as to whether the earlier representation was confined only to Smt. Rekha Rane and Smt. Nandini Deshpande or also covered other officers. A copy of the said letter is annexed and marked as **EXHIBIT – H** and A Copy the office translation of the said letter dt. 19th June 2024 is annexed as **EXHIBIT – I.**

23. The said query was replied to on 1st August 2024 by Shri E. B. Sivakumar, Additional Registrar / Additional Prothonotary and Senior Master, High Court, Bombay, who clarified the position and enclosed Annexure H and other relevant

documents. A copy of the said reply dated 1st August 2024 is annexed hereto and marked as **EXHIBIT-J.**

B. Query on Equivalence with Judicial Officers.

24. Thereafter, by letter dated 9th October 2024, Smt. Meena Koli, Desk Officer, Government of Maharashtra, addressed a communication to the Registrar, High Court, Bombay, raising a query as to whether Judicial Officers and the present Petitioners are equivalent or not, and further seeking information regarding the duties of Judicial Officers and those of the Petitioners herein. A copy of the said letter is annexed hereto and marked as **EXHIBIT-K** and A Copy the office translation of the said letter dt. 9th October 2024 is annexed as **EXHIBIT –L.**

25. The said query was responded to on 6th December 2024 by Shri Rahul B. Bhagwat, Registrar (Original Side), High Court of Judicature at Bombay, under cover of a detailed reply, enclosing inter alia (i) duty list of the Second Assistant Master, (ii) duty list of the First Assistant to the Official Assignee, (iii) duty list of the Second Assistant to the Court Receiver, (iv) duty list of the Third Assistant Master, and (v) duties of the Associate. A copy of the said reply dated 6th December 2024 is annexed hereto and marked as **EXHIBIT-M.**

IV. Impugned Decision and Non-Consideration of GR dated 19 April 2022

26. It was thereafter, by letter dated 15th July 2025, that the Registrar (Original Side) communicated to Petitioner No.1 and others the response of the Government to their representations for implementation of the Old Pension Scheme. The Petitioners have already preferred representations dated 30th September 2023, 5thDecember 2023, and 4th June 2024.

27. The letter dated 15th July 2025, in turn, makes reference to a letter dated 6th June 2025 issued by the Law and Judiciary Department and signed by Smt. Meena Koli, Desk Officer, Government of Maharashtra, addressed to the Registrar (Original Side), High Court of Judicature at Bombay, Mumbai–400032. A copy of the letter 15th July 2025 along with the copy of the letter dated 6th June 2025 is annexed hereto and marked as **EXHIBIT-N and O.** *The English translation of the letter dated 6 June 2025 is also annexed hereto and marked as* **EXHIBIT-P**.

28. At paragraph 2 of the said letter dated 6th June 2025 categorically records that, according to the Government of Maharashtra, the Petitioners do not belong to the Judicial Service within the meaning of Articles 233 to 237 of the Constitution of India and, therefore, the judgment dated 11 August 2017 in PIL No. 188 of 2015 will not be applicable to the Petitioners herein.

29. The Petitioners submit that a perusal of the letter dated 15th July 2025, the letter dated 6th June 2025, and the letter dated

9th October 2024 reveals that none of these communications even advert to, much less consider, the Government Resolution dated 19th April 2022 and, in particular, the revised pay scale sanctioned therein in respect of the posts mentioned in the schedule to the said Government Resolution.

V. Effect of GR dated 19 April 2022 and "Retirement Benefits"

A. Application of Civil Judge (JD) Pay Scale

30. The Government Resolution dated 19 April 2022, inter alia, provides that the pay scale of Civil Judge, Junior Division (ACP-1), i.e. Rs. 33,090–920–40,450–1,080–45,850, with admissible allowances and perquisites, including retirement benefits and service conditions as may be revised and made applicable from time to time, shall apply with effect from 4 July 2003.

31. The posts mentioned from Serial Nos. 1 to 19 in the schedule to the said Government Resolution include posts held by the Petitioners herein. The Petitioners state that the said Government Resolution has been implemented, the pay scale of Civil Judge, Junior Division (ACP-1) has been made applicable to the Petitioners, and arrears of salary have been duly paid.

32. The Petitioners submit that once such pay scale is extended and implemented, the expression "including retirement benefits" used in the Government Resolution must be given

full and purposive effect, and all retirement benefits attached to the said pay scale must necessarily follow. B. Pension as Deferred Pay.

33. Without prejudice, the Petitioners submit that even if the expression "including retirement benefits" had not been expressly used in the Government Resolution dated 19 April 2022, the position in law still would remain that pension is a part of pay and, more precisely, a form of deferred pay, earned while in service and made payable upon superannuation.

34. In other words, once the pay scale of Civil Judge, Junior Division (ACP-1) is made applicable to the Petitioners, the concept of pay scale necessarily and inherently includes the corresponding deferred pay, namely pension and allied retirement benefits, irrespective of whether the Petitioners are formally designated as Judicial Officers. It is submitted that the specific use of the words "including retirement benefits" in the Government Resolution dated 19 April 2022 clearly indicates the intention of the Government that the retirement benefits attached to the post of Civil Judge, Junior Division (ACP-1) are also to be extended to the holders of the posts mentioned in the schedule, including the Petitioners herein.

35. Thus, whatever retirement benefits and service conditions are available to a Civil Judge, Junior Division (ACP-1), stand extended to, and are required in law to be made applicable to, the Petitioners by virtue of the said Government Resolution.



VI. Error in Approach of the Respondents .

36. In this background, the Petitioners submit that the correspondence dated 9th October 2024, the reply dated 6th December 2024, and consequentially the letter dated 6th June 2025 proceed on an erroneous and wholly irrelevant premise of examining whether or not the Petitioners are Judicial Officers.

37. The real issue is not whether the Petitioners fall within the Judicial Service under Articles 233 to 237 of the Constitution of India, but whether there exists a binding Government Resolution which has already extended the pay scale of Civil Judge, Junior Division (ACP-1), along with retirement benefits, to the Petitioners.

38. Once it is found that the Government Resolution dated 19th April 2022 expressly uses the expression "including retirement benefits" and has been acted upon by granting the pay scale and arrears to the Petitioners, the entire field stands covered by the said Government Resolution, and there was no occasion for the Respondents to deny the corresponding pensionary benefits.

39. The Petitioners respectfully submit that the impugned letter dated 6 June 2025 is vitiated by complete non-consideration of the Government Resolution dated 19th April 2022 and proceeds on a wrong footing. On this limited ground alone, the Petitioners are entitled to succeed.

40. The Petitioners state that they had submitted a representation to the Ld. Registrar, Original Side, High Court Bombay dated 01st December, 2025 for consideration of their request for implementation of the old Pension Scheme. Hereto annexed and marked as **EXHIBIT-Q** is the true copy of the Representation dated 01.12.2025.

41. I say that vide Response dated 19th January, 2026 the Ld. Registrar, Original Side, High Court Bombay informed the Petitioners that their representation was kept before the Competent Authority and the Competent Authority directed the Registry not to consider the Representation preferred by the Petitioners dated 01st December, 2025. Hereto annexed and marked as **EXHIBIT-R** is the true copy of the Response by Ld. Registrar dated 19.01.2026.

Hence, this Writ Petition.

VII. Reliance on Judgments.

42. The Petitioners crave leave to rely upon the following judgments at the time of hearing: 28. Judgment dated 10th March 2023 in Writ Petition No. 2853 of 2022 (Arvind Gopalrao Basutkar v. State of Maharashtra), Coram: G. S. Patel and Neela Gokhale, JJ., a copy whereof is annexed hereto and marked as **EXHIBIT-S.**

43. Judgment dated 11th August 2017 in Public Interest Litigation No. 188 of 2015 (Vihar Durve v. State of Maharashtra), Coram: A. S. Oka and A. K. Menon, JJ., a copy whereof is

already annexed hereto.

44. Judgment dated 29th February 2024 in Writ Petition No. 4759 of 2022 (Charusheela Vaidya & Ors. v. State of Maharashtra & Ors.), Coram: G. S. Patel and Kamal Khata, JJ., a copy whereof is annexed hereto and marked as **EXHIBIT-T.**

VIII. Constitutional and Legal Position Regarding Pension

45. The Petitioners submit that pension has been recognized as a valuable right and a facet of the right to life under Article 21 of the Constitution of India, as laid down by the Hon'ble Supreme Court in D. S. Nakara v. Union of India, reported in (1983) 1 SCC 305.a copy whereof is annexed hereto and marked as **EXHIBIT-U.**

46. In view of the settled legal position that pension is neither a bounty nor a matter of grace but a deferred right attached to past service, the denial of pension and retirement benefits, despite extension and implementation of the pay scale of Civil Judge, Junior Division (ACP-1), is arbitrary, unreasonable, and violative of Articles 14 and 21 of the Constitution of India.

47. The Petitioners, therefore, submit that the present Petition deserves to be heard and finally disposed of at the admission stage itself, there being no disputed questions of fact and the controversy turning solely on a true and correct interpretation of the Government Resolution dated 19th April 2022 and the settled law governing pension.

48. The Petitioner undertakes to give the English translation of Marathi documents when so required by the Honourable Court.

49. The Petitioner has paid requisite Court fees for the sum of Rs. 2250/- on the present petition.

50. The cause of action has arisen within the District: Mumbai within Ordinary Original Civil Jurisdiction of this Hon'ble Court. Hence, this Hon'ble Court has jurisdiction to entertain, try and decide the present this Petition.

51. The Petitioner has not preferred any other Writ Petition, Appeal or Application, either before Hon'ble Supreme Court of India or before any other Court or before this Hon'ble Court in respect of the same cause of action.

52. The Petitioners has made last representation on 01.12.2025 and the said representation was decided by competent authority hence there is no alternate efficacious remedy remains with the Petitioner then pursuing the present petition. The Petitioners were diligently and repeatedly attempted to personally meet the concerned officer and take time to time follow up, but in vain.

53. The Petitioner submits that he has been diligently pursuing his remedies and there are no delay, latches or negligence or inaction on the part of the Petitioner.

54. The cause of action is continuing in nature and Respondents have failed to take a decision in the matter despite repeated requests and representations.

55. The present Writ Petition is therefore filed bona fide, in the interest of justice and within the period of limitation.



56. Against the impugned Judgment & Order no appeal is provided under Section 115 of the Code of Civil Procedure 1908. Therefore, except this Writ Petition there is no other alternative and efficacious remedy available to the Petitioner. Hence this petition is maintainable.

56A. List of document on which Petitioner is relying upon is enclosed herewith

57. The Petitioner undertakes to give the English translation of Marathi documents when so required by the Honourable Court.

PRAYERS

THE PETITIONER THEREFORE RESPECTFULLY PRAYS AS UNDER: -

[A] That this Hon'ble Court be pleased to Issue a writ of mandamus or a writ in the nature of mandamus or any other appropriate writ, order, or direction, quashing and setting aside the letter dated 6th June 2025 issued by the Law and Judiciary Department, Government of Maharashtra, signed by Smt. Meena Koli, Desk Officer, addressed to the Registrar (Original Side), High Court of Judicature at Bombay, Mumbai–400032, and the consequential communication dated 15th July 2025 issued by the Registrar (Original Side) to Petitioner No. 1 and others.

[B] That this Hon'ble Court be pleased to Issue a writ of mandamus or a writ in the nature of mandamus or any other appropriate writ, order, or direction under Article 226 of the Constitution of India, directing the Respondents to allow and grant the reliefs prayed for in the

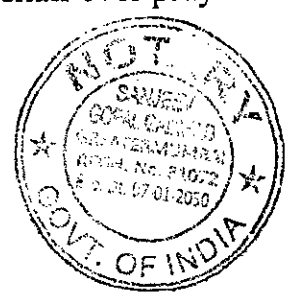
representations made by the Petitioners dated 30th September 2023,5th December 2023 and 4th June 2024, and to implement the Old Pension Scheme in favour of the Petitioners.

[C] That this Hon'ble Court be pleased to Issue a writ of mandamus or a writ in the nature of mandamus or any other appropriate writ, order, or direction under Article 226 of the Constitution of India, declaring that the Petitioners are entitled to all retirement benefits and service conditions as are applicable to Civil Judge, Junior Division (ACP-1), on a true and correct interpretation of the Government Resolution dated 19th April 2022 issued by the Law and Judiciary Department, Government of Maharashtra.

[D] In view of the law laid down in D. S. Nakara (supra) that pension is an incident of the right to life under Article 21 of the Constitution of India, it is prayed that the Hon'ble Court may consider and dispose of the present Writ Petition finally at the stage of admission.

[E] Award costs of this Petition in favour of the Petitioners and against the Respondent–State of Maharashtra.

[F] Grant such further and other reliefs as this Hon'ble Court may deem fit, just, and proper in the facts and circumstances of the present case. And for this act of kindness, the Petitioners as in duty bound shall ever pray.



AND FOR THIS ACT OF KINDNESS THE ABOVE NAMED PETITIONER SHALL DUTY BOUND EVER PRAY.

1. Rekha Vijaykumar Rane
2. Nandini Yogesh Deshpande
3. Charushila Madhukar Vaidya
4. Varsha Nitin Ubale
5. Jyoti Santosh Bidye
6. Malini R. Bhalerao
7. Pratiksha Nikhil Sawant,
8. Arun Dattatraya Shirsat,
9. Vilas Gunaji Pawar,

PETITIONERS

ADVOCATE FOR THE PETITIONERS

NOTARY ... OUT OF INDIA

VERIFICATION

I, Rekha Vijaykumar Rane, Age 50 Years, Occupation : Service, at present working as Insolvency Registrar, in the High Court of Judicature of Bombay, on the Original Side, residing at : 701 Girivihar CHS Ram Maruti cross road Thane West.602., being the Petitioner No.1, do solemnly declare that what is stated in paragraphs 1 to 57 and true to my own knowledge, and that what is stated in the remaining paragraphs 58 to 73 are stated on information and belief, and I believe the same to be true.

Solemnly declared at Bombay on)
this 13th day of October 2026.)

BEFORE ME,

ASST. MASTER /ASSOCIATE,
HIGH COURT, BOMBAY.

IDENTIFIED BY ME

SHUBHAM MISAR
ADVOCATE FOR THE PETITIONER

BEFORE ME

SANJEEV GOPAL GAIKWAD
ADVOCATE & NOTARY
GOVT. OF INDIA
Reg. No. 31072
BLDG. No. 8/1356, GOVT. COLONY
HARNE GURUJI MARG,
NEAR NEW ENGLISH SCHOOL,
BANDRA (E), MUMBAI - 400 051.

Notarial Reg. No. 1-A	
Sr. No. 267	Page No. 38
Date 13 OCT 2026	

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No.-31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

NOTARIAL NOTARIAL NOTARIAL NOTARIAL

24

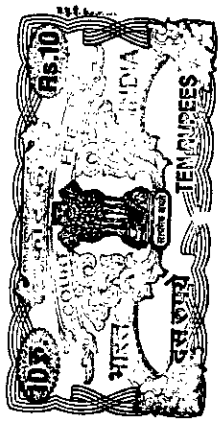
VAKALATNAMA

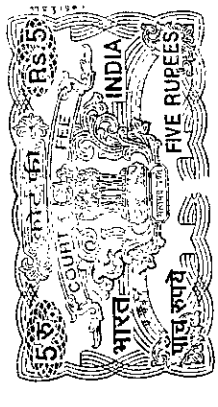
I AM ~~NOT~~ THE MEMBER OF THE WELFARE THEREFORE STAMP OF RS. 20 IS ~~NOT~~ AFFIXED HEREWITH.

(ADVOCATE)

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO. _____ OF 2026





IN THE MATTER OF ARTICLE 226 OF THE CONSTITUTION OF INDIA, 1950.

AND

IN THE MATTER OF ARTICLE 229 OF THE CONSTITUTION OF INDIA, 1950.

AND

IN THE MATTER OF ARTICLE 235 OF THE CONSTITUTION OF INDIA, 1950.

AND

IN THE MATTER OF GOVERNMENT RESOLUTION NO. MISCELLANEOUS 2021/M 95/ D-6, LAW AND JUDICIARY

25

DEPARTMENT, GOVERNMENT OF MAHARASHTRA, DATED 19.04.2022.

1. Rekha Vijaykumar Rane
Age 50 Years, Occupation: Service,
at present working as Insolvency Registrar,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at: 701 Girivihar CHS
Ram Maruti cross road
Thane West.602.

2. Nandini Yogesh Deshpande
Age 53 years, Occupation: Service.
At present working as 1st Asst. to Court Receiver
High Court Bombay.
Residing at Flat no. 32, Sagar Building,
8th floor, B Road, Opp. Sydenham college,
Pandit Shobhnath Mishra Marg,
Churhgate Mumbai -20.

3. Charushila Madhukar Vaidya
Age 49 Years, Occupation: Service,
at present working as Master & Assistant Prothonotary
(Judl.), in the High Court of Judicature of Bombay,
on the Original Side,
residing at : B/203, Pride Enclave,
Apollo bldg. Baji Prabhu Deshpande Rd. ,
Vishnu Nagar Naupada Thane 400602.

4. Varsha Nitin Ubale
Age 46 Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at : B-404, Skyline Sparkle,
Bhandup Village Road, Nahur West,
Mumbai -400 078.

5. Jyoti Santosh Bidye
Age 43 Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :5/602 Mahadev Complex,
Ramdev Park Road, Mira Road East,
Thane 401107.

6. Malini R. Bhalerao
Age 44 Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :Room no 11, 1st floor,
Naval CHS, Rajbhar Nagar,
Chinchpada Roas, Katemanivali,
Kalyan East, dist- Thane 42130

7. Pratiksha Nikhil Sawant,
Age- 38,Years,Occupation :Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :5/32, Artist Village,
Sector-8, CBD Belapur,
Navi Mumbai-400614.

8. Arun Dattatraya Shirsat,
Age-37, Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :Room No. 001, Gr. Floor,
Ashtavinayak Avenue, Phase 1,
Usarli Khurd, Panvel, Dist
Raigad-410206.

27

9. Vilas Gunaji Pawar,
Age-35, Years, Occupation : Service,
at present working as Associate,
in the High Court of Judicature of Bombay,
on the Original Side,
residing at :R/O. Flat No 8, B wing,
Gaganmhal building,
Sir Pochkhanwala Road
Worli, Mumbai-400 030.

PETITIONERS

VERSUS

1. State of Maharashtra
Through its Chief Secretary
[Summons to be served
on the learned Government Pleader
at Original Side
appearing for State of Maharashtra
under Order 27 Rule 4 of the
Code of Civil Procedure 1908].

2. The Principal Secretary
Finance Department,
Government of Maharashtra,
Mantralaya, Mumbai – 400 032.

3. The Principal Secretary
Law & Judiciary Department,
Government of Maharashtra
Mantralaya, Mumbai – 400 032.

4. Registrar General
High Court of Bombay
Mumbai – 400 032.

RESPONDENTS

To,

The Prothonotary and Senior Master,
High Court, Original Side,
Mumbai.

28

Sir,

We, Petitioner Nos. 1 to 9 being the Petitioners, above named, do hereby appoint Shubham Misar, Advocate High Court Mumbai to act appear and plead on our behalf in the above matter.

IN WITNESS WHEREOF I have set and subscribed my hand to this writing at Bombay.

Dated this 13th day of October 2026

1. Rekha Vijaykumar Rane

2. Nandini Yogesh Deshpande

3. Charushila Madhukar Vaidya

4. Varsha Nitin Ubale

5. Jyoti Santosh Bidye

6. Malini R. Bhalerao

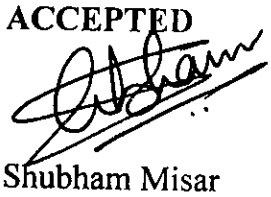
7. Pratiksha Nikhil Sawant,

8. Arun Dattatraya Shirsat,

9. Vilas Gunaji Pawar,

29

ACCEPTED



Shubham Misar
Advocate High Court,
93, Engineer's Premises Co.op. Soc. Ltd.,
Ground Floor, Opp. British Hotel Lane,
Mumbai Samachar Marg,
Next to J & K Bank, Near Bombay Stock Exchange,
Fort, Mumbai: 400 023.
Code: I-14899/ Reg.:
MAH No. 4098/2015
(O.S. 16000)
Email - shubhammisar@gmail.com
Mob - 9969010458

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO._____ OF 2026

Rekha Vijaykumar Rane **PETITIONER**

VERSUS

The State of Maharashtra and another **RESPONDENTS**

MEMORANDUM OF REGISTERED ADDRESS OF THE PETITIONER

Rekha Vijaykumar Rane
C/O
Shubham Misar
Advocate High Court,
93, Engineer's Premises Co.op. Soc. Ltd.,
Ground Floor, Opp. British Hotel Lane,
Mumbai Samachar Marg,
Next to J & K Bank, Near Bombay Stock Exchange,
Fort, Mumbai: 400 023.
Code: I-14899/ Reg.:
MAH No. 4098/2015

ADVOCATE FOR THE PETITIONERS

PLACE: BOMBAY
DATE: 13/10/2026

96/12477

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO. _____ OF 2026

Rekha Vijaykumar Rane and ors **PETITIONERS**

VERSUS

State of Maharashtra and ors **RESPONDENTS**

LIST OF DOCUMENTS ON WHICH THE PETITIONERS ARE RELY.

SR. NO.	EXHIBITS	PARTICULARS	PAGES FROM	PAGES TO
1.	A	True copy of the Particulars of the facts of Petitioner No. 1 and other Petitioners.	35	35
2.	B	True copy of the Office orders issued for appointment of Petitioner No.1	36	43
3.	C	True copy of the Government Resolution dated 19/04/2022.	44	50
4.	D	True copy of the Judgment dated 11/08/2017 in Public Interest Litigation No. 188 of 2015.	51	63
5.	E	True copy of the First representation alongwith annexure which was made on 30/09/2023, 05/12/2023 and 04/06/2024.	64	167

6.	F	True copy of the Letter dated 05/01/2024 sent to the rincipal Secretary and The RLA, Law and Judiciary Department, Mantralay, Mumbai.	**168**	**169**
7.	G	True copy of the Reminder Letter dated 10/05/2024 sent to the Principal Secretary and The RLA, Law and Judiciary Department, Mantralay, Mumbai.	**170**	**171**
8.	H	True copy of Letter dated 19/06/2024 issued by Law and Judiciary, Mantralaya, Mumbai.	**172**	**172**
9.	I	Translation copy of Letter dated 19/06/2024 issued by Law and Judiciary, Mantralaya, Mumbai.	**173**	**174**
10.	J	True copy of the Reply dated 01/08/2024 by Shri. E. B. Shivakumar, Addl. Registrar/ Addl. Prothonotary and Senior Master, High Court, Bombay.	**175**	**189**
11.	K	True copy of the Letter dated 09/10/2024 received by Smt. Meena Koli, Desk Officer, Govt. of Maharashtra, Mantralay, Mumbai.	**190**	**190**
12.	L	Translation copy of Letter dated 09/10/2024 received by Smt. Meena Koli, Desk Officer, Govt. of aharashtra, Mantralay, Mumbai.	**191**	**193**

13.	M	True copy of the Reply dated 06/12/2024 of Shri. Rahul B. Bhagwat, Registrar (Original Side), High Court, Bombay.	**194**	**203**
14.	N	True copy of the Letter dated 15/07/2025.	**204**	**205**
15.	O	True copy of the Letter dated 06/06/2025 issued by Law & Judiciary Department, Mantralay, Mumbai.	**206**	**207**
16.	P	The copy of English translation of Letter dated 06/06/2025 issued by Law and Judiciary Department, Mantralay, Mumbai.	**208**	**209**
17.	Q	True copy of the Representation dated 01/12/2025.	**210**	**212**
18.	R	True copy of the Response dated 19/01/2026 of the Ld. Registrar, (OS), High Court, Bombay.	**213**	**214**
19.	S	True copy of the Judgment dated 10/03/2023 in Writ Petition No. 2853 of 2022.	**215**	**234**
20.	T	True copy of the Judgment dated 29/02/2024 in Writ Petition No. 4759 of 2022.	**235**	**242**

34

21.	U	True copy of the Judgement passed by the Honourable Supreme Court in D.S. Nakar V/s Union of India Air (1983) SCC 305.	243	283
		LAST PAGE	**287**	

SHUBHAM H. MISAR
ADVOCATE FOR THE PETITIONER

BOMBAY
13/10/2026

NOTARY SANJEEV GOPAL MAHAJAN GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

35

EXHIBIT'A'

SR. NO.	NAMEOFEMPLOYEE	DATE OF APPOINTMENT
1	**Mrs. Rekha Vijay Kumar Rane, Insolvency Registrar**	26thMarch,2007
2	**Mrs. Nandini Yogesh Deshpande, First Assistant to Court Receiver.**	9th January, 2008
3	**Ms. Charushila Madhukar Vaidya, Master & Assistant Prothonotary (Judl.)**	19thNovember,2008
4	**Mrs.Varsha Nitin Ubale, Associate**	29th January,2013
5	**Mrs. Jyoti Santosh Bidye, Associate**	9thFebruary,2024
6	**Mrs. Malini R. Bhalerao, Associate**	21stFebruary,2024
7	**Mrs. Pratiksha Nikhil Sawant, Associate**	21stFebruary,2024
8	**Mr.Arun Dattatraya Shirsat, Associate**	9thFebruary,2024
9	**Mr.Vilas Gunaji Pawar, Associate**	13thFebruary,2024

TRUE COPY

Advocate

EXH-B' 36

(For insertion in the Mahsrashtra Government Gazette Part-I, Central Section)

NOTIFICATION BY THE HIGH COURT OF JUDICATURE AT BOMBAY

NOTARY SANJEEV GOPAL GARKHED GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2010 GOVT. OF INDIA

ORIGINAL SIDE
No.G/769/

O R D E R

CONSEQUENT UPON the appointments on deputation of (1) Shri N.A.Bandodkar, Associate, (2) Shri S.S.Agate, Associate, (3) Shri A.J.Kesarkar, Associate and (4) Shri S.R.Patil, Associate on the establishment of Special Court, the Hon'ble the Acting Chief Justice is now pleased to make following appointments :

(I)

Shri Dilip Shridhar Gurav, Clerk, on the establishment of the Office of Registrar (O.S.)/ Prothonotary and Senior Master is promoted and appointed as Associate;

(II)

Shri Satish Dajirao Chitgopekar, Clerk, on the establishment of the Bench at Aurangabad, Aurangabad is promoted and appointed as Associate;

(III)

Shri Vijay Vasantrao Gajre, Section Officer on the establishment of the Appellate Side Registry is promoted and appointed as Associate;

(IV)

Ms.Rekha Vijay Tawade, Advocate is appointed as Associate.

The above appointments do take effect from Monday, 26th March 2007.

The aforesaid candidates are hereby informed that though their pay will be protected, they may have to work in other Establishments in view of the increase in pecuniary jurisdictions of the Bombay City Civil Court and the Court of Small Causes at Bombay.

High Court, Original Side)
)
)
)
)
)
)
Bombay, 20th March 2007.)

By Order of the Hon'ble the Acting Chief Justice

A. Rodrigues.

(A.Rodrigues)
Registrar (O.S.)/
Prothonotary and Senior Master

True Copy
M. Gupta
21/3/07

TRUE COPY
Advocate

37

No. G/769/ 4491

Copy forwarded for information to :

1. The Pay and Accounts Officer, PAG-II, Backbay Reclamation, Bombay.
2. The Manager, Government Central Press, Bombay, with a request to supply 6 copies.
3. The Accountant General, Maharashtra-I, M.K.Road, Mumbai.
4. Shri D.S.Gurav, Clerk, Testamentary Department
5. Shri S.D.Chitgopekar, Clerk, on the establishment of Bench at Aurangabad.
6. Shri V.V.Gajre, Section Officer, High Court, Appellate Side, Bombay.
7. Ms.Rekha V.Tawade, Advocate, residing at 4288/155, Naidu Colony, Pantnagar, Ghatkopar (E), Mumbai 400 0475.
8. Section Officer, Pay 'B' Section.

High Court, Original Side)
)
Bombay, 21st March 2007.)

Assistant Prothonotary (Adm.)
General Department.

True Copy
N. Gupta
17/3/2008

Miss. N. G. GUPTA
Associate
High Court, Bombay.

NOTARY
SANJEEV GOPAL GAIKWAD
GREATER MUMBAI
REGN. No. 31072
Exp. Dt. 07-01-2030
GOVT. OF INDIA

38

(for insertion in the Maharashtra Government Gazette Part-I, Central Section)

NOTIFICATION BY THE HIGH COURT OF JUDICATURE AT BOMBAY

ORIGINAL SIDE

No. G/2855/263

Mrs. Rekha V. Rane, Associate, is hereby appointed to officiate in the post of Second Assistant to the Court Receiver in the Pay Matrix of Level-S-25 Rs.78800-209200 with effect from 1st March 2021 (B.N.) on the establishment of the Office of the Court Receiver, High Court, Original Side, Bombay vice Shri N. A. Bandodkar, till such time selection and appointment is made as per Rule 13 of the Bombay High Court, Original Side. Service Rules 2002.

She is hereby informed that she may however, apply in pursuance of the advertisement to be issued for the post of Second Assistant to the Court Receiver, High Court, Original Side, Bombay.

High Court, Original Side)
)
)
)
)
)
)
Bombay, 24th February 2021.)

By Order and in the name of
the Hon'ble the Chief Justice

(S. M. Kochey)
Registrar, Original Side
High Court, Bombay.

Copy forwarded for information to :

1. The Registrar General, High Court of Judicature at Bombay.
2. The Registrar/Principal Secretary to the Hon'ble the Chief Justice, High Court, Bombay.
3. The Registrar (Personnel), High Court, Appellate Side, Bombay.
4. The Pay and Accounts Officer, PAG-II, Backbay Reclamation, Mumbai.
5. The Resident Audit Officer, Mumbai.

....2

NOTARY SANJEEV GOPAL CAMPOO GREATER MUMBAI REGN. No. 31072 Dt. 07-01-2030 GOVT. OF INDIA

No. G/2855/

6. The Accountant General, Maharashtra-I, M.K.Road, Mumbai.

7. Mrs. Rekha V. Rane, Associate, High Court, Original Side, Bombay.

8. The Office of the Court Receiver, High Court, Original Side, Bombay.

9. The Section Officer, Pay and Establishment Department, High Court, Bombay.

10. The Manager, Government Central Press, Charni Road, Mumbai, with a request to publish the said Notification in the next issue of Maharashtra Government Gazette and send 5 copies thereof to this office, for information.

Master (Adm)
General Department

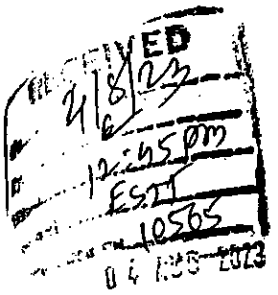
Recd
08/3/2021

Holder (2)Circular Order 2020 odt

NOTARY
SANJEEV
GOPAL GAIKWAD
GREATER MUMBAI
REGN. No. 31072
Exp. Dt. 07-01-2030
GOVT. OF INDIA

(For insertion in the Maharashtra Government Gazette Part-I, Central Section)

NOTIFICATION BY THE HIGH COURT OF JUDICATURE AT BOMBAY



ORIGINAL SIDE

No. G/769/1028/2023

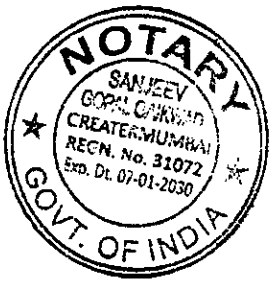
:ORDER:

Mrs. Rekha V. Rane, Second Assistant to Court Receiver, High Court, Original Side, Bombay, is hereby promoted and appointed as 'Company Registrar' in the Pay Scale of Senior Civil Judge, A.C.P I, i.e. J-4 (122700-180200) with effect from 4th August 2023 on the establishment of the office of the Registrar, Original Side, High Court, Bombay until further Orders vice Mrs. Chandan J. Bhatt [promoted and appointed as Official Assignee w.e.f. 07.07.2023].

High Court of Judicature at)	**By order and in the name of the**
)	**Hon'ble Chief Justice**
)	
)	
)	4.8.2023
)	**(Rahul B. Bhagwat)**
)	**Registrar, Original Side,**
Bombay, 04th August 2023.)	**High Court of Judicature at Bombay.**

....2

S.O. do the needful
8
4/8/23



41

No. G/769/ 1028 /2023.

Copy forwarded with respect/compliments for information and necessary action to:

1. The Principal Secretary and R. L. A., Government of Maharashtra, Law and Judiciary Department, Mantralaya, Mumbai.
2. The Principal Secretary to the Government of Maharashtra, General Administration Department, Mantralaya, Mumbai.
3. The Principal Accountant General-I (A&E), Maharshi Karve Marg, Mumbai.
4. The Pay and Accounts Officer, Pay and Accounts Office, 5th & 6th floor, Apeejay House, 3, Dinshaw Vacha Road, Next to K. C. College, Churchgate, Mumbai - 400020.
5. The Accounts Officer, Pay & Accounts Office, Lekha Kosh Bhavan, Bandra Kurla Complex, Bandra, Mumbai.
6. The Resident Audit Officer, 7th floor, Pay & Accounts, Bandra, Mumbai.
7. The Registrar General, High Court of Judicature at Bombay, Bombay.
8. The Prothonotary and Senior Master, High Court, Bombay.
9. The Addl. Registrar (O.S.)/Addl. Prothonotary and Senior Master, High Court, Original Side, Bombay.
10. The Court Receiver, High Court, Original Side, Bombay.
11. Mrs. Rekha V. Rane, Second Assistant to Court Receiver, High Court, Original Side, Bombay.
12. Shri P. A. Jagdale, Officer on Special Duty, High Court, Bombay.
13. The Master (Adm), Pay and Establishment Department, High Court, Original Side, Bombay.
14. The Manager, Govt. Central Press, Mumbai, with a request to supply 5 copies of order.

Pramila Latkar

Master (Adm)
General Department

High Court, Original Side)
Bombay, 4th August 2023.)

NOTARY
SANJEEV GOPAL DHA
GREATER MUMBAI
REGN. No. 21072
Exp. On 07-01-2030
GOVT. OF INDIA

42

No. G/769/ 419 /2025

: OFFICE ORDER :

In the interest of the Office Administration, the following Officers working on the Original Side Registry are hereby directed to perform the duties stated against their designation with effect from Saturday, 1st March, 2025, until further orders :-

Sr. No.	Name and Designation of Officer	Posted to work as
1.	Mrs. Kavita Y. Ambekar, Taxing Master and In-charge of Execution Department	Company Registrar and In-charge of Testamentary Department
2.	Mrs. Maheshwari Parkar, Insolvency Registrar	Taxing Master and In-charge of Execution Department
3.	Mrs. Rekha V. Rane, Company Registrar and In-charge of Testamentary Department	Insolvency Registrar

High Court, Original Side,)
)
)
)
Bombay, 27th February, 2025)

[Dhanaji A. Jadhav]
Registrar, Original Side,
High Court of Judicature at Bombay.

....2

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

No. G/769/ /2025

Copy forwarded for information and necessary action thereto :

1. The Prothonotary and Senior Master, High Court, Bombay.
2. Shri S. S. Agate, Addl. Registrar (O.S.)/Addl. Prothonotary and Senior Master, High Court, Bombay.
3. Shri E. B. Sivakumar, Addl. Registrar (O.S.)/Addl. Prothonotary and Senior Master, High Court, Bombay.
4. Shri P. A. Jagdale, OSD, Testamentary Department, High Court, Bombay.
5. Mrs. Kavita Y. Ambekar, Taxing Master and In-charge of Execution Department, High Court, Bombay.
6. Mrs. Maheshwari Parkar, Insolvency Registrar, High Court, Bombay.
7. Mrs. Rekha V. Rane, Company Registrar and In-charge of Testamentary Department, High Court, Bombay.
8. The Section Officer, Office of the Taxing Master, High Court, Bombay.
9. The Section Officer, Pay and Establishment, High Court, Bombay.
10. The Section Officer, Office of the Insolvency Registrar, High Court, Bombay.
11. The Section Officer, Salary Section, Pay and Establishment Department, High Court, Bombay.

Master and Assistant Prothonotary (Adm)
General Department

27.02.2025.

TRUE COPY

Advocate

NOTARY
GOVT. OF INDIA

EXH-C' 44

उच्च न्यायालय, मुंबई, खंडपीठ नागपूर व खंडपीठ औरंगाबाद येथील गट-'अ' आणि गट-'ब' कर्मचाऱ्यांच्या वेतनश्रेणीत सुधारणा करण्याबाबत.

महाराष्ट्र शासन
विधि व न्याय विभाग,
शासन निर्णय क्र.संकीर्ण-२०२१/प्र.क्र.९५/का.६
मादाम कामा मार्ग, हुतात्मा राजगुरु चौक,
मंत्रालय, मुंबई ४०० ०३२.
दिनांक : १९ एप्रिल, २०२२.

पहा:- प्रबंधक (कार्मिक), उच्च न्यायालय, अपील शाखा, मुंबई यांचे पत्र क्र. PD(P) & (F) ५१८३/२०२१ दिनांक १४ ऑक्टोबर, २०२१.

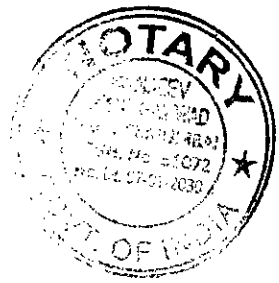
प्रस्तावना :-

मा. न्यायमूर्ती, उच्च न्यायालय, मुंबई, यांच्या विशेष समितीने उच्च न्यायालय, मुंबई, खंडपीठ नागपूर, खंडपीठ औरंगाबाद येथील कार्यरत गट 'अ' व गट 'ब' कर्मचाऱ्यांची वेतनश्रेणी सुधारण्याबाबत अहवाल सादर केला;

मा. प्रशासकीय न्यायमूर्तीच्या समितीने सदर अहवाल दि.०५.१०.२०२१ रोजीच्या बैठकीत स्वीकृत केला असून शासनाच्या मान्यतेस्तव सादर केला. सदर अहवालामध्ये नमूद उच्च न्यायालयातील गट 'अ' व गट 'ब' कर्मचाऱ्यांची वेतनश्रेणी सुधारण्याबाबत मंजुरी देण्याची बाब शासनाच्या विचाराधीन होती.

शासन निर्णय :

१. उच्च न्यायालय, मुंबई, खंडपीठ नागपूर आणि खंडपीठ औरंगाबाद येथील गट-'अ' आणि गट-'ब' कर्मचाऱ्यांच्या वेतनश्रेणीमध्ये सुधारणा करुन पुढील विवरणपत्रात नमूद केलेली वेतनश्रेणी लागू करण्याच्या मा. उच्च न्यायालयाच्या प्रस्तावास या शासन निर्णयाद्वारे मंजुरी देण्यात येत आहे.



विवरणपत्र

Sr.No.	Designation	Revised Pay Scales as per approved Report
(1)	(2)	(3)
1	2nd Assistant Master	The Pay Scale of Civil Judge Junior Division (ACP-I) i.e. Rs.33090-920-40450-1080-45850 with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time w.e.f. 04/07/2003.
2	1st Assistant to Official Assignee	
3	2nd Assistant to Court Receiver	
4	3rd Assistant Master	
5	Associate	
6	Chief Translator and Interpreter	Pay Band-3 Rs.15600-39100 plus Grade pay Rs.7900 w.e.f.01.04.2011
7	Deputy Chief Translator and Interpreter	
8	Assistant Chief Translator and Interpreter	
9	Master (Adm.)	
10	Protocol Officer cum Court Keeper	
11	Chief Librarian	
12	Assistant Registrar	
13	Assistant Director	Pay Band-3 Rs.15600-39100 plus Grade pay Rs.6600 w.e.f. 01.04.2011
14	2nd Assistant to Official Assignee	
15	Librarian	
16	Section Officer	Pay Band-2 Rs.9300-34800 plus Grade pay Rs.5400 w.e.f.01/04/2011 Pay Band-3 Rs. 15600-39100 plus Grade pay Rs.6600 (After 4 years regular services) w.e.f. 01.04.2011
17	Senior Translator and Interpreter	Pay Band-2 Rs.9300-34800 plus Grade pay 5400 w.e.f.01/04/2011
18	Court Keeper	Pay Band-2 Rs.9300-34800 plus Grade pay 5400 w.e.f.01/04/2011
19	Accounts Officer	Pay Band-2 Rs.9300-34800 plus Grade pay 5400 w.e.f.01/04/2011

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

२. परिच्छेद (१) मध्ये नमूद केल्याप्रमाणे वेतन निश्चिती करण्याबाबत प्रबंधक (कार्मिक), उच्च न्यायालय, अपील शाखा, मुंबई यांनी पुढील कार्यवाही करावी.

३. सदर शासन निर्णय वित्त विभागाच्या अनौपचारिक संदर्भ क्रमांक ३४८/२०२१/ सेवा-९ दिनांक २२/१२/२०२१ आणि अनौपचारिक संदर्भ क्रमांक १८३/२०२२/व्यय-५ दिनांक १५/०२/२०२२ अन्वये प्राप्त झालेल्या सहमतीनुसार निर्गमित करण्यात येत आहे.

४. सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेतांक क्र. २०२२०४१९१५४९४६८०१२ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने,

PRAVIN ARUN KUMBHOJKAR

Digitally signed by PRAVIN ARUN KUMBHOJKAR
Date: 2022.04.19 15:51:13 +05'30'

(प्रविण अरुण कुंभोजकर)
उप विधि सल्लागार-नि-उप सचिव

प्रत,

१. मा. राज्यपालांचे प्रधान सचिव.
२. मा. मुख्यमंत्री यांचे प्रधान सचिव.
३. मा. राज्यमंत्री (विधि व न्याय) यांचे खाजगी सचिव.
४. मा. विरोधी पक्ष नेता, विधान परिषद/विधानसभा.
५. मा. विधान परिषद / विधानसभा सदस्य (सर्व).
६. मुख्य सचिव, महाराष्ट्र शासन, मंत्रालय, मुंबई.
७. प्रधान सचिव व विधि परामर्शी, विधि व न्याय विभाग, मंत्रालय, मुंबई.
८. प्रधान सचिव (वरिष्ठ विधि सल्लागार), विधि व न्याय विभाग, मंत्रालय, मुंबई.
९. सचिव (विधि विधान), विधि व न्याय विभाग, मंत्रालय, मुंबई.
१०. महाप्रबंधक, उच्च न्यायालय, मुंबई.
११. प्रबंधक, (विधि व संशोधन) उच्च न्यायालय, (अपिल शाखा) मुंबई.
१२. प्रबंधक, उच्च न्यायालय, (अपिल शाखा/मूळ शाखा) मुंबई.
१३. प्रबंधक, उच्च न्यायालय, नागपूर, औरंगाबाद व पणजी खंडपीठ.
१४. महालेखापाल (लेखा व अनुज्ञेयता/लेखापरीक्षा) एक, महाराष्ट्र मुंबई.
१५. महालेखापाल (लेखा व अनुज्ञेयंता/लेखापरीक्षा) दोन, महाराष्ट्र, नागपूर.
१६. सर्व जिल्हा कोषागार अधिकारी.
१७. अधिदान व लेखा अधिकारी, मुंबई.
१८. निवासी लेखापरीक्षा अधिकारी, मुंबई.
१९. वित्त विभाग सेवा ९.
२०. कार्यासन- ६ (निवड नस्ती).

NOTARY SANJEEV GOPAL CHAND GREATER MUMBAI Regd. No. 31072 Dt. 07-01-2030 GOVT. OF INDIA

(Translation of a photocopy of a GOVERNMENT RESOLUTION typewritten in Marathi).

To revise pay scale of Group 'A' and Group 'B' employees working in the Honourable High Court at Mumbai, its Bench at Nagpur and Bench at Aurangabad.

GOVERNMENT OF MAHARASHTRA

Law and Judiciary Department.

Government Resolution No. Miscellaneous-2021/M.No.95/D-6.

Madam Cama Road, Hutatma Rajguru Chowk,

Mantralaya, Mumbai – 400 032.

Date: 19th April, 2022.

See : Letter bearing No. PD(P) & (F) 5183/2021, dated 14th October, 2021 of the Registrar (Personnel), High Court, Appellate Side, Mumbai.

PREFACE:

The Special Committee of the Honourable Judges of the Honourable Bombay High Court, Mumbai submitted a report to revise pay scale of Group 'A' and Group 'B' employees working in the Honourable Bombay High Court at Mumbai, its Bench at Nagpur and Bench at Aurangabad.

The Honourable Administrative Committee of the Honourable Judges accepted the said Report in the Meeting dated 05.10.2021 and submitted the same for approval of the Government. In pursuance thereof, the issue to grant approval to revise the pay scale of Group 'A'

and Group 'B' employees working in the Honourable Bombay High Court mentioned in the said Report was under consideration of the Government.

GOVERNMENT RESOLUTION:

1) Under this Government Resolution, approval is granted to the proposal of the Honourable High Court to revise the pay scale of Group 'A' and Group 'B' employees working in the Honourable Bombay High Court at Mumbai, its Bench at Nagpur and Bench at Aurangabad and to make applicable the pay scales mentioned in the below mentioned statement.

STATEMENT

Sr. No.	Designation	Revised Pay Scales as per approved Report.
(1)	(2)	(3)
1.	2nd Assistant Master	The Pay Scale of Civil Judge Junior Division (ACP-I) i.e. Rs.33090-920-40450-1080-45850 with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time w.e.f. 04.07.2003.
2.	1st Assistant to Official Assignee	
3.	2nd Assistant to Court Receiver	
4.	3rd Assistant Master	
5.	Associate	
6.	Chief Translator and Interpreter	Pay Band-3 Rs.15600-39100 plus Grade Pay Rs.7900 w.e.f. 01.04.2011.
7.	Deputy Chief Translator and Interpreter	
8.	Assistant Chief Translator and Interpreter	
9.	Master (Adm.)	
10.	Protocol Officer cum Court Keeper	

11.	Chief Librarian	
12.	Assistant Registrar	
13.	Assistant Director	Pay Band-3 Rs.15600-39100 plus Grade Pay Rs.6600 w.e.f. 01.04.2011.
14.	2nd Assistant to Official Assignee	
15.	Librarian	
16.	Section Officer	Pay Band-2 Rs.9,300-34800 plus Grade Pay Rs.5400 w.e.f. 01.04.2011. Pay Band-3 Rs.15600-39100 plus Grade Pay Rs.6600 (After 4 years regular services) w.e.f. 01.04.2011
17.	Senior Translator and Interpreter	Pay Band-2 Rs.9300-34800 plus Grade Pay Rs.5400 w.e.f. 01.04.2011.
18.	Court Keeper	Pay Band-2 Rs.9300-34800 plus Grade Pay 5400 w.e.f. 01.04.2011.
19.	Accounts Officer	Pay Band-2 Rs.9300-34800 plus Grade Pay 5400 w.e.f. 01.04.2011.

2) The Registrar (Personnel), High Court, Appellate Side, Mumbai should take further steps for fixation of pay as mentioned in Paragraph (1).

3) This Government Resolution is issued with the concurrence of the Finance Department received under its Unofficial Reference No. 348/2021/Service-9, dated 22.12.2021 and Unofficial Reference No. 183/2022/Expenditure -5, dated 15.02.2022.

4) This Government Resolution is made available on the web-site of Government of Maharashtra viz. www.maharashtra.gov.in and its Code Number is 202204191549468012. This Order is issued by authenticating the same by digital signature.

By Order and in the name of the Governor of Maharashtra.

PRAVIN ARUN KUMBHOJKAR

Digitally signed by Pravin Arun Kumbhojkar.
Date: 2022.04.19. 15:51:13 +05' 30'

(Pravin Arun Kumbhojkar)
Deputy Legal Advisor-cum-Deputy Secretary.

Copy to:

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10) Registrar General, High Court, Bombay.

11) Registrar (Legal and Research), High Court (Appellate Side), Mumbai.

12) Registrar, High Court (Appellate Side/Original Side), Mumbai.

13) Registrar, High Court, Nagpur, Aurangabad and Panaji Bench.

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20) Desk-6 (Select File).

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Exh-D 51

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NOTARY SANJEEV GOVT. GAIKWAD GREATER MUMBAI Regn. No. 51072 Regn. Dt. 07-01-2030 GOVT. OF INDIA

2017 DGLS(Bom.) 1207
(BOMBAY HIGH COURT)

Equivalent Citations :-2017 (7) Bom.C.R. 623 : 2018 (1) All.M.R. 673 :

Before :- A.S. Oka : A.K. Menon : J J

Vihar Durve
Versus
State of Maharashtra and Others

Case No :Public Interest Litigation No.188 of 2015
Date of Decision : 11-Aug-2017

Acts Referred :

Maharashtra Civil Services (Pension) Rules,R.2(2)

HEADNOTE

Maharashtra Civil Services (Pension) Rules, 1982, R. 2(2) - Government Resolution dated 31-10-2015 - Introduction of Defined Contribution Pension Scheme ("New Scheme") for Government servants who are recruited on or after 1-11-2005 in Government service - Challenge to its applicability to Judicial Officers in State - Held, when impugned Government Resolution was issued, order of Apex Court directing that service conditions of Judicial Officers shall be governed by Shetty Commission Report was in force. Therefore, action of applying impugned Government Resolution to Judicial Officers is completely contrary to directions of Apex Court. Terms and conditions of service of Judicial Officers including grant of pensionary benefits are governed by directions of Apex Court. Therefore, even if letters of appointment issued to Judicial Officers appointed after 1-1-2005 contain a clause that pension will be governed by impugned Government Resolution, same will not be binding on Judicial Officers. As per New Scheme introduced by impugned Government Resolution, a Government servant is required to make contribution equivalent to 10% of his basic salary plus dearness pay and said amount will be deducted from his salary. Salary payable to Judicial Officers is determined firstly by recommendations of Shetty Commission and secondly by recommendations of Padmanabhan Committee as accepted by Apex Court. Orders of Apex Court do not permit such a deduction to be made. Making of such deduction from

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salary of a Judicial Officer will be a breach of orders of Apex Court. Therefore, impugned Government Resolution is not at all applicable to Judicial Officers who are appointed from 1-11-2005. (Paras 14 to 18)

# # #

Cases Referred :

1. All India Judges Association Vs. Union of India;2002 AIR(SC) 1752 : 2002 AIR(SCW) 1706 : 2002 (5) Bom.C.R. 242 : 2002 DGLS(SC) 358 : 2002 JT 503 : 2002 (3) Scale 291 : 2002 (4) SCC 247 : 2002 (3) Supreme 180
2. All India Judges Association Vs. Union of India;1992 AIR(SC) 165 : 1991 DGLS(SC) 592 : 1991 (4) JT 285 : 1991 (2) Scale 969 : 1992 (1) SCC 119
3. All India Judges Association: State of H.P.: Shamsher Bahadur Singh Vs. Union of India: High Court of Himachal Pradesh: State of Bihar;1993 AIR(SC) 2493 : 1993 DGLS(SC) 641 : 1993 JT 618 : 1994 (1) MLJ 12 : 1993 (3) Scale 502 : 1993 (4) SCC 288
4. All India Judges Association Vs. Union of India;2004 DGLS(SC) 1257 : 2004 (6) Scale 268 : 2004 (12) SCC 444 :
5. All India Judges Vs. Union of India, (2010)4 S.C.C. 730
6. All India Judges Association Vs. Union of India;2010 DGLS(SC) 1647 : 2010 (5) Scale 715 : 2010 (14) SCC 720 :

Advocates Appeared :

Jalan Sandeep, for petitioner.
Rohit Deo, Adv.Gen. a/w. A.B. Vagyani, G.P. & Manish M. Pabale, A.G.P., for respondent 1.
Sanjay Udeshi i/b. Sanjay Udeshi & Co., for respondent No. 2.
Atul G. Damle, Sr.Adv. i/b. Jayesh Madhav Joshi, for respondent No. 3.

JUDGMENT :

Per A.S. Oka, J. :-

1. This Public Interest Litigation is preferred raising several issues regarding the Judiciary in the State of Maharashtra in general. A prayer is for setting up various additional courts as set out in prayer Clauses (a) to (j). In the first paragraph of order dated 12th February, 2016, a bench of this Court of which one of us (A.S. Oka, J.) is a party, passed the following order:

NOTARY
SANJEEV
GHAZIABAD
GREATER NOIDA
REGN. NO. 3707
Exp. DL 07-01-2030
GOVT. OF INDIA

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"Amongst various issues which are raised in this petition, at present we are dealing with two issues. The first issue is regarding the discontinuation of the Pension Scheme to the judicial officers which was applicable in terms of the recommendations of the Shetty Commission. Now a Contributory Pension Scheme is made applicable with effect from the year 2010 even to the judicial officers who will have to contribute 10% of their salary to the said pension scheme. The recommendations of the Shetty Commission were accepted by the Apex Court. Even the recommendations of the committee headed by Justice Padmanabhan were accepted by the Apex Court. Based on the said recommendations, a Government Resolution dated 5th January 2011 was issued by the State Government. Apart from the binding recommendations of the Shetty Commission and the Padmanabhan Commission, the question is whether the judicial officers can be treated on par with the officers of the State as far as pension is concerned. Under the present Recruitment Rules. even a fresh law graduate who is not having any experience of practice can join the Judicial Service at the age of 25 years as a Civil Judge Junior Division. If such a fresh law graduate after rendering service for 35 years retires, he will not be entitled to the benefit of the Pension Scheme which was available as per the recommendations of the Shetty Commission and Pension Scheme can be made applicable to the judicial officers in the face of the recommendations which were accepted by the Apex Court. The State Government will have to treat the Judicial Officers differently from any other officers on its establishment. This aspect was brought to the notice of the learned Government Pleader on the last occasion. Today, he states that the issue is being considered by the State Government."

2. On the basis of a prayer made by the learned Counsel appearing for the petitioner, a permission was granted on 9th August, 2016 to amend the petition for the purpose of incorporating a challenge to the Government Resolution dated 31st October, 2005 which introduces "Defined Contribution Pension Scheme (for short "the New Scheme") for the Government Servants who are recruited on or after 1st November, 2005 in the Government service. The challenge to this Government Resolution (for short "the impugned Government Resolution") is confined to its applicability to the Judicial Officers in the State.

3. As far as the other issues involved in this writ petition are concerned, several steps have been taken during the pendency of the petition for appointing additional Judges and for creating additional courts. By an order dated 27th October, 2016, a Bench of this Court directed that the issue regarding pensionery benefits admissible to the Judicial Officers deserves to be disposed of finally. Accordingly, the State Government was permitted to file a reply. There are two affidavits on record of Shri Neeraj Pradeep Dhote, Legal Advisor and Joint Secretary of the Law and Judiciary Department which are dated 16th June, 2016 and 19th July, 2016. There is also a reply filed on behalf of the High Court Registry which does not

GOVT. OF INDIA

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deal with the issue of pension to the Judicial Officers.

4. Before we come to the submissions made on the issue of challenge to the impugned Government Resolution, we must make a reference to the provisions relating to payment of pension to the Judicial Officers in the State before the impugned communication came into force. For that purpose, it will be necessary to make a reference to the decision of the Apex Court in the case of (All India Judges Association and Ors. Vs. Union of India and Ors.), 2002(5) Bom.C.R. 242(S.C.) : (2002)4 S.C.C. 247. The Apex Court, in its earlier order in the case of (All India Judges Association and Ors. Vs. Union of India), 1992(1) S.C.C. 119, issued certain directions. The first direction was that steps should be taken to bring about uniformity in the designations of the Judicial Officers by March 31, 1993. Another direction was that as and when Pay Commissions are set up in the Union Territories, the question of appropriate pay scales of the Judicial Officers be specifically referred and considered.

5 Union of India filed a petition for review of the directions issued by the Apex Court in the case of (All India Judges' Association and Ors. Vs. Union of India and Ors.), 1993(4) S.C.C. 288. The judgment in Review contains a direction that an independent Commission should be set up for determining the service conditions of Judicial Officers. The Government of India, by a resolution dated 21st March, 1993 constituted the first National Judicial Pay Commission under the Chairmanship of the Hon'ble Shri Justice K.J. Shetty. The report was submitted by Justice Shetty on 11th November, 1999. Various recommendations were made by Shetty Commission regarding various cadres in the Judiciary. By the aforesaid decision in the case of All India Judges Association and Ors. Vs. Union of India and Ors., the Apex Court accepted the recommendations of the Shetty Commission except certain modifications made as set out in the judgment. Clause 22.18 of the report contains the recommendations of the Shetty Commission on the aspect of pension. Relevant part of Clause 22.18 reads thus :-

"22.18

1. The revised pension of the Retired Judicial Officers should be 50% of the minimum pay of the post held at the time of retirement, as revised from time to time.

2. There should not be any ceiling limit on the maximum pension payable.

3. The pensioners should be given the benefit of full neutralisation of the cost of living in the same scale as is being extended to the serving Judicial Officers.

4. A ca[illegible]ment of Rs. 1,250/- per month as 'Domestic Help Allowance' to every retired

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Judicial Officer, which would be paid upon producing a certificate to that effect.

5. All retired Judicial Officers should be given a fixed monthly medical allowance of Rs 100/- to meet day-to-day medical expenses.

6 All the medical facilities that we have recommended to serving Judicial Officers with regard to treatment and reimbursement of expenditure etc. be made applicable to retirees."

6. The Apex Court accepted all the recommendations of the Shetty Commission subject to the amendments made by the same judgment of the Apex Court. Directions were issued under the said judgment to the State Government to report compliance. By further order dated 8th April 2004, (All India Judges and Ors. Vs. Union of India and Ors.), 2004(12) S.C.C. 444, passed in the same case, the Apex Court directed all the State Governments to adopt Karnataka model in regard to payment of pension to retired Judicial Officers.

7. There were directions issued by the Apex Court from time to time to various State Governments to make compliance with the recommendations of the Shetty Commission as approved by the Apex Court. By another decision in the case of (All India Judges and Ors. Vs. Union of India and Ors.), (2010)4 S.C.C. 730, the Apex Court directed that as the salary of the Judges of the High Court has been increased, it was necessary to appoint a Commission to go into the question of salary payable to the Judicial Officers. Accordingly, the following directions were issued by the Apex Court :-

"7. As salary of the High Court Judges had been increased, this Court appointed Justice T Padmanabhan, a retired Judge of the High Court of judicature at Madras, to go into the question as to what extent salary, allowances and perquisites of the judicial officers of the States can be increased. Justice Padmanabhan Committee has submitted Report suggesting various recommendations. Copy of the Report was furnished to all the State Governments and High Courts and opportunities were given to them to furnish their objections. Some of the States have filed their objections.

8. The main objection seems to be that some of the States have financial difficulties and it would not be possible for them to increase the salary of the Judges of the subordinate judiciary. It was argued by some of the States that they have implemented the Sixth Central Pay Commission and the scale of pay of the judicial officers had also been correspondingly increased. In these States, rules applicable shall have to be amended to give full effect to the Sixth Central Pay Commission, if any of the judicial officers are getting higher salary, allowances and perquisites, such State would be at liberty to give higher salary, allowances and perquisites

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than what has already been recommended by Justice Padmanabhan Committee."

8. Accordingly, Justice Padmanabhan Committee submitted recommendations to the Apex Court. In the order dated 4th May, 2010 passed by the Apex Court in (All India Judges Association and Ors. Vs. Union of India and Ors.), 2010(14) S.C.C. 720, passed in the same case, the Apex Court recorded that certain States including the State of Maharashtra and Goa agreed to implement the recommendations made by Justice Padmanabhan Committee Report. The Apex Court, while issuing directions to implement Justice Padmanabhan Committee Report with effect from 1st January, 2006 observed that if any 6th Pay Commission recommendations are more beneficial to the Judicial Officers, they will continue to be benefited to that effect.

9. The State Government issued Government Resolutions for giving effect to the directions of the Apex Court. The Government Resolution dated 28th September, 2005 was issued for giving effect to the aforesaid order dated 8th April 2004 of the Apex Court for granting benefits of pension to the Judicial Officers retired after 1st July, 1996 and the Judicial Officers retired prior to 1st July, 1996.

10. The State Government issued a notification dated 5th January, 2011 (as amended on 30th March 2011) by which recommendations of Padmanabhan Committee were accepted. The said Government Resolution gives effect to the recommendations of Padmanabhan Committee regarding the pension payable to the Judicial Officers in the State. The said GR specifically deals with pension payable to Judicial Officers who retired on 1st January, 2006 or thereafter. By a Government Resolution dated 25th July 2011, the benefits of the Government Resolutions were extended to the judicial officers who retired prior to 1st January 2006. Clause 2 of the aforesaid Resolution dated 5th January 2011 provides that the pension shall be computed in accordance with the Pension Rules of the State Government. The said Rules are the Maharashtra Civil Services (Pension) Rules, 1982 (for short "the Pension Rules").

11. The impugned Government Resolution dated 31st October, 2005 reads thus :-

"INTRODUCTION

Government of India vide Notification, Ministry of Finance, Department of Economic Affairs, dated 22nd December 2003 introduced a new Contribution Pension Scheme i.e. "Defined Contribution Pension System" for the employees who are recruited on or after 1st January 2004 in Central Government Service. Government of India has also declared that the option of joining the aforesaid new Contribution Pension Scheme would also be available to the State

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Government. Besides, under this scheme Government of India have Constituted a independent "Pension Fund Regulatory and Development Authority (PFRDA)" for the management and regulation of the pension fund.

The question of introduction of New Contribution Pension Scheme, on the lines of Government of India, for new recruits in State Government was under consideration of this Government.

RESOLUTIONS

2. (a) Government has now decided that a new "Defined Contribution Pension Scheme", on the lines of Government of India, replacing the existing pension scheme, as detailed below, would be made applicable to the Government servants who are recruited on or after 1st November 2005 in State Government Service,

(b) Government is also pleased to decide that for the purpose of implementation of the above new Defined Contribution Pension Scheme, this State Government would join the aforesaid new defined contribution pension system introduced by Government of India.

(c) The Government is also pleased to decide that the provisions of,

(i) the existing pension scheme (i.e. Maharashtra Civil Services (Pension) Rules, 1982 and Maharashtra Civil Services (Commutation of Pension) Rules, 1984 and

(ii) the existing General Provident Fund Scheme (GPF) would not be applicable to the Government servants who are recruited on or after 1st November 2005 in State Government service.

SALIENT FEATURES OF THE NEW PENSION SCHEME

3. The salient features of the new pension scheme are as under:

(a) This scheme shall be called as "Defined Contribution Pension Scheme".

(b) This scheme will come into force with effect from 1st November 2005.

(c) The New Contribution Pension Scheme will be mandatory for all the Government servants who are recruited on or after 1st November 2005 in State Government service.

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(d) The new contribution pension Scheme will be based on defined contribution and will have two tiers, i.e. Tierl & Tier-II.

Tier-I will be mandatory for all the Government servants who will be recruited on or after 1st November 2005 in State Government service whereas TierII will be optional for them and at their discretion.

(e) Under Tier-I, every Government servant will have to make a monthly contribution at 10% of his "Basic Pay plus Dearness Pay (if any) plus Dearness Allowance", which will be deducted from his salary bill every month. The State Government will make an equal matching contribution. The contributions and the investment returns will be kept in a non-withdrawable "Pension Tier-I Account."

(f) Under Tier-II, each Government servant, in addition to the above mentioned Pension Tier-I Account, will also have a "Voluntary Tier-II withdrawable Account" at his option. Contribution made by the Government servant will be kept in such separate account and that will be withdrawable at the option of the Government servant. However, Government will not make any contribution in this account.

(g) A Government servant can normally exit at or after attaining the age of superannuation (i.e. 58 years/60 years, as the case may be) from the Tier-I of the new pension scheme. However, at exit, it would be mandatory for him to invest 40% of the total accumulated pension wealth to purchase an annuity (from Life Insurance Company regulated by Pension Fund Regulatory and Development Authority).

In the case of Government servant, the annuity should provide for pension for the life time of the Government servant and his dependent parents and his spouse at the time of retirement.

The Government servant would receive a lumpsum of the remaining pension wealth, which he would be free to utilise in any manner.

A Government servant would have the flexibility to leave the pension scheme prior to age of superannuation (i.e. 58 years/60 years, as the case may be). However, in this case, the mandatory annuitisation would be 80% of the pension wealth.

APPLICABILITY OF THE SCHEME

As mentioned above, new defined contribution pension scheme will be applicable to

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Government servants who are recruited on or after 1st November 2005 in State Government service.

(b) Government is also pleased to direct that the above decision should, mutatis-mutandis apply to the employees, who are recruited on or after 1st November 2005, in the services of the Recognized and Aided Educational Institutions, Non-Agricultural Universities and affiliated Non-Government Colleges and Agricultural Universities etc., to whom the existing pension scheme and General Provident Fund Scheme is applicable.

(c) In exercise of the powers conferred by the proviso to section 248 of the Maharashtra Zilla Parishads and Panchayat Samiti's Act 1961 (Mah. V of 1962) and of all the other powers enabling it in that behalf, Government is further pleased to decide that the above decision shall apply to the employees, who are recruited on or after 1st November 2005 in the services of Zilla Parishads.

IMPORTANT INSTRUCTIONS TO ADMINISTRATIVE DEPARTMENTS/ APPOINTING AUTHORITIES

5. Consequent to the above decision,

a) Government is pleased to direct that General Administration Department and all concerned administrative departments in Mantralaya, should take immediate steps to notify appropriate amendments to all concerned "Recruitment Rules".

b) Government is also pleased to direct that General Administration Department, all other concerned administrative departments in Mantralaya, all Selection Boards in the State, Maharashtra Public Service Commission and all appointing authorities should immediately bring in writing to the notice of all the candidates who are to be recruited on various Government establishments, on or after 1st November 2005 that,

"On their appointment to the Government Service on or after 1st November 2005, they would be covered under New "Defined Contribution Pension Scheme" and that the existing pension scheme (i.e. Maharashtra Civil Services (Pension) Rules, 1982 and Maharashtra Civil Services (Commutation of Pension) Rules, 1984) and General Provident Fund Scheme will not be applicable to them."

6. Detailed instructions regarding the procedure to be adopted by Heads of Department/Offices/Drawing and Disbursing Officers in respect of drawal of bills, recovery of

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contribution from Government employees, payment of Government contribution, etc., as well as the instructions regarding the accounting procedure, arrangement regarding fund management and record keeping etc., will be issued shortly.

7. Formal amendment to the Maharashtra Civil Services (Pension) Rules, 1982 and Maharashtra Civil Services (Commutation) Rules, 1984 and General Provident Fund Rules, in terms of the decision contained in this order are being made separately.

8. This order will be available on the following Web Sites of Government :

(i) finance.mah.nic.in

(ii) www.maharashtra.gov.in

By order and in the name of the Governor of Maharashtra,

NASIMA M. SHAIKH,

Deputy Secretary to Government"

(emphasis added)

12. The stand of the State Government as reflected from the affidavit of Shri Neeraj P. Dhote, Joint Secretary of Law and Judiciary Department is that the New Scheme is being made mandatory to all Government Servants who retire on or after 1st November, 2005. Reliance is placed on amendment to the Maharashtra Civil Services (Pension) Rules, 1982 by incorporating sub-rule (2) in Rule 2 which provides that these Rules shall not apply to the Government Servants who are recruited on or after 1st November, 2005. The stand taken in paragraph 9 is that in the appointment letters issued to the Judicial Officers after 1st November, 2005 it has been specifically mentioned that they will be governed by the New Scheme. By way of illustration, reliance is placed on a letter of appointment issued to a Judicial Officer on 7th June, 2016.

13. The learned Counsel for the petitioner submitted that the pensionary benefits payable to the Judicial Officers of the State are governed by the aforesaid directions issued from time to time and the Government Resolutions issued from time to time on the basis of the orders of the Apex Court. Therefore, the action of applying the New Scheme under the impugned Resolution without seeking modification of the orders of the Apex Court is illegal.

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The learned Advocate General defended the impugned Government Resolution. The learned Senior Counsel representing the Maharashtra State Judges Association supported the stand taken by the petitioner. The learned Counsel for the High Court administration has assisted the Court by pointing out various directions of the Apex Court.

14. We have considered the submissions. There is a fallacy in the stand taken by the State Government. In fact, the State Government accepted the recommendations of Padmanabhan Committee appointed under the orders of the Apex Court. The Apex Court by an order dated 26th July, 2010 directed that the benefits recommended by the Padmanabhan Committee should be applied with effect from 1st January, 2006. As per the orders of the Apex Court, service conditions of the Judicial Officers in the State including pensionary benefits shall be in terms of recommendations of Padmanabhan Committee which are accepted by the Supreme Court. As far as pensionary benefits to the Judicial Officers are concerned what operates is the Government Resolution dated 5th January, 2011 (as modified on 30th March 2011. Prior to acceptance of the report of the Padmanabhan Committee, the service conditions were governed by the Report of Justice Shetty Commission as modified by the Apex Court. The recommendations as amended by the order of the Apex Court were in operation. Therefore, when the impugned Government Resolution was issued, the order of the Apex Court directing that service conditions of the Judicial Officers shall be governed by the Shetty Commission Report was in force. Therefore, the action of applying the impugned Government Resolution to the Judicial Officers is completely contrary to the directions of the Apex Court. In fact, the impugned Government Resolution is not at all applicable to the Judicial Officers who are appointed from 1st November, 2005. The terms and conditions of service of Judicial Officers including the grant of pensionary benefits are governed by the directions of the Apex Court. Therefore, even if the letters of appointment issued to the Judicial Officers appointed after 1st January, 2005 contain a clause that the pension will be governed by the impugned Government Resolution, the same will not be binding on the Judicial Officers.

15. As per the New Scheme introduced by the impugned Government Resolution, a government servant is required to make contribution equivalent to 10% of his basic salary plus dearness pay and the said amount will be deducted from his salary. The salary payable to the Judicial Officers is determined firstly by recommendations of Shetty Commission and secondly by recommendations of Padmanabhan Committee as accepted by the Apex Court. The State Government cannot affect the quantum of salary of Judicial Officers in this fashion by providing for a deduction of 10% of basic salary plus dearness pay from the salary of a Judicial Officer. The orders of the Apex Court do not permit such a deduction to be made. Making such deduction from the salary of a Judicial Officer will be a breach of the orders of the Apex Court.

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16. Therefore, in our considered view, the impugned Government Resolution could not have been applied to the Judicial Officers appointed after 31st October 2005 and the action of Government of Maharashtra of applying the same to the Judicial Officers is completely in breach of the orders of the Apex Court.

17. Certain amounts have been deducted by way of contribution to the Pension Scheme from the salary payable to the Judicial Officers appointed on or after 1st November, 2005. It goes without saying that if some of the Judicial Officers who have been appointed after 31st October, 2005 have no objection for continuing with the New Scheme under the impugned Government Resolution, they will be entitled to continue under the New Scheme. The State Government will have to give time of two months from today to all the Judicial Officers appointed on or after 1st November 2005 to exercise option of continuing under the New Scheme. However, those who do not opt for the Scheme, will be entitled to refund. After deducting matching contribution made by the Government with interest/return, if any, there on, the entire amount in "Pension Tier - I" account of the Judicial Officers who do not opt to continue shall be transferred to "Pension Tier - II withdrawable account".

18. Accordingly, we hold that :

(i) We hold that the impugned Government Resolution dated 31st October, 2015 is not applicable to the Judicial Officers in the State who were appointed on or after 1st November 2005. The said officers will be entitled to the same pensionary benefits which are available to the judicial officers appointed before 1st November 2005. However, the judicial officers who are appointed on or after 1st November 2005 will have an option to continue under the New Scheme.

(ii) The State Government shall give an option to the Judicial Officers appointed after cut-off date (31st October 2005) to continue under the New Scheme under the impugned Government Resolution. The option shall be exercised within a period of two months from today. The judicial officers who fail to exercise the option will be governed by Pension Scheme which is applicable to all Judicial Officers appointed before 1st November, 2005.

(iii) In case of those Judicial Officers who do not opt to continue with the New Scheme under the impugned Government Resolution, the entire contribution deducted from their salary along with the return/interest accrued thereon shall be transferred from their respective "Pension Tier-I account" to their "Voluntary TierII withdrawable Account" within a period of three months thereafter. We make it clear that the State Government's Matching Contribution with interest/return accrued thereon shall not be transferred as aforesaid and the State Government

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shall be entitled to withdraw the same from Tier - I account. The Judicial Officers will be entitled to withdraw the amounts as and when the same are transferred to "Voluntary Tier - II withdrawable Account".

(iv) Now this petition shall be placed before the appropriate Bench on 14th August 2017 for directions.

Petition before appropriate Bench.

TRUE COPY
Advocate

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EXH-E 64

1. Mrs. Rekha V. Rane
2. Ms. Charushila M. Vaidya
3. Mr. Hrushikesh P. Nikumb
4. Mrs. Varsha N. Ubale
5. Ms. Dipika S. Kubal
High Court of Bombay
30th September, 2023

The Registrar,
Original Side,
High Court, Mumbai.

Sub:- Regarding implementation of Old Pension Scheme to the Undersigned Officers.

Re :- 1. Order dated 11th August, 2017 passed in PIL bearing No. 188 of 2015 by their Lordships The Hon'ble Shri. Justice A. S. Oak and Hon'ble Shri. Justice A. K. Menon, JJ

2. Order dated 27th March, 2018 passed in Writ Petition bearing No. 643 of 2015 by Hon'ble Supreme Court.

3. Government Resolution dated 17th May, 2018 bearing No. HTC-1216/56/M.No.15/Desk-3

4. Government Resolution dated 19th April, 2022 bearing No. Misc- 2021/M.No.95/D-6

5. Order dated 10th March, 2023 passed in Writ Petition bearing No.2853 of 2022 by Their Lordships The Hon'ble Shri. Justice G. S. Patel and Her Ladyship Smt. Justice Neela Gokhale.

6. Office Circular dated 27th April, 2023 bearing No. P & E/379/ 2023.

7. Government Circular dated 31st March, 2023 bearing No.RANIYO-2022/P.K.34/Seva-4

Respected Sir,

In reference to the above subject we the undersigned officers state as under.

1. Your good self is aware that vide Government Resolution referred at Sr. No. 4 above the Post of undersigned officers, w.e.f. 04/07/2003 became entitled to

NOTARY SANJEEV GOPAL KAKAD GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

"The Pay Scale of Civil Judge Junior Division (ACP-1) Rs. 33090-920-40450-1080-45850 with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time". The said GR dated 19th April, 2022 is enclosed herewith as "Annexure-1" for your goodself's kind perusal and further action.

2. In commensurate to the said GR the office has fixed our pay following the guidelines as recommended by Justice Padmanabhan as well Justice Reddi Commissions' reports.

3. However though the pay scale is fixed as per the said GR the other service benefits are not yet been given save and except few allowances to some of us. Similarly, pensionery benefits have not yet been given.

4. We further wish to bring on record that the aforesaid Government Resolution dated 19th April, 2022 categorically states that the Post of Associate is entitled for the pensionery benefits therefore office ought to have implemented the Old Pension Scheme and as per the provisions of General Provident Fund Act a GPF account ought to have been opened in respect of the following officers..

5. The order under reference at Sr. No. 1 hereinabove passed by our own High Court has directed that the New Pension Scheme is not applicable to the Judicial Officers

We place on record the said decision under as follows :-.

(I) We hold that the impugned Government Resolution dated 31 st October, 2015 is not applicable to the Judicial Officers in the State who were appointed on or after 1st November 2005. The said officers will be entitled to the same pensionary benefits which are available to

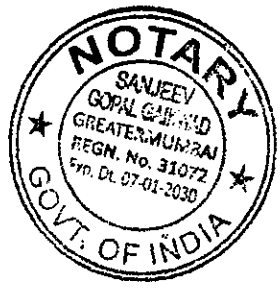
NOTARY SANJEEV GOPAL GARWAD GREATER MUMBAI REGN. NO. 31072 Exp. DT. 07-01-2030 GOVT. OF INDIA

the judicial officers appointed before 1st November 2005. However, the Judicial Officers who are appointed on or after 1st November 2005 will have an option to continue under the New Scheme;

(ii) The State Government shall give an option to the Judicial Officers appointed after cut-off date (31st October 2005) to continue under the New Scheme under the impugned Government Resolution. The option shall be exercised within a period of two months from today judicial officers who fail to exercise the option will be governed by pension scheme which is applicable to all judicial officers appointed before 1st November 2005.

(iii) In case of those judicial officers who do not opt to continue with the New Scheme under the impugned Government Resolution, the entire contribution deducted from their salary along with the return/interest accrued thereon shall be transferred from their respective "Pension Tier- I Account" to their "Voluntary Tier -II Withdrawable Account" within a period of three months from today. We make it clear that the State Government's Matching Contribution with interest/return accrued thereon shall not be transferred as aforesaid and the State Government shall be entitled to withdraw the same from Tier-I account. The Judicial Officers will be entitled to withdraw the amount as and when the same are transferred to "Voluntary Tier -II With drawable Account".

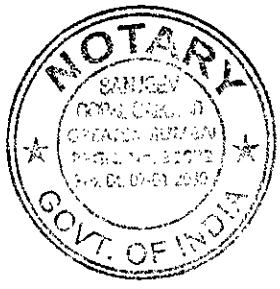
(iv) Emphasis supplied.



Hereto annexed and marked as "Annexure-2 " is the said order dated 11th August, 2017 passed in Public Interest Litigation bearing No.188 of 2015 by their Lordships The Hon'ble Shri. Justice A. S. Oak and Hon'ble Shri. Justice A. K. Menon, JJ, for your goodself's kind perusal and further action. The Hon'ble Apex Court was pleased to direct State of Maharashtra to implement the said order subject to outcome of the final order. Hereto annexed and marked as "Annexure-3" is the said order dated 27th March, 2018, for ready reference.

6. Following the said directions and considering the aforesaid legal position the Government of Maharashtra vide it's resolution dated 17th May, 2018 referred at Sr. No. 3 hereinabove was pleased to honor the orders of the Hon'ble High Court as well Hon'ble Apex Court. Hereto annexed and marked as "Annexure-4" is the said GR for ready reference.

7. The order under reference at Sr. No. 5 categorically reiterates that there could not be any delay in implementing the beneficial policies merely there being no any guidelines. Accordingly the office has extended the benefits of ACP-II to the following officers and has implemented the said GR. However no any steps been taken for implementing the Maharashtra Civil Services (Pension) Rules in accordance with the Government resolution bearing at Sr. No. 3 hereinabove. Hereto annexed and marked as "Annexure-5" is the said Order dated 10th March, 2023 passed in Writ Petition bearing No.2853 of 2022 by Their Lordships The Hon'ble Shri. Justice G. S. Patel and Her Ladyship Smt. Justice Neela Gokhale.



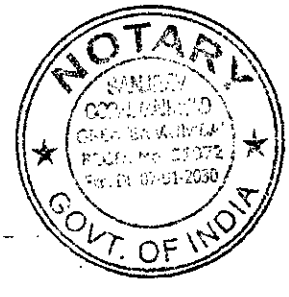
8. Despite there being Judicial verdicts passed by the Apex courts instead of following the recommendations of the Hon'ble High Court as well Apex Court the office has avoided in implementing the Old Pension scheme to the undersigned officers. Whereas Government Resolution has categorically stated that contribution towards the said DCPS/NPS schemes be discontinued on behalf of the employee and the members of the said scheme be given an option to choose between two schemes. i.e. new scheme of DCPS/NPS and old Scheme of Pension. In the event of no any option opted by the concerned members the Old pensionery scheme is to be implemented.

9. Vide circular referred to at Sr. 6 & Government Resolution at Sr. No. 7, an option was invited for the family pension in respect of the DCPS/NPS members. However we wish to bring to your notice that since we are entitled to Old Pension Scheme the same would not be applicable for us.

10. We therefore earnestly request your goodself to look into the matter and direct the concerned for implementing, the provisions of Maharashtra Civil Services (Pension) Rules in regard to the Old Pension Scheme, at the earliest.

11. We earnestly request your goodself to direct the office :-

    a. Implementing the aforesaid Orders order dated 11th August, 2017 passed in PIL bearing No.188 of 2015 by their Lordships The Hon'ble Shri. Justice A. S. Oak and Hon'ble Shri. Justice A. K. Menon, JJ, as well Government Resolutions, issued in commensurate with the said orders and the provisions of Maharashtra Civil Services (Pension) Rules to each of the officers undersigned, in it's true spirit.



b. The entire contribution deducted from the salary of undersigned officers alongwith the returns/interest accrued thereon lying in "Pension Tire –I account be transferred in our Voluntary account Tire-II. i..e withdrawable account" within a period of one month from today.

c. To open a GPF Account of each of the officer in pay and accounts department.

d. Appropriate directions be given to the office for depositing the deducted amount in the respective GPF accounts of each of the officer.

12. We hope your goodself will look into the matter and be kind enough to do the needful.

Yours faithfully

30/9/23

1. Mrs. Rekha V. Rane

30/9/2023

2. Ms. Charushila M. Vaidya

30/09/2023

3. Mr. Hrushikesh P. Nikumb

30/09/23

4. Mrs. Varsha N. Ubale

30/09/23

5. Ms. Dipika S. Kubal

Encl : As Above.

NOTARY SANJEEV GOPAL SHIRSAT GREATER MUMBAI REGN. No. 81072 Exp. DT. 07-01-2030 GOVT. OF INDIA

"Annexure – 1"

70

Regarding Revision of pay scales of Class 'A' and Class 'B' employees of the High Court, Bombay and it Benches at Nagpur and Aurangabad.

Government of Maharashtra

Law and Judiciary Department

Government Resolution No. Miscellaneous-2021/M.No.95/D-6

Madam Cama Road, Hutatma Rajguru Chowk,

Mantralaya, Mumbai 400 032

Date: 19 April, 2022

Read : - Letter No. PD (P) & (F)/5183/2021, dated 14th October, 2021 of the Registrar (Personnel), High Court, Appellate Side, Bombay

Preface : -

The Special Committee of the Hon'ble Judges, High Court Bombay has submitted a report for revision of pay scales of Class 'A' and Class 'B' employees working in the High Court, Bombay and its Bench at Nagpur and Aurangabad;

The Administrative Comittee of the Hon'ble Judges after accepting the said report in the meeting dated 5.10.2021 submitted it for approval of the State Government. This matter about granting approval for revision of the pay scales of aforesaid Class 'A' and Class employees working in the High Court was under consideration of t

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 31673 Exp. Dt. 07-01-2030 GOVT. OF INDIA

71

Government Resolution: -

The proposal of the Hon'ble High Court for implementation revision of payscale of Class 'A' and Class 'B' employees of the Hi Court, Bombay and its Benches at Nagpur and Aurangabad, is r e sanctioned by this Government Resolution after amending the s payscales, as shown in the following table :-

Table

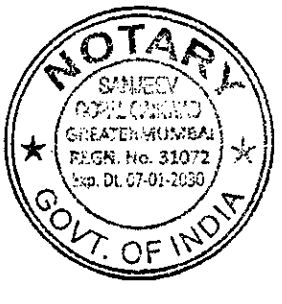
Sr. No.	Designation	Revised pay scale as per approved Report
(1)	(2)	(3)
1	2nd Assistant Master	The Pay Scale of Civil Judg. juni Division (ACP-1) Rs. 33090-920-4045 1080-45850 with admissible allowanc and perquisites including retireme benefits and service conditions as m be revised and made applicable frc time to time, w.e.f. 04/07/2003.
2	1st Assistant to Official Assignee	
3	2nd Assistant to Court Receiver	
4	3rd Assistant Master	
5	Associate	
6	Chief Translator and Interpreter	Pay Band-3 Rs. 15600-39100 plus Grac pay Rs. 7900/- w.e.f. 01.04.2011
7	Deputy Chief Translator and Interpreter	

NOTARY GOVT. OF INDIA

10	Protocol Officer cum Court Keeper	
11	Chief Librarian	
12	Assistant Registrar	
13	Assistant Director	
14	2nd Assistant to Official Assignee	Pay Band-3 Rs. 15600-39100 plus Grade pay Rs. 6600/- w.e.f. 01.04.2011
15	Librarian	
16	Section Officer	Pay Band-2 Rs. 9300-34800 plus Grade pay Rs. 5400/- w.e.f. 01.04.2011 Pay Band-3 Rs. 15600-39100 plus Grade pay Rs. 6600/- (After 4 years regular services) w.e.f. 01.04.2011
17	Senior Translator and Interpreter	Pay Band-2 Rs. 9300-34800 plus Grade pay Rs. 5400/- w.e.f. 01.04.2011
18	Court Keeper	Pay Band-2 Rs. 9300-34800 plus Grade pay Rs. 5400/- w.e.f. 01.04.2011
19	Accounts Officer	Pay Band-2 Rs. 9300-34800 plus Grade pay Rs. 5400/- w.e.f. 01.04.2011

2. The Registrar (Personnel), High Court, Appellate Side, Bomb to take appropriate action for fixation of pay as mentioned in the sa Paragraph (1).

3. The said Government Resolution has been issued as per t assent/sanction obtained from the Finance Department vide it's Infor



73

4. The said Government Resolution has been made available on the website of Government of Maharashtra - www.maharashtra.gov.in and the Code thereof is bearing No. 202204191549468012. This order is hereby issued by attesting digital signature.

By order and in the name of the Governor of Maharashtra,

PRAVIN ARUN KUMBHOJKAR (Digital signature)

(Pravin Arun Kumbhojkar)

Deputy Legal Adviser-cum-Deputy Secretary

Copy to:

1.The Principal Secretary of Hon'ble Governor.
2. The Principal Secretary of Hon'ble the Chief Minister.
3. The Private Secretary to the Hon'ble State Minister (Law & Judiciary).
4. Hon'ble Leader of Opposition, Legislative Council /Assembly.
5. All the Members of Hon'ble Legislative Council/Assembly.
6. The Chief Secretary, Government of Maharashtra, Mantralaya, Mumbai.
7. The Principal Secretary & Legal Advisor, Law and Judiciary Deptt., Mantralaya Mumbai.
8. The Principal Secretary & (Senior Law Advisor), Law and Judiciary De Mantralaya, Mumbai.
9. The Secretary (Legislation), Law and Judiciary Deptt., Mantralaya, Mumbai.
10. The Registrar General, High Court, Bombay.
11. The Registrar (Legal & Research), High Court (Appeallate Side), Bombay.
12. The Registrar (Appeallate Side/Original Side), Bombay.
13. The Registrar, High Court, Benches at Nagpur, Aurangabad and Panji.
14.The Accountant General (Audit and Disbursement/Auditing)-I, Maharashtra, Mumbai.
15.The Accountant General (Audit and Disbursement/Auditing)-II, Maharashtra,

NOTARY GOVT. OF INDIA

pmw

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

PUBLIC INTEREST LITIGATION NO.188 OF 2015

Vihar Durve ... Petitioner

Versus

The State of Maharashtra and Ors. ... Respondents

Mr. Jalan Sandeep for the Petitioner.

Mr. Rohit Deo, Advocate General a/w Mr. A.B. Vagyani, Government Pleader and Mr. Manish M. Pabale, AGP for the Respondent No.1.

Mr. Sanjay Udeshi i/by M/s. Sanjay Udeshi & Co. for the Respondent No.2.

Mr. Atul G. Damle, Senior Advocate i/by Mr. Jayesh Madhav Joshi for the Respondent No.3.

CORAM : A.S. OKA & A.K. MENON, JJ.

DATE ON WHICH SUBMISSIONS WERE HEARD : 5th MAY 2017
DATE ON WHICH JUDGMENT IS PRONOUNCED : 11th AUGUST 2017

JUDGMENT (PER A.S. OKA, J.):-

1 This Public Interest Litigation is preferred raising several issues regarding the Judiciary in the State of Maharashtra in general. A prayer is for setting up various additional Courts as set out in prayer clauses (a) to (j). In the first paragraph of order dated 12th February, 2016, a bench of this Court of which one of us (A.S.Oka, J.) is a party, passed the following order :-

75

"Amongst various issues which are raised in this petition, at present we are dealing with two issues. The first issue is regarding the discontinuation of the Pension Scheme to the judicial officers which was applicable in terms of the recommendations of the Shetty Commission. Now a Contributory Pension Scheme is made applicable with effect from the year 2010 even to the judicial officers who will have to contribute 10% of their salary to the said pension scheme. The recommendations of the Shetty Commission were accepted by the Apex Court. Even the recommendations of the committee headed by Justice Padmanabhan were accepted by the Apex Court. Based on the said recommendations, a Government Resolution dated 5th January 2011 was issued by the State Government. Apart from the binding recommendations of the Shetty Commission and the Padmanabhan Commission, the question is whether the judicial officers can be treated on par with the officers of the State as far as pension is concerned. Under the present Recruitment Rules, even a fresh law graduate who is not having any experience of practice can join the Judicial Service at the age of 25 years as a Civil Judge, Junior Division. If such a fresh law graduate after rendering service for 35 years retires, he will not be entitled to the benefit of the Pension Scheme which was available as per the recommendations of the Shetty Commission and Pension Scheme can be made applicable to the judicial

officers in the face of the recommendations which were accepted by the Apex Court. The State Government will have to treat the Judicial Officers differently from any other officers on its establishment. This aspect was brought to the notice of the learned Government Pleader on the last occasion. Today, he states that the issue is being considered by the State Government."

2 On the basis of a prayer made by the learned counsel appearing for the petitioner, a permission was granted on 9th August, 2016 to amend the petition for the purposes of incorporating a challenge to the Government Resolution dated 31st October, 2005 which introduces "Defined Contribution Pension Scheme (for short "the New Scheme") for the Government Servants who are recruited on or after 1st November, 2005 in the Government service. The challenge to this Government Resolution (for short "the impugned Government Resolution") is confined to its applicability to the Judicial Officers in the State.

3 As far as the other issues involved in this Writ Petition are concerned, several steps have been taken during the pendency of the Petition for appointing additional Judges and for creating additional Courts. By an order dated 27th October, 2016, a Bench of this Court directed that the issue regarding pensionery benefits admissible to the

77

Judicial Officers deserves to be disposed of finally. Accordingly, the State Government was permitted to file a reply. There are two affidavits on record of Shri Neeraj Pradeep Dhote, Legal Advisor-cum-Joint Secretary of the Law and Judiciary Department which are dated 16th June, 2016 and 19th July, 2016. There is also a reply filed on behalf of the High Court Registry which does not deal with the issue of pension to the Judicial Officers.

4 Before we come to the submissions made on the issue of challenge to the impugned Government Resolution, we must make a reference to the provisions relating to payment of pension to the Judicial Officers in the State before the impugned communication came into force. For that purpose, it will be necessary to make a reference to the decision of the Apex Court in the case of *All India Judges Association and Ors. Vs. Union of India and Ors.*[1]. The Apex Court, in its earlier order in the case of *All India Judges Association and Ors. Vs. Union of India*[2], issued certain directions. The first direction was that steps should be taken to bring about uniformity in the designations of the Judicial Officers by March 31, 1993. Another direction was that as and when Pay Commissions are set up in the Union Territories, the question of appropriate pay scales of the Judicial Officers be specifically referred and considered.

1 (2002)4 SCC 247
2 1992(1) SCC 119

5 Union of India filed a Petition for review of the directions issued by the Apex Court in the case of *All India Judges' Association and Ors. Vs. Union of India and Ors*[3]. The Judgment in Review contains a direction that an independent Commission should be set up for determining the service conditions of Judicial Officers. The Government of India, by a resolution dated 21st March, 1993 constituted the first National Judicial Pay Commission under the Chairmanship of the Hon'ble Shri Justice K.J. Shetty. The report was submitted by Justice Shetty on 11th November, 1999. Various recommendations were made by Shetty Commission regarding various cadres in the Judiciary. By the aforesaid decision in the case of *All India Judges Association and Ors. Vs. Union of India and Ors.*, the Apex Court accepted the recommendations of the Shetty Commission except certain modifications made as set out in the judgment. Clause 22.18 of the report contains the recommendations of the Shetty Commission on the aspect of pension. Relevant part of clause 22.18 reads thus :-

"22.18

1. The Revised Pension of the Retired Judicial Officers should be 50% of the minimum pay of the post held at the time of retirement, as revised from time to time.
2. There should not be any ceiling limit on the maximum pension payable.
3. The Pensioners should be given the benefit of full

3 1993(4) SCC 288

79

neutralisation of the cost of living in the same scale as is being extended to the serving Judicial Officers.

4. A cash payment of Rs.1,250/- per month as 'Domestic Help Allowance' to every retired Judicial Officer, which would be paid upon producing a certificate to that effect.
5. All retired Judicial Officers should be given a fixed monthly medical allowance of Rs.100/- to meet day-to-day medical expenses.
6. All the medical facilities that we have recommended to serving Judicial Officers with regard to treatment and reimbursement of expenditure etc. be made applicable to retirees."

6 The Apex Court accepted all the recommendations of the Shetty Commission subject to the amendments made by the same judgment of the Apex Court. Directions were issued under the said judgment to the State Government to report compliance. By further order dated 8th April 2004[3A] passed in the same case, the Apex Court directed all the State Governments to adopt Karnataka model in regard to payment of pension to retired Judicial Officers.

7 There were directions issued by the Apex Court from time to time to various State Governments to make compliance with the recommendations of the Shetty Commission as approved by the Apex Court. By another decision in the case of *All India Judges and Ors. Vs. Union of India and Ors.*[4], the Apex Court directed that as the salary of

3A (2004)12 SCC 444
4 (2010) 4 SCC 730

the Judges of the High Court has been increased, it was necessary to appoint a Commission to go into the question of salary payable to the Judicial Officers. Accordingly, the following directions were issued by the Apex Court :-

> "7. As salary of the High Court Judges had been increased, this Court appointed Justice E. Padmanabhan, a retired Judge of the High Court of Judicature at Madras, to go into the question as to what extent salary, allowances and perquisites of the judicial officers of the States can be increased. Justice Padmanabhan Committee has submitted Report suggesting various recommendations. Copy of the Report was furnished to all the State Governments and High Courts and opportunities were given to them to furnish their objections. Some of the States have filed their objections.
>
> 8. The main objection seems to be that some of the States have financial difficulties and it would not be possible for them to increase the salary of the Judges of the subordinate judiciary. It was argued by some of the States that they have implemented the Sixth Central Pay Commission and the scale of pay of the judicial officers had also been correspondingly increased. In these States, rules applicable shall have to be amended to give full effect to the Sixth Central Pay Commission, if any of the judicial officers are getting higher salary or perquisites, such State would be at liberty to give higher salary, allowances and perquisites than what has

already been recommended by Justice Padmanabhan Committee."

8 Accordingly, Justice Padmanabhan Committee submitted recommendations to the Apex Court. In the order dated 4th May, 2010 passed by the Apex Court in All India Judges Association and Ors. Vs. Union of India and Ors.[5] passed in the same case, the Apex Court recorded that certain States including the State of Maharashtra and Goa agreed to implement the recommendations made by Justice Padmanabhan Committee Report. The Apex Court, while issuing directions to implement Justice Padmanabhan Committee Report with effect from 1st January, 2006 observed that if any 6th Pay Commission recommendations are more beneficial to the Judicial Officers, they will continue to be benefited to that effect.

9 The State Government issued Government Resolutions for giving effect to the directions of the Apex Court. The Government Resolution dated 28th September, 2005 was issued for giving effect to the aforesaid order dated 8th April 2004 of the Apex Court for granting benefits of pension to the Judicial Officers retired after 1st July, 1996 and the Judicial Officers retired prior to 1st July, 1996.

5 (2010) 14 SCC 720

10 The State Government issued a notification dated 5th January, 2011 (as amended on 30th March 2011) by which recommendations of Padmanabhan Committee were accepted. The said Government Resolution gives effect to the recommendations of Padmanabhan Committee regarding the pension payable to the Judicial Officers in the State. The said GR specifically deals with pension payable to Judicial Officers who retired on 1st January, 2006 or thereafter. By a Government Resolution dated 25th July 2011, the benefits of the Government Resolutions were extended to the judicial officers who retired prior to 1st January 2006. Clause 2 of the aforesaid Resolution dated 5th January 2011 provides that the pension shall be computed in accordance with the Pension Rules of the State Government. The said Rules are the Maharashtra Civil Services (Pension) Rules,1982 (for short "the Pension Rules").

11 The impugned Government Resolution dated 31st October, 2005 reads thus :-

> "INTRODUCTION
>
> Government of India vide Notification, Ministry of Finance, Department of Economic Affairs, dated 22nd December 2003 introduced a new Contribution Pension Scheme i.e. "Defined Contribution Pension System" for the employees who are recruited on or after 1st January 2004 in Central Government Service. Government of

83

India has also declared that the option of joining the aforesaid new Contribution Pension Scheme would also be available to the State Government. Besides, under this scheme Government of India have Constituted an independent "Pension Fund Regulatory and Development Authority (PFRDA)" for the management and regulation of the pension fund.

The question of introduction of New Contribution Pension Scheme, on the lines of Government of India, for new recruits in State Government was under consideration of this Government.

RESOLUTIONS

2. (a) **Government has now decided that a new "Defined Contribution Pension Scheme", on the lines of Government of India, replacing the existing pension scheme, as detailed below, would be made applicable to the Government servants who are recruited on or after 1st November 2005 in State Government Service,**

(b) Government is also pleased to decide that for the purpose of implementation of the above new Defined Contribution Pension Scheme, this State Government would join the aforesaid, new defined contribution pension system introduced by Government of India.

(c) The Government is also pleased to decide that the provisions of,

(i) the existing pension scheme (i.e. Maharashtra Civil Services (Pension) Rules, 1982 and Maharashtra Civil

Services (Commutation of Pension) Rules, 1984 and

(ii) the existing General Provident Fund Scheme (GPF) would not be applicable to the Government servants who are recruited on or after 1st November 2005 in State Government service.

SALIENT FEATURES OF THE NEW PENSION SCHEME

3. The salient features of the new pension scheme are as under:-

(a) This scheme shall be called as "Defined Contribution Pension Scheme".

(b) This scheme will come into force with effect from 1st November 2005.

(c) The New Contribution Pension Scheme will be mandatory for all the Government servants who are recruited on or after 1st November 2005 in State Government service.

(d) The new contribution pension Scheme will be based on defined contribution and will have two tiers, i.e. - Tier-I & Tier-II.

Tier-I will be mandatory for all the Government servants who will be recruited on or after 1st November 2005 in State Government service whereas Tier-II will be optional for them and at their discretion.

(e) **Under Tier-I, every Government servant will have to make a monthly contribution at 10% of his "Basic Pay plus Dearness Pay (if any) plus Dearness Allowance", which will be deducted from his salary**

85

bill every month. The State Government will make an equal matching contribution. The contributions and the investment returns will be kept in a non-withdrawable "Pension Tier-I Account."

(f) **Under Tier-II, each Government servant, in addition to the above mentioned Pension Tier-I Account, will also have a "Voluntary Tier - II withdrawable Account" at his option. Contribution made by the Government servant will be kept in such separate account and that will be withdrawable at the option of the Government servant. However, Government will not make any contribution in this account.**

(g) A Government servant can normally exit at or after attaining the age of superannuation (i.e. 58 years/60 years, as the case may be) from the Tier-I of the new pension scheme. However, at exit, it would be mandatory for him to invest 40% of the total accumulated pension wealth to purchase an annuity (from Life Insurance Company regulated by Pension Fund Regulatory and Development Authority).

In the case of Government servant, the annuity should provide for pension for the life time of the Government servant and his dependent parents and his spouse at the time of retirement.

The Government servant would receive a lump-sum of the remaining pension wealth, which he would be free to utilise in any manner.

A Government servant would have the flexibility to leave the pension scheme prior to age of

superannuation (i.e. 58 years/60 years, as the case may be). However, in this case, the mandatory annuitisation would be 80% of the pension wealth.

APPLICABILITY OF THE SCHEME

4.(a) As mentioned above, new defined contribution pension scheme will be applicable to Government servants who are recruited on or after 1st November 2005 in State Government service.

(b) Government is also pleased to direct that the above decision should, mutatis-mutandis, apply to the employees, who are recruited on or after 1st November 2005, in the services of the Recognized and Aided Educational Institutions, Non-Agricultural Universities and affiliated Non-Government Colleges and Agricultural Universities etc., to whom the existing pension scheme and General Provident Fund Scheme is applicable.

(c) In exercise of the powers conferred by the proviso to Section 248 of the Maharashtra Zilla Parishads and Panchayat Samiti's Act 1961 (Mah.V of 1962) and of all the other powers enabling it in that behalf, Government is further pleased to decide that the above decision shall apply to the employees, who are recruited on or after 1st November 2005 in the services of Zilla Parishads.

IMPORTANT INSTRUCTIONS TO ADMINISTRATIVE DEPARTMENTS/ APPOINTING AUTHORITIES

5. Consequent to the above decision,

a) Government is pleased to direct that General Administration Department and all concerned administrative departments in Mantralaya, should take immediate steps to notify appropriate amendments to all concerned "Recruitment Rules".

b) Government is also pleased to direct that General Administration Department, all other concerned administrative departments in Mantralaya, all Selection Boards in the State, Maharashtra Public Service Commission and all appointing authorities should immediately bring in writing to the notice of all the candidates who are to be recruited on various Government establishments, on or after 1st November 2005 that,

"On their appointment to the Government Service on or after 1st November 2005, they would be covered under New "Defined Contribution Pension Scheme" and that the existing pension scheme (i.e. Maharashtra Civil Services (Pension)Rules, 1982 and Maharashtra Civil Services (Commutation of Pension) Rules, 1984) and General Provident Fund Scheme will not be applicable to them."

6. Detailed instructions regarding the procedure to be adopted by Heads of Department/Offices/Drawing and Disbursing Officers in respect of drawal of bills, recovery of contribution from Government employees,

payment of Government contribution, etc., as well as the instructions regarding the accounting procedure, arrangement regarding fund management and record keeping etc., will be issued shortly.

7. Formal amendment to the Maharashtra Civil Services (Pension) Rules, 1982 and Maharashtra Civil Services (Commutation) Rules, 1984 and General Provident Fund Rules, in terms of the decision contained in this order are being made separately.

8. This order will be available on the following Web Sites of Government :-

(i) finance.mah.nic.in
(ii) www.maharashtra.gov.in

By order and in the name of the Governor of Maharashtra,

NASIMA M. SHAIKH,
Deputy Secretary to Government"

(emphasis added)

12 The stand of the State Government as reflected from the affidavit of Shri Neeraj P. Dhote, Joint Secretary of Law and Judiciary Department is that the New Scheme is being made mandatory to all Government Servants who retire on or after 1st November, 2005. Reliance is placed on amendment to the Maharashtra Civil Services (Pension) Rules, 1992 by incorporating Sub-Rule (2) in Rule 2 which provides that these Rules shall not apply to the Government Servants

89

who are recruited on or after 1st November, 2005. The stand taken in paragraph 9 is that in the appointment letters issued to the Judicial Officers after 1st November, 2005 it has been specifically mentioned that they will be governed by the New Scheme. By way of illustration, reliance is placed on a letter of appointment issued to a Judicial Officer on 7th June, 2016.

13 The learned Counsel for the Petitioner submitted that the Pensionary benefits payable to the Judicial Officers of the State are governed by the aforesaid directions issued from time to time and the Government Resolutions issued from time to time on the basis of the orders of the Apex Court. Therefore, the action of applying the New Scheme under the impugned Government Resolution without seeking modification of the orders of the Apex Court is illegal. The learned Advocate General defended the impugned Government Resolution. The learned senior counsel representing the Maharashtra State Judges Association supported the stand taken by the Petitioner. The learned counsel for the High Court administration has assisted the Court by pointing out various directions of the Apex Court.

14 We have considered the submissions. There is a fallacy in the stand taken by the State Government. In fact, the State Government

accepted the recommendations of Padmanabhan Committee appointed under the orders of the Apex Court. The Apex Court by an order dated 26th July, 2010 directed that the benefits recommended by the Padmanabhan Committee should be applied with effect from 1st January, 2006. As per the orders of the Apex Court, service conditions of the Judicial Officers in the State including pensionary benefits shall be in terms of recommendations of Padmanabhan Committee which are accepted by the Supreme Court. As far as pensionary benefits to the Judicial Officers are concerned what operates is the Government Resolution dated 5th January, 2011 (as modified on 30th March 2011. Prior to acceptance of the report of the Padmanabhan Committee, the service conditions were governed by the Report of Justice Shetty Commission as modified by the Apex Court. The recommendations as amended by the order of the Apex Court were in operation. Therefore, when the impugned Government Resolution was issued, the order of the Apex Court directing that service conditions of the Judicial Officers shall be governed by the Shetty Commission Report was in force. Therefore, the action of applying the impugned Government Resolution to the Judicial Officers is completely contrary to the directions of the Apex Court. In fact, the impugned Government Resolution is not at all applicable to the Judicial Officers who are appointed from 1st November, 2005. The terms and conditions of service of Judicial

Officers including the grant of pensionary benefits are governed by the directions of the Apex Court. Therefore, even if the letters of appointment issued to the Judicial Officers appointed after 1st January, 2005 contain a clause that the pension will be governed by the impugned Government Resolution, the same will not be binding on the Judicial Officers.

15 As per the New Scheme introduced by the impugned Government Resolution, a government servant is required to make contribution equivalent to 10% of his basic salary plus dearness pay and the said amount will be deducted from his salary. The salary payable to the Judicial Officers is determined firstly by recommendations of Shetty Commission and secondly by recommendations of Padmanabhan Committee as accepted by the Apex Court. The State Government cannot affect the quantum of salary of Judicial Officers in this fashion by providing for a deduction of 10% of basic salary plus dearness pay from the salary of a Judicial Officer. The orders of the Apex Court do not permit such a deduction to be made. Making of such deduction from the salary of a Judicial Officer will be a breach of the orders of the Apex Court.

16 Therefore, in our considered view, the impugned Government Resolution could not have been applied to the Judicial

Officers appointed after 31st October 2005 and the action of Government of Maharashtra of applying the same to the Judicial Officers is completely in breach of the orders of the Apex Court.

17 Certain amounts have been deducted by way of contribution to the Pension Scheme from the salary payable to the Judicial Officers appointed on or after 1st November, 2005. It goes without saying that if some of the Judicial Officers who have been appointed after 31st October, 2005 have no objection for continuing with the New Scheme under the impugned Government Resolution, they will be entitled to continue under the New Scheme. The State Government will have to give time of two months from today to all the Judicial Officers appointed on or after 1st November 2005 to exercise option of continuing under the New Scheme. However, those who do not opt for the Scheme, will be entitled to refund. After deducting matching contribution made by the Government with interest/ return, if any, thereon, the entire amount in "Pension Tier – I" account of the Judicial Officers who do not opt to continue shall be transferred to "Pension Tier – II withdrawable account".

18 Accordingly, we hold that :

(i) We hold that the impugned Government Resolution dated 31st October, 2005 is not applicable to the Judicial

93

Officers in the State who were appointed on or after 1st November 2005. The said officers will be entitled to the same pensionary benefits which are available to the judicial officers appointed before 1st November 2005. However, the judicial officers who are appointed on or after 1st November 2005 will have an option to continue under the New Scheme;

(ii) The State Government shall give an option to the Judicial Officers appointed after cut-off date (31st October 2005) to continue under the New Scheme under the impugned Government Resolution. The option shall be exercised within a period of two months from today. The judicial officers who fail to exercise the option will be governed by Pension Scheme which is applicable to all Judicial Officers appointed before 1st November, 2005.

(iii) In case of those Judicial Officers who do not opt to continue with the New Scheme under the impugned Government Resolution, the entire contribution deducted from their salary along with the

return/interest accrued thereon shall be transferred from their respective "Pension Tier-I account" to their "Voluntary Tier-II withdrawable Account" within a period of three months from today. We make it clear that the State Government's Matching Contribution with interest/ return accrued thereon shall not be transferred as aforesaid and the State Government shall be entitled to withdraw the same from Tier – I account. The Judicial Officers will be entitled to withdraw the amounts as and when the same are transferred to "Voluntary Tier – II withdrawable Account".

(iv) Now this Petition shall be placed before the appropriate Bench on 14th August 2017 for directions.

(A.K. MENON, J) **(A.S. OKA, J)**

95

IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE/ORIGINAL JURISDICTION

Writ Petition(s)(Civil) No(s). 643/2015

ALL INDIA JUDGES ASSOCIATION Petitioner(s)

VERSUS

UNION OF INDIA & ORS. Respondent(s)

WITH

SLP(C) No. 31461/2017

T.C.(C) No. 3/2018

O R D E R

WP(C) No. 643/2015

The Committee appointed by this Court by the Orders of this Court dated 9.5.2017, submitted a report dated 9.3.2018 on Interim Relief(Pay) to the Judicial Officers. The gist of the Report is summarised in paragraph 15 of the Report. It reads:-

Summary of recommendations:-

1. Interim relief to the extent of 30% of increase in basic pay with accrued increments shall be paid to all categories/ranks of Judicial Officers.

2. The said increased in Pay shall be treated as a separate

3. Arrears shall be worked out with effect from 01.01.2016 on the above basis. The details of calculations are set out in Annexure-I.

4. On the same basis, the interim relief shall be provided to the pensioners and family pensioners with effect from 01.01.2016 and the arrears to be paid accordingly.

5. Wherever the benefit of interim relief has already been granted, the Judicial Officers in those States/UTs can exercise their option to continue to be governed by such Orders.

6. The amounts payable by way of interim relief now proposed are liable to the adjusted against the future determination pursuant to the final report submitted by the Commission.

Heard Mr. A.N.S. Nadkarni, ASG, Mr. Tushar Mehta, ASG, Mr. Gourab Banerji, learned senior counsel for the petitioner Association and various learned counsel representing some of the States and the Union Territories. None of the respondents raised any objection with respect to the recommendations made by the above-mentioned Committee regarding the interim relief(pay). In the circumstances, we deem it appropriate to direct all the respondents to implement the recommendations of the Commission, the summary of which is already extracted above.

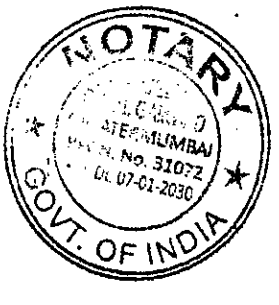
NOTARY SANJEEV GOPI CHAND GREATER MUMBAI Regd. No. 8107/1 Exp. On 07-01-2030 GOVT. OF INDIA

It is also brought to our notice that the Committee face certain difficulties in the process of executing the task entruste to them. The Chairman of the Committee addressed a letter to Mr. P.S. Narasimha, who is assisting the Committee. Mr. Narasimha placed a note before this Court pointing out the salient features of the above-mentioned letter. Having regard to the content of the letter mentioned above, we deem it appropriate to direct the Union of India as follows:-

(i) The Chairman and Members of the Commission should receive emoluments/pay and allowances from 01.06.2017 as they had commenced work in the first week of June, 2017.

(ii) The Secretary should receive emoluments w.e.f. 01.09.2017 as he had commenced work on 16.08.2017.

We also deem it appropriate to direct (i) the State of Telangana to provide the assistance of one of its Officers, not below the rank of a Joint Secretary in the Finance Department, to the Commission (ii) that the interim relief regarding the pay of the Judicial Officers as recommended by the Commission be implemented by all the concerned States and Union Territories w.e.f. 1st of May, 2018. The arrears payable pursuant to the above-mentioned recommendations shall be paid on or before 30th June, 2018.



98

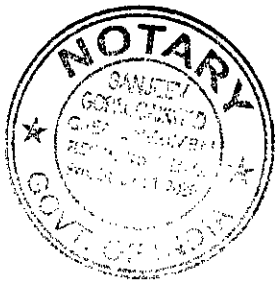
SLP(C) No. 31461/2017

T.C.(C)No. 3/2018

These two matters are inter-connected. The special leave petition arises out of an interlocutory order passed by the Bombay High Court on 11.8.2017 in PIL No. 188 of 2015, which is the subject matter of Transferred Case No. 3/2018.

It appears that the above-mentioned writ petition came to be filed as a Public Interest Litigation projecting various perceiver inadequacies in the service conditions of the Officers of the Subordinate Judiciary of the State of Maharashtra and seeking appropriate reliefs. One of the grievances in the Public Interest Litigation is regarding the pay and other allowances including the pension of the Subordinate Judicial Officers in the State of Maharashtra.

Admittedly, till 1st January, 2016, payment of salaries and pension and other allowances were made in accordance with th recommendations made earlier by the two Committees appointed by this Court otherwise known as Shetty Commission and Padmanabhan Commission. It appears, subsequent to 1.1.2016, the State of Maharashtra took a different stand, the details of which we do not want to go at this stage, in view of the statement made by Mr. Tushar Mehta, learned ASG representing State of Maharashtra.

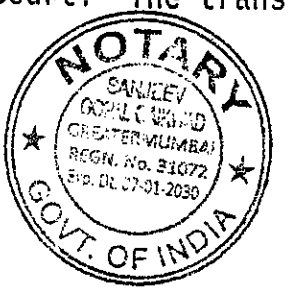


It is expressly stated that the report regarding the interim relief(pay) and the orders passed by this Court in WP(C) No. 643/2015 would be implemented by the State of Maharashtra and would be bound by the final order of this Court in All India Judges Association Vs. Union of India & Ors.(W.P.(C) No. 643/2015) proceedings, to be passed after a final report of the Commission is received.

By an Order dated 1.12.2017, this Court called upon the High Court of Bombay to transfer the writ petition no. 188 of 2015 to this Court. It is stated by Mr. B.H. Marlapalle, learned senior counsel and Mr. Tushar Mehta, ASG appearing for the State of Maharashtra that the grievances projected in the writ petition are not only confined to the payment of salaries, allowances and pension and various other issues like inadequacy of infrastructural facilities in the State of Maharashtra etc. and those questions could more conveniently be dealt with by the High Court.

In the circumstances, we deem it appropriate to direct the Registry to return the Writ Petition No. 188 of 2015 to the Bombay High Court for disposal in accordance with law. The High Court would obviously not deal with the questions which are being considered by this Court for the resolution, of which Justice Venkatarama Reddi Commission had been appointed.

The writ petition no. 188 of 2015 is remitted back to the Bombay High Court. The transferred case is accordingly disposed of.

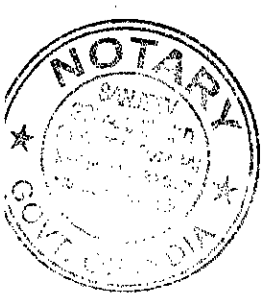


100 The special leave petition is also disposed of accordingly.

.....J.
(J. CHELAMESWAR)

.....J.
(SANJAY KISHAN KAUL)

NEW DELHI
March 27, 2018



परिभाषित अंशदान निवृत्तीवेतन योजनेप्रमाणे (DCPS) वेतनातून नियमाप्रमाणे दरमहा करण्यात येणारी कपात तात्काळ थांबविण्याबाबत.

महाराष्ट्र शासन
विधि व न्याय विभाग
शासन निर्णय क्रमांक :-एचटीसी-१२१६/५६/प्र.क्र.१५/का.तीन,
मादाम कामा मार्ग, हुतात्मा राजगुरु चौक,
मंत्रालय, मुंबई-४०० ०३२.
दिनांक :-१७ मे, २०१८.

वाचा :- १) शासन निर्णय, वित्त विभाग, क्र.अंनियो-१००५/१२६/सेवा-४, दि.३१.१०.२००५.
२) शासन परिपत्रक, विधि व न्याय विभाग, क्र.एचसीटी-२०११/प्र.क्र.१२/का.३, दि.११.०३.२०११.
३) मा.उच्च न्यायालय, मुंबई यांचे जनहित याचिका क्र.१८८/२०१५, दि.११.०८.२०१७ चे आदेश.
४) मा.सर्वोच्च न्यायालय, नवी दिल्ली यांचे रिट याचिका क्र.६४३/२०१५, दि.२७.०३.२०१८ चे आदेश.

प्रस्तावना :-

संदर्भाधीन क्र.१ अन्वये शासनाने असा निर्णय घेतला आहे की, शासन सेवेत दि.०१ नोव्हेंबर २००५ रोजी किंवा त्यानंतर नियुक्त होणाऱ्या कर्मचाऱ्यांसाठी, सध्या अस्तिवात असलेल्या निवृत्तिवेतन योजनेऐवजी, केंद्र शासनाच्या धर्तीवर, नवीन "परिभाषित अंशदान निवृत्तिवेतन योजना" (Defined Contribution Pension Scheme) लागू केली आहे.

२. उपरोक्त निवृत्तिवेतन योजना ही दि.०१.११.२००५ रोजी किंवा त्यांनतर नियुक्त झालेल्या राज्यातील दुय्यम न्यायालतील न्यायिक अधिकाऱ्यांना लागू करण्याच्या निर्णयास श्री.विहार दुर्वे व इतर यांनी मा.उच्च न्यायालय, मुंबई येथे दाखल जनहित याचिका क्र.१८८/२०१५ अन्वये आव्हानीत केले .

३. सदर न्यायालयीन प्रकरणासंदर्भात मा.उच्च न्यायालयाने दि.११.०८.२०१७ च्या आदेशान्वये पुढीलप्रमाणे आदेश दिलेले आहेत :-

(i) We hold that the impugned Government Resolution dated 31 st October, 2015 is not applicable to the Judicial Officers in the State who were appointed on or after 1st November 2005. The said officers will be entitled to the same pensionary benefits which are available to the judicial officers appointed before 1st November 2005. However, the Judicial Officers who are appointed on or after 1st November 2005 will have an option to continue under the New Scheme;

(ii) The State Government shall give an option to the Judicial Officers appointed after cut-off date (31st October 2005) to continue under the New Scheme under the impugned Government Resolution. The option shall be exercised within a period of two months from today. The judicial officers who fail to exercise the option will be governed by pension scheme which is applicable to all judicial officers appointed before 1st November 2005.

NOTARY
SANJEEV GOPAL CARKHED
GREATER MUMBAI
REGN. No. 31072
EXP. DT. 07-03-2020
GOVT. OF INDIA

Scheme under the impugned Government Resolution, the entire contribution deducted from their salary along with the return/interest accrued thereon shall be transferred from their respective "Pension Tier-I Account" to their "Voluntary Tier - II Withdraw able Account" within a period of three months from today. We make it clear that the State Government's Matching Contribution with interest/return accrued thereon shall not be transferred as aforesaid and the State Government shall be entitled to withdraw the same from Tier-I account. The Judicial Officers will be entitled to withdraw the amount as and when the same are transferred to "Voluntary Tier -II With drawable Account".

३. मा.उच्च न्यायालयाच्या दि.११.०८.२०१७ च्या आदेशाविरुध्द शासनाने मा.सर्वोच्च न्यायालयामध्ये विशेष अनुमती याचिका क्र.३१४६१/२०१७ दाखल करुन आव्हान दिले होते आणि आदेशाच्या अंमलबजावणीस स्थगिती देण्याची विनंती केली होती. तथापि, मा.सर्वोच्च न्यायालयाने आदेशांच्या अंमलबजावणीस स्थगिती दिली नाही व रिट याचिका क्र.६४३/२०१५ या न्यायालयीन प्रकरणाच्या सुनावणीदरम्यान मा.सर्वोच्च न्यायालयाने दि.२७.०३.२०१८ रोजी विशेष अनुमती याचिका क्र.३१४६१/२०१७ निकाली काढली आहे. त्यामुळे मा.च्च न्यायालय,मुंबई यांनी दि.११.०८.२०१७ रोजी दिलेल्या आदेशाची अंमलबजावणी करण्यासाठी राज्यातील दुय्यम न्यायालयातील न्यायिक अधिकाऱ्यांच्या नवीन परिभाषित अंशदान निवत्तीवेतन योजनेप्रमाणे (DCPS) वेतनातून नियमाप्रमाणे दरमहा करण्यात येणारी कपात थांबविण्याची बाब शासनाच्या विचाराधीन होती.

शासन निर्णय :-

राज्यातील दुय्यम न्यायालयातील दि.०१.११.२००५ रोजी किंवा त्यानंतर नियुक्त झालेल्या न्यायिक अधिकाऱ्यांच्या वेतनातून वित्त विभागाच्या शासन निर्णय दि.३१.१०.२००५ नुसार नवीन परिभाषित अंशदान निवत्तीवेतन योजनेनुसार (DCPS) नियमाप्रमाणे दरमहा करण्यात येणारी कपात तात्काळ थांबविण्यात यावी.

२. सदर शासन निर्णय वित्त विभागाच्या सहमतीने व त्यांच्या अनौपचारिक संदर्भ क्र. ९४/ २०१८/ सेवा-४, दि.०५.०५.२०१८ अन्वये निर्गमित करण्यात येत आहे.

३. सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून, त्याचा संकेताक क्र. २०१८०५१७१७३२२४१५१२ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहेत.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

Amogh Shyamkant Kaloti

Digitally signed by Amogh Shyamkant Kaloti
DN: c=IN, o=Government Of Maharashtra, ou=Law and Judiciary Department, postalCode=400032, st=Maharashtra, 2.5.4.20=1f73...
Date: 2018.05.17 17:33:41 +05'30'

(अ.श्या.कलोती)
विधि सल्लागार नि-सह सचिव.

प्रत,

१. मा.राज्यपालांचे सचिव,
२. मा.मुख्यमंत्र्यांचे प्रधान सचिव,

पृष्ठ ३ पैकी २

NOTARY SANJEEV GOPAL KAKAD GREATER MUMBAI REGN. No. 53072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

३. मा.विरोधी पक्ष नेता, विधानपरिषद/विधानसभा,
४. मा.राज्यमंत्री (विधि व न्याय) यांचे स्वीय सहायक,
५. मा.मुख्य सचिव, महाराष्ट्र शासन,
६. अ.मु.स. (व्यय), वित्त विभाग, मंत्रालय, मुंबई,
७. प्रधान सचिव व विधि परामर्शी, विधि व न्याय विभाग, मंत्रालय, मुंबई,
८. प्रधान सचिव (विधि विधान), विधि व न्याय विभाग, मंत्रालय, मुंबई.
९. महाप्रबंधक, उच्च न्यायालय, मुंबई,
१०.अधिदान व लेखा अधिकारी, मुंबई,
११.निवासी लेखापरीक्षा अधिकारी, मुंबई,(२ प्रती)
१२.संचालक, लेखा व कोषागारे, मुंबई,
१३.सर्व जिल्हा कोषागार अधिकारी, महाराष्ट्र राज्य,
१४.प्रधान महालेखापाल-एक/दोन (लेखा व अनुज्ञेयता), महाराष्ट्र, मुंबई/नागपूर,
१५.प्रधान महालेखापाल-एक/दोन (लेखा परीक्षा), महाराष्ट्र, मुंबई/नागपूर,
१६.प्रमुख न्यायाधीश, नगर दिवाणी व सत्र न्यायालय, मुंबई,
१७.मुख्य न्यायाधीश, लघुवाद न्यायालय, मुंबई,
१८. सर्व प्रमुख जिल्हा व सत्र न्यायाधीश,
१९.प्रमुख न्यायाधीश, सर्व कौटुंबिक न्यायालये,
२०.मुख्य महानगर दंडाधिकारी, मुंबई,
२१.धर्मादाय आयुक्त, महाराष्ट्र राज्य, मुंबई,
२२.वित्त विभाग/व्यय-५, व सेवा-४
२३.विधि व न्याय विभागातील सर्व शाखा व कार्यासने,
२४.निवड नस्ती/का.३.

NOTARY GOVT. OF INDIA

(Translation of a photocopy of a Government Resolution, typewritten in Marathi)

Regarding immediately stopping deduction being made as per Rules from the salary of the Judicial Officers in Sub-Ordinate Courts in the State, under the New Defined Contribution Pension Scheme.

GOVERNMENT OF MAHARASHTRA

LAW AND JUDICIARY DEPARTMENT

Government Resolution No.HTC-1216/56/M.No.15/Desk-Three,

Madam Cama Marg, Hutatma-Rajguru Chowk,

Mantralaya, Mumbai – 400032.

Date : 17th May, 2018.

Read	:-	1)	Government Resolution No. D.C.P.S.-1005/126/Service-4 dated 31.10.2005, issued by the Finance Department.
		2)	Government Circular No. HCT-2011/M.No.12/D.3, dated 11.03.2011, issued by the Law and Judiciary Department.
		3)	Order dated 11.08.2017 of the Hon'ble High Court, Mumbai in Public Interest Litigation No.188/2015.
		4)	Order dated 27.03.2018 issued by the Hon'ble Supreme Court, New Delhi in Writ Petition No. 643/2015.

PREFACE :-

By the Government Resolution referred to hereinabove at Sr.No.1, the Government has taken a decision that new "Defined Contribution

NOTARY
SANJEEV GOPAL C-JAIN
GREATER MUMBAI
REGN. No. 31072
Exp. Dt. 07-01-2030
GOVT. OF INDIA

Pension Scheme" has been made applicable on the line of the Central Government, for the State Government employees retiring on or after the date 01st November, 2005 instead of the Pension Scheme which is in force at present.

2. Shri Vihar Durve and others, vide Public Interest Litigation No.188/2015 filed before the Hon'ble Bombay High Court, Mumbai, had challenged the decision of making admissible the aforesaid Pension Scheme to the Judicial Officers in Sub-Ordinate Courts of the State who have been appointed on or after the date 01.11.2005.

3. In the aforesaid Court Matter, the Hon'ble High Court, by its Order dated 11.08.2017, has given directions as under :-

(I) We hold that the impugned Government Resolution dated 31st October, 2015 is not applicable to the Judicial Officers in the State who were appointed on or after 1st November, 2005. The said Officers will be entitled to the same pensionary benefits which are available to the judicial Officers appointed before 1st November, 2005. However, the Judicial Officers who are appointed on or after 1st November, 2005 will have an option to continue under the New Scheme;

(ii) The State Government shall give an option to the Judicial Officers appointed after cut-off date (31st October, 2005) to continue under the New scheme under the impugned Government Resolution. The option shall be exercised within a period of two months from today. The Judicial Officers who fail to exercise the option will be governed by pension scheme which is applicable to all judicial officers appointed before the date 1st November, 2005.

(iii) In case of those judicial officers who do not opt to continue with the New Scheme under the impugned Government Resolution, the entire contribution deducted from their salary alongwith the return/interest accrued thereon shall be transferred from their respective

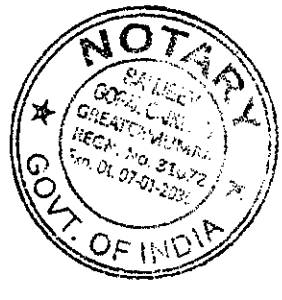
NOTARY GOVT. OF INDIA

"Pension Tier-I Account" to their "Voluntary Tier II withdraw able Account" within a period of three months from today. We make it clear that the State Government's Matching Contribution with interest/return accrued thereon shall not be transferred as aforesaid and the State Government shall be entitled to withdraw the same from Tier-I account. The Judicial Officers will be entitled to withdraw the amount as and when the same are transferred to "Voluntary Tier-II With drawable Account".

3. The Government had challenged the order dated 11.08.2017 of the Hon'ble High Court, before the Hon'ble Supreme Court by filing Special Leave Petition No. 31461/2017 and had requested to grant a stay on the implementation of the said Order. However, the Hon'ble Supreme Court did not grant a stay on the implementation of the order and during the course of the hearing of the court matter-Writ Petition No. 643/2015, the Hon'ble Supreme Court disposed of Special Leave Petition No. 31461/2017 on the date 27.03.2018. Therefore, in order to implement the Order dated 11.08.2017 passed by the Hon'ble High Court, Mumbai, the issue of stopping the monthly deduction being made as per Rules from the salary of the Judicial Officers in the Subordinate Courts of the State, under the Defined Contribution Pension Scheme (DCPS), was under consideration of the Government.

GOVERNMENT RESOLUTION :-

The monthly deduction being made as per Rules under the Defined Contribution Pension Scheme (DCPS), as per the Finance Department's Government Resolution dated 31.10.2005, from the salary of Judicial Officers in the Subordinate Courts of the State who were appointed on or after the date 01.11.2005, should be stopped with immediate effect.



2. This Government Resolution is issued with the concurrence of the Finance Department vide their Unofficial Reference No.94/2018/Service-4, dated 05.05.2018.

3. This Government Resolution is made available on the Government of Maharashtra Web-Site www.maharashtra.gov.in and its Code Number is 201805171732241512. This Order is issued by authenticating the same under digital signature.

By Order and in the name of the Governor of Maharashtra.

Amogh Shyamkant Kaloti

Digitally signed by, (A. S. Kaloti)
Legal Adviser-cum-Joint Secretary.

Copy,

1. Secretary to the Hon'ble Governor.
2. Principal Secretary to the Hon'ble Chief Minister.
3. Hon'ble Leader of Opposition, Legislative Council / Legislative Assembly,
4. Personal Assistant to the Hon'ble Minister of State (Law and Judiciary),
5. Hon'ble Chief Secretary, Government of Maharashtra,
6. Additional Chief Secretary (Expenditure), Finance Department, Mantralaya, Mumbai,
7. Principal Secretary and Remembrancer of Legal Affairs (RLA), Law and Judiciary Department, Mantralaya, Mumbai,
8. Principal Secretary (Legislation), Law and Judiciary Department, Mantralaya, Mumbai,
9. Registrar General, High Court, Mumbai,

NOTARY GOVT. OF INDIA

10. Pay and Accounts Officer, Mumbai,

11. Resident Audit Officer, Mumbai (2 copies),

12. Director, Accounts and Treasuries, Mumbai,

13. All District Treasury Officers, Maharashtra State,

14. Principal Accountant General I/II (Accounts and Admissibility), Maharashtra, Mumbai/Nagpur,

15. Principal Accountant General I/II (Audit), Maharashtra, Mumbai/Nagpur,

16. Principal Judge, City Civil and Sessions Court, Mumbai,

17. Chief Judge, Small Causes Court, Mumbai,

18. All Principal District and Sessions Judges,

19. Principal Judge, All Family Courts,

20 Chief Metropolitan Magistrate, Mumbai,

21. Charity Commissioner, Maharashtra State, Mumbai,

22. Finance Department / Expenditure-5, and Service-4,

23. All Branches and Desks in the Law and Judiciary Department

24. Select File / Desk -3.

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Chief Translator &) M – 3060
Interpreter's Office) Fs. 11
High Court Bombay)
SSS/- 2026)

A True Translation

for Chief Translator

NOTARY GOVT. OF INDIA

उच्च न्यायालय, मुंबई, खंडपीठ नागपूर व खंडपीठ औरंगाबाद येथील गट-'अ' आणि गट-'ब' कर्मचाऱ्यांच्या वेतनश्रेणीत सुधारणा करण्याबाबत.

महाराष्ट्र शासन
विधि व न्याय विभाग,
शासन निर्णय क्र.संकीर्ण-२०२१/प्र.क्र.९५/का.६
मादाम कामा मार्ग, हुतात्मा राजगुरु चौक,
मंत्रालय, मुंबई ४०० ०३२.
दिनांक : १९ एप्रिल, २०२२.

पहा:- प्रबंधक (कार्मिक), उच्च न्यायालय, अपील शाखा, मुंबई यांचे पत्र क्र. PD(P) & (F) ५१८३/२०२१ दिनांक १४ ऑक्टोबर, २०२१.

प्रस्तावना :-

मा. न्यायमूर्ती, उच्च न्यायालय, मुंबई, यांच्या विशेष समितीने उच्च न्यायालय, मुंबई, खंडपीठ नागपूर, खंडपीठ औरंगाबाद येथील कार्यरत गट 'अ' व गट 'ब' कर्मचाऱ्यांची वेतनश्रेणी सुधारण्याबाबत अहवाल सादर केला;

मा. प्रशासकीय न्यायमूर्तीच्या समितीने सदर अहवाल दि.०५.१०.२०२१ रोजीच्या बैठकीत स्वीकृत केला असून शासनाच्या मान्यतेस्तव सादर केला. सदर अहवालामध्ये नमूद उच्च न्यायालयातील गट 'अ' व गट 'ब' कर्मचाऱ्यांची वेतनश्रेणी सुधारण्याबाबत मंजुरी देण्याची बाब शासनाच्या विचाराधीन होती.

शासन निर्णय :

१. उच्च न्यायालय, मुंबई, खंडपीठ नागपूर आणि खंडपीठ औरंगाबाद येथील गट-'अ' आणि गट-'ब' कर्मचाऱ्यांच्या वेतनश्रेणीमध्ये सुधारणा करुन पुढील विवरणपत्रात नमूद केलेली वेतनश्रेणी लागू करण्याच्या मा. उच्च न्यायालयाच्या प्रस्तावास या शासन निर्णयाद्वारे मंजुरी देण्यात येत आहे.

विवरणपत्र

Sr.No.	Designation	Revised Pay Scales as per approved Report
(1)	(2)	(3)
1	2nd Assistant Master	The Pay Scale of Civil Judge Junior Division (ACP-I) i.e. Rs.33090-920-40450-1080-45850 with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time w.e.f. 04/07/2003.
2	1st Assistant to Official Assignee	
3	2nd Assistant to Court Receiver	
4	3rd Assistant Master	
5	Associate	
6	Chief Translator and Interpreter	Pay Band-3 Rs.15600-39100 plus Grade pay Rs.7900 w.e.f.01.04.2011
7	Deputy Chief Translator and Interpreter	
8	Assistant Chief Translator and Interpreter	
9	Master (Adm.)	
10	Protocol Officer cum Court Keeper	
11	Chief Librarian	
12	Assistant Registrar	
13	Assistant Director	Pay Band-3 Rs.15600-39100 plus Grade pay Rs.6600 w.e.f. 01.04.2011
14	2nd Assistant to Official Assignee	
15	Librarian	
16	Section Officer	Pay Band-2 Rs.9300-34800 plus Grade pay Rs.5400 w.e.f.01/04/2011 Pay Band-3 Rs. 15600-39100 plus Grade pay Rs.6600 (After 4 years regular services) w.e.f. 01.04.2011
17	Senior Translator and Interpreter	Pay Band-2 Rs.9300-34800 plus Grade pay 5400 w.e.f.01/04/2011
18	Court Keeper	Pay Band-2 Rs.9300-34800 plus Grade pay 5400 w.e.f.01/04/2011
19	Accounts Officer	Pay Band-2 Rs.9300-34800 plus Grade pay 5400 w.e.f.01/04/2011

२. परिच्छेद (१) मध्ये नमूद केल्याप्रमाणे वेतन निश्चिती करण्याबाबत प्रबंधक (कार्मिक), उच्च न्यायालय, अपील शाखा, मुंबई यांनी पुढील कार्यवाही करावी.

३. सदर शासन निर्णय वित्त विभागाच्या अनौपचारिक संदर्भ क्रमांक ३४८/२०२१/ सेवा-९ दिनांक २२/१२/२०२१ आणि अनौपचारिक संदर्भ क्रमांक १८३/२०२२/व्यय-५ दिनांक १५/०२/२०२२ अन्वये प्राप्त झालेल्या सहमतीनुसार निर्गमित करण्यात येत आहे.

४. सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेतांक क्र. २०२२०४१९१५४९४६८०१२ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने,

PRAVIN ARUN KUMBHOJKAR

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(प्रविण अरुण कुंभोजकर)
उप विधि सल्लागार-नि-उप सचिव

प्रत,

१. मा. राज्यपालांचे प्रधान सचिव.
२. मा. मुख्यमंत्री यांचे प्रधान सचिव.
३. मा. राज्यमंत्री (विधि व न्याय) यांचे खाजगी सचिव.
४. मा. विरोधी पक्ष नेता, विधान परिषद/विधानसभा.
५. मा. विधान परिषद / विधानसभा सदस्य (सर्व).
६. मुख्य सचिव, महाराष्ट्र शासन, मंत्रालय, मुंबई.
७. प्रधान सचिव व विधि परामर्शी, विधि व न्याय विभाग, मंत्रालय, मुंबई.
८. प्रधान सचिव (वरिष्ठ विधि सल्लागार), विधि व न्याय विभाग, मंत्रालय, मुंबई.
९. सचिव (विधि विधान), विधि व न्याय विभाग, मंत्रालय, मुंबई.
१०. महाप्रबंधक, उच्च न्यायालय, मुंबई.
११. प्रबंधक, (विधि व संशोधन) उच्च न्यायालय, (अपिल शाखा) मुंबई.
१२. प्रबंधक, उच्च न्यायालय, (अपिल शाखा/मूळ शाखा) मुंबई.
१३. प्रबंधक, उच्च न्यायालय, नागपूर, औरंगाबाद व पणजी खंडपीठ.
१४. महालेखापाल (लेखा व अनुज्ञेयता/लेखापरीक्षा) एक, महाराष्ट्र मुंबई.
१५. महालेखापाल (लेखा व अनुज्ञेयंता/लेखापरीक्षा) दोन, महाराष्ट्र, नागपूर.
१६. सर्व जिल्हा कोषागार अधिकारी.
१७. अधिदान व लेखा अधिकारी, मुंबई.
१८. निवासी लेखापरीक्षा अधिकारी, मुंबई.
१९. वित्त विभाग सेवा ९.
२०. कार्यासन- ६ (निवड नस्ती)

(Translation of a photocopy of a GOVERNMENT RESOLUTION typewritten in Marathi).

To revise pay scale of Group 'A' and Group 'B' employees working in the Honourable High Court at Mumbai, its Bench at Nagpur and Bench at Aurangabad.

GOVERNMENT OF MAHARASHTRA

Law and Judiciary Department.

Government Resolution No. Miscellaneous-2021/M.No.95/D-6.

Madam Cama Road, Hutatma Rajguru Chowk,

Mantralaya, Mumbai – 400 032.

Date: 19th April, 2022.

See : Letter bearing No. PD(P) & (F) 5183/2021, dated 14th October, 2021 of the Registrar (Personnel), High Court, Appellate Side, Mumbai.

PREFACE:

The Special Committee of the Honourable Judges of the Honourable Bombay High Court, Mumbai submitted a report to revise pay scale of Group 'A' and Group 'B' employees working in the Honourable Bombay High Court at Mumbai, its Bench at Nagpur and Bench at Aurangabad.

The Honourable Administrative Committee of the Honourable Judges accepted the said Report in the Meeting dated 05.10.2021 and submitted the same for approval of the Government. In pursuance thereof, the issue to grant approval to revise the pay scale of Group 'A'

and Group 'B' employees working in the Honourable Bombay High Court mentioned in the said Report was under consideration of the Government.

GOVERNMENT RESOLUTION:

1) Under this Government Resolution, approval is granted to the proposal of the Honourable High Court to revise the pay scale of Group 'A' and Group 'B' employees working in the Honourable Bombay High Court at Mumbai, its Bench at Nagpur and Bench at Aurangabad and to make applicable the pay scales mentioned in the below mentioned statement.

STATEMENT

Sr. No.	Designation	Revised Pay Scales as per approved Report.
(1)	(2)	(3)
1.	2nd Assistant Master	The Pay Scale of Civil Judge Junior Division (ACP-I) i.e. Rs.33090-920-40450-1080-45850 with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time w.e.f. 04.07.2003.
2.	1st Assistant to Official Assignee	
3.	2nd Assistant to Court Receiver	
4.	3rd Assistant Master	
5.	Associate	
6.	Chief Translator and Interpreter	Pay Band-3 Rs.15600-39100 plus Grade Pay Rs.7900 w.e.f. 01.04.2011.
7.	Deputy Chief Translator and Interpreter	
8.	Assistant Chief Translator and Interpreter	
9.	Master (Adm.)	
10.	Protocol Officer cum Court Keeper	

11.	Chief Librarian	
12.	Assistant Registrar	
13.	Assistant Director	Pay Band-3 Rs.15600-39100 plus Grade Pay Rs.6600 w.e.f. 01.04.2011.
14.	2nd Assistant to Official Assignee	
15.	Librarian	
16.	Section Officer	Pay Band-2 Rs.9,300-34800 plus Grade Pay Rs.5400 w.e.f. 01.04.2011. Pay Band-3 Rs.15600-39100 plus Grade Pay Rs.6600 (After 4 years regular services) w.e.f. 01.04.2011
17.	Senior Translator and Interpreter	Pay Band-2 Rs.9300-34800 plus Grade Pay Rs.5400 w.e.f. 01.04.2011.
18.	Court Keeper	Pay Band-2 Rs.9300-34800 plus Grade Pay 5400 w.e.f. 01.04.2011.
19.	Accounts Officer	Pay Band-2 Rs.9300-34800 plus Grade Pay 5400 w.e.f. 01.04.2011.

2) The Registrar (Personnel), High Court, Appellate Side, Mumbai should take further steps for fixation of pay as mentioned in Paragraph (1).

3) This Government Resolution is issued with the concurrence of the Finance Department received under its Unofficial Reference No. 348/2021/Service-9, dated 22.12.2021 and Unofficial Reference No. 183/2022/Expenditure -5, dated 15.02.2022.

4) This Government Resolution is made available on the web-site of Government of Maharashtra viz. www.maharashtra.gov.in and its Code Number is 202204191549468012. This Order is issued by authenticating the same by digital signature.

By Order and in the name of the Governor of Maharashtra.

PRAVIN ARUN KUMBHOJKAR

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Date: 2022.04.19. 15:51:13 +05' 30'

(Pravin Arun Kumbhojkar)
Deputy Legal Advisor-cum-Deputy Secretary.

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10) Registrar General, High Court, Bombay.

11) Registrar (Legal and Research), High Court (Appellate Side), Mumbai.

12) Registrar, High Court (Appellate Side/Original Side), Mumbai.

13) Registrar, High Court, Nagpur, Aurangabad and Panaji Bench.

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REPORTABLE

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION
WRIT PETITION NO. 2853 OF 2022

1. **Arvind Gopalrao Basutkar,** adult, Former Principal Secretary and Registrar/Principal Secretary to the Honourable the Chief Justice, Appellate Side, High Court at Bombay, residing at 2, Yash CHS Limited, Ranade Road Extension, Dadar West, Mumbai 400 028

2. **Jayant V Gangakhedkar,** adult, Former Deputy Registrar, Appellate Side, High Court at Bombay, residing at A-2/202 Omkar CHS Ltd., Chikuwadi, Padma Nagar, Borivli West, Mumbai 400 092

3. **Iqbal Adam Gadkari,** adult, Former Deputy Registrar, Appellate Side, High Court at Bombay, residing at Room No. 37, 4th Floor, Madina Manzil (Mazgaon Konkan Co-op Housing Soc Ltd), Husain Patel Marg, Mazgaon, Mumbai 400 010

SHEPHALI SANJAY [illegible]RMARE
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117

4. SHRADDHA AVINASH MALKAR,
adult, Former Deputy Registrar,
Appellate Side, High Court at Bombay,
residing at Room No. 18, House No. 95,
Vasant Niwas, Nagusayachi Wadi, New
Prabhadevi Road, Mumbai 400 025

5. UMA NARAYAN,
adult, working as Deputy Registrar,
Appellate Side, High Court at Bombay,
residing at C-305, Palm Court
Complex, Link Road, Malad (W),
Mumbai 400 064

6. KIRAN TULSIDAS BOBADE,
adult, working as Deputy Registrar,
Appellate Side, High Court at Bombay,
residing at Building No. 11, Flat No. B-
10, 2nd Floor, Government Colony,
Haji Ali, Mahalaxmi, Mumbai 400 034

7. PRAKASH V GURAV,
adult, working as Deputy Registrar,
Appellate Side, High Court at Bombay,
residing at 401/B, A-Wing, Jaihari
CHS, Krantiveer Vasantrao N Naik
Marg, Grant Road (West),
Mumbai 400 026

8. SHILPA S NAIK,
adult, working as Deputy Registrar,
Appellate Side, High Court at Bombay,
residing at 402, Bhavi Darshan, JP
Nagar, Road NO. 2, Near Swati Studio,
Goregaon (East), Mumbai 400 063

...Petitioners

~ VERSUS ~

1. REGISTRAR GENERAL,
High Court at Bombay, Mumbai

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GOVT. OF INDIA

2. STATE OF MAHARASHTRA,
through its Chief Secretary,
Government of Maharashtra,
Mantralaya, Mumbai 400 032

3. PRINCIPAL SECRETARY,
Finance Department,
Government of Maharashtra,
Mantralaya, Mumbai 400 032

4. PRINCIPAL SECRETARY,
Law and Judiciary Department,
Government of Maharashtra,
Mantralaya, Mumbai 400 032

...Respondents

APPEARANCES

FOR THE PETITIONERS	Mr Ravi Gadagkar, *with Arya Gadagkar, i/b Aniket Ransubhe.*
FOR RESPONDENTS NOS. 1 AND 2	Mr Rahul Nerlekar.
FOR RESPONDENT-STATE	Mr Milind More, Addl. GP.

CORAM : G.S.Patel &
Neela Gokhale, JJ.

DATED : 10th March 2023

ORAL JUDGMENT *(Per GS Patel J):-*

1. The Petition is specially assigned to this Bench. Rule. There is an Affidavit in Reply. The State Government is represented. Rule returnable forthwith.

NOTARY SANJEEV GOPAL CHIKHLI GREATER MUMBAI REGN. No 91072 GOVT. OF INDIA

119

2. The eight Petitioners are aggrieved by what they describe as a failure of this Court on its administrative side to apply a set of rule and guidelines equally and uniformly to eligible officers on the Original and Appellate Sides of this Court. We reproduce prayer clauses (a), (a)(i) and (a)(ii):

> "(a) This Honourable Court in its jurisdiction under Article 226 of the Construction of India may be pleased to issue a writ of Certiorari or any other writ, order or direction in the nature of Certiorari calling for the representations made by the Petitioners (Exhibits F, G, H and I); the guidelines to be followed for grant Selection Grade (Exhibit D hereto); and implemented by granting the Selection Grade to the Officers on the Original Side; as also the entire records and proceedings in respect of one Officer on the Appellate Side and after perusal of the same:
>
> (i) issue a writ of Mandamus or any other writ, order or direction in the nature of Mandamus directing Respondent No.1 to extend the benefit of Selection Grade to Petitioners No.1, as per the guidelines approved and made applicable to the officers on the Original Side as per *Exhibit "D";*
>
> (ii) issue a writ of Mandamus or any other writ, order or direction in the nature of Mandamus directing Respondent No.1 to frame guidelines to be followed to grant and extend the benefit of Assured Career Progression-II (ACP-II) to Petitioner Nos. 2 to 8 and extend the said benefits to them."

3. Mr Gadagkar for the Petitioners has filed detailed written submissions. These are taken on record.

4. Mr Gadagkar first submits that the prayers in the Petition are perhaps not as felicitously worded as they ought to have been. He

NOTARY

points out from his written submissions that the case is squarely one of invidious discrimination, arbitrariness in classification without a rational, or even discernible, nexus to the object of the applicable rules and guidelines — in other words, a case that falls under Article 14 of the Constitution of India. The complaint is about continuing a disparity or imbalance in pay scales that are, by law, made applicable to officers, both judicial and non-judicial, on both the Original and Appellate sides of this Court. There is no claim to a particular post or to any particular posts; the only contention is about implementing a statutorily mandated equivalence in pay.

5. What prayer clause (a) really seeks is that the guidelines that have been framed at Exhibit "D" as applicable to officers on the Original Side of this Court be made applicable to officers on the Appellate Side of this Court; and that the guidelines be applied forthwith to officers on both sides of the High Court establishment. Prayer clause (a)(i) is specific to the 1st Petitioner because he had a distinct position equivalent to that of an entry-level District Judge. Prayer clause (a)(ii) is again less than felicitously worded. It really seeks the extension of an Assured Career Progression-II ("ACP-II") to officers on both the Appellate Side and Original Side of the High Court.

6. As presented, the Petition is a straightforward Article 14 challenge. It says that certain named officers were conferred benefits but for others similarly situated or placed, identical benefits were not conferred. That conferment has been kept pending for many years. The conferment of benefit on a few officers could not have

been done by exercising some unknown 'discretion' in favour of select persons without making the same conferment applicable to others in the class. Across the Bar, it is also pointed that some who have succeeded, or been later appointed to, the posts occupied by those who received this 'special' benefit have been given the benefit too. In other words, certain individuals were given the benefit, and this continued to their successors-in-office. Yet, others in the class have been denied these pay-scale benefits.

7. The Petitioners are all Class-I Gazetted officers who held or hold posts as Registrars and Deputy Registrars. Some of them have been promoted to their present posts.

8. The Bombay High Court does have a distinction between its Appellate Side and Original Side. This is a jurisdictional distinction because the Bombay High Court is conferred with an original jurisdiction under the Letters Patent. This means that some specified types of lawsuits or legal actions can be directly filed in this Court, on its Original Side, as a court of first instance. This requires, for logistical and administrative reasons, a separate, dedicated Registry to manage the affairs on the Original Side. Such Original Side work includes matters in the testamentary jurisdiction, suits (both commercial and non-commercial), and a variety of other subjects. The appellate jurisdiction, like the one exercised by the Benches at Aurangabad and Nagpur, is not — with some exceptions — not a court of original jurisdiction. It primarily exercises appellate jurisdiction over the district judiciary. Again, this is geographically divided for convenience because the Aurangabad and Nagpur

NOTARY
GOVT. OF INDIA

Benches have their own territorially defined appellate jurisdictions. It is only the principal seat at Mumbai that has an original jurisdiction.

9. The 1st Respondent is the Registrar General of the High Court. The other Respondents are functionaries of the State.

10. On 21st March 1996, the Government of India, pursuant to a decision in a group of review petitions filed by the Union of India and several State Governments (seeking a review of directions issued by the Supreme Court in *All India Judges' Association v Union of India and Ors*[1] and later directions in *All India Judges' Association and Ors v Union of India and Ors*[2]) set up the first National Judicial Pay Commission under the Chairmanship of Hon'ble Mr Justice K Jagannatha Shetty ("The Shetty Commission"). That commission made several recommendations in its Report dated 11th November 1999. In a follow up decision in *All India Judges' Association and Ors v Union of India and Ors*,[3] the Supreme Court found the recommendations of the Shetty Commission fair and reasonable and said these should be accepted.

11. In April 2009, the Supreme Court appointed the one-man Justice E Padmanabhan Commission, which made recommendations in regard to pay scales of judicial officers (in service and retired), on the basis of the Shetty Commission report and recommendations.

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1 (1992) 1 SCC 119.
2 (1993) 4 SCC 288.
3 (2002) 4 SCC 247.

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12. The State of Maharashtra implemented the Shetty Commission recommendations. These recommendations *inter alia* related to pay scales, allowances, perquisites and so forth.

13. On 7th August 2013, a Division Bench of this Court delivered judgment in *Adeline Rodrigues & Ors v State of Maharashtra & Ors.*[4] Ms Rodrigues was for a long time an Associate on the Original Side of this Court and later rose to be for many years the Prothonotary and Senior Master of this Court. The Division Bench directed a revision of pay scales, allowances and perquisites as recommended by the Shetty Commission and said that these had to be made applicable to the judicial officers on the Original Side of the High Court. The Hon'ble Chief Justice of Bombay High Court, exercising powers vested in him under Article 229(2) of the Constitution of India, effected an amendment to Rule 3(b)(i) of the Bombay High Court Original Side Service Rules 2002. Pursuant to this, the pay scales, allowances and perquisites including retirement benefits and service conditions in respect of Original Side officers were revised. These were brought on parity or on par with judicial officers in the State. Arrears of pay were also to be paid with retrospective effect from 4th July 2003. Guidelines for the grant of what is called Selection Grade and Super Time Scale to Original Side officers also came to be framed.

14. By an order of 13th April 2018, another Division Bench of this Court in *Arvind Gopalrao Basutkar & Ors v State of Maharashtra & Ors*[5] noted a statement made on behalf of the State Government that

4 (2013) 6 Mah LJ 14.

5 Writ Petition No. 1712 of 2016.

NOTARY
GOVT. OF INDIA

as regards the revision of pay scales, allowances and perquisites recommended by the Shetty Commission to judicial officers in the State and implemented by the State Government, these would be made applicable to the officers on the Appellate Side of the Bombay High Court as well.

15. The 1st Petitioner was appointed as a Principal Secretary to the Hon'ble the Chief Justice on 7th June 1996. He retired on 30th April 2011. Another person was appointed as the Registrar/Principal Secretary to the Hon'ble the Chief Justice on 27th March 2008. This person was granted the Selection Grade with effect from 2013 although he was junior to the 1st Petitioner. Following the adoption of the guidelines and the conferment of Super Time Scale and Selection Grade on the Original Side, the then Prothonotary and Senior Master, an officer on the Original Side was also granted the benefit of the Super Time Scale. Similarly, an Additional Prothonotary and Senior Master on the Original Side was given the benefit of Selection Grade with effect from 18th February 2015. These are noted in paragraphs 3(h) and (i) of the Petition.

16. Petitioners Nos. 2 to 8 have received the benefit of Assured Career Progression-I ("**ACP-I**") at the time of fixation of their respective pay after the Service Rules were amended. But there is no application of ACP-II.

17. On 19th April 2019, the Petitioners made their first representation to the 1st Respondent seeking that guidelines be framed to decide the grant of Super Time Scale, Selection Grade

and ACP-II to the officers on the Appellate Side. These, they said, should follow the lines of the Original Side guidelines. There was no response, the Petitioners say, for about a year and a half. A copy of this representation is at Exhibit "F".

18. A second representation followed on 6th October 2020 (Exhibit "G" to the Petition). Here the Petitioners pointed out that at some point in April 2019 the then Registrar/Principal Secretary to the Chief Justice had been granted the benefit of the Selection Grade and had been paid arrears too. Yet, the Petitioners' representations were without response. Even the second representation met with no response.

19. This led to the Petitioners filing a third representation on 8th March 2021 (Exhibit "H") referring to the previous two representations and seeking redress. There is even now no answer. Hence this Petition.

20. Individual representations have also been separately made. The 5th Petitioner has made a separate representation on 5th November 2020 saying that she had completed five years of continuous service as a Deputy Registrar in the pay scale of the Civil Judge, Senior Division in the first stage of ACP-I on 18th March 2020 and was therefore entitled to the pay scale of the Civil Judge, Senior Division in the second stage of ACP-II. There seems to be no response to that either.

NOTARY GOVT. OF INDIA

21. The Bombay High Court Appellate Side Service Rules 2000 were amended in April 2018 by the insertion of Rule 3(b)(i). This revision related to pay scales, allowances and perquisites including retiral benefits and service conditions as periodically revised and made applicable. A copy of the amendments in the Bombay High Court Appellate Side Service Rules 2000 Appellate Side Rules are at Exhibit "A" with a translation provided at page 35A. The notification in that regard is at Exhibit "B" from pages 36 to 37.

22. Following the amendment, revised pay scales with all admissible allowances and perquisites were payable to officers on the Appellate Side of the Bombay High Court with retrospective effect from 4th July 2003. However, there were no guidelines in regard to the conferment of a Selection Grade / Super Time Scale or relating to ACP-II for Appellate Side officers although these had been framed and made applicable to officers on the Original Side. For completeness, in regard to Selection Grade and Super Time Scale the tabulation provided below sub-paragraph (f) at pages 11 and 12 of the Petition may be referred. This shows that Selection Grade and Super Time Scale is not applicable to every single officer but to a defined percentage. There are other requirements as well including a review of performance standards before these can be granted. The question is not of the grant or not grant but of making these provisions applicable at all or in the first place.

23. A brief analysis of the relevant provisions is necessary at this stage. The Maharashtra Judicial Service Rules, 2008[6] were slightly

6 Notification dated 25th August 2008, published on 27th August 2008.

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT OF INDIA

amended in 2010 (to include Government Pleaders, Additional and Assistant Public Prosecutors but not a full-time and salaried Public Prosecutor). Rule 3 in Chapter II deals with the 'Constitution of the Service'. It is said to be constituted with effect from 1st July 1996. Rule 3 contains two tables. Rules 3, 4 and 5 read:

> 3. Constitution of the Service—
>
> (1) There shall be constituted a State Service known as the Maharashtra State Judicial Service and such service shall be deemed to have been constituted with effect from the 1st day of July 1996.
>
> (2) The service shall consist of the cadres specified in column (2) of the Schedule appended herewith and the character and number of posts in each of those cadres shall be as specified in the corresponding entries in column (3) thereof.
>
> (3) With effect from the date of commencement of these Rules, the existing cadres specified in column (2) of the TABLE 'A' below, shall stand designated as the cadres specified in the corresponding entries in column (1) thereof and initially they shall constitute the service, namely—

TABLE 'A'

(1)	(2)
(a) District Judges	(i) District Judges; (ii) Additional District Judges; (iii) Principal Judge, Additional Principal Judge and Judges of City Civil and Sessions Court, Mumbai
(b) Senior Civil Judges	(i) Chief Metropolitan Magistrate;

(1)	(2)
	(ii) Additional Chief Metropolitan Magistrates;
	(iii) Judges of Court of Small Causes and Metropolitan Magistrates;
	(iv) Civil Judges, Senior Division.
(c) Civil Judge, Junior Division	(i) Civil Judge, Junior Division.

(4) Selection Grade District Judges and Super Time Scale District Judges.— The High Court shall confer Selection Grade and Super Time Scale on merit-cum-seniority basis to the officers in the cadre of District Judges as indicated in the TABLE 'B' below, namely:—

TABLE 'B'

Cadre (1)	Eligibility (2)	Total Number of Officers eligible (3)
Selection Grade	Five years of service as District Judges.	25% of the cadre strength of District Judges.
Super Time Scale	Three years of service as Selection Grade District Judges.	10% of the cadre strength of District Judges.

Upon conferment of such Selection Grade or Super Time Scale, such District Judges shall be called "Selection Grade District Judges" or "Super Time Scale District Judges", as the case may be.

(5) Assured Career Progression Scales:

i) A Civil Judge, Junior Division or a Senior Civil Judge shall be entitled to be considered for conferment of the First Assured Career Progression Scale on completion of five years of service as Civil Judge, Junior Division or a Senior Civil Judge, as the case may be, if,—

(a) he has not been promoted;

(b) the High Court finds him fit to be conferred with Assured Career Progression Scale and his performance as reflected in annual confidential reports is not less than average;

(ii) A Civil Judge, Junior Division or Senior Civil Judge shall be entitled to be considered for Second Assured Career Progression Scale on completion of ten years of service as Civil Judge, Junior Division or Senior Civil Judge, as the case may be, if,—

(a) he has not been promoted;

(b) the High Court finds him fit to be conferred with Second Assured Career Progression Scale and his performance as reflected in annual confidential reports is not less than "Good" for a continuous period of five years commencing from any year after he gets the First Assured Career Progression Scale:

Provided that no Judicial Officer shall be entitled to get the benefit of Assured Career Progression Scale-I or Assured Career Progression Scale-II, if—

i) his integrity is doubtful;

ii) more than once warning or caution is issued against him;

NOTARY GOVT. OF INDIA

Note: Mere "advice" would not amount to "warning" or "caution";

iii) any of the minor penalties as mentioned in Rule 5(1)(i) to (iv) of the Maharashtra Civil Services (Discipline and Appeal) Rules, 1979 is inflicted against him even on one occasion;

iv) his average disposal for more than one year within the span of five years is found to be "inadequate";

v) he is retired compulsorily or gets retirement voluntarily, even after the relevant span of five years and if his case is pending for consideration for such benefit;

vi) for any other reason the High Court finds him unfit to be conferred with Assured Career Progression Scale-I or Assured Career Progression Scale-II:

Provided further that if the probation period of the Judicial Officer is extended, the grant of Assured Career Progression Scale-I or Assured Career Progression Scale-II shall be deferred proportionately to commensurate with the extended probation period.

24. Read together, these Rules tell us, in sequence: (i) the cadres of service; (ii) the eligibility for Selection Grade and Super Time Scale; and (iii) Assured Career Progression Scales-I and II and the conditions for application of each.

131

25. Amendments to the Appellate Side Service Rules 2000 were effected on 31st March 2018 by a Government Resolution in the following terms:

Amendment in Bombay High Court,
Appellate Side Service Rule, 2000
Government of Maharashtra
Law and Judiciary Department,
Government Resolution No: Miscellaneous-2014/Case No. 201/Ka-6
Mantralaya, Mumbai — 400 032, Dated 31st March, 2018

Reference:— 1) Letter dated 6th September, 2014 of the Registrar (Law & Research), High Court, Appellate Side, Bombay.

2) Government Resolution No. HCT-2009/Case No. 141/ Ka- Three, dated 22nd October, 2010.

3) Order dated 7th August, 2013 passed by the Hon'ble High Court in Writ Petition No. 868 of 2008.

4) Order dated 18th November, 2013 passed by Hon'ble Supreme Court in Special Leave Petition No. 33079 of 2013.

Government Resolution:— In accordance to the Order dated 18th November, 2013 passed by Hon'ble Supreme Court in Special Leave Petition No. 33079 of 2013, a detailed discussion was held in cabinet meeting dated 15th March, 2018 in respect of granting the revised pay scales to the Registrar/Principal Secretary to the Hon'ble the Chief Justice and Deputy Registrars (In Service and Retired) of the Hon'ble Bombay High Court (Appellate Side) and its Benches. The Government has decided that the pay scales mentioned in the below statement be made applicable to the

NOTARY GOVT. OF INDIA

said Officers w.e.f. 4th July, 2003 as recommended by Hon. Shetty Commission.

	Designation	Unrevised Pay scale (Before 6th Pay Commission	Revised pay scale (From 4.7.2003 to 31.12.2005)	Revised Pay scale (From 1.1.2006)
1.	Registrar	14300-400-18300	16750-400-19150-450-20500	51550-1230-58930-1380-63070
2.	Registrar/ Principal Secretary to the Hon'ble the Chief Justice	14300-400-18300	16750-400-19150-450-20500	51550-1230-58930-1380-63070
3.	Deputy Registrar	12000-375-16500	14200-350-15950-400-18350	43690-1080-49090-1230-56740

2. Therefore, the Government is granting approval for insertion of Rule 3-(b)(i) in Bombay High Court, Appellate Side Service Rule, 2000 after Rule 3(b) as mentioned hereinafter.

> Rule 3(b)(i):- "The posts mentioned at Sr. Nos. 2 and 3 (designated as Registrars and Registrar/Principal Secretary to the Honourable the Chief Justice respectively vide Notification No. B 1509/2000, dated 22nd August 2005) shall carry pay scales of District Judge Entry Level and post mentioned at Sr. No. 4 shall carry pay scale of Senior Civil Judge ACP-I with admissible allowances and perquisites including retirement benefits and service conditions as

NOTARY SANJEEV GOPAL CHINCHOLKAR GREATER BOMBAY REGN. NO. 5107/2 Exp. DT. 07-01-2020 GOVT. OF INDIA

133

may be revised and made applicable from time to time."

3. The Registrar (Law and Research) High Court, Appellate Side shall take further action to issue the notification as per the draft provided in the annexure annexed herewith, for the necessary implementation of Bombay High Court (Appellate Side) Amended Service Rules, 2018.

4. The said Government Resolution is being issued in according to the consent of the Finance Department received vide an Informal Reference No. 22/2018/ Service-9 dated 15th January, 2018.

Sd/-

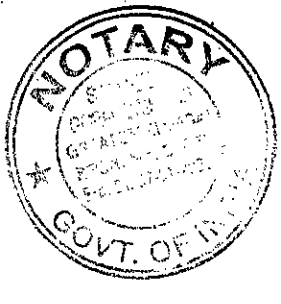
(Suhas Chavan)

Upper Secretary, Government of Maharashtra"

26. The amendment was notified on 3rd April 2018.

27. On 16th July 2018, the Registrar-General issued a circular referencing the GR of 31st March 2018 saying that Registrars, Registrars/Principal Secretaries to the Chief Justice and Deputy Registrars (working at and retired from) the High Court, Appellate Side were entitled to all allowances and perquisites admissible under Shetty Commission/ Padmanabhan Commissions, as periodically revised. A list of the allowances and perquisites was set out.

28. Following the 7th August 2013 judgment in the *Adeline Rodrigues* case referred to above, the Bombay High Court Original Side Rules 2002 were amended. Rule 3(bi) was added, and it



corresponds exactly with the Appellate Side Service Rule 3(b)(i). The amended Original Side Service Rule reads:

> "Rule (bi) The post mentioned at Sr. No. 1 shall receive the pay scale of District Judge, Selection Grade and posts at Serial Nos. 2 to 5 shall receive the pay scale of District Judge, Entry Level and post at Serial Nos. 6, 7 and 9 to 14 and one post at Serial No. 15 shall receive the pay scale of Senior Civil Judge, ACP-I with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time."

The statement showing posts at Sr. No. 1, 2 to 5 and applicable pay scale and equivalent cadre is as under:

TABLE - A

Sr. No.	Post on the Original Side	Equivalent Cadre	Pay Scale (in Rupees)2
1	Prothonotary and Senior Master	District Judge, Selection Grade	57700-1230-58930-1380-67210-1540-70290/-
2	Addl. Registrar, Original Side / Additional Prothonotary and Senior Master	District Judge, Entry Level	51,550-1230-58930-1380-63070/-
3	Official Assignee	District Judge, Entry Level	51,550-1230-58930-1380-63070/-
4	Commissioner for Taking Accounts	District Judge, Entry Level	51,550-1230-58930-1380-63070/-
5	Court Receiver	District Judge Entry Level	51,550-1230-58930-1380-63070/-

In view thereof, the benefits of pay scale of Shetty Commission and Padmanabhan Commission are extended to the aforesaid Officers on the Original Side. So also, benefits of Super Time Scale and Selection Grade is also

required to be extended to the aforesaid officers at par with the District Judge Selection Grade and Entry Level as per the provisions of the Maharashtra Judicial Services Rules, 2008.

Rule 4 of the Maharashtra Judicial Services Rules, 2008 (as amended up to 13.02.2014) reads as under:

TABLE - B

Cadre	Eligibility	Total Number of Officers eligible
Selection Grade	Five years of service as District Judges	25% of the cadre strength of District Judges
Selection Grade	Three years of service as Selection Grade District Judges	10% of the cadre strength of District Judges

Taking into account post of Prothonotary and Senior Master which is at par with District Judge Selection Grade and the post of (i) Addl. Registrar (O.S.) / Addl. Prothonotary and Senior Master, (ii) Official Assignee, (iii) Commissioner for Taking Accounts and (iv) Court Receiver, which are at par with District Judge Entry Level, guidelines for conferment of Super Time Scale and Selection Grade Scale are as under:

Cadre	Eligibility	Total number of officers eligible
Super Time Scale	Three years of service to the equivalent post having pay scale of District Judge Selection Grade or Prothonotary and Senior master having completed 3 years of service: At least one service rating not less than "very good" and not less than "good" for the remaining years. The Annual Confidential Reports,	10% of cadre strength of equivalent post having pay scale of District Judge Selection Grade

NOTARY GOVT. OF INDIA

Cadre	Eligibility	Total number of officers eligible
	Leave and Late Attendance Records for three years for grant of Super Time Scale, so also, SID report, may be taken into consideration for ascertaining eligibility for conferment of Super Time Scale.	
Selection Grade Scale	Five years of continuous service as Addl. Registrar (O.S.) / Addl. Prothonotary and Senior Master / Official Assignee/ Commissioner for Taking Accounts / Court Receiver having pay scale of District Judge Entry Level, as the case may be. Three "good" service ratings out of five years and other two, not less than "average" for the remaining years; Annual Confidential Reports, Leave and Late Attendance Records for five years for grant of Selection Grade Scale, so also, SID report, may be taken into consideration for ascertaining eligibility for conferment of Selection Grade Scale.	25% of cadre strength of equivalent post having pay scale of District Judge Entry Level

29. As to ACP-I and ACP-II, the Maharashtra Judicial Services Rules extracted above show that a Civil Judge Junior Division or a Senior Civil Judge is entitled to be considered for ACP-I on completing five years of service as Civil Judge Junior Division or a Senior Civil Judge. ACP-II is applicable once they complete 10

years in service. Thus, a Senior Civil Judge is initially placed at the 'entry-level' pay scale; then, after five years, he is assured ACP-I; and after a further five years, to ACP-II. Of course, the ACPs are not unconditional; the qualifying criteria must be met. Mere longevity in service is no assurance of ACP-I or ACP-II. In the High Court, once the amended service rules are applied, a person who is granted (by the service rules) the pay scale of a Civil Judge Senior Division *at the inception* must be entitled to ACP-II pay scales consistent with the Maharashtra Judicial Services Rules, i.e., after five years, and not any longer or shorter time. ACP-II eligibility is to be reckoned as five years from the date the person gets ACP-I. For the High Court, it is important to note that an employee serves for no less than *25 years* to reach the level of a Deputy Registrar. This is why Deputy Registrars were placed in ACP-I and *not in the entry-level pay scale*. Once they are at the ACP-I level, they cannot be made to languish there for a period longer than the law permits, i.e., more than five years. That would be contrary to the Maharashtra Judicial Services Rules. Indeed, it would render nugatory the very purpose of placing Deputy Registrars at the ACP-I level in the first place.

30. Once uniform pay scales are made applicable, extending beyond five years the time required to be spent by Deputy Registrars at the ACP-I would be a form of hostile discrimination violating Article 14 of the Constitution of India.

31. Further, once there is a demonstrable parity between the Appellate Side and Original Side Service Rules, there is no room for refusing to officers on one side the benefits of pay scale revisions

NOTARY
SANJEEV
GOPAL GAIKWAD
GREATER MUMBAI
REGN. No. 31072
Exp. Dt. 07-01-2030
GOVT. OF INDIA

and guidelines applicable to officers on the other side. We also do not understand how the framing of 'guidelines' can be used as a device to make service benefits *inapplicable* either by excluding some persons or by extending the time for qualification of the next stage.

32. Appellate Side officers are almost invariably judicial officers drawn from the State Judicial Services. They hold ex-cadre posts. Many officers on the Original Side are, or can be, and have in the past known to be, non-judicial officers, i.e., not from the State judiciary but drawn from their respective feeder cadres. This is true of the offices of the Prothonotary and Senior Master, Additional Prothonotary and Senior Master, Official Assignee, Commissioner for Taking Accounts, the Court Receiver, Assistant Prothonotary and Senior Master and so forth. From the beginning, there was—and certainly should be—a practice of being able to move officers from one side to the other depending on the needs. The implementation of the Shetty Commission recommendations for "judicial officers" created a peculiar anomaly. As we noted at the beginning, the position of the Original Side of the High Court is somewhat unique and is shared by only a few other Chartered High Courts in the country. The fact that the staffing on the Original Side is and can be drawn from non-judicial officers is what led to the anomaly. The Shetty Commission made its recommendations applicable to judicial officers. Non-judicial officers, such as those on the Original Side of the High Court were not provided for. But it is precisely this discrepancy or imbalance that was rectified by the judgment of this Court in the *Adeline Rodrigues* case That decision brought both sides to parity when it said that there was no meaningful distinction or classification to be made between officers

NOTARY SANJEEV GOPAL CARWAD GREATER MUMBAI REGN. No. 31072 GOVT. OF INDIA

on the Original and Appellate Side. Paragraphs 14 to 16 of the *Adeline Rodrigues* decision read:

> 14. In our view, Respondent No. 1 and 3 have committed an error of law which is apparent on the face of record and which is contrary to the law laid down by the Apex Court. It is surprising that Respondent No. 3, Principal Secretary, Law and Judiciary and Respondent Nos. 1 and 2 have taken a very callous and casual attitude while rejecting the directions given by the Hon'ble Chief Justice. Perusal of Article 229 clearly reveals that Hon'ble Chief Justice has the sole prerogative of fixing the pay-scales and salaries of the employees of the High Court and it is not open for the State Government to brush aside the directions given by the Hon'ble Chief Justice under Article 229 of the Constitution of India. We are pained at the language used by the Respondents in their affidavit-in-reply, which, in our view, is not only contemptuous but falls nothing short of committing contempt of this Court, particularly after directions were given by the Hon'ble Chief Justice under Article 229 of the Constitution of India. The Article envisages that not only the appointments of Officers and Servants of the High Court shall be made by the Chief Justice but even the conditions of service of Officers and Servants of the High Court shall be such as may be determined by the Rules framed by the Chief Justice. In the present case, it is an admitted position that Maharashtra Civil Services Rules have been adopted by the Hon'ble Chief Justice and this fact was brought to the notice of Respondent No. 1. The Hon'ble Chief Justice of this Court had directed the Prothonotary to inform the decision taken by the Chief Justice to the Respondents. However, Respondent Nos. 1 to 3 have not complied with the directions which were given by the Hon'ble Chief Justice. The attitude of Respondent Nos. 1 and 3 is reflected from

NOTARY
GOVT. OF INDIA

the language used in the affidavit in reply. In para 6 of the Affidavit in reply, Joint Secretary Pradeep Bavkar has stated as under:—

> "6 ... It is not known as to what exercise or homework was done before the decision regarding revision of pay scales was taken... "

It is true that subsequently when the learned Advocate General appeared, the said observations were sought to be withdrawn by filing another affidavit-in-reply. Be that as it may, the said language clearly indicates the attitude of Respondent No. 3 to the directions which were given by the Hon'ble Chief Justice.

15. In our view, even if the Rules have not been framed by the Hon'ble Chief Justice, directions were given to give parity in pay-scales to the Officers working on the Original Side of the High Court with Judicial Officers working on the Appellate Side of the High Court. It has to be noted here that the said directions were not followed with the remark "Rules are not framed" but, in our view, that cannot be the reason for not complying with the directions. It is obvious that in spite of the fact that judgment of the Apex Court in *S.B. Vohra's case*, JT 2004 (1) SC 38 (supra) was brought to the notice of Respondent Nos. 1 and 3, the State Government has chosen to take the same adamant attitude.....

16. It has to be noted here that if the directions given by the Hon'ble Chief Justice are implemented, there won't be any financial burden on the State of Maharashtra, since, as of today, salary drawn by the Class-I Officers on the Original Side and Appellate Side is almost equivalent and there is negligible difference in the said salaries drawn by two sets of Officers on both sides. Be that, as it may, even if the question of financial implication is concerned, that could not be a ground to

NOTARY SANJEEV GOPAL GHUGE GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

reject the recommendations made by the Chief Justice. Under these circumstances, we are of the view that the impugned decision communicated by Respondent No. 1 to 3 will have to be quashed and set aside and the Petition will have to be allowed."

(*Emphasis added*)

33. Rule 3(b)(i) of the Bombay High Court Appellate Side Service Rules 2000 and Rule 3(b)(i) of the Bombay High Court Original Side Service Rules 2002 are verbatim identical. Both Rules provide that non-judicial officers of this High Court are entitled to pay scales, allowances and perquisites including retirement benefits and service conditions as may be periodically revised and made applicable. We have already set out Rule 4 of the Maharashtra Judicial Service Rules 2008 above.

34. Obviously, guidelines had to be framed to decide the grant of Selection Grade and Super Time Scale to officers on the Original Side. This was done by the Bombay High Court Welfare Committee, a Committee that is not restricted to either the Original Side or the Appellate Side but covers the entire High Court. These guidelines were then applied to the then Prothonotary and Senior Master (perhaps also holding the designation of Registrar (Original Side)), and he received the benefit of pay scale of Selection Grade as also, on completion of five years in that Selection Grade, the Super Time Scale benefit. By similar application of these guidelines, the then Additional Registrar (Original Side) / Additional Prothonotary and Senior Master was also granted the benefit of a Selection Grade pay scale.

NOTARY GOVT. OF INDIA

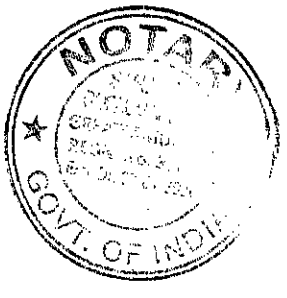
35. The case of the Registrar/Principal Secretary to the Hon'ble the Chief Justice is perhaps different. He was clearly an officer on the Appellate Side establishment; the amended Rules include the post specifically. He was granted the benefit of a pay scale of the Selection Grade. He received all arrears of monetary benefit in 2019 (when the Petitioners' first representation was still pending). He appears to have been the only person on the Appellate Side establishment to have received the benefit. It is not shown to us how other officers on the Appellate Side, also included in the 31st March 2018 GR should be treated differently. To put it in another way, we are unable to discern any intelligible differentia between these three cases cited in the Petition and other eligible officers of this Court. Indeed, there appears to us to be no classification at all but simply an acceptance of three individual cases. At an institutional level, one would expect that an administration would deal not with individuals but with classes. In a given case, an individual might be a class by herself or himself, i.e., there could be validly a classification of one. But every classification needs intelligible and rational differentia to distinguish it clearly and there must be a demonstrable rational nexus between the object of what is being applied and that classification. If one officer was being conferred benefit of any kind, then he had to be shown to be separately distinctly classifiable. This is not demonstrated before us. Otherwise, the benefits afforded to him would have to be applied to all others in that class. If not, the selection of an individual for special benefit would be ex-facie arbitrary and would be susceptible to judicial review. Thus, any administrative decision that conferred such a benefit on an individual, absent a rational classification and a nexus, would be vulnerable. The decision itself could not be sustained and the

NOTARY SANJEEV GOPAL [illegible] GREATER MUMBAI REGN. No. 31072 Exp. D. 07-01-2030 GOVT. OF INDIA

consequences would perhaps have to be visited on that individual. But in this Petition, the case of the Petitioners is not that an officer was wrongly conferred benefit but simply that the benefit conferred on him had necessarily to be conferred and made available to all other officers similarly situated. Likes must be treated alike. That is, simply put, the mandate of Article 14. The Petition does not seek to dislodge any existing beneficiary either on the Original or the Appellate Side.

36. Indeed, to our mind, what the Petition seeks is an order consistent with what the Maharashtra Government did, what the Shetty Commission intended and what the amendments to the Rules contemplated, namely that officers on both sides of the High Court, Original and Appellate, judicial and non-judicial, would be treated as one class. As Mr Gadagkar puts it, the Original Side and Appellate Side distinction is one that is special to our High Court but it is a jurisdictional division. It does not mean that those who work for the High Court can be differently treated because some of them do Original Side work and others do Appellate Side work. As he puts it, except for jurisdiction, there is only one High Court.

37. If there is a distinction sought to be drawn between 'judicial officers' and 'non-judicial officers', then that is also, to our mind, meaningless in the context of service in the High Court. Today, judicial officers occupy positions on the Original Side. But previously these positions were occupied by non-judicial officers — and the cases of the then Prothonotary & Senior Master and the then Additional Prothonotary & Senior Master show this. Even non-



judicial officers do substantially similar work in the High Court as judicial officers. In the matter of delegation of duties, we do not expect our judicial officers to discharge any higher or greater burden or perform any greater duty. Non-judicial officers, too, have daily lists; they hold hearings; they pass orders, even in contentious cases. If the belief is that judicial officers, being judges by training, recruitment and appointment, should receive special benefits that should not be made available to non-judicial officers working on the High Court, then that view has to be jettisoned. For one thing, it is too late now to try and subvert the legal and lawful mandate of equalization of pay scales and benefits by resorting to guidelines or some such administrative procedure. Secondly, the parity arises because of work and service *in the High Court*. Nobody suggests that a non-judicial officer can be deputed to hold a *post* as a judge. Thirdly, it cannot be forgotten that a non-judicial officer serves for decades before achieving the post equivalent to District Judge Selection Grade, District Judge Entry Level or Civil Judge Senior Division — ACP-I.

38. The question of framing guidelines is thus not an issue that needs to detain us. If guidelines were indeed to be framed, these could have been done a long time ago and there is nothing shown to us to indicate why these guidelines have not been framed. To the contrary, there have been three representations and these go back now almost four years. All these seek precisely the same thing that officers on the Original Side and Appellate Side be brought on parity. All of them say that if this is not done there is a form of an Article 14 violation, that is to say an invidious discrimination. The law does not countenance this is the submission on behalf of the

NOTARY SANJEEV GOPAL GURAV GREATER MUMBAI REG'N. NO. 33072 VALID UP TO 07-01-2030 GOVT. OF INDIA

145

Petitioners placing reliance on the decision of the Supreme Court in *State of Mizoram and Anr v Mizoram Engineering Service Association and Anr.*[7] The legendary decisions of the Supreme Court in *DS Nakara & Ors v Union of India*[8] is also invoked in support of the plea of non-discrimination. If there are a set of Rules they have to be uniformly applied to persons similarly situated: *Dr G Sadasivan Nair v Cochin University of Science And Technology represented by its Registrar And Ors.*[9]

39. The State Government for its part has no quarrel with what the Petitioners seek. It does not oppose this Petition.

40. But the Affidavit in Reply on behalf of the 1st Respondent in paragraph 3 makes a curious submission that if granted these reliefs, it would place an additional financial burden on the State Government. We confess we are entirely unable to understand what this is supposed to mean, if anything. If that was so, the State Government ought not to have accepted the Shetty Commission recommendations. The High Court ought not to have amended the Service Rules. This submission is hardly an answer to the selective conferment of benefits on identified individuals and the denial of those very benefits to other officers identically placed. The submission is singularly ill-advised. We would have expected a far more circumspect affidavit in response, especially from a Judicial Officer. We are dealing with officers of our own Court here. Above all we are dealing with human beings. It is no answer to tell us that a

7 (2004) 6 SCC 218.

8 (1983) 2 SCR 165.

9 (2022) 4 SCC 404.

particular financial benefit that is supposed to be made applicable cannot be given because it places an additional financial burden on the State Government, especially when the State Government does not say this. The argument was repelled in the *Adeline Rodrigues* case, and we do not see how the 1st Respondent's Affidavit in Reply can even attempt to raise it now. This is not a Petition that seeks the exercise of a discretion or the conferment of a discretionary benefit. It is a Petition that seeks the enforcement of a legally enforceable right.

41. The other disturbing factor is that these representations have been pending for four years. That in itself is a reason not to delay the matter and not to adjourn it for the preparation of any additional guidelines. The submission on behalf of the 1st Respondent, correctly put by Mr Nerlekar, is that the guidelines applicable to the Original Side (Exhibit "D") can be made applicable to Appellate Side officers. His only instructions are to state that this can perhaps be done on the administrative side by adopting suitable guidelines. But that means a further adjournment of the Petition and it does not explain why if this is all that was required and if matters were so trivial, this was not done since 2019. Delay in dealing with a representation fairly made and placed is itself a sufficient ground for the exercise of the extraordinary jurisdiction of this Court under Article 226 of the Construction of India. Administrative delay for whatever reason can and does result often in severe prejudice to individuals seeking enforcement of their legal rights. No Writ Court will blind itself to the sheer injustice caused by the passage of time without redress. There is no material in the 1st Respondent's Affidavit in Reply to show that the matter was taken up on the

NOTARY
GOVT. OF INDIA

147 administrative side and was deferred. This is why we do not accept the request for an adjournment. The Petition itself is not new. It was filed on 6th May 2022 and that, as we noted, was after a four-year gap when the Petitioners, perhaps having regard to the institution they once served or do serve, made one representation after the other.

42. We see no impediment to the grant of relief. We make Rule absolute but in the following terms.

43. The guidelines at Exhibit "D" at page 40 of the Petition, viz., the guidelines to be followed to grant Selection Grade and Super Time Scale to officers on the Original Side of the High Court are to be made applicable to all eligible officers on the Appellate Side of the High Court. As regards the eligible officers on the two sides, there will be parity in these matters. This will cover prayer clause (a).

44. As regards prayer clause (a)(i), which is the case of the 1st Petitioner, the benefit of the Selection Grade must be granted to him. This is an inevitable and inescapable consequence of the first relief. If the guidelines at Exhibit "D" are made applicable to Appellate Side officers, then the Selection Grade benefit must be made applicable to the 1st Petitioner.

45. As regards the benefits of ACP-II and its applicability to Petitioners Nos. 2 to 8, the prayer is that ACP-II must necessarily extend to eligible Appellate and Original Side officers of this Court. That is again a logical consequence of the first relief that we have



granted, to bring parity between the pay scales and benefits of officers on the two sides of the High Court.

46. We are further fortified in this view by the Government Resolution dated 31st March 2018, extracted above. Where ACP-I has been granted to some officers of this Court, we see no reason why ACP-I or ACP-II should be denied to any officers on either the Original or the Appellate Side of this Court. Obviously for all three, i.e., Selection Grade, Super Time Scale, ACP-I and ACP-II the necessary eligibility conditions have to be met. Our judgment today should not be understood as waiving the applicability of any of those conditions. For ACP-II, where the requirement is of completion of a certain period of service, that must necessarily continue — but it must be consistent with the Judicial Services Rules, as noted above. The necessary correlation is already established, as we have seen, and determines whether an officer is conferred equivalence of an entry-level District Judge, or, for example, is designated a Deputy Registrar, entitled to ACP-I. The guidelines on the administrative side cannot alter what is set by law. It is true that there are certain physical infrastructure perquisites available to district judges after a certain level — the allotment of a vehicle, for instance. We do not suggest that High Court employees should stand entitled to such perquisites. But that allotment comes with an allowance expressed in monetary terms, and that parity is therefore to be maintained.

47. Lastly, we clarify that we have not by this order accepted any plea for a retrospective filling of *posts*. No person can demand a post with retrospective effect; that would unseat those who have, in the

149

meantime, come to occupy the posts. The salary and pay revisions made *pay scales* applicable. If there is, therefore, a mention of a post it is only a descriptor and for showing the corresponding connection for the purposes of pay scales, benefits, ACP, etc. The judgment relates only to the applicability of pay scales and benefits to officers working in the High Court.

48. The Writ Petition is disposed of in these terms with no order as to costs.

(Neela Gokhale, J) (G. S. Patel, J)



150

No. P & E/379 /2023

Read: GR No. Raniyo-2022/Pra.Kra. 34/Seva-4 dated 31.03.2023

CIRCULAR

All the staff members working on the Original Side Registry of the High Court of Bombay who are presently enrolled under Defined Contribution Pension Scheme / National Pension Scheme (DCPS/NPS) are hereby directed to submit the Option Forms (in Namuna 1 and 2 enclosed herewith) in respect of admissibility of Family Pension or Sick Pension as per provisions of the Maharashtra Civil Services (Pension) Rules, 1982 OR benefits under National Pension Scheme, if he/she dies while in service or retire sick, as the case may be, on or before 30.04.2023 to the Master (Adm), Pay & Establishment Department, High Court, Original Side, Bombay.

High Court, Original Side)
)
)
Bombay, 27th April, 2023)

Registrar, Original Side
High Court, Bombay

NOTARY GOVT. OF INDIA

परिभाषित अंशदान निवृत्तिवेतन योजना/राष्ट्रीय निवृत्तिवेतन प्रणाली अंतर्गत कर्मचाऱ्याचा सेवा कालावधीत मृत्यू झाल्यास त्याच्या कुटुंबियांना कुटुंब निवृत्तिवेतन आणि मृत्यू उपदान व रुग्णता सेवानिवृत्त झालेल्या कर्मचाऱ्याला रुग्णता निवृत्तिवेतन आणि सेवानिवृत्ति उपदान तसेच शासन सेवेतून निवृत्त होणाऱ्या कर्मचाऱ्यांना सेवा उपदान मंजूर करणेबाबत.

महाराष्ट्र शासन

वित्त विभाग

शासन निर्णय क्रमांक : रानियो-२०२२/प्र.क्र.३४/सेवा-४

हुतात्मा राजगुरु चौक, मादाम कामा मार्ग,

मंत्रालय, मुंबई ४०००३२.

दिनांक : ३१ मार्च, २०२३.

वाचा : १) शासन निर्णय, वित्त विभाग क्र. अंनियो १००५/१२६/सेवा-४, दि.३१.१०.२००५.
२) शासन निर्णय, वित्त विभाग क्र. अंनियो १००७/१८/सेवा-४, दि.०७.०७.२००७.
३) शासन परिपत्रक, वित्त विभाग क्र. अंनियो २०१२/प्र.क्र.९६/सेवा-४, दि.२७.०८.२०१४.
४) शासन निर्णय, वित्त विभाग क्र. अंनियो २०१५/(NPS)/प्र.क्र.३२/सेवा-४, दि.०६.०४.२०१५.
५) केंद्र शासनाचे कार्यालयीन ज्ञापन क्र.३८/४१/०६/P&PW(A), दि.०५.०५.२००९
६) केंद्र शासनाचे कार्यालयीन ज्ञापन क्र.७/५/२०१२-P&PW(F)/B, दि.२६.०८.२०१६.
७) केंद्र शासनाची अधिसूचना क्र.G.S.R.२२७ (E) , दिनांक ३०.०३.२०२१.
८) केंद्र शासनाची अधिसूचना क्र.G.S.R.६५८ (E) , दिनांक २३.०९.२०२१.

प्रस्तावना :-

वित्त विभाग, शासन निर्णय दिनांक ३१.१०.२००५ व दिनांक २७.०८.२०१४ अन्वये दिनांक ०१.११.२००५ रोजी किंवा त्यानंतर शासन सेवेत नियुक्त होणाऱ्या कर्मचाऱ्यांना अनुक्रमे नवीन परिभाषित अंशदान निवृत्तिवेतन योजना व राष्ट्रीय निवृत्तिवेतन प्रणाली लागू करण्यात आली आहे. परिभाषित अंशदान निवृत्तिवेतन योजना /राष्ट्रीय निवृत्तिवेतन प्रणाली लागू असलेल्या कर्मचाऱ्यांना महाराष्ट्र नागरी सेवा (निवृत्तिवेतन) नियम, १९८२, महाराष्ट्र नागरी सेवा (निवृत्तिवेतनाचे अंशराशीकरण) नियम, १९८४ व सर्वसाधारण भविष्य निर्वाह निधीचे लाभ अनुज्ञेय ठरत नाहीत.

२. तद्नंतर केंद्र शासनाच्या संदर्भ क्र.७ येथील Central Civil Services (Implementation of National Pension System) Rules, २०२१ दिनांक ३०.०३.२०२१ अन्वये केंद्र शासनाच्या सेवेतील राष्ट्रीय निवृत्तिवेतन प्रणाली अंतर्गत कर्मचाऱ्याचा सेवेत कार्यरत असताना मृत्यू झाल्यास त्याच्या कुटुंबास कुटुंब निवृत्तिवेतन अथवा रुग्णता सेवानिवृत्त झालेल्या कर्मचाऱ्यास रुग्णता निवृत्तिवेतन अनुज्ञेय केले आहे.

तसेच केंद्र शासनाच्या संदर्भ क्र.८ येथील Central Civil Services (Payment of Gratuity under National Pension System) Rules, २०२१ दिनांक २३.०९.२०२१ अन्वये केंद्र शासनाच्या सेवेतील राष्ट्रीय निवृत्तिवेतन प्रणाली अंतर्गत कर्मचाऱ्याचा सेवेत कार्यरत असताना मृत्यू झाल्यास त्याच्या

NOTARY SANJEEV ... MUMBAI ... Exp. Dt. 07-01-2030 ... GOVT. OF INDIA

कुटुंबाला मृत्यू उपदान, रुग्णता सेवानिवृत्त झालेल्या कर्मचाऱ्यास सेवा उपदान तसेच शासन सेवेतून निवृत्त होणाऱ्या कर्मचाऱ्यांना सेवा उपदान अनुज्ञेय केले आहे.

३. केंद्र शासनाच्या वरील निर्णयाच्या धर्तीवर राज्य शासनाच्या सेवेतील परिभाषित अंशदान निवृत्तिवेतन योजना/राष्ट्रीय निवृत्तिवेतन प्रणाली लागू असलेल्या कर्मचाऱ्याचा सेवा कालावधीत मृत्यू झाल्यास त्याच्या कुटुंबाला कुटुंब निवृत्तिवेतन आणि मृत्यू उपदान व रुग्णता सेवानिवृत्त झालेल्या कर्मचाऱ्याला रुग्णता निवृत्तिवेतन आणि सेवा उपदान तसेच शासन सेवेतून निवृत्त होणाऱ्या कर्मचाऱ्यांना सेवा उपदान मंजूर करण्याची बाब शासनाच्या विचाराधीन होती.

शासन निर्णय :-

शासनाने आता असा निर्णय घेतला आहे की, दिनांक ०१.११.२००५ रोजी किंवा त्यानंतर शासन सेवेत नियुक्त झालेल्या व परिभाषित अंशदान निवृत्तिवेतन योजना/ राष्ट्रीय निवृत्तिवेतन प्रणाली लागू असलेल्या कर्मचाऱ्याचा

(अ) सेवेत असतांना मृत्यू झाल्यास त्याच्या कुटुंबाला कुटुंब निवृत्तिवेतन आणि मृत्यू उपदान,

(ब) रुग्णता सेवानिवृत्त झालेल्या कर्मचाऱ्याला रुग्णता निवृत्तिवेतन आणि सेवा उपदान लागू करण्यात येत आहे.

त्यानुसार सदर कुटुंब निवृत्तिवेतनधारकास व रुग्णता निवृत्तिवेतनधारकास महाराष्ट्र नागरी सेवा (निवृत्तिवेतन) नियम, १९८२ मधील तरतुदीप्रमाणे कुटुंब निवृत्तिवेतन / रुग्णता निवृत्तिवेतन लागू होईल.

(क) तसेच शासन सेवेतून निवृत्त होणाऱ्या कर्मचाऱ्यांना सेवा उपदान लागू करण्यात येत आहे.

वरील निर्णयानुसार प्रदान करण्यात येणाऱ्या सेवा उपदान व मृत्यु उपदानाच्या प्रयोजनार्थ सद्य:स्थितीत महाराष्ट्र नागरी सेवा (निवृत्तिवेतन) नियम, १९८२ मधील तरतूदी लागू राहतील.

२. शासन निर्णय, वित्त विभाग क्र.अंनियो-२०१७/प्र.क्र.२९/सेवा-४, दि.२९.०९.२०१८ अन्वये लागू करण्यात आलेली सानुग्रह अनुदान योजना या शासन निर्णयाच्या दिनांकापासून बंद करण्यात येत आहे. सानुग्रह अनुदानासाठी प्राप्त झालेले अर्ज विचारात घेण्यात येऊ नये तसेच प्रलंबित प्रकरणे बंद करण्यात यावी.

३. दिनांक ०१.११.२००५ ते या निर्णयाच्या दिनांकापर्यंत मृत्यू पावलेल्या कर्मचाऱ्यांच्या कुटुंबास मृत्यू उपदान, कुटुंब निवृत्तिवेतनाची थकबाकी तसेच नियमित कुटुंब निवृत्तिवेतन मिळण्यासाठी सदर शासन निर्णयासोबतचा नमुना-३ मधील विकल्प कार्यालय प्रमुखाकडे सादर करावा लागेल. त्यानुसार कुटुंब निवृत्तिवेतनधारकास त्याला मिळालेल्या सानुग्रह अनुदानाची रक्कम व परिभाषित निवृत्तिवेतन योजना / राष्ट्रीय निवृत्तिवेतन प्रणाली अंतर्गत शासनाच्या अंशदानाची व्याज / लाभांशासह रक्कम समायोजित

पृष्ठ ८ पैकी २

NOTARY GOVT. OF INDIA

करण्याच्या अटीवर कुटुंब निवृत्तिवेतनाचा लाभ अनुज्ञेय होईल. सदर रक्कम समायोजित झाल्यानंतर कुटुंब निवृत्तिवेतनधारकास नियमितपणे कुटुंब निवृत्तिवेतन अनुज्ञेय राहील.

४. राष्ट्रीय निवृत्तिवेतन प्रणाली अंतर्गत सध्या कार्यरत असलेल्या व यापुढे शासकीय सेवेत नियुक्त होणारा कर्मचारी यांनी त्यांचा सेवेत असताना मृत्यू झाल्यास किंवा रुग्णता सेवानिवृत्त झाल्यास, महाराष्ट्र नागरी सेवा (निवृत्तिवेतन) नियम, १९८२ प्रमाणे कुटुंब निवृत्तिवेतन किंवा रुग्णता निवृत्तिवेतन अनुज्ञेय करण्याबाबत अथवा राष्ट्रीय निवृत्तिवेतन प्रणाली अंतर्गत त्याची कायम निवृत्तिवेतन लेखा क्रमांक (PRAN) मध्ये जमा असलेली संचित रक्कम निवृत्तिवेतन निधी विनियमक व विकास प्राधिकरण (PFRDA) यांनी वेळोवेळी निर्गमित केलेल्या आदेशानुसार अनुक्रमे कुटुंबास किंवा त्याला मिळण्याबाबतचा सोबतचा नमुना-२ मध्ये विकल्प कार्यालय प्रमुखाकडे सादर करावा.

५. जे शासकीय कर्मचारी महाराष्ट्र नागरी सेवा (निवृत्तिवेतन) नियम, १९८२ प्रमाणे कुटुंब निवृत्तिवेतन किंवा रुग्णता निवृत्तिवेतन अनुज्ञेय करण्याबाबतचा विकल्प सादर करतील, त्यांनी नमुना-१ प्रमाणे कुटुंबाचा तपशील सादर करणे अनिवार्य आहे.

६. राष्ट्रीय निवृत्तिवेतन प्रणाली लागू असलेल्या सर्व कर्मचाऱ्यांनी शासन निर्णयाच्या दिनांकापासून एक महिन्याच्या आत वरील परिच्छेद क्र.४ प्रमाणे विकल्प देणे बंधनकारक राहील. तसेच यापुढे शासन सेवेत नियुक्त होणाऱ्या कर्मचाऱ्यानी उपरोक्तप्रमाणे विकल्प शासन सेवेत नियुक्त झाल्यावर ८ दिवसाच्या आत सादर करणे आवश्यक राहील.

७. शासन असाही आदेश देत आहे की, जिल्हा परिषदा, मान्यता प्राप्त व अनुदानित अशासकीय प्राथमिक व माध्यमिक शाळा, कृषितर विद्यापिठे व त्यांच्याशी संलग्नित मान्यता प्राप्त व अनुदानित अशासकीय महाविद्यालये तसेच कृषी विद्यापिठे व तत्सम अनुदानित संस्थामधील कर्मचाऱ्यांना वरील निर्णय, योग्य त्या फेरफरांसह लागू राहील. मात्र याबाबत स्वतंत्र आदेश संबंधित मंत्रालयीन प्रशासकीय विभागांनी निर्गमित करण्याबाबतची कार्यवाही त्यांच्या स्तरावरुन करावी.

८. या अनुषंगाने कार्यपध्दतीबाबतच्या सविस्तर सूचना स्वतंत्रपणे निर्गमित करण्यात येतील.

९. सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेतांक २०२३०४०३१३३३३३०७०५ असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करुन काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नांवाने,

RAMAKANT SHIVAJIRAO GHATGE

(र.शि.घाटगे)
उप सचिव, महाराष्ट्र शासन

प्रति,

१. भारत सरकारचे संचालक, वित्त विभाग, आर्थिक कार्य विभाग, (ECB & PR Division), नवी दिल्ली.

पृष्ठ ८ पैकी ३

NOTARY GOVT OF INDIA

154

२. मुख्य लेखा अधिकारी, बी ब्लॉक, दिल्ली प्रशासन विकास भवन, नवी दिल्ली,
३. नियंत्रक, लेखा, परराष्ट्र मंत्रालय, नवी दिल्ली
४. महालेखापाल (लेखापरीक्षा)-१, महाराष्ट्र, मुंबई,
५. महालेखापाल (लेखा व अनुज्ञेयता)-१, महाराष्ट्र, मुंबई,
६. महालेखापाल (लेखापरीक्षा)-२, महाराष्ट्र, नागपूर,
७. महालेखापाल (लेखा व अनुज्ञेयता)-२, महाराष्ट्र, नागपूर,
८. मा.राज्यपालांचे सचिव,
९. मा.मुख्यमंत्र्यांचे सचिव,
१०. मा. उप मुख्यमंत्र्यांचे सचिव,
११. सर्व मा.मंत्री व मा.राज्यमंत्री यांचे खाजगी सचिव, मंत्रालय, मुंबई,
१२. मा.सभापती, महाराष्ट्र विधानपरिषद, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
१३. मा.अध्यक्ष, महाराष्ट्र विधानसभा, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
१४. मा.विरोधी पक्षनेता, विधानसभा / विधानपरिषद, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
१५. मा.उपसभापती, महाराष्ट्र विधानपरिषद, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
१६. मा.उपाध्यक्ष, महाराष्ट्र विधानसभा, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
१७. सर्व सन्माननीय विधानसभा / विधानपरिषद व संसद सदस्य,
१८. प्रबंधक, मूळ न्यायालय शाखा, उच्च न्यायालय, मुंबई,
१९. प्रबंधक, अपील शाखा,उच्च न्यायालय, मुंबई,
२०. प्रबंधक, लोक आयुक्त व उप लोक आयुक्त यांचे कार्यालय, मुंबई,
२१. प्रबंधक, महाराष्ट्र प्रशासकीय न्यायाधिकरण, मुंबई,
२२. सचिव, महाराष्ट्र लोकसेवा आयोग, मुंबई,
२३. सचिव, महाराष्ट्र विधानमंडळ सचिवालय, मुंबई,
२४. मुख्य माहिती आयुक्त, राज्य माहिती आयोग,मुंबई,
२५. विशेष आयुक्त, महाराष्ट्र सदन, कोपर्निकस रोड, नवी दिल्ली,
२६. सर्व मंत्रालयीन प्रशासकीय विभाग.
२७. मंत्रालयीन सर्व विभागांच्या अधिनस्त विभाग प्रमुख व कार्यालय प्रमुख.
२८. सर्व विभागीय आयुक्त,
२९. सर्व जिल्हाधिकारी,
३०. सर्व जिल्हयातील निवडमंडळे
३१. सर्व जिल्हा परिषदांचे मुख्य कार्यकारी अधिकारी,
३२. संचालक, लेखा व कोषागारे, मुंबई.
३३. अधिदान व लेखा अधिकारी, वांद्रे, मुंबई.
३४. सह संचालक, लेखा व कोषागारे, कोकण / पुणे / नाशिक / औरंगाबाद / अमरावती / नागपूर.
३५. संचालक, स्थानिक निधी लेखापरीक्षा, कोकण भवन, वाशी, नवी मुंबई.

NOTARY GOVT. OF INDIA

(Translation of a xerox copy of a Government Resolution, dated 31.03.2023, typewritten in Marathi.)

Regarding granting Family Pension and Death Gratuity to the family of an employee if he/she dies during the service period and Sick Pension and Pension Gratuity for the Retired Sick employee and Service Gratuity to the employee retiring from Government service, under the Defined Contribution Pension Scheme/ National Pension System.

Government of Maharashtra

Finance Department

Government Resolution Number NPS – 2022/M. No. 34/ Services – 4,

Hutatma Rajguru Chowk, Madam Cama Marg,

Mantralaya, Mumbai – 400 032.

Date : 31st March, 2023.

Read : - 1) Government Resolution, Finance Department Number CPS 1005/126/Services – 4, dt. 31.10.2005.

2) Government Resolution, Finance Department Number CPS 1007/18/Services – 4, dt. 07.07.2007.

3) Government Circular, Finance Department Number CPS 2012/ M. No. 96/ Services – 4, dt. 27.08.2014.

4) Government Resolution, Finance Department Number CPS 2015/ (NPS)/ M. No. 32/ Services – 4, dt. 06.04.2015.

NOTARY GOVT. OF INDIA

156

5) Central Government Office Memorandum Number 38/41/06/P & PW (A), dt. 05.05.2009.
6) Central Government Office Memorandum Number 7/5/2012 - P & PW (F)/B, dt. 26.08.2016.
7) Central Government Notification Number G. S. R. 227 (E), dt. 30.03.2021.
8) Central Government Notification Number G. S. R. 658 (E), dt. 23.09.2021.

Preface : -

As per the Government Resolutions dated 31.10.2005 and 27.08.2014 of the Finance Department, New Defined Contribution Pension Scheme and National Pension System respectively, have been made applicable to the employees who are appointed in the Government Service on the date 01.11.2005 or thereafter. The employees to whom the Defined Contribution Pension Scheme/ National Pension System is applicable, the benefits of the Maharashtra Civil Services (Pension) Rules, 1982, Maharashtra Civil Services (Commutation of Pension) Rules, 1984 and General Provident Fund do not become admissible.

2. Thereafter, as per the Notification referred to at Sr. No. 7 viz. Central Civil Services (Implementation of National Pension System) Rules, 2021, dtd. 30.3.2021, if a Central Government employee under the National Pension System dies while in service or retires as sick, Family Pension to the family of the said employee and Sick Pension to the said employee respectively, are made admissible.

NOTARY GOVT. OF INDIA

Similarly, as per the Notification referred to at Sr. No. 8 viz. Central Civil Services (Payment of Gratuity under National Pension System) Rules, 2021, dtd. 23.09.2021, if a Central Government employee under the National Pension System dies while in service or retires as sick, the Death Gratuity to the family of the said employee or Service Gratuity to the said Retired Sick employee, respectively, are made admissible.

3. On the line of the aforesaid decision of the Central Government, the issue viz. to grant Family Pension and Death Gratuity to the family of the Employee in the State Government Service, if he/she dies during the service period and Sick Pension and Service Gratuity to the Retired Sick Employee as well as Service Gratuity to the Employee in the State Government Service, who is retiring from Government Service, to whom the Defined Contribution Pension Scheme/ National Pension System is applicable, was under consideration of the Government.

Government Resolution : -

Now, the Government has taken a decision that, if an Employee appointed in the Government service on the date 01.11.2005 or thereafter and to whom the Defined Contribution Pension Scheme/ National Pension System is applicable, if he/she

(A) dies while in service then, Family Pension and Death Gratuity to his/her family,

(B) retires sick then, Sick Pension and Service Gratuity to the Retired Sick Employee, are made applicable.

Accordingly, as per the provisions of the Maharashtra Civil Services (Pension) Rules, 1982, the Family Pension/ Sick Pension will be applicable to the said Family Pensioner/ Sick Pensioner.

NOTARY GOVT. OF INDIA

158

(C) Similarly, Service Gratuity is made applicable to the employees retiring from the Government Service.

In the present circumstances, the provisions of the Maharashtra Civil Services (Pension) Rules, 1982 shall be applicable for the purpose of the Service Gratuity and Death Gratuity to be paid as per the aforesaid decision.

2. The Ex–Gratia Grant Scheme made applicable as per the Government Resolution, Finance Department No. CPS – 2017/ M. No. 29/ Services – 4, dt. 29.09.2018, is stopped from the date of this Government Resolution. The Applications received for the Ex–Gratia Grant should not be taken into consideration as well as the pending matters should be closed.

3. The Option in Form– 3 enclosed with the said Government Resolution, to avail the Death Gratuity, Arrears of the Family Pension and Regular Family Pension to the family of the employees who died between the period from the date 01.11.2005 till the date of this Resolution shall be required to be submitted to the Head of the Office. Accordingly, the benefit of Family Pension will become admissible to the Family Pensioner on the condition of adjustment of the amount of Ex–Gratia Grant and the amount of Government's contribution under the Defined Contribution Pension Scheme/National Pension System together with interest/dividend received by him/her. After the adjustment of the said amount, Family Pension will become admissible to the Family Pensioner regularly.

4. If an employee who is presently working and to be appointed in the Government Service hereafter, under the National Pension System, dies while in service or retires sick then, the Option in Form -2 enclosed herewith, regarding making admissible the Family Pension or Sick Pension as per the provisions of the Maharashtra Civil Services (Pension) Rules,

NOTARY GOVT. OF IN

1982 or regarding getting by his Family or by him respectively, the amount accumulated in the Permanent Retirement Account Number (PRAN), under the National Pension System, as per the order issued by the Pension Fund Regulatory and Development Authority (PFRDA) from time to time, should be submitted to the Head of the Office.

5. The Government Employees who submit the Option regarding making admissible the Family Pension or Sick Pension as per the provisions of the Maharashtra Civil Services (Pension) Rules, 1982, it is mandatory for them to submit the family details in Form – 1.

6. It shall be mandatory for all the employees to whom the National Pension System is applicable, to submit the Option as mentioned in Paragraph No. 4 hereinabove within one month from the date of this Government Resolution. Similarly, it shall be required for the employees to be appointed in the Government service hereafter, to submit the Option as mentioned above within 8 days of their appointment in the Government service.

7. The Government further passes the order that, the aforesaid decision shall be applicable to the employees in the Zilla Parishads, Recognized and Aided Non-Government Primary and Secondary Schools, Non-Agricultural Universities and Recognized and Aided Non-Government Colleges affiliated thereto as well as Agricultural Universities and the similar Aided Institutions with appropriate changes. However, the concerned Ministerial Administrative Departments should take the action of issuing separate orders in this regard, at their level.

8. The detailed instructions regarding the procedure incidental thereto shall be issued separately.



160

9. This Government Resolution is made available on the website viz. www.maharashtra.gov.in of the Government of Maharashtra and its Code number is 202304031333330705. This Order is issued by authenticating the same with digital signature.

By order and in the name of the Governor of Maharashtra.

RAMAKANT SHIVAJIRAO GHATGE

Digitally signed by
(R. S. Ghatge)
Deputy Secretary,
Government of Maharashtra

Copy to,

xxxxxxx

18) Registrar, Original Side, High Court, Mumbai.

19) Registrar, Appellate Side, High Court Mumbai.

xxxxxxx

xxxxxxx

58) Select File.

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Chief Translator &) M – 3061
Interpreter's Office) Fs. 20
High Court Bombay)
SSS/- 2026)

A True Translation
for Chief Translator

NOTARY SANJEEV GOPAL CHAVAN GREATER MUMBAI

161

Received by ... 4542 ... 23
... General Dept / Pay B Section

Registrar (...)
High Court, Bombay.
07/12/2023

Mrs. Nandini Deshpande
Second Assistant Master,
High Court, Mumbai.
Date:- 05th December, 2023.

General Department
Prothonotary's Office
High Court, Bombay
Inward No. : 24555
Date :

07 DEC 2023
The Registrar,
Original Side,
High Court, Mumbai.

Sub:- Regarding implementation of Old Pension Scheme to the undersigned.

Re :-

1.Order dated 11th August, 2017 passed in PIL bearing No. 188 of 2015 by their Lordships The Hon'ble Shri. Justice A. S. Oka And Hon'ble Shri. Justice A.K. Menon.

2.Order dated 27th March, 2018 passed in Writ Petition bearing No. 643 of 2015 by Hon'ble Supreme Court.

3.Government Circular dated 17 th May, 2018 bearing no. HTC- 1216/56/M.No. 15/Desk-3

4.Government Resolution dated 19th April, 2022 bearing No. Misc-2021/M.No.95/D-6

5.Order dated 10th March, 2023 passed in Writ Petition bearing No.2853 of 2022 by Their Lordships The Hon'ble Shri. Justice G. S. Patel and Her Ladyship Smt. Justice Neela Gokhale.

6.Office Circular dated 27th April, 2023 bearing No. P & E/379/2023.

7.Government Circular dated 31st March, 2023 bearing No. RANIYO-2022/P.K.34/Seva-4

NOTARY
SANJEEV GOPAL CHIB
GREATER MUMBAI
REGN. No. 51...
Exp. Dt. 07-01-2030
GOVT. OF INDIA

162

With reference to the above subject, I have to state as under:-

1. Your good self is aware that vide Government Resolution at Sr. No. 4 above, the Post of undersigned officer w.e.f. 04/07/2003 became entitled to the Pay Scale of "Civil Judge Junior Division (ACP-1) Rs.33090-920-40450-1080-45850 with admissible allowances and perquisites including retirement benefits and service conditions, as may be revised and made applicable from time to time.

2. In commensurate to the said GR, the office has fixed the pay following the guidelines recommended by Justice Padmanabhan as well Justice Reddy Commission's reports.

3. However, though the pay scale is fixed as per the said GR, the other service benefits are not yet been given save and except few allowances to some of us. Similarly, pensionary benefits have not yet been given. Further the aforesaid GR dated 19th April, 2022 categorically states that my post is entitled for the pensionary benefits. Therefore, accordingly office ought to have implemented the Old Pension Scheme and as per the provisions of General Provident Fund Act, a GPF Account ought to have been opened.

4. The order under reference at Sr. No. 1 Passed by our own High Court records as follows:-

> **(i) We hold that the impugned Government Resolution dated 31st October, 2015 is not applicable to the Judicial Officers in the State who were appointed on or after 1st November 2005. The said officers will be entitled to the**

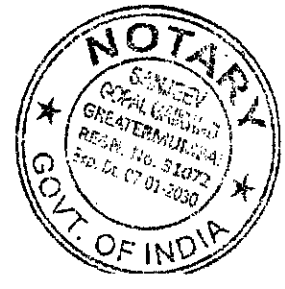
NOTARY GOVT. OF INDIA

judicial officers appointed before 1st November 2005. However, the Judicial Officers who are appointed on or after 1st November 2005 will have an option to continue under the New Scheme;

(ii) The State Government shall give an option to the Judicial Officers appointed after cut-off date (31st October 2005) to continue under the New Scheme under the impugned Government Resolution. The option shall be exercised within a period of two months from today. The judicial officers who fail to exercise the option will be governed by pension scheme which is applicable to all judicial officers appointed before 1st November 2005.

(iii) In case of those judicial officers who do not opt to continue with the New Scheme under the impugned Government Resolution, the entire contribution deducted from their salary along with the return/interest accrued thereon shall be transferred from their respective "Pension Tier-I Account" to their "Voluntary Tier - II Withdrawable Account" within a period of three months from today. We make it clear that the State Government's Matching Contribution with interest/return accrued thereon shall not be transferred as aforesaid and the State Government shall be entitled to withdraw the same from Tier-I account. The Judicial Officers will be entitled to withdraw the amount as and when the same are transferred to "Voluntary Tier -II Withdrawable Account".

(iv) Emphasis supplied.



164

5. Following the said directions and considering the aforesaid legal position, the Government of Maharashtra, vide it's resolution dated 17th May, 2018 referred at Sr. No. 3 herein above, was pleased to honour the orders of the Hon'ble High Court as well Hon'ble Apex Court.

6. The order under reference at Sr. No. 5 categorically reiterates that there could not be any delay in implementing the beneficial policies merely there being no guidelines. Accordingly the office has extended the benefits of ACP -II and has implemented the said GR. However, no steps have been taken for implementing the Maharashtra Civil Services (Pension) Rules in accordance with the GR at Sr. No. 3 herein above.

7. Despite there being Judicial verdicts passed by the Apex courts instead of following the recommendations of the Hon'ble High Court as well Apex Court, the office has avoided implementing the Old Pension Scheme. Whereas Government Resolution has categorically stated that the contribution towards the said DCPS / NPS schemes be discontinued on behalf of the employee and the members of the said scheme be given option to choose between two schemes. i.e. new scheme of DCPS / NPS and old Scheme of Pension. In the event of no option being opted by the concerned members, the Old Pension Scheme is to be implemented.

8. Vide circular referred to at sr. no. 6 and GR at sr. no. 7, an option was invited for the family pension in respect of the DCPS / NPS members. However, the same is not applicable since I am entitled to Old Pension Scheme.



9. Therefore, your good self is earnestly requested to look into the matter and direct the concerned for implementing the provisions of Maharashtra Civil Services (Pension) Rules at the earliest.

10. We earnestly request your good self to direct the office:-

a. To implement the aforesaid Orders order dated 11th August, 2017 in PIL bearing No.188 of 2015 passed by Their Lordships The Hon'ble Shri Justice A. S. Oka and Hon'ble Shri Justice A. K. Menon, as well Government Resolutions, issued in commensurate with the said orders and the provisions of Maharashtra Civil Services (Pension) Rules to the undersigned, in it's true spirit.

b. The entire contribution deducted from the salary of undersigned along with the returns / interest accrued thereon lying in "Pension Tier-I account be transferred in Voluntary account Tier - II i.e. withdrawable account" within a period of one month from today.

c. To open a GPF Account of the undersigned in pay and accounts department.

d. Appropriate directions be given to the office for depositing the deducted amount in the respective GPF account of the undresigned.

12. I hope your good self will look into the matter and be kind enough to do the needful, at the earliest.

Yours faithfully,

Mrs. Nandini Deshpande
Second Assistant Master

NOTARY GOVT. OF INDIA

TRUE COPY

Advocate

Date :- 04/06/2024 166

1. Mrs. Jyoti S. Bidye, Associate
2. Malini R. Bhalerao, Associate
3.Arun D. Shirsat, Associate
4. Pratiksha N. Sawant, Associate
5. Snehal Nagotkar, Associate
6. Vilas G. Pawar, Associate

4 JUN 2024

To,
The Registrar,
Original Side,
High Court, Mumbai.

General Department
Protocol & Office
High Court Bombay
Inward No. : 1248
Date :

Subject : **Regarding implementation of Old Pension Scheme to the Undersigned Officers.**

Reference : **1. Government Resolution dated 17th May, 2018 bearing No. HTC-1216/56/M.No.15/Desk-3**

Respected Sir,

With reference to the above subject, this is to inform Your Honour that we the undersigned officer appointed as "Associate" on the establishment of High Court, Original Side, Bombay in the Pay Scale of Civil Judge Junior Division (ACP-I) i. e. J2 (92960 – 136520) w.e.f. February 2024. In view thereof, we the undersigned officers, became entitled to the service conditions, admissible allowances and perquisites including pensionary benefits applicable to the said post.

We, respectfully submit that though we have been appointed after 1st November 2005 in Government Service, persuant to Government Resolution dated 17th May, 2018 (Copy enclosed), we are entitled for the pensionary benefits.

NOTARY SANJEV ... GOVT. OF INDIA

TRUE COPY
Advocate

....2/-

Your Honour therefore requested to look into the matter and kind

do the needful.

Yours faithfully

1. Mrs. Jyoti S. Bidye,
Associate

2. Mallni R. Bhalerao,
Associate

04/06/2024
3.Arun D. Shirsat,
Associate

Rawant 4/6/2024
4. Pratiksha N. Sawant,
Associate

4/6/24
5. Snehal Nagotkar,
Associate

Advocate
6. Vilas G. Pawar,
Associate

NOTARY SANJEEV GOPAL CHAWLA GREATER MUMBAI Regd. No. 33072 Upto DL 07-01-2030 GOVT. OF INDIA

EXH-F

Tel. No. : 91 22 22
Email : generaldep ail.com

No. G/769/ 53 /2024.
Date: 5th January 2024.

168

From :
RAHUL B. BHAGV
REGISTRAR, ORIG E,
HIGH COURT OF JUDICATURE AT BOMBAY,
FORT, MUMBAI – 400 032.

To,
The Principal Secretary and R.L.A,
Law and Judiciary Department,
Mantralaya, Mumbai.

Subject : Representation made by Mrs. Rekha V. Rane, Company Registrar (the then Second Assistant to the Court Receiver) and 5 other Officers and Mrs. Nandini Y. Deshpande, Second Assistant Master working on the establishment of High Court, Original Side, Bombay for implementation of Old Pension Scheme to them.

Ref. :
1. Order dated 11.08.2017 passed in PIL bearing No. 188 of 2015 by the Hon'ble Shri Justice A. S. Oak and Hon'ble Shri Justice A. K. Menon.
2. Order dated 27.03.2018 passed in Writ Petition No. 643 of 2015 by the Hon'ble Supreme Court.
3. Government Resolution No. HTC/1216/56/M.No.15/Desk-3 dated 17.05.2018.
4. Government Resolution No. Misc-2021/M.No.95/D-6 dated 19.04.2022.
5. Order dated 10.03.2023 passed in Writ Petition No. 2853 of 2022 by the Hon'ble Shri Justice G. S. Patel and Hon'ble Smt. Justice Neela Gokhale.
6. Government Circular No. RANIYO-2022/P.K.34/Seva-4 dated 31.03.2023.

Respected Madam,

Apropos the subject mentioned above, I inform you that by Government Resolution dated 19.04.2022, Judicial Pay Scale of Civil Judge Junior Division (ACP-1) Rs. 33090-920-40450-1080-45850 with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time to the posts, viz., Second Assistant Master, First Assistant to Official Assignee, Second Assistant to Court Receiver, Third Assistant Master and Associates,

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169

working on the establishment of High Court, Original Side, Bombay., w.e.f. 04.07.2007, is made applicable

I further inform you that Mrs. Rekha V. Rane, Company Registrar (the then Second Assistant to the Court Receiver) and 5 other Officers and Mrs. Nandini V. Deshpande, Second Assistant Master working on the establishment of High Court, Original Side, Bombay have submitted their representations 30.09.2023 and 05.12.2023, respectively for implementation of Old Pension Scheme to them, in the light of Court's Order dared 11.08.2017 and 27.03.2018, Government Resolution dated 17.05.2018 and 19.04.2022 referred at Sr. Nos. 1 to 4 above.

I, therefore, under directions of the Hon'ble Chief Justice forward herewith copy of aforesaid representations alongwith its enclosures with a request to move the Government for seeking necessary directions in this matter.

Kindly do the needful.

Yours faithfully,

Registrar, Original Side,
High Court of Judicature at Bombay.

TRUE COPY
Advocate

NOTARY
GOVT. OF INDIA

EXH-G' 170

REMINDER -- I

Tel. No. : 91 22 2267 4555.
Email : generaldept.hc@gmail.c

No. G/769/ 744 /2024.
Date: 10th May 2024.

From :
RAHUL B. BHAGWAT,
REGISTRAR, ORIGINAL SIDE,
HIGH COURT OF JUDICATURE AT BOMBAY,
FORT, MUMBAI – 400 032.

To,
The Principal Secretary and R.L.A,
Law and Judiciary Department,
Mantralaya, Mumbai.

Subject : Representation made by Mrs. Rekha V. Rane, Company Registrar (the then Second Assistant to the Court Receiver) and 5 other Officers and Mrs. Nandini Y. Deshpande, Second Assistant Master working on the establishment of High Court, Original Side, Bombay for implementation of Old Pension Scheme to them.

Ref. :
1. Order dated 11.08.2017 passed in PIL bearing No. 188 of 2015 by the Hon'ble Shri Justice A. S. Oak and Hon'ble Shri Justice A. K. Menon.
2. Order dated 27.03.2018 passed in Writ Petition No. 643 of 2015 by the Hon'ble Supreme Court.
3. Government Resolution No. HTC/1216/56/M.No.15/Desk-3 dated 17.05.2018.
4. Government Resolution No. Misc-2021/M.No.95/D-6 dated 19.04.2022.
5. Order dated 10.03.2023 passed in Writ Petition No. 2853 of 2022 by the Hon'ble Shri Justice G. S. Patel and Hon'ble Smt. Justice Neela Gokhale.
6. Government Circular No. RANIYO-2022/P.K.34/Seva-4 dated 31.03.2023.
7. This Office letter No. G/769/53/2024 dated 05.01.2024.

Respected Madam,

Apropos the subject mentioned above, I state that vide letter under reference at Sr. No.7, this Registry, as per directions of the Hon'ble the Chief Justice forwarded Your Honour, the photocopies of representations filed by

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171

Mrs. Rekha V. Rane, Company Registrar (the then Second Assistant to the Court Receiver) and 5 other Officers and Mrs. Nandini Y. Deshpande, Second Assistant Master working on the establishment of High Court, Original Side, Bombay for implementation of Old Pension Scheme to them, with a request to move the Government for seeking necessary directions in this matter.

In view thereof, I inform Your Honour that this Registry has not heard anything in that behalf. Your Honour is, therefore, once again requested to look into the matter and do the needful.

Yours faithfully,

Registrar, Original Side,
High Court of Judicature at Bombay.

TRUE COPY

Advocate

NOTARY
SANJEEV GOPAL GANKO
GREATER MUMBAI
REGN. No. 31012
Exp. DT. 01-01-2020
GOVT. OF INDIA

EXH-H
172

शासन
विधि व न्याय विभाग,
हुतात्मा राजगुरु चौक, मादाम कामा मार्ग, मंत्रालय, मुंबई-४०००३२.
दूरध्वनी क्र. :- ०२२-२२७९३२३० Email ID :- meena.koli@nic.in

क्रमांक:-संकिर्ण-२०२४/८४/प्र.क्र.१३६/का.६ दिनांक :- १९.०६.२०२४

प्रति,

प्रबंधक,
उच्च न्यायालय (मूळ शाखा),
मुंबई.

विषय :- उच्च न्यायालय, मुळ शाखा, मुंबई यांच्या आस्थापनेवरील श्रीमती रेखा राणे, कंपनी रजिस्ट्रार व इतर ५ आणि श्रीमती नंदिनी देशपांडे, सेकन्ड असिस्टंट मास्टर यांना जूनी निवृत्तीवेतन योजना (Old Pension Scheme) लागू करण्याबाबत

संदर्भ :- आपले पत्र क्र.जी/७६९/५३/२०२४, दि.०५.०१.२०२४

महोदय,

उपरोक्त विषयाबाबत आपल्या संदर्भाधीन पत्रातील विनंतीनुसार खालीलप्रमाणे माहिती उपलब्ध करुन देण्यात यावी, ही विनंती.:-

१) श्रीमती रेखा राणे, कंपनी रजिस्ट्रार व इतर ५ आणि श्रीमती नंदिनी देशपांडे, सेकन्ड असिस्टंट मास्टर यांचा सेवा तपशील व इतर माहिती उपलब्ध करुन द्यावी.

२) दिनांक १९.०४.२०२२ च्या शासन निर्णयातील विवरणपत्रातील रकाना ३ मध्ये "made applicable from time to time w.e.f. ०४.०७.२००३" असे नमूद करण्यात आले असून, त्यानुसार फक्त श्रीमती रेखा राणे, कंपनी रजिस्ट्रार व इतर ५ आणि श्रीमती नंदिनी देशपांडे, सेकन्ड असिस्टंट मास्टर यांचाच प्रस्ताव आहे किंवा इतर अधिकाऱ्यांचे प्रस्ताव सुध्दा आहेत, हे नमूद करण्यात आलेले नाही.

३) अ.क्र.२ मध्ये नमूद केल्यानुसार इतर अधिकाऱ्यांचे प्रस्ताव असल्यास त्यानुसार प्रत्येक अधिकाऱ्यांचा सेवा तपशील व इतर सर्व माहिती त्यांच्या प्रथम नियुक्तीच्या दिनांकापासून तक्त्यात उपलब्ध करुन देण्यात यावी.

आपली,
१९/०६/२०२४
(मीना कोळी)
कार्यासन अधिकारी, महाराष्ट्र शासन

TRUE COPY
Advocate

निवड नस्ती

Ex. 54 EXH-I' 173

Ex. (I) 1

(Translation of a photocopy of a Letter, typewritten in Marathi)

Logo

Government of Maharashtra
Law and Judiciary Department,
Hutatma Rajguru Chowk, Madam Cama Marg,
Mantralaya, Mumbai – 400032.
Telephone No.:- 022-22793230 Email ID :- meena.koli@nic.in

No. :- Miscellaneous-2024/84/M.No.136/D.6 Date :- 19.06.2024.

To,
The Registrar,
Bombay High Court (Original Side),
Mumbai.

Subject : Regarding making admissible Old Pension Scheme to Smt. Rekha Rane, Company Registrar and 5 others and Smt. Nandini Deshpande, Second Assistant Master, on the establishment of the Bombay High Court, Original Side, Mumbai.

Reference : Your Office's letter No.G/769/53/2024, dated 05.01.2024.

Respected Sir,

In connection with your request in the letter under reference on the above-mentioned subject, it is requested that the information may be furnished as requested below :-

174

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1) The Service details and other information of Smt. Rekha Rane, Company Registrar and 5 others and Smt. Nandini Deshpande, Second Assistant Master may be furnished.

2) In column 3 of the statement in the Government Resolution dated 19.04.2022, it is mentioned as "made applicable from time to time w.e.f. 04.07.2003" and in this regard, it is not mentioned as to whether the proposals of only Smt. Rekha Rane, Company Registrar and 5 others and Smt. Nandini Deshpande, Second Assistant Master have been submitted or the proposals of any other Officers have also been submitted.

3) As mentioned in Sr. No. 2, if there are proposals of other Officers, their Service Details and all other information from the date of their first appointment may be furnished in a table.

Yours faithfully,
(Signature illegible)
19/06/2024.
(Meena Koli)
Desk Officer,
Government of Maharashtra.

Select File.

x-x-x-x-x

Office of the Chief Translator and Interpreter, High Court, Bombay.
BKM 2026

} M - 3062
} Fs. 03

A True Translation

For Chief Translator

TRUE COPY
Advocate

GOVT. OF INDIA

Tel. No. : 91 22 2267 4555.
Email : generaldept.hc@gmail.com

Exh-J EXH-N / 175 /2024.
t 2024.

From :
E. B. SIVAKUMAR,
ADDL. REGISTRAR (O.S.)/
ADDL. PROTHONOTARY AND SENIOR MASTER,
HIGH COURT OF JUDICATURE AT BOMBAY,
FORT, MUMBAI – 400 032.

To,
Smt. Meena Koli,
Desk Officer,
Government of Maharashtra,
Law and Judiciary Department,
Mantralaya, Mumbai.

Subject : Representation made by Mrs. Rekha V. Rane, Company Registrar (the then Second Assistant to the Court Receiver) and 5 other Officers and Mrs. Nandini Y. Deshpande, Second Assistant Master working on the establishment of High Court, Original Side, Bombay for implementation of Old Pension Scheme to them.

Ref. : 1. This Office letter No. G/769/53/2024 dated 05.01.2024.
2. Your Office Letter No. संकीर्ण - २०२४/८४/प्र. क्र. १३६/का.६ dated 19.06.2024.

Sir/Madam,

Apropos the subject mentioned above and letters under reference at Sr. No.2, I furnish herewith the service information of the Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme :

Sr. No.	Particulars	Information
1.	श्रीमती रेखा राणे, कंपनी रेजिस्ट्रार व इतर ५ आणि श्रीमती नंदिनी देशपांडे, सेकंड असिस्टंट मास्टर यांचा सेवा तपशील व इतर माहिती उपलब्ध करून द्यावी.	Please refer Annexure - A

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176

Sr. No.	Particulars	Information
2.	दिनांक १९.०४.२०२२ च्या शासन निर्णयातील विवाराणप्रत्रातील रकाना ३ मध्ये "made applicable from time to time w.e.f. 04.07.2003" असे नमूद करण्यात आले असून, त्यानुसार फक्त श्रीमती रेखा राणे, कंपनी रेजिस्ट्रार व इतर ५ आणि श्रीमती नंदिनी देशपांडे, सेकंड असिस्टंट मास्टर यांचाच प्रस्ताव आहे किंवा इतर अधिकाऱ्याचे प्रस्ताव सुद्धा आहेत, हे नमूद करण्यात आलेले नाही.	The other officials getting Judicial Pay Scale and DCPS have also proposed for implementation of Old Pension Scheme.
3.	अ.क्र. २ मध्ये नमूद केल्यानुसार इतर अधिकाऱ्याचे प्रस्ताव असल्यास त्यानुसार प्रत्येक अधिकाऱ्यांचा सेवा तपशील व इतर सर्व माहिती त्यांच्या प्रथम नियुक्तीच्या दिनांकापासून तक्त्यात उपलब्ध करून देण्यात यावी.	Please refer Annexure – A

You are, therefore, requested to take note of the same and do the needful.

Addl. Registrar (O.S.)/
Addl. Prothonotary and Senior Master
High Court of Judicature at Bombay

Encl. : As above.

NOTARY GOVT. OF INDIA

Annexure - 1

177

Information of Officers getting Judicial Pay Scale and NPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Mrs. Rekha Vijaykumar Rane	Associate	26/03/2007	10000-325-15200 (As per 5th Pay Commission from 01.01.1996 to 31.03.2005) 12000-375-16500 (Pay revised w.e.f. 01.04.2005 as per GR dated 25.03.2012) 15600-39100-Grade Pay (7600) (As per 6th Pay Commission) *ACP I – 33090-920-40450-1080-45850 (As per Padmanabhan Commission)
	Second Assistant to Court Receiver	01/03/2021	**ACP II – 39530-920-40450-1080-49090-1230-54010 (As per Padmanabhan Commission) ACP II - J-2 (92960-136520) (As per Reddi Commission) ACP II – J-3 (111000-163030) (As per Reddi Commission)
	Company Registrar	04/08/2023	***ACP I – 43690-1080-49090-1230-56470 (As per Padmanabhan Commission) J-4 (122700-180200) (As per Reddi Commission)

* The Pay Scale of Civil Judge Junior Division (ACP-I) i.e. Rs.33090-920-40450-1080-45850 (Judicial Pay Scale) with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time w.e.f. 04/07/2003 vide Government Resolution No. Sankirna-2021/Pra.Kra.95/Ka.6 dated 19th April, 2022.

** The Pay Scale of Civil Judge Junior Division (ACP-II) i.e. Rs.39530-920-40450-1080-49090-1230-54010 (Judicial Pay Scale) granted w.e.f. 26.03.2012

*** The Pay Scale of Civil Judge Senior Division (ACP-I) i.e. 43690-1080-49090-1230-56470 (Judicial Pay Scale) granted w.e.f. 04.08.2023

Section Officer
Pay Bill Section

JL Pawar 25/11/2024
Section Officer
Pay & Establishment Department

178

INFORMATION OF OFFICERS GETTING JUDICIAL PAY SCALE AND DCPS FOR IMPLEMENTATION OF OLD PENSION SCHEME.

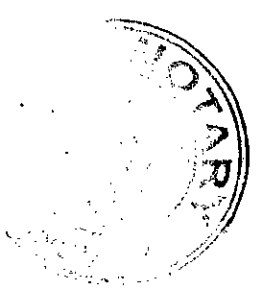
NAME OF OFFICER	DESIGNATION	DATE OF APPOINTMENT/ PROMOTION	PAY SCALE
Smt.Nandini Yogesh Deshpande	Associate	09/01/2008	10000-325-15200 (As per 5th Pay Commission from 01/01/1996 to 31/03/2005) 12000-375-16500 (Pay revised w.e.f. 01/04/2005 as per GR dated 28/03/2011 and Corrigendum dated 30/07/2012) 15600-39100 + GP 7600 (As Per 6th Pay Commission) ACP-I 33090-920-10450-1080-45850 (As per Padmanabhan Commission)
	Associate	09/01/2013	ACP -II 39530-920-40450-1080-49090-1230-54010 (As per Padmanabhan Commission)
	Associate	01/01/2016	J-3 (111000-163030) (As per Reddy Commission)
	Second Assistant Master (Ad-hoc basis)	10/05/2023	J-3 (111000-163030) (As Per Reddy Commission)
	Second Assistant Master	23/10/2023	J-3 (111000-163030) (As Per Reddy Commission)
	First Assistant to Court Receiver	26/02/2024	J-4(122700-180200) (As per Reddy Commission)

NOTARY INDIA

SECTION OFFICER
OFFICE OF COURT RECEIVER
HIGH COURT, BOMBAY

INFORMATION OF OFFICERS GETTING JUDICIAL PAY SCALE AND DCPS FOR IMPLEMENTATION OF OLD PENSION SCHEME.

NAME OF OFFICER	DESIGNATION	DATE OF APPOINTMENT / PROMOTION	PAY SCALE
Ms.Charushila Madhukar Vaidya	Associate	19/11/2008	10000-325-15200 (As per 5th Pay Commission from 01/01/1996 to 31/03/2005) PB 12000-325-16500. (Pay revised w.e.f. 01/04/2005 as per GR dated 28/03/2011 and Corrigendum dated 30/07/2012)
	Associate	On deputation Special Court 31/01/2015	15600-39100 + GP 7600 + 5% Deputation Allowances on Basic Pay (As per 6th Pay Commission)
	Assistant Registrar, Special Court	01/03/2019	Level 12 94100+7600 (As per 7th Pay Commission)
	Assistant Registrar, Special Court	01/11/2022	J-2 (92960-136520 (As per Reddy Commission)
	Second Assistant to Court Receiver	23/10/2023	J-3 (111000-163030) (As per Reddy Commission)



SECTION OFFICER
OFFICE OF COURT RECEIVER
HIGH COURT, BOMBAY

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Shri Hrushikesh Prabhakar Nikumb	Associate	20/04/2009	10000-325-15200 (As per 5th Pay Commission from 01.01.1996 to 31.03.2005) 12000-375-16500 (Pay revised w.e.f. 01.04.2005 as per GR dated 25.03.2012) 15600-39100-Grade Pay (7600) (As per 6th Pay Commission) *ACP I – 33090-920-40450-1080-45850 (As per Padmanabhan Commission)
	Third Assistant Master	23/10/2023	**ACP II – 39530-920-40450-1080-49090-1230-54010 (As per Padmanabhan Commission) ACP II - J-2 (92960-136520) (As per Reddi Commission) ACP II – J-3 (111000-163030) (As per Reddi Commission)
	Second Assistant Master	26/02/2024	ACP II – J-3 (111000-163030) (As per Reddi Commission)

* The Pay Scale of Civil Judge Junior Division (ACP-I) i.e. Rs.33090-920-40450-1080-45850 (Judicial Pay Scale) with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time w.e.f. 04/07/2003 vide Government Resolution No. Sankirna-2021/Pra.Kra.95/Ka.6 dated 19th April, 2022.

** The Pay Scale of Civil Judge Junior Division (ACP-II) i.e. Rs.39520-920-40450-1080-45090-1230-54010 (Judicial Pay Scale) granted w.e.f. 26.03.2012

NOTARY GOVT. OF INDIA

Section Officer
Pay Bill Section

25/7/2024

Section Officer
Pay & Establishment Department

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Mrs. Varsha Nitin Ubale	Associate	29/01/2013	15600-39100-Grade Pay (7600) (As per 6th Pay Commission) *ACP I – 33090-920-40450-1080-45850 (As per Padmanabhan Commission)

*The Pay Scale of Civil Judge Junior Division (ACP-I) i.e. Rs.33090-920-40450-1080-45850 (Judicial Pay Scale) with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time w.e.f. 04/07/2003 vide Government Resolution No. Sankirna-2021/Pra.Kra.95/Ka.6 dated 19th April, 2022.

Section Officer
Pay Bill Section

23/7/2024
Section Officer
Pay & Establishment Department

NOTARY

Annexure-B 182

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Smt. Jyoti Santosh Bidye	As Stenographer (Lower Grade)	27/09/2010	9300-34800-Grade Pay (4300)
	As Stenographer (Higher Grade) (in High Court, Original Side, Bombay)	23/09/2014	S-20 (Rs.56100-177500)
	Associate	09/02/2024	J-2 (92960-136520) (As per Reddi Commission)

Section Officer
Pay Bill Section

25/7/2024
Section Officer
Pay & Establishment Department

NOTARY
GOVT. OF INDIA

183

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Ms. Kirti Shivdas Kubal	As Clerk/Typist (in City Civil Court, Bombay)	17/07/2006	3050-75-3950-80-4590
	As Clerk (in High Court, Appellate Side, Bombay)	08/08/2014	S-10 (Rs.29200-92300)
	Associate	21/02/2024	J-2 (92960-136520) (As per Reddi Commission)

Section Officer
Pay Bill Section

25/7/2024
Section Officer
Pay & Establishment Department

NOTARY GOVT. OF INDIA

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Post / Designation	Date of appointment / promotion	Pay Scale
Smt. Malini Rajendra Bhalerao	As Clerk (in High Court, Appellate Side, Bombay)	22/07/2013	S-10 (Rs.29200-92300)
	As Assistant Section Officer (In High Court, Appellate Side, Bombay)	29/10/2021	S-18 (Rs.49100-155800)
	Associate	21/02/2024	J-2 (92960-136520) (As per Reddi Commission)

NOTARY SANJEEV GOPAL GANWAD GHATKOPAR MUMBAI REGN. NO. 31072 VALID UP TO 07-01-2030 GOVT. OF INDIA

Section Officer
Pay Bill Section

25/7/2024
Section Officer
Pay & Establishment Department

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Shri Arun Dattatraya Sirsat	As Clerk (in High Court, Original Side, Bombay)	15/07/2013	S-10 (Rs.29200-92300)
	As Assistant Section Officer (in High Court, Original Side, Bombay)	24/07/2023	S-18 (Rs.49100-155800)
	Associate	09/02/2024	J-2 (92960-136520) (As per Reddi Commission)

Section Officer
Pay Bill Section

NOTARY GOVT. OF INDIA

J L Pawar
25/7/2024
Section Officer
Pay & Establishment Department

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officers	Designation	Date of appointment/ promotion	Pay Scale
Smt. Pratiksha Nikhil Sawant	As Clerk (in High Court, Appellate Side, Bombay)	22/07/2013	S-10 (Rs.29200-92300)
	As Assistant Section Officer (in High Court, Appellate Side, Bombay)	29/10/2021	S-18 (Rs.49100-155800)
	Associate	21/02/2024	J-2 (92960-136520) (As per Reddi Commission)

NOTARY SANJEEV GOPAL GARUD GREATER MUMBAI Regn. No. 81072 Dt. 07-01-2030 GOVT. OF INDIA

Pratiksha
Section Officer
Pay Bill Section

J L Pawar 25/7/2024
Section Officer
Pay & Establishment Department

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Smt. Snehal Swapnil Nagotkar	As Clerk/Typist (in City Civil and Sessions Court, Greater Bombay)	19/09/2007	3050-75-3950-80-4590
	As Assistant Superintendent (in City Civil and Sessions Court, Greater Bombay)	28/11/2019	S-8 (Rs.25500-81100)
	Associate	09/02/2024	J-2 (92960-136520) (As per Reddi Commission)

Section Officer
Pay Bill Section

25/11/2024
Section Officer
Pay & Establishment Department

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Shri Vilas Gunaji Pawar	As Junior Clerk (in Chief Judicial Magistrate, Aurangabad)	09/06/2014	5200-20200-Grade Pay (1900)
	Associate	13/02/2024	J-2 (92960-136520) (As per Reddi Commission)

Section Officer
Pay Bill Section

V.V.Pawar
25/7/2024
Section Officer
Pay & Establishment Department

NOTARY
SANJEEV
GOVT. OF INDIA

Information of Officers getting Judicial Pay Scale and DCPS for implementation of Old Pension Scheme

Name of Officer	Designation	Date of appointment/ promotion	Pay Scale
Shri Prasenjit Vilas More	As Clerk (in High Court, Original Side, Bombay)	02/01/2006	3050-75-3950-80-4590
	As Assistant Section Officer (in High Court, Original Side, Bombay)	11/05/2021	S-18 (Rs.49100-155800)
	Associate	09/02/2024	J-2 (92960-136520) (As per Reddi Commission)

Section Officer
Pay Bill Section

25/11/2024
Section Officer
Pay & Establishment Department

TRUE COPY
Advocate

Ex. K EXH-K 190

महाराष्ट्र शासन
विधि व न्याय विभाग,
हुतात्मा राजगुरु चौक, मादाम कामा मार्ग, मंत्रालय, मुंबई-४०००३२.
दूरध्वनी क्र. :- ०२२-२२७९३२३०
Email ID :- meena.koli@nic.in

क्रमांक:-संकिर्ण-२०२४/८४/प्र.क्र.१३६/का.६ दिनांक :- ०९.१०.२०२४

प्रति,

प्रबंधक,
उच्च न्यायालय (मूळ शाखा),
मुंबई.

विषय :- उच्च न्यायालय, मुळ शाखा, मुंबई यांच्या आस्थापनेवरील श्रीमती रेखा राणे, कंपनी रजिस्ट्रार व इतर ५ आणि श्रीमती नंदिनी देशपांडे, सेकन्ड असिस्टंट मास्टर यांना जूनी निवृत्तीवेतन योजना (Old Pension Scheme) लागू करण्याबाबत

संदर्भ :- १) आपले पत्र क्र.जी/७६९/५३/२०२४, दि.०५.०१.२०२४
२) आपले पत्र क्र.जी/७६९/१०३७/२०२४, दि.०१.०८.२०२४

महोदय,

उपरोक्त विषयाबाबत आपल्या संदर्भाधीन पत्रातील विनंतीनुसार आपणांस कळविण्यात येत आहे की, वित्त विभागाच्या अनौपचारिक संदर्भ क्र. ११५/२४/सेवा-४, दिनांक २३.०८.२०२४ अन्वये कळविण्यात आल्यानुसार खालीलप्रमाणे माहिती उपलब्ध करुन देण्यात यावी.:-

१) न्यायिक अधिकारी व प्रस्तावात नमूद कर्मचारी हे समकक्ष ठरतात किंवा कसे. N/A

२) वि.व न्या.वि., शा.नि. दिनांक १२.०४.२०२२ नुसार वेतनश्रेणी लागू करण्यात आली म्हणजे न्यायिक पदाचे सर्व अधिकार व कर्तव्ये सुध्दा लागू होतात किंवा कसे, N.

३) २nd Assistant Master, १st Assistant to Official Assignee, २nd Assistant to Court Receiver, ३rd Assistant Master, Associate या पदांचे कर्तव्य व जबाबदाऱ्या. Copy

४) दुय्यम न्यायालयातील न्यायिक अधिकारी या पदांची कर्तव्ये व जबाबदाऱ्या तपासून अ.क्र.३ येथे नमूद पदांची कर्तव्ये व जबाबदाऱ्या न्यायिक अधिकाऱ्यांनुसार समान आहेत किंवा नाही, N/A

५) मा.सर्वोच्च न्यायालयच्या दिनांक २७.०३.२०१८ रोजीच्या न्यायालयीन निर्णयानुसार राज्यातील दुय्यम न्यायालयातील न्यायिक अधिकाऱ्यांना जुनी निवृत्ती वेतन योजना लागू करण्याबाबत दिनांक ०१.०१.२०२० रोजी निर्णय घेण्यात आला आहे. त्यानुसार प्रस्तावातील अधिकाऱ्यांना सदर दि.०१.०१.२०२० च्या शासन निर्णयातील तरतूदी लागू आहेत किंवा नाही ?

आपली,

(मीना कोळी)
कार्यासन अधिकारी, महाराष्ट्र शासन

निकड नस्ती.

TRUE COPY
Advocate

Ex. 'L' (1) EXH-'L' 191

1

(Translation of a photocopy of a LETTER, typewritten in Marathi)

GOVERNMENT OF MAHARASHTRA

LAW AND JUDICIARY DEPARTMENT

Hutatma Rajguru Chowk, Madam Cama Marg,

Mantralaya, Mumbai 400032.

Telephone No. 022-22793230 e-mail : meena.koli@nic.in

Number : Miscellaneous-2024/84/M.No.136/D.6 Date : 09.10.2024

To,

The Registrar (Original Side),

Hon'ble Bombay High court,

Mumbai.

Subject :- Regarding making applicable Old Pension Scheme to Smt. Rekha Rane, Company Registrar and 5 others and Smt. Nandini Deshpande, Second Assistant Master, working on the Establishment of the Hon'ble Bombay High Court, Original Side, Mumbai.

Reference :- 1. Your Office Letter No. G/769/53/2024, dated 05.01.2024.

2. Your Office Letter No. G/769/1037/2024, dated 01.08.2024.

Respected Sir,

In pursuance of the request made in your above-referred letters on the above-mentioned subject, you are requested to make available the

below-mentioned information, sought by the Finance Department under its Unofficial Reference No. 115/24/Service-4 dated 23.08.2024.

1) Whether the posts of the Judicial Officers and of the employees mentioned in the proposal are equivalent?

2) Whether all the powers and duties of the posts of Judicial Officers also become applicable to the above-mentioned posts when the pay-scales (of the Judicial Officers) have been made admissible as per the Government Resolution dated 19.04.2022 issued by the Law and Judiciary Department.

3) The duties and responsibilities of the posts of 2nd Assistant Master, 1st Assistant to Official Assignee, 2nd Assistant to Court Receiver, 3rd Assistant Master and Associate.

4) After making comparative study of the duties and responsibilities of the posts of Judicial Officers in Subordinate Courts, whether the duties and responsibilities of the posts mentioned in aforesaid Point No.3 are similar to those of the said Judicial Officers.

5) Pursuant to the decision of the Hon'ble Supreme Court given on the date 27.03.2018, the Government Resolution has been issued on the date 01.01.2020 regarding making applicable old pension scheme to Judicial Officers in Subordinate Courts functioning in the State. Whether the provisions mentioned in the said Government Resolution dated 01.01.2020 are applicable to the posts of the Officers mentioned in the Proposal accordingly.

Yours,
(Signature (Illegible)
09.10.2024
Desk Officer, Government of Maharashtra

GOVT. OF IN

193

Select File

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Chief Translator &) M - 3059
Interpreter's Office) Fs. 5
High Court, Bombay)
PSP/- 2026)

A True Translation

For Chief Translator

TRUE COPY

Advocate

NOTARY
GOVT. OF INDIA

EXH-M
Ex. "M" (M)
194

No. G/769/1941/2024.
Date: 6th December 2024.

Email : generaldept.hc@gmail.com

From :
RAHUL B. BHAGWAT,
REGISTRAR, ORIGINAL SIDE,
HIGH COURT OF JUDICATURE AT BOMBAY,
FORT, MUMBAI – 400 032.

NOTARY
SANJEEV GOPAL GAIKWAD
GREATER MUMBAI
Regn. No. 31072
Exp. Dt. 07-01-2030
GOVT. OF INDIA

To,
Smt. Meena Koli,
Desk Officer,
Government of Maharashtra,
Law and Judiciary Department,
Mantralaya, Mumbai.

Subject : Representation made by Mrs. Rekha V. Rane, Company Registrar (the then Second Assistant to the Court Receiver) and 5 other Officers and Mrs. Nandini Y. Deshpande, Second Assistant Master working on the establishment of High Court, Original Side, Bombay for implementation of Old Pension Scheme to them.

Ref. :
1. This Office letter No. G/769/53/2024 dated 05.01.2024.
2. Your Office Letter No. संकीर्ण - २०२४/८४/प्र. क्र. १३६/का.६ dated 19.06.2024.
3. This Office letter No. G/769/1037/2024 dated 01.08.2024.
4. Your Office Letter No. संकीर्ण - २०२४/८४/प्र. क्र. १३६/का.६ dated 09.10.2024.

Madam,

Apropos the subject mentioned above and letters under reference at Sr. No.4, I furnish herewith following information sought by the Finance Department under its Unofficial Reference No. 115/24/Service-4 dated 23.08.2024 :

Sr. No.	Particulars	Information
1.	Whether the posts of the Judicial Officers and of the employees mentioned in the proposal are equivalent?	The Judicial Officers and the post of employees mentioned in the representation are not equivalent. As per High Court Notification No. G/2415/4300 dated 12.03.2014, the judicial pay scale was applicable to Officers of High Court, Original Side with admissible allowances and perquisites including retirement benefits and service conditions.

195

as may be revised are made applicable from time to time w.e.f. 04.07.2003 as follows :

Pay Scale of	Applicable to the post of	
District Judge, Selection Grade	Prothonotary and Senior	
District Judge, Entry Level	(i)	Addl. Registrar (O.S.)/ Addl Prothonotary and Senior Master
	(ii)	Official Assignee
	(iii)	Commissioner for Taking Accounts
	(iv)	Court Receiver
Senior Civil Judge A.C.P.-I	(i)	Taxing Master
	(ii)	Insolvency Registrar
	(iii)	Accounts Officer
	(iv)	Deputy Official Assignee
	(v)	First Assistant to Court Receiver
	(vi)	Master and Assistant Prothonotary (Judl)
	(vii)	Company Registrar
	(viii)	First Assistant Master
	(ix)	Master and Assistant Prothonotary (Adm)

As per Government Resolution No. Sankirn-2021/ Pra. Kra.95/Ka.6 dated 19.04.2022, the judicial pay scale was applicable to Officers of High Court, Original Side and service conditions as may be revised are made applicable from time to time w.e.f. 04.07.2003 as follows :

Pay Scale of	Applicable to the post of	
Civil Judge Junior Division A.C.P. - II	(i)	Second Assistant Master
	(ii)	Second Assistant to Court Receiver
	(iii)	First Assistant to Official Assignee
	(iv)	Third Assistant Master
	(v)	Associate

196

Sr. No.	Particulars	Information
2.	Whether all the powers and duties of the posts of Judicial Officers also become applicable to above-mentioned posts when the pay-scales (of the Judicial Officers) have been made admissible as per the Government Resolution dated 19.04.2022 issued by the Law and Judiciary Department.	All the powers and duties of the posts of Judicial Officers are not made applicable to above-mentioned posts when the pay-scales (of the Judicial Officers) have been made admissible as per the Government Resolution dated 19.04.2022 issued by the Law and Judiciary Department.
3.	The duties and responsibilities of the posts of 2nd Assistant Master, 1st Assistant to Official Assignee, 2nd Assistant to Court Receiver, 3rd Assistant Master and Associate.	Annexure-A
4.	After making comparative study of the duties and responsibilities of the posts of Judicial Officers in Subordinate Courts, whether the duties and responsibilities of the posts mentioned in aforesaid Point No.3 are similar to those of the said Judicial Officers.	After making comparative study of the duties and responsibilities of the posts of Judicial Officers in Subordinate Courts, the duties and responsibilities of the posts mentioned in aforesaid Point No.3 are not similar to those of the said Judicial Officers.
5.	Pursuant to the decision of the Hon'ble Supreme Court given on the date 27.03.2018, the Government Resolution has been issued on the date 01.01.2020 regarding making applicable old pension scheme to Judicial Officers in Subordinate Courts functioning in the State. Whether the provisions mentioned in the said Government Resolution dated 01.01.2020 are applicable to the posts of the Officers mentioned in the Proposal accordingly.	As per High Court Notification No. G/2415/4309 dated 12.03.2014 and Government Resolution No. Sankirn-2021/ Pra. Kra.95/Ka.6 dated 19.04.2022, only the Judicial Pay Scale as mentioned in point no. 1 above, with admissible allowances and perquisites including retirement benefits and service conditions as may be revised are made applicable from time to time w.e.f. 04.07.2003 to the said posts.

You are, therefore, requested to take note of the same and do the needful.

Encl. : As above.

Registrar, Original Side
High Court of Judicature at Bombay.

DUTIES OF ASSOCIATES

1) To attend the Court (either physically or virtually) as assigned by the Prothonotary and Senior Master.

2) The Associates are required to possess knowledge of the various Acts and Authorities which would be required and relied upon by the Hon'ble Judges in various matters or as per requisitions made by an Advocate in that behalf.

3) To call for the Bare Acts from library as per natures of matters and keep the same handy in anticipation thereof before the matter is called out so as to avoid any delay and inconvenience to the Hon'ble Judge and Advocate as well.

4) The Associates are required to call out the matters, note down short orders in computer farad sheet and sign the same. The Associates while attending judicial duties is required to attest all the copy of orders passed by the Hon'ble Court, and place the same in respective files (Records and proceedings).

5) The Associates are also required to do update in Computer matters which are heard and adjourned by the Hon'ble Court as well as for remaining Board.

6) The Associates are required to check all the Affidavits and documents tendered in the Court and after putting the endorsement, the same to be send for filing purpose to centralizing filing centre.

7) The Associate is required to settle daily, weekly board's of Hon'ble Court in accordance with the oral directions and instructions of the Hon'ble Judge and forward the same to the concerned Officer of the Board Department.

In addition to the Court duties, the following Judicial duties are also assigned and performed by the Associates.

8) It is duty of an Associates to affirm the affidavits, declare the plaints, petitions and Applications etc. In addition of these duties, he/she is also assigned the work of scrutinizing the plaints, petitions, Applications, Tax Appeals. While, scrutinizing the Plaints, Petitions and Tax Appeals, the Associates as Scrutiny Officers/are required to assess the Court fees payable on the given plaint and Petition, etc. as per the provisions of Bombay Court Fees Act. Further he/she is also required to verify whether the pleading is properly filed as per provisions of High Court Original Side Rules, 1980 including to check clauses of territorial and pecuniary jurisdiction to entertain the case. Furtheremore, he/she is also required to verify whether the pleadings have been filed within limitation as per the Limitation Act.

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI GOVT. OF INDIA

9) After scrutinizing the matters, the Associate to update the status of objections in computer system for knowledge and information of concerned Advocates or litigant in person.

10) The Associates are assigned with the work of checking the draft decrees lodge by the Advocates and parties appearing in person.

11) The Associate is required to affirm or declare the pleadings as Commissioner of oath when such pleadings are required to filed before any Tribunal or Court ever before the Hon'ble Supreme Court of India as and when directed by the Hon'ble Court and/or Ld. Prothonotary and Senior Master. The Associate is also required to go out of the Hon'ble High Court premises during office hours and sometimes after office hours to administer oath to the parties.

12) The Associate is required to act as Commissioner as per order of the Court and submit a detail report to the Hon'ble Court in various matters.

13) The Associate is required to sign the document as sealer as per the process laid down by the Hon'ble Court including Writ of Summons etc. as well as Certified Copies.

14) Such other work as per administrative exigencies, as may be assigned to him/her the Hon'ble Court/s, the Hon'ble Judge(S) and/or the Prothonotary and Senior Master, as the case may be.

TRUE COPY

Advocate

NOTARY

(16) SECOND ASSISTANT MASTER :

1. Checking Appeals, Contempt Petitions, Review Petitions.
2. Preparing service report on the basis of Affidavit.
3. Conducting meeting for Settling Draft Decrees.
4. Checking Notice under Order XLI, Rule 14 of the Civil Procedure Code after Appeal being admitted by Court in absence of Respondent or when service is not waived by Respondent at the time of Admission of Appeal.
5. Settlement of Index for preparing Appeal Paper Book as per Rule 890 to 902 of High Court (O.S.) Rules.
6. To work as Chamber Registrar if assigned by the Registrar (O.S.)/ Prothonotary and Senior Master.



(17) SECOND ASSISTANT TO COURT RECEIVER :-

1. To attend matters before Hon'ble Courts and assist the Hon'ble Courts.
2. To decide the appointment of watchmen/Security guards, payment of insurance, taxes and outgoings, repairs, filing of suits and issuing distress warrants, conduct of business concerns, custody of valuables, dealing in fixed deposit, shares and securities, custody of books of account of the litigants, payment of income-tax and sales-tax etc. relating to suits/matters.
3. To hold the meetings of the parties to the suit matters, which are assigned to him, to conduct auction as per the Hon'ble Court's order and also to obtain directions from the Hon'ble Court to fix the reserve bids and to fix royalties, remuneration of Rent Collector as well as to check and verify Court Receiver's Reports submitted by the respective Section Officers and attesting bills & vouchers in suit matters etc.,
4. To verify quarterly statement of rent collected/submitted by Rent Collector in various matters.
5. To sign the daily correspondence.
6. In absence of Court Receiver and First Assistant to Court Receiver look after the charge as well as attend Court matters.
7. To charge commission in all matters in which Court Receiver is appointed.
8. To verify the Final Statement of Accounts assigned in discharged matters.
9. To keep in custody and maintain the record of shares certificate.
10. Litigation in connection with recovery of arrears of Rent/Compensation for properties in charge of the Court Receiver.
11. Recovery of electricity and water charges and other similar dues.
12. Miscellaneous work such as taking proper agreements and security form rent collectors, enlisting watchmen, keeping account of the stock of Rent Bill Books and Remittance Report Books, etc.
13. Sanctioning regular payments to be made to the parities to the suits, architects, valuers, advocates and contractor security services, other experts appointed in matters assigned to him.

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI GOVT. OF INDIA

(18) FIRST ASSISTANT TO OFFICIAL ASSIGNEE :

1. To attend regularly Insolvency Court on 1st and 3rd Tuesday of every month.
2. To investigate the claim of the Claimant/Creditor preferential claim filed in the Office of the Official Assignee and deliver findings.
3. To conduct Private Examination of Insolvent/s touching his/her/their estate and affairs whichever is assigns by the Official Assignee.
4. To investigate the claim and deliver findings in respect thereof where claims are lodged by creditor of the Insolvents.
5. To attend and represent the insolvent/s in any Court in a Suit, Appeal or any other proceedings where the Insolvent is a party.
6. To enter into correspondence with the Petitioning Creditors, Insolvent/s, Bank Postal Authorities, L.I.C., Societies where property of Insolvent/s situated, landlords and various other authorities.
7. To investigate the claim and deliver findings in respect of the articles claim filed by relatives of Insolvent/s claiming the ownership of articles lying at the business and/or residential premises of the Insolvent/s.
8. In cases where an Advocate is appointed on behalf of the Official Assignee, to give instructions to him and to hold meetings with him.
9. To enter into correspondence with the Claimants/Creditors of the Insolvent/s.
10. To verify sign the Cash Book and Ledger, maintained by the Office of the Official Assignee in the absence of the Deputy Official Assignee and Official Assignee.
11. To sign receipts in respect of payment received by the Office of the Official Assignee in the absence of the Deputy Official Assignee and Official Assignee.
12. To go through day to day correspondence received by the Office of the Official Assignee.
13. To supervise the work of Claim Department of this Office.
14. To check the calculation of Dividend given by the Claim Department.
15. To approve the draft of advertisement to be given in the newspapers and gazette regarding intention to declare dividend in the estate of Insolvent.
16. To approve draft Petition to be submitted to the Hon'ble Insolvency Court for taking estate for intention to declare dividend submitted by the Claim Department.
17. To coordinate with the Office of the Insolvency Registrar.

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NOTARY GOVT. OF INDIA

202

18. To attend Insolvency Court and call out matters write minutes in the absence of the Insolvency Registrar.

19. To sign Certified Copies to be issued by the Office of the Official Assignee.

20. To do affirmation work as and when directed to do so by the Superiors.

21. To enter into correspondence with the Petitioning Creditors, Claimants, Insolvents in respect of the Claim lodged by the Creditors/Claimants.

22. To approve draft report for scheme of composition or scheme of arrangement submitted by the Claim Department to Official Assignee.

23. To approve draft report given by the Claim Department to Official Assignee regarding scrutiny of receipts for the payments made on behalf of Insolvents for annulment of Insolvency under Section 21 (1) of Presidency Towns Insolvency Act.

24. To approve the draft report submitted by the Claim Department to Official Assignee ascertaining the correct liability of the Insolvent and the total assets available in the hands of the Official Assignee after receipt of the proposals for Scheme of Composition and /or Scheme of Arrangement.

25. To Check and approve all other draft reports/submission to be submitted to the Official assignee for final approval.

26. To do any other work assigned by the Official assignee and Dy. Official Assignee.

27. To attend the work of Deputy Official Assignee in his absence.

28. To assist the Official Assignee in preparing synopsis in the matter and discuss the same which are being placed on board of Hon'ble Insolvency Court.

NOTARY INDIA

(19) THIRD ASSISTANT MASTER

1. Checking Leave Petitions for Cl.XII.
2. Checking Leave Petitions under Order 2 Rule 2.
3. Checking Leave Petitions under Cl.XIV of C.P.C.
4. Checking Judges Orders.
5. Checking Chamber Summons.
6. Checking Arbitration Petitions under Arbitration and Conciliation Act, 1996, 1940 under Sections 34, 31, 17, 14.
7. Checking Arbitration Application for appointment of Arbitrator.
8. Checking Guardianship Petitions and Misc.Petition under Guardian and Wards Act, 1890.
9. Checking Foreign Adoption Petitions
10. Checking Indian Guardianship Petitions.
11. Checking Indian Adoption Petitions.
12. Checking Misc. Petitions/Guardian Petitions for appointment of Guardian ad-litem.
13. Attending the Court of Chamber Judges as Chamber Registrar.
14. Attending the Meeting for settlement of Drafts.

NOTARY SANJEEV GOPAL GANGOLD GOVT. OF INDIA

Ex. K (N)

EXH-N' 204

Tel. No. : 91 22 2267 4555
Email : generaldept.hc@gmail.com

No. G/769/1048/2025.
Date: 15th July 2025.

From :
DHANAJI A. JADHAV,
REGISTRAR, ORIGINAL SIDE,
HIGH COURT OF JUDICATURE AT BOMBAY,
FORT, MUMBAI 400 032.

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

To,

1. Mrs. Rekha V. Rane,
Insolvency Registrar and 5 other Officers,
High Court, Original Side, Bombay.
2. Mrs. Nandini Y. Deshpande,
First Assistant to Court Receiver,
High Court, Original Side, Bombay.
3. Mrs. Jyoti S. Bidye,
Associate and 5 other Associates,
High Court, Original Side, Bombay.

Subject : Response to your representations for implementation of Old Pension Scheme.

Reference : Your representations dated 30.09.2023, 05.12.2023 and 04.06.2024, respectively.

Madam/Sir,

Apropos the subject mentioned above and with reference to your representations under reference, I am directed to inform you that as per directions of the Hon'ble the then Chief Justice, this Registry had forwarded your above-referred representations to the Principal Secretary and R.L.A., Law and Judiciary Department, Mantralaya, Mumbai. In reply to that, the Law and Judiciary Department, Government of Maharashtra, Mantralaya, Mumbai, vide letter dated 06.06.2025, communicated their decision regarding non-applicability of the Old Pension Scheme to the posts of Second Assistant Master, First Assistant to

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205

the Official Assignee, Second Assistant to the Court Receiver, Third Assistant Master, and Associates, High Court, Original Side, Bombay.

A copy of the said letter is enclosed herewith for your information.

Yours faithfully,

Registrar, Original Side,
High Court of Judicature at Bombay

Encl. : As above.

TRUE COPY

Advocate

NOTARY
SANJEEV GOPAL GAIKWAD
GREATER MUMBAI
REGN. No. 31072
Exp. Dt. 07-01-2030
GOVT. OF INDIA

M-3063
18/10/2026

EXH-O'
206

Recd by H.D. on 16/06/25
Reg (O.S.) 2246 25
S.O. (General Dept.

16/06/2025

17 JUN 2025

NOTARY
SANJEEV GOPAL GARUDA
REGN. NO. 31677
REG. UP. 07-01-2030
GOVT. OF INDIA

महाराष्ट्र शासन
विधि व न्याय विभाग,
मादाम कामा मार्ग, हुतात्मा राजगुरु चौक,
मंत्रालय, मुंबई- ४०० ०३२

क्र. संकिर्ण २०२४/८४/प्र.क्र.१३६/कार्या-६ दिनांक :-०६.०६.२०२५.

प्रति,
मा.प्रबंधक (मुळ शाखा),
मा.उच्च न्यायालय,
मुंबई-३२.

General Department
Prothonotary's Office
High Court, Bombay
Inward No. 2436
Date :

विषय:- मा.उच्च न्यायालय, मुळ शाखा, मुंबई यांच्या आस्थापनेवरील श्रीमती रेखा राणे, कंपनी रजिस्ट्रार व इतर यांना जुनी निवृत्तीवेतन योजना लागू करण्याबाबतचा.

संदर्भ:-आपले पत्र क्र.जी/७६९/५३/२०२४, दि.०५.०१.२०२४.

मा.महोदय,

उपरोक्त विषयाबाबतच्या संदर्भाधीन पत्राच्या अनुषंगाने कळविण्यात येते की, २nd Assistant Master, १st Assistant to Official Assignee, २nd Assistant to Court Receiver, ३rd Assistant Master, Associate या पदावरील अधिकारी या विभागाचा शासन निर्णय दिनांक १९.०४.२०२२ नुसार न्यायिक अधिकाऱ्यांचे वेतन घेत असल्यामुळे त्यांना न्यायिक अधिकाऱ्यांप्रमाणे या विभागाचा शासन निर्णय दिनांक ०१.०१.२०२० नुसार जुनी पेन्शन योजना लागू करावी किंवा कसे याबाबत उचित मार्गदर्शन/अभिप्राय देण्याबाबत या विभागाच्या विधि शाखेस (अ-शाखा) विनंती करण्यात आली होती.

२. सदर्भाधिन मा.उच्च न्यायालयाचे अधिकाऱ्यांचे पद किंवा सेवा कलम २२९ अंतर्गत नियंत्रित आणि नियमन केल्या जातात. तर 'न्यायिक सेवा' म्हणून ओळखल्या जाणाऱ्या सेवा भारतीय संविधानाच्या कलम २३३ ते २३७ अंतर्गत नियंत्रित आणि नियमन केल्या जातात. अशा प्रकारे, शब्दश: अर्थाने, अर्जदारांच्या सेवा न्यायिक अधिकाऱ्यांच्या सेवांपेक्षा वेगळ्या आहेत आणि म्हणून, ११ ऑगस्ट २०१७ रोजी जनहित याचिका क्रमांक १८८/२०१५ मध्ये दिलेला आदेश सदर अधिकाऱ्यांना लागू होणार नाही कारण सदर आदेश केवळ राज्यातील न्यायिक अधिकाऱ्यांना लागू

16/06/2025

207

होण्यापुरता मर्यादित असल्याचे, या विभागाच्या विधि शाखेने कळविले आहे. त्यामुळे, २nd Assistant Master, १st Assistant to Official Assignee, २nd Assistant to Court Receiver, ३rd Assistant Master, Associate या पदावरील अधिकारी या विभागाचा शासन निर्णय दिनांक १९.०४.२०२२ नुसार केवळ न्यायिक अधिकाऱ्यांचे वेतन घेत असल्यामुळे, त्यांना न्यायिक अधिकाऱ्यांप्रमाणे या विभागाचा शासन निर्णय दिनांक ०१.०१.२०२० नुसार जुनी पेन्शन योजना लागू करणे समर्थनीय नाही, असे या विभागाच्या विधि शाखेने कळविले आहे. तरी, याची कृपया नोंद घेण्यात यावी, ही विनंती.

आपली,
मीनाकोळी
०६/०६/२०२३
(मीना कोळी)
कार्यासन अधिकारी ,महाराष्ट्र शासन

TRUE COPY
Advocate

NOTARY
SANJEEV GOPAL CHAND
GREATER NOIDA (U.P.)
REGN. No. 83372
Exp. Dt. 07-01-2028
GOVT. OF INDIA

EXH-P' 208

(Translation of a photocopy of a LETTER, typewritten in Marathi)

Emblem

GOVERNMENT OF MAHARASHTRA

LAW AND JUDICIARY DEPARTMENT

Hutatma Rajguru Chowk, Madam Cama Marg,

Mantralaya, Mumbai 400032.

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

Number : Miscellaneous-2024/84/M.No.136/D-6 Date : 06.06.2025

To,

The Registrar (Original Side),

Hon'ble Bombay High court,

Mumbai.

Subject : - Regarding making applicable Old Pension Scheme to Smt. Rekha Rane, Company Registrar and others, working on the Establishment of the Hon'ble Bombay High Court, Original Side, Mumbai.

Reference : - Your Office Letter No. G/769/53/2024, dated 05.01.2024.

Respected Sir,

In connection with the above-referred letter on the above-mentioned subject, you are hereby informed that as per the Government Resolution dated 19.04.2022, issued by this Department, the Officers working on the posts viz. 2nd Assistant Master, 1st Assistant to Official Assignee, 2nd Assistant to Court Receiver, 3rd Assistant Master and Associate are drawing the salary as per the pay-scales of the Judicial Officers and hence, the Legal Branch (A-Branch) of this Department had been requested to give appropriate guidance/opinion as to whether the Old Pension Scheme shall be made applicable to them on the line of

Judicial Officers, as per the Government Resolution dated 01.01.2020, issued by this Department.

2. However, the posts or the services of the Officers working on the establishment of the Hon'ble High Court are controlled and regulated by Article 229 and the services known as Judicial services are controlled and regulated under Articles 233 to 237 of the Constitution of India. Therefore, the Legal Branch of this Department had already informed that the services of the Applicants are literally different from the services of the Judicial Officers and hence, the Order dated 11th August, 2017, passed in the Public Interest Litigation bearing No. 188/2015 cannot be made applicable to the said Officers because the said Order is applicable only to the extent of the Judicial Officers in the State. Thus, merely as the Officers working on the posts viz. 2nd Assistant Master, 1st Assistant to Official Assignee, 2nd Assistant to Court Receiver, 3rd Assistant Master and Associate are drawing the salary as per the pay-scales of the Judicial Officers as per the Government Resolution dated 19.04.2022, issued by this Department, it is not justifiable to make applicable the Old Pension Scheme to them on the line of Judicial Officers, as per the Government Resolution dated 01.01.2020, issued by this Department and the Legal Branch of this Department has informed to that effect. Therefore, it is requested to kindly take note of the same.

Yours faithfully,
(Signature Illegible)
06.06.2025
(Meena Koli)
Desk Officer, Government of Maharashtra

TRUE COPY
Advocate

-X-X-X-X-X-X-X-X-

Chief Translator & Interpreter's Office High Court, Bombay
) M - 3063
) Fs. 6
PSP/- 2026

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 51072 Exp. Dt. 07-01-2026 GOVT. OF INDIA

A True Translation

For Chief Translator

Ex 'Q' Date: 01st December 2025

EXH-Q
210

To

The Registrar,

Original Side,

High Court, Bombay.

NOTARY ... GOVT. OF INDIA

Subject: Regarding implementation of old Pension Scheme to the undersigned Officers.

Ref. 1. Our representation dated 30th September 2023.

2. Reply dt. 15th July 2025 of this office enclosing therewith a reply dt.06.06.2025 of the Law and Judiciary Department, Mantralaya, Mumbai.

Respected Sir,

By our representation dated 30th September 2023, we had requested for implementing the Order dated 11th August 2017 passed by the Hon'ble Division Bench in PIL No. 188 of 2015 as well as Government Resolutions issued to commensurate with the said Orders and the provisions of Maharashtra Civil Services (Pension) Rules to each of the Officers/Applicants therein with consequential directions. Put up herewith is a Representation dated 30th September 2023 at **Annexure "A"**.

By reply dated 15th July 2025, Your Honour has informed to us that as per the directions of the Hon'ble the then Chief Justice, this Registry had forwarded our above-referred representations to the Principal Secretary and R.L.A., Law and Judiciary Department, Mantralaya, Mumbai and in reply to that, the Law and Judiciary Department, Government of Maharashtra, mantralaya, Mumbai vide letter dated 06.06.2025 communicated their decision regiarding non-applicability

of the Old pension Scheme to the posts of Second Assistant Master, First Assistant to the Official Assignee, Second Assistant to the Court Receiver, Third Assistant Master and Associates, High Court, Original Side, Bombay. Copies of the said reply dated 15th July 2025 alongwith enclosure are put up herewith at **Annexure "B"**.

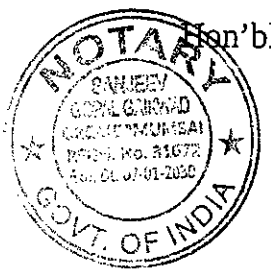
It is respectfully submitted that vide Government Resolution dated 19th April 2022, **on the recommendation of the report of the Administrative Committee of the Hon'ble Judges**, had accepted the proposal of the Hon'ble High Court for implementing the revision of pay-scale of Class 'A' and Class 'B' employees of the High Court, Bombay and its benches.

Vide the aforesaid Government Resolution, the aforesaid posts have become entitled for **"The Pay Scale of Civil Judge Junior Division (ACP-1) Rs. 33090-920-40450-1080-43850 with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time."**

Put up herewith is a copy of GR dated 19th April 2022 at **Annexure "C"**.

It is pertinent to note that as per recommendation of the Hon'ble Committee and GR dated 19th April 2022 in pursuant to it, we have already been granted all the benefits of pay-scale, allowances and perquisites of the Civil Judge, Junior Division (ACP-I).

Since pay-scale with admissible allowances and perquisites including retirement benefits of Civil Judge Junior Division (ACP-I) has been made applicable to our posts, on the recommendation of Hon'ble Administratve Committee, we, therefore, hereby humbly request Your Honour that our this representation alongwith annexures thereto may kindly be put up before the Hon'ble Administrative committee (constituted for Revision of Pay-Scales), for



212

consideration and for issuance of necessary directions on the issue of etation of retirement benefits as applicable to the Judicial officers.

Yours faithfully,

(Rekha V. Rane)

Insolvency Registrar

(Nandini Y. Deshpande)

1st Asstt. To Court Receiver

(Charushila M.Vaidya)

Master & Asstt.Prothonotary(judl.)

(Varsha N. Ubale)

Associate.

(Jyoti Bidye)

Associate

(Arun Shirsat)

Associate.

NOTARY
SANJEEV
GOVT. OF INDIA

(Pratiksha Sawant)

Associate.

(Malini Bhalerao)

Associate.

(Vilas Pawar)

Associate.

Advocate

NOTARY
GOVT. OF INDIA

Ex. "R"

EXH-'R' 213

Email : generaldept.hc@gmail.com

No. G/709/ 15 - /2026.
Date: 19th January 2026.

From :
DHANAJI A. JADHAV,
REGISTRAR, ORIGINAL SIDE,
HIGH COURT OF JUDICATURE AT BOMBAY,
FORT, MUMBAI 400 032.

To,

1. Mrs. Rekha V. Rane,
   Insolvency Registrar,
   High Court, Original Side, Bombay.
2. Mrs. Nandini Y. Deshpande,
   First Assistant to Court Receiver,
   High Court, Original Side, Bombay.
3. Ms. Charushila M. Vaidya,
   Master & Assistant Prothonotary (Judl.),
   High Court, Original Side, Bombay.
4. Mrs. Varsha N. Ubale,
   Associate,
   High Court, Original Side, Bombay.
5. Mrs. Jyoti Bidye,
   Associate,
   High Court, Original Side, Bombay.
6. Shri Arun Shirsat,
   Associate,
   High Court, Original Side, Bombay.
7. Mrs. Pratiksha Sawant,
   Associate,
   High Court, Original Side, Bombay.
8. Mrs. Malini Bhalerao,
   Associate,
   High Court, Original Side, Bombay.
9. Shri Vilas Pawar,
   Associate,
   High Court, Original Side, Bombay.

Subject : **Response to your representation for reconsideration of implementation of Old Pension Scheme.**

Reference : **Your representation dated 01.12.2025.**

Madam/Sir,

Apropos the subject mentioned above and with reference to your representation under reference, I am to inform you that your above-referred representation to reconsider your request for the implementation of the Old Pension Scheme was placed before the Hon'ble Competent Authority. The Competent Authority, after going through the directions passed by the Hon'ble the

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NOTARY SANJEEV GOPAL GHANEKAR GREATER MUMBAI REGN. No. 51272 Exp. 01-07-2030 GOVT. OF INDIA

214

then Chief Justice on your earlier representations dated 30.09.2023, 05.12.2023 and 04.06.2024 and letter dated 06.06.2025 received from the Law and Judiciary Department, Mantralaya, Mumbai in that regard, has been directed the Registry not to consider your above-referred representation dated 01.12.2025.

This is for your information.

Yours faithfully,

Registrar, Original Side,
High Court of Judicature at Bombay

TRUE COPY

Advocate

NOTARY GOVT. OF INDIA

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Exhibit :- 'S'
215

2023 SCC OnLine Bom 708

In the High Court of Bombay

(BEFORE G.S. PATEL AND NEELA GOKHALE, JJ.)

Arvind Gopalrao Basutkar and Others ... Petitioners;

Versus

Registrar General, High Court at Bombay and Others ... Respondents.

Writ Petition No. 2853 of 2022

Decided on March 10, 2023

Advocates who appeared in this case :

For the Petitioners : Mr. Ravi Gadagkar, with Arya Gadagkar, I/B Aniket Ransubhe.

For Respondents Nos. 1 and 2 : Mr. Rahul Nerlekar.

For Respondent-State : Mr. Milind More, Addl. GP.

The Judgment of the Court was delivered by

G.S. PATEL, J.:— The Petition is specially assigned to this Bench. **Rule.** There is an Affidavit in Reply. The State Government is represented. Rule returnable forthwith.

2. The eight Petitioners are aggrieved by what they describe as a failure of this Court on its administrative side to apply a set of rule and guidelines equally and uniformly to eligible officers on the Original and Appellate Sides of this Court. We reproduce prayer clauses (a), (a)(i) and (a)(ii):

> "(a) This Honourable Court in its jurisdiction under Article 226 of the Construction of India may be pleased to issue a writ of Certiorari or any other writ, order or direction in the nature of Certiorari calling for the representations made by the Petitioners (Exhibits F, G, H and I); the guidelines to be followed for grant Selection Grade (Exhibit D hereto); and implemented by granting the Selection Grade to the Officers on the Original Side; as also the entire records and proceedings in respect of one Officer on the Appellate Side and after perusal of the same:
>
> (i) issue a writ of Mandamus or any other writ, order or direction in the nature of Mandamus directing Respondent No. 1 to extend the benefit of Selection Grade to Petitioners No. 1, as per the guidelines approved and made applicable to the officers on the Original Side as per *Exhibit "D";*
>
> (ii) issue a writ of Mandamus or any other writ, order or direction in the nature of Mandamus directing Respondent No. 1 to

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216

frame guidelines to be followed to grant and extend the benefit of Assured Career Progression-II (ACP-II) to Petitioner Nos. 2 to 8 and extend the said benefits to them."

3. Mr. Gadagkar for the Petitioners has filed detailed written submissions. These are taken on record.

4. Mr. Gadagkar first submits that the prayers in the Petition are perhaps not as felicitously worded as they ought to have been. He points out from his written submissions that the case is squarely one of invidious discrimination, arbitrariness in classification without a rational, or even discernible, nexus to the object of the applicable rules and guidelines — in other words, a case that falls under Article 14 of the Constitution of India. The complaint is about continuing a disparity or imbalance in pay scales that are, by law, made applicable to officers, both judicial and non-judicial, on both the Original and Appellate sides of this Court. There is no claim to a particular post or to any particular posts; the only contention is about implementing a statutorily mandated equivalence in pay.

5. What prayer clause (a) really seeks is that the guidelines that have been framed at Exhibit "D" as applicable to officers on the Original Side of this Court be made applicable to officers on the Appellate Side of this Court; and that the guidelines be applied forthwith to officers on both sides of the High Court establishment. Prayer clause (a)(i) is specific to the 1st Petitioner because he had a distinct position equivalent to that of an entry-level District Judge. Prayer clause (a)(ii) is again less than felicitously worded. It really seeks the extension of an Assured Career Progression-II ("**ACPII**") to officers on both the Appellate Side and Original Side of the High Court.

6. As presented, the Petition is a straightforward Article 14 challenge. It says that certain named officers were conferred benefits but for others similarly situated or placed, identical benefits were not conferred. That conferment has been kept pending for many years. The conferment of benefit on a few officers could not have been done by exercising some unknown 'discretion' in favour of select persons without making the same conferment applicable to others in the class. Across the Bar, it is also pointed that some who have succeeded, or been later appointed to, the posts occupied by those who received this 'special' benefit have been given the benefit too. In other words, certain individuals were given the benefit, and this continued to their successors-in-office. Yet, others in the class have been denied these pay-scale benefits.

7. The Petitioners are all Class-I Gazetted officers who held or hold posts as Registrars and Deputy Registrars. Some of them have been promoted to their present posts.

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8. The Bombay High Court does have a distinction between its Appellate Side and Original Side. This is a jurisdictional distinction because the Bombay High Court is conferred with an original jurisdiction under the Letters Patent. This means that some specified types of lawsuits or legal actions can be directly filed in this Court, on its Original Side, as a court of first instance. This requires, for logistical and administrative reasons, a separate, dedicated Registry to manage the affairs on the Original Side. Such Original Side work includes matters in the testamentary jurisdiction, suits (both commercial and non-commercial), and a variety of other subjects. The appellate jurisdiction, like the one exercised by the Benches at Aurangabad and Nagpur, is not — with some exceptions — not a court of original jurisdiction. It primarily exercises appellate jurisdiction over the district judiciary. Again, this is geographically divided for convenience because the Aurangabad and Nagpur Benches have their own territorially defined appellate jurisdictions. It is only the principal seat at Mumbai that has an original jurisdiction.

9. The 1st Respondent is the Registrar General of the High Court. The other Respondents are functionaries of the State.

10. On 21st March 1996, the Government of India, pursuant to a decision in a group of review petitions filed by the Union of India and several State Governments (seeking a review of directions issued by the Supreme Court in *All India Judges' Association* v. *Union of India*[1] and later directions in *All India Judges' Association* v. *Union of India*[2]) set up the first National Judicial Pay Commission under the Chairmanship of Hon'ble Mr. Justice K Jagannatha Shetty (**"The Shetty Commission"**). That commission made several recommendations in its Report dated 11th November 1999. In a follow up decision in *All India Judges' Association* v. *Union of India*[3], the Supreme Court found the recommendations of the Shetty Commission fair and reasonable and said these should be accepted.

11. In April 2009, the Supreme Court appointed the one-man Justice E Padmanabhan Commission, which made recommendations in regard to pay scales of judicial officers (in service and retired), on the basis of the Shetty Commission report and recommendations.

12. The State of Maharashtra implemented the Shetty Commission recommendations. These recommendations *inter alia* related to pay scales, allowances, perquisites and so forth.

13. On 7th August 2013, a Division Bench of this Court delivered judgment in *Adeline Rodrigues* v. *State of Maharashtra*[4] Ms. Rodrigues was for a long time an Associate on the Original Side of this Court and later rose to be for many years the Prothonotary and Senior Master of

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218

this Court. The Division Bench directed a revision of pay scales, allowances and perquisites as recommended by the Shetty Commission and said that these had to be made applicable to the judicial officers on the Original Side of the High Court. The Hon'ble Chief Justice of Bombay High Court, exercising powers vested in him under Article 229 (2) of the Constitution of India, effected an amendment to Rule 3(b)(i) of the Bombay High Court Original Side Service Rules, 2002. Pursuant to this, the pay scales, allowances and perquisites including retirement benefits and service conditions in respect of Original Side officers were revised. These were brought on parity or on par with judicial officers in the State. Arrears of pay were also to be paid with retrospective effect from 4th July 2003. Guidelines for the grant of what is called Selection Grade and Super Time Scale to Original Side officers also came to be framed.

14. By an order of 13th April 2018, another Division Bench of this Court in *Arvind Gopalrao Basutkar* v. *State of Maharashtra*[5] noted a statement made on behalf of the State Government that as regards the revision of pay scales, allowances and perquisites recommended by the Shetty Commission to judicial officers in the State and implemented by the State Government, these would be made applicable to the officers on the Appellate Side of the Bombay High Court as well.

15. The 1st Petitioner was appointed as a Principal Secretary to the Hon'ble the Chief Justice on 7th June 1996. He retired on 30th April 2011. Another person was appointed as the Registrar/Principal Secretary to the Hon'ble the Chief Justice on 27th March 2008. This person was granted the Selection Grade with effect from 2013 although he was junior to the 1st Petitioner. Following the adoption of the guidelines and the conferment of Super Time Scale and Selection Grade on the Original Side, the then Prothonotary and Senior Master, an officer on the Original Side was also granted the benefit of the Super Time Scale. Similarly, an Additional Prothonotary and Senior Master on the Original Side was given the benefit of Selection Grade with effect from 18th February 2015. These are noted in paragraphs 3(h) and (i) of the Petition.

16. Petitioners Nos. 2 to 8 have received the benefit of Assured Career Progression-I ("**ACP-I**") at the time of fixation of their respective pay after the Service Rules were amended. But there is no application of ACP-II.

17. On 19th April 2019, the Petitioners made their first representation to the 1st Respondent seeking that guidelines be framed to decide the grant of Super Time Scale, Selection Grade and ACP-II to

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the officers on the Appellate Side. These, they said, should follow the lines of the Original Side guidelines. There was no response, the Petitioners say, for about a year and a half. A copy of this representation is at Exhibit "F".

18. A second representation followed on 6th October 2020 (Exhibit "G" to the Petition). Here the Petitioners pointed out that at some point in April 2019 the then Registrar/Principal Secretary to the Chief Justice had been granted the benefit of the Selection Grade and had been paid arrears too. Yet, the Petitioners' representations were without response. Even the second representation met with no response.

19. This led to the Petitioners filing a third representation on 8th March 2021 (Exhibit "H") referring to the previous two representations and seeking redress. There is even now no answer. Hence this Petition.

20. Individual representations have also been separately made. The 5th Petitioner has made a separate representation on 5th November 2020 saying that she had completed five years of continuous service as a Deputy Registrar in the pay scale of the Civil Judge, Senior Division in the first stage of ACP-I on 18th March 2020 and was therefore entitled to the pay scale of the Civil Judge, Senior Division in the second stage of ACP-II. There seems to be no response to that either.

21. The Bombay High Court Appellate Side Service Rules, 2000 were amended in April 2018 by the insertion of Rule 3(b)(i). This revision related to pay scales, allowances and perquisites including retiral benefits and service conditions as periodically revised and made applicable. A copy of the amendments in the Bombay High Court Appellate Side Service Rules, 2000 Appellate Side Rules are at Exhibit "A" with a translation provided at page 35A. The notification in that regard is at Exhibit "B" from pages 36 to 37.

22. Following the amendment, revised pay scales with all admissible allowances and perquisites were payable to officers on the Appellate Side of the Bombay High Court with retrospective effect from 4th July 2003. However, there were no guidelines in regard to the conferment of a Selection Grade/Super Time Scale or relating to ACP-II for Appellate Side officers although these had been framed and made applicable to officers on the Original Side. For completeness, in regard to Selection Grade and Super Time Scale the tabulation provided below sub-paragraph (f) at pages 11 and 12 of the Petition may be referred. This shows that Selection Grade and Super Time Scale is not applicable to every single officer but to a defined percentage. There are other requirements as well including a review of performance standards before these can be granted. The question is not of the grant or not grant but of making these provisions applicable at all or in the first

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Page 6 Tuesday, October 13, 2026
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220

place.

23. A brief analysis of the relevant provisions is necessary at this stage. The Maharashtra Judicial Service Rules, 2008[6] were slightly amended in 2010 (to include Government Pleaders, Additional and Assistant Public Prosecutors but not a full-time and salaried Public Prosecutor). Rule 3 in Chapter II deals with the 'Constitution of the Service'. It is said to be constituted with effect from 1st July 1996. Rule 3 contains two tables. Rules 3, 4 and 5 read:

> **3. Constitution of the Service—**
>
> (1) There shall be constituted a State Service known as the Maharashtra State Judicial Service and such service shall be deemed to have been constituted with effect from the 1st day of July 1996.
>
> (2) The service shall consist of the cadres specified in column (2) of the Schedule appended herewith and the character and number of posts in each of those cadres shall be as specified in the corresponding entries in column (3) thereof.
>
> (3) With effect from the date of commencement of these Rules, the existing cadres specified in column (2) of the TABLE 'A' below, shall stand designated as the cadres specified in the corresponding entries in column (1) thereof and initially they shall constitute the service, namely—
>
> TABLE 'A'

(1)	**(2)**
(a) District Judges	**(i)** District Judges; **(ii)** Additional District Judges; **(iii)** Principal Judge, Additional Principal Judge and Judges of City Civil and Sessions Court, Mumbai
(b) Senior Civil Judges	**(i)** Chief Metropolitan Magistrate; **(ii)** Additional Chief Metropolitan Magistrates; **(iii)** Judges of Court of Small Causes and Metropolitan Magistrates; **(iv)** Civil Judges, Senior Division.
(c) Civil Judge, Junior Division	**(i)** Civil Judge, Junior Division.

> (4) Selection Grade District Judges and Super Time Scale District Judges.— The High Court shall confer Selection Grade and Super Time Scale on merit-cum-seniority basis to the officers in the cadre of District Judges as indicated in the TABLE 'B' below, namely:—
>
> TABLE 'B'

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Page 7 Tuesday, October 13, 2026
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Cadre (1)	Eligibility (2)	Total Number of Officers eligible (3)
Selection Grade	Five years of service as District Judges.	25% of the cadre strength of District Judges.
Super Time Scale	Three years of service as Selection Grade District Judges.	10% of the cadre strength of District Judges.

Upon conferment of such Selection Grade or Super Time Scale, such District Judges shall be called "Selection Grade District Judges" or "Super Time Scale District Judges", as the case may be.

(5) Assured Career Progression Scales:

i) A Civil Judge, Junior Division or a Senior Civil Judge shall be entitled to be considered for conferment of the First Assured Career Progression Scale on completion of five years of service as Civil Judge, Junior Division or a Senior Civil Judge, as the case may be, if,—

(a) he has not been promoted;

(b) the High Court finds him fit to be conferred with Assured Career Progression Scale and his performance as reflected in annual confidential reports is not less than average;

(ii) A Civil Judge, Junior Division or Senior Civil Judge shall be entitled to be considered for Second Assured Career Progression Scale on completion of ten years of service as Civil Judge, Junior Division or Senior Civil Judge, as the case may be, if,—

(a) he has not been promoted;

(b) the High Court finds him fit to be conferred with Second Assured Career Progression Scale and his performance as reflected in annual confidential reports is not less than "Good" for a continuous period of five years commencing from any year after he gets the First Assured Career Progression Scale:

Provided that no Judicial Officer shall be entitled to get the benefit of Assured Career Progression Scale-I or Assured Career Progression Scale-II, if—

i) his integrity is doubtful;

ii) more than once warning or caution is issued against him;

Note : Mere "advice" would not amount to "warning" or "caution";

iii) any of the minor penalties as mentioned in Rule 5(1)(i) to (iv) of the Maharashtra Civil Services (Discipline and Appeal) Rules, 1979 is inflicted against him even on one occasion;

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Page 8 Tuesday, October 13, 2026
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222

iv) his average disposal for more than one year within the span of five years is found to be "inadequate";

v) he is retired compulsorily or gets retirement voluntarily, even after the relevant span of five years and if his case is pending for consideration for such benefit;

vi) for any other reason the High Court finds him unfit to be conferred with Assured Career Progression Scale-I or Assured Career Progression Scale-II:

Provided further that if the probation period of the Judicial Officer is extended, the grant of Assured Career Progression Scale -I or Assured Career Progression Scale-II shall be deferred proportionately to commensurate with the extended probation period.

24. Read together, these Rules tell us, in sequence : (i) the cadres of service; (ii) the eligibility for Selection Grade and Super Time Scale; and (iii) Assured Career Progression Scales-I and II and the conditions for application of each.

25. Amendments to the Appellate Side Service Rules, 2000 were effected on 31st March 2018 by a Government Resolution in the following terms:

Amendment in Bombay High Court, Appellate Side Service Rule, 2000

Government of Maharashtra

Law and Judiciary Department,

Government Resolution No : Miscellaneous-2014/Case No. 201/Ka-6

Mantralaya, Mumbai — 400 032, Dated 31st March 2018

Reference:— 1) Letter dated 6th September, 2014 of the Registrar (Law & Research), High Court, Appellate Side, Bombay.

2) Government Resolution No. HCT-2009/Case No. 141/Ka-Three, dated 22nd October, 2010.

3) Order dated 7th August, 2013 passed by the Hon'ble High Court in Writ Petition No. 868 of 2008.

4) Order dated 18th November, 2013 passed by Hon'ble Supreme Court in Special Leave Petition No. 33079 of 2013.

Government Resolution:— In accordance to the Order dated 18th November, 2013 passed by Hon'ble Supreme Court in Special Leave Petition No. 33079 of 2013, a detailed discussion was held in cabinet meeting dated 15th March, 2018 in respect of granting the

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Page 9 Tuesday, October 13, 2026
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revised pay scales to the Registrar/Principal Secretary to the Hon'ble the Chief Justice and Deputy Registrars (In Service and Retired) of the Hon'ble Bombay High Court (Appellate Side) and its Benches. The Government has decided that the pay scales mentioned in the below statement be made applicable to the said Officers w.e.f. 4th July, 2003 as recommended by Hon. Shetty Commission.

Designation	**Unrevised Pay scale (Before 6th Pay Commission**	**Revised pay scale (From 4.7.2003 to 31.12.2005)**	**Revised Pay scale (From 1.1.2006)**
1. Registrar	14300-400-18300	16750-400-19150-450-20500	51550-1230-58930-1380-63070
2. Registrar/Principal Secretary to the Hon'ble the Chief Justice	14300-400-18300	16750-400-19150-450-20500	51550-1230-58930-1380-63070
3. Deputy Registrar	12000-375-16500	14200-350-15950-400-18350	43690-1080-49090-1230-56740

2. Therefore, the Government is granting approval for insertion of Rule 3-(b)(i) in Bombay High Court, Appellate Side Service Rule, 2000 after Rule 3(b) as mentioned hereinafter.

Rule 3(b)(i) : - "The posts mentioned at Sr. Nos. 2 and 3 (designated as Registrars and Registrar/Principal Secretary to the Honourable the Chief Justice respectively vide Notification No. B 1509/2000, dated 22nd August 2005) shall carry pay scales of District Judge Entry Level and post mentioned at Sr. No. 4 shall carry pay scale of Senior Civil Judge ACP-I with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time."

3. The Registrar (Law and Research) High Court, Appellate Side shall take further action to issue the notification as per the draft provided in the annexure annexed herewith, for the necessary implementation of Bombay High Court (Appellate Side) Amended Service Rules, 2018.

4. The said Government Resolution is being issued in according to the consent of the Finance Department received vide an Informal Reference No. 22/2018/Service-9 dated 15th January, 2018.

Sd/-

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Page 10 Tuesday, October 13, 2026
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224

(Suhas Chavan)
Upper Secretary, Government of Maharashtra"

26. The amendment was notified on 3rd April 2018.

27. On 16th July 2018, the Registrar-General issued a circular referencing the GR of 31st March 2018 saying that Registrars, Registrars/Principal Secretaries to the Chief Justice and Deputy Registrars (working at and retired from) the High Court, Appellate Side were entitled to all allowances and perquisites admissible under Shetty Commission/Padmanabhan Commissions, as periodically revised. A list of the allowances and perquisites was set out.

28. Following the 7th August 2013 judgment in the *Adeline Rodrigues case* referred to above, the Bombay High Court Original Side Rules, 2002 were amended. Rule 3(bi) was added, and it corresponds exactly with the Appellate Side Service Rule 3(b)(i). The amended Original Side Service Rule reads:

"Rule (bi) The post mentioned at Sr. No. 1 shall receive the pay scale of District Judge, Selection Grade and posts at Serial Nos. 2 to 5 shall receive the pay scale of District Judge, Entry Level and post at Serial Nos. 6, 7 and 9 to 14 and one post at Serial No. 15 shall receive the pay scale of Senior Civil Judge, ACP-I with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable from time to time."

The statement showing posts at Sr. No. 1, 2 to 5 and applicable pay scale and equivalent cadre is as under:

TABLE - A

Sr. No.	**Post on the Original Side**	**Equivalent Cadre**	**Pay Scale (in Rupees)2**
1	Prothonotary and Senior Master	District Judge, Selection Grade	57700-1230-58930-1380-67210-1540-70290/-
2	Addl. Registrar, Original Side/Additional Prothonotary and Senior Master	District Judge, Entry Level	51,550-1230-58930-1380-63070/-
3	Official Assignee	District Judge, Entry Level	51,550-1230-58930-1380-63070/-
4	Commissioner	District Judge,	51,550-1230-

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Page 11 Tuesday, October 13, 2026
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	for Taking Accounts	Entry Level	58930-1380-63070/-
5	Court Receiver District Judge	Entry Level	51,550-1230-58930-1380-63070/-

In view thereof, the benefits of pay scale of Shetty Commission and Padmanabhan Commission are extended to the aforesaid Officers on the Original Side. So also, benefits of Super Time Scale and Selection Grade is also required to be extended to the aforesaid officers at par with the District Judge Selection Grade and Entry Level as per the provisions of the Maharashtra Judicial Services Rules, 2008.

Rule 4 of the Maharashtra Judicial Services Rules, 2008 (as amended up to 13.02.2014) reads as under:

TABLE - B

Cadre	**Eligibility**	**Total Number of Officers eligible**
Selection Grade	Five years of service as District Judges	25% of the cadre strength of District Judges
Selection Grade	Three years of service as Selection Grade District Judges	10% of the cadre strength of District Judges

Taking into account post of Prothonotary and Senior Master which is at par with District Judge Selection Grade and the post of (i) Addl. Registrar (O.S.)/Addl. Prothonotary and Senior Master, (ii) Official Assignee, (iii) Commissioner for Taking Accounts and (iv) Court Receiver, which are at par with District Judge Entry Level, guidelines for conferment of Super Time Scale and Selection Grade Scale are as under:

Cadre	**Eligibility**	**Total number of officers eligible**
Super Time Scale	Three years of service to the equivalent post having pay scale of District Judge Selection Grade or Prothonotary and Senior master having completed 3 years of service. At least one service rating not less than "very good" and not less than	10% of cadre strength of equivalent post having pay scale of District Judge Selection Grade

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Page 12 Tuesday, October 13, 2026
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226

	"good" for the remaining years. The Annual Confidential Reports, Leave and Late Attendance Records for three years for grant of Super Time Scale, so also, SID report, may be taken into consideration for ascertaining eligibility for conferment of Super Time Scale.	
Selection Grade Scale	Five years of continuous service as Addl. Registrar (O.S.)/Addl. Prothonotary and Senior Master/Official Assignee/Commissioner for Taking Accounts/Court Receiver having **pay scale of District Judge Entry Level**, as the case may be. Three "good" service ratings out of five years and **other two, not less than "average"** for the remaining years; Annual Confidential Reports, Leave and Late Attendance Records for five years for grant of Selection Grade Scale, so also, SID report, may be taken into consideration for ascertaining eligibility for conferment of Selection Grade Scale.	25% of cadre strength of equivalent post having pay scale of District Judge Entry Level

29. As to ACP-I and ACP-II, the Maharashtra Judicial Services Rules extracted above show that a Civil Judge Junior Division or a Senior Civil

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Page 13 Tuesday, October 13, 2026
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Judge is entitled to be considered for ACP-I on completing five years of service as Civil Judge Junior Division or a Senior Civil Judge. ACP-II is applicable once they complete 10 years in service. Thus, a Senior Civil Judge is initially placed at the 'entry-level' pay scale; then, after five years, he is assured ACP-I; and after a further five years, to ACP-II. Of course, the ACPs are not unconditional; the qualifying criteria must be met. Mere longevity in service is no assurance of ACP-I or ACP-II. In the High Court, once the amended service rules are applied, a person who is granted (by the service rules) the pay scale of a Civil Judge Senior Division *at the inception* must be entitled to ACP-II pay scales consistent with the Maharashtra Judicial Services Rules, i.e., after five years, and not any longer or shorter time. ACP-II eligibility is to be reckoned as five years from the date the person gets ACP-I. For the High Court, it is important to note that an employee serves for no less than *25 years* to reach the level of a Deputy Registrar. This is why Deputy Registrars were placed in ACP-I and *not in the entry-level pay scale*. Once they are at the ACP-I level, they cannot be made to languish there for a period longer than the law permits, i.e., more than five years. That would be contrary to the Maharashtra Judicial Services Rules. Indeed, it would render nugatory the very purpose of placing Deputy Registrars at the ACP-I level in the first place.

30. Once uniform pay scales are made applicable, extending beyond five years the time required to be spent by Deputy Registrars at the ACP-I would be a form of hostile discrimination violating Article 14 of the Constitution of India.

31. Further, once there is a demonstrable parity between the Appellate Side and Original Side Service Rules, there is no room for refusing to officers on one side the benefits of pay scale revisions and guidelines applicable to officers on the other side. We also do not understand how the framing of 'guidelines' can be used as a device to make service benefits *inapplicable* either by excluding some persons or by extending the time for qualification of the next stage.

32. Appellate Side officers are almost invariably judicial officers drawn from the State Judicial Services. They hold ex-cadre posts. Many officers on the Original Side are, or can be, and have in the past known to be, non-judicial officers, i.e., not from the State judiciary but drawn from their respective feeder cadres. This is true of the offices of the Prothonotary and Senior Master, Additional Prothonotary and Senior Master, Official Assignee, Commissioner for Taking Accounts, the Court Receiver, Assistant Prothonotary and Senior Master and so forth. From the beginning, there was— and certainly should be—a practice of being able to move officers from one side to the other depending on the needs. The implementation of the Shetty Commission recommendations for "judicial officers" created a peculiar anomaly. As

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Page 14 Tuesday, October 13, 2026
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228

we noted at the beginning, the position of the Original Side of the High Court is somewhat unique and is shared by only a few other Chartered High Courts in the country. The fact that the staffing on the Original Side is and can be drawn from non-judicial officers is what led to the anomaly. The Shetty Commission made its recommendations applicable to judicial officers. Non-judicial officers, such as those on the Original Side of the High Court were not provided for. But it is precisely this discrepancy or imbalance that was rectified by the judgment of this Court in the *Adeline Rodrigues case* That decision brought both sides to parity when it said that there was no meaningful distinction or classification to be made between officers on the Original and Appellate Side. Paragraphs 14 to 16 of the *Adeline Rodrigues* decision read:

> 14. In our view, Respondent No. 1 and 3 have committed an error of law which is apparent on the face of record and which is contrary to the law laid down by the Apex Court. It is surprising that Respondent No. 3, Principal Secretary, Law and Judiciary and Respondent Nos. 1 and 2 have taken a very callous and casual attitude while rejecting the directions given by the Hon'ble Chief Justice. Perusal of Article 229 clearly reveals that Hon'ble Chief Justice has the sole prerogative of fixing the pay-scales and salaries of the employees of the High Court and it is not open for the State Government to brush aside the directions given by the Hon'ble Chief Justice under Article 229 of the Constitution of India. We are pained at the language used by the Respondents in their affidavit-in-reply, which, in our view, is not only contemptuous but falls nothing short of committing contempt of this Court, particularly after directions were given by the Hon'ble Chief Justice under Article 229 of the Constitution of India. The Article envisages that not only the appointments of Officers and Servants of the High Court shall be made by the Chief Justice but even the conditions of service of Officers and Servants of the High Court shall be such as may be determined by the Rules framed by the Chief Justice. In the present case, it is an admitted position that Maharashtra Civil Services Rules have been adopted by the Hon'ble Chief Justice and this fact was brought to the notice of Respondent No. 1. The Hon'ble Chief Justice of this Court had directed the Prothonotary to inform the decision taken by the Chief Justice to the Respondents. However, Respondent Nos. 1 to 3 have not complied with the directions which were given by the Hon'ble Chief Justice. The attitude of Respondent Nos. 1 and 3 is reflected from the language used in the affidavit in reply. In para 6 of the Affidavit in reply, Joint Secretary Pradeep Bavkar has stated as under:—
>
> > "6 ... It is not known as to what exercise or homework was done before the decision regarding revision of pay scales was taken..."

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Page 15 Tuesday, October 13, 2026
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It is true that subsequently when the learned Advocate General appeared, the said observations were sought to be withdrawn by filing another affidavit-in-reply. Be that as it may, the said language clearly indicates the attitude of Respondent No. 3 to the directions which were given by the Hon'ble Chief Justice.

15. **In our view, even if the Rules have not been framed by the Hon'ble Chief Justice, directions were given to give parity in pay-scales to the Officers working on the Original Side of the High Court with Judicial Officers working on the Appellate Side of the High Court.** It has to be noted here that the said directions were not followed with the remark "Rules are not framed" but, in our view, that cannot be the reason for not complying with the directions. It is obvious that in spite of the fact that judgment of the Apex Court in *S.B. Vohra's case*, JT (2004) 1 SC 38 (supra) was brought to the notice of Respondent Nos. 1 and 3, the State Government has chosen to take the same adamant attitude. ... ...

16. **It has to be noted here that if the directions given by the Hon'ble Chief Justice are implemented, there won't be any financial burden on the State of Maharashtra, since, as of today, salary drawn by the Class-I Officers on the Original Side and Appellate Side is almost equivalent and there is negligible difference in the said salaries drawn by two sets of Officers on both sides. Be that, as it may, even if the question of financial implication is concerned, that could not be a ground to reject the recommendations made by the Chief Justice.** Under these circumstances, we are of the view that the impugned decision communicated by Respondent No. 1 to 3 will have to be quashed and set aside and the Petition will have to be allowed."

(*Emphasis added*)

33. Rule 3(b)(i) of the Bombay High Court Appellate Side Service Rules, 2000 and Rule 3(b)(i) of the Bombay High Court Original Side Service Rules, 2002 are verbatim identical. Both Rules provide that non-judicial officers of this High Court are entitled to pay scales, allowances and perquisites including retirement benefits and service conditions as may be periodically revised and made applicable. We have already set out Rule 4 of the Maharashtra Judicial Service Rules, 2008 above.

34. Obviously, guidelines had to be framed to decide the grant of Selection Grade and Super Time Scale to officers on the Original Side. This was done by the Bombay High Court Welfare Committee, a Committee that is not restricted to either the Original Side or the Appellate Side but covers the entire High Court. These guidelines were then applied to the then Prothonotary and Senior Master (perhaps also holding the designation of Registrar (Original Side)), and he received the benefit of pay scale of Selection Grade as also, on completion of five

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Page 16 Tuesday, October 13, 2026
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23

years in that Selection Grade, the Super Time Scale benefit. By similar application of these guidelines, the then Additional Registrar (Original Side)/Additional Prothonotary and Senior Master was also granted the benefit of a Selection Grade pay scale.

35. The case of the Registrar/Principal Secretary to the Hon'ble the Chief Justice is perhaps different. He was clearly an officer on the Appellate Side establishment; the amended Rules include the post specifically. He was granted the benefit of a pay scale of the Selection Grade. He received all arrears of monetary benefit in 2019 (when the Petitioners' first representation was still pending). He appears to have been the only person on the Appellate Side establishment to have received the benefit. It is not shown to us how other officers on the Appellate Side, also included in the 31st March 2018 GR should be treated differently. To put it in another way, we are unable to discern any intelligible differentia between these three cases cited in the Petition and other eligible officers of this Court. Indeed, there appears to us to be no classification at all but simply an acceptance of three individual cases. At an institutional level, one would expect that an administration would deal not with individuals but with classes. In a given case, an individual might be a class by herself or himself, i.e., there could be validly a classification of one. But every classification needs intelligible and rational differentia to distinguish it clearly and there must be a demonstrable rational nexus between the object of what is being applied and that classification. If one officer was being conferred benefit of any kind, then he had to be shown to be separately distinctly classifiable. This is not demonstrated before us. Otherwise, the benefits afforded to him would have to be applied to all others in that class. If not, the selection of an individual for special benefit would be ex-facie arbitrary and would be susceptible to judicial review. Thus, any administrative decision that conferred such a benefit on an individual, absent a rational classification and a nexus, would be vulnerable. The decision itself could not be sustained and the consequences would perhaps have to be visited on that individual. But in this Petition, the case of the Petitioners is not that an officer was wrongly conferred benefit but simply that the benefit conferred on him had necessarily to be conferred and made available to all other officers similarly situated. Likes must be treated alike. That is, simply put, the mandate of Article 14. The Petition does not seek to dislodge any existing beneficiary either on the Original or the Appellate Side.

36. Indeed, to our mind, what the Petition seeks is an order consistent with what the Maharashtra Government did, what the Shetty Commission intended and what the amendments to the Rules contemplated, namely that officers on both sides of the High Court, Original and Appellate, judicial and non-judicial, would be treated as

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Page 17 Tuesday, October 13, 2026
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one class. As Mr. Gadagkar puts it, the Original Side and Appellate Side distinction is one that is special to our High Court but it is a jurisdictional division. It does not mean that those who work for the High Court can be differently treated because some of them do Original Side work and others do Appellate Side work. As he puts it, except for jurisdiction, there is only one High Court.

37. If there is a distinction sought to be drawn between 'judicial officers' and 'non-judicial officers', then that is also, to our mind, meaningless in the context of service in the High Court. Today, judicial officers occupy positions on the Original Side. But previously these positions were occupied by non-judicial officers — and the cases of the then Prothonotary & Senior Master and the then Additional Prothonotary & Senior Master show this. Even non-judicial officers do substantially similar work in the High Court as judicial officers. In the matter of delegation of duties, we do not expect our judicial officers to discharge any higher or greater burden or perform any greater duty. Non-judicial officers, too, have daily lists; they hold hearings; they pass orders, even in contentious cases. If the belief is that judicial officers, being judges by training, recruitment and appointment, should receive special benefits that should not be made available to non-judicial officers working on the High Court, then that view has to be jettisoned. For one thing, it is too late now to try and subvert the legal and lawful mandate of equalization of pay scales and benefits by resorting to guidelines or some such administrative procedure. Secondly, the parity arises because of work and service *in the High Court*. Nobody suggests that a non-judicial officer can be deputed to hold a *post* as a judge. Thirdly, it cannot be forgotten that a non-judicial officer serves for decades before achieving the post equivalent to District Judge Selection Grade, District Judge Entry Level or Civil Judge Senior Division — ACP-I.

38. The question of framing guidelines is thus not an issue that needs to detain us. If guidelines were indeed to be framed, these could have been done a long time ago and there is nothing shown to us to indicate why these guidelines have not been framed. To the contrary, there have been three representations and these go back now almost four years. All these seek precisely the same thing that officers on the Original Side and Appellate Side be brought on parity. All of them say that if this is not done there is a form of an Article 14 violation, that is to say an invidious discrimination. The law does not countenance this is the submission on behalf of the Petitioners placing reliance on the decision of the Supreme Court in *State of Mizoram* v. *Mizoram Engineering Service Association*[7]. The legendary decisions of the Supreme Court in *DS Nakara* v. *Union of India*[8] is also invoked in

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Page 18 Tuesday, October 13, 2026
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support of the plea of non-discrimination. If there are a set of Rules they have to be uniformly applied to persons similarly situated : *Dr. G. Sadasivan Nair* v. *Cochin University of Science And Technology represented by its Registrar*[9]

39. The State Government for its part has no quarrel with what the Petitioners seek. It does not oppose this Petition.

40. But the Affidavit in Reply on behalf of the 1st Respondent in paragraph 3 makes a curious submission that if granted these reliefs, it would place an additional financial burden on the State Government. We confess we are entirely unable to understand what this is supposed to mean, if anything. If that was so, the State Government ought not to have accepted the Shetty Commission recommendations. The High Court ought not to have amended the Service Rules. This submission is hardly an answer to the selective conferment of benefits on identified individuals and the denial of those very benefits to other officers identically placed. The submission is singularly ill-advised. We would have expected a far more circumspect affidavit in response, especially from a Judicial Officer. We are dealing with officers of our own Court here. Above all we are dealing with human beings. It is no answer to tell us that a particular financial benefit that is supposed to be made applicable cannot be given because it places an additional financial burden on the State Government, especially when the State Government does not say this. The argument was repelled in the *Adeline Rodrigues case*, and we do not see how the 1st Respondent's Affidavit in Reply can even attempt to raise it now. This is not a Petition that seeks the exercise of a discretion or the conferment of a discretionary benefit. It is a Petition that seeks the enforcement of a legally enforceable right.

41. The other disturbing factor is that these representations have been pending for four years. That in itself is a reason not to delay the matter and not to adjourn it for the preparation of any additional guidelines. The submission on behalf of the 1st Respondent, correctly put by Mr. Nerlekar, is that the guidelines applicable to the Original Side (Exhibit "D") can be made applicable to Appellate Side officers. His only instructions are to state that this can perhaps be done on the administrative side by adopting suitable guidelines. But that means a further adjournment of the Petition and it does not explain why if this is all that was required and if matters were so trivial, this was not done since 2019. Delay in dealing with a representation fairly made and placed is itself a sufficient ground for the exercise of the extraordinary jurisdiction of this Court under Article 226 of the Construction of India. Administrative delay for whatever reason can and does result often in severe prejudice to individuals seeking enforcement of their legal

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Page 19 Tuesday, October 13, 2026
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rights. No Writ Court will blind itself to the sheer injustice caused by the passage of time without redress. There is no material in the 1st Respondent's Affidavit in Reply to show that the matter was taken up on the administrative side and was deferred. This is why we do not accept the request for an adjournment. The Petition itself is not new. It was filed on 6th May 2022 and that, as we noted, was after a four-year gap when the Petitioners, perhaps having regard to the institution they once served or do serve, made one representation after the other.

42. We see no impediment to the grant of relief. We make Rule absolute but in the following terms.

43. The guidelines at Exhibit "D" at page 40 of the Petition, viz., the guidelines to be followed to grant Selection Grade and Super Time Scale to officers on the Original Side of the High Court are to be made applicable to all eligible officers on the Appellate Side of the High Court. As regards the eligible officers on the two sides, there will be parity in these matters. This will cover prayer clause (a).

44. As regards prayer clause (a)(i), which is the case of the 1st Petitioner, the benefit of the Selection Grade must be granted to him. This is an inevitable and inescapable consequence of the first relief. If the guidelines at Exhibit "D" are made applicable to Appellate Side officers, then the Selection Grade benefit must be made applicable to the 1st Petitioner.

45. As regards the benefits of ACP-II and its applicability to Petitioners Nos. 2 to 8, the prayer is that ACP-II must necessarily extend to eligible Appellate and Original Side officers of this Court. That is again a logical consequence of the first relief that we have granted, to bring parity between the pay scales and benefits of officers on the two sides of the High Court.

46. We are further fortified in this view by the Government Resolution dated 31st March 2018, extracted above. Where ACP-I has been granted to some officers of this Court, we see no reason why ACP-I or ACP-II should be denied to any officers on either the Original or the Appellate Side of this Court. Obviously for all three, i.e., Selection Grade, Super Time Scale, ACP-I and ACP-II the necessary eligibility conditions have to be met. Our judgment today should not be understood as waiving the applicability of any of those conditions. For ACP-II, where the requirement is of completion of a certain period of service, that must necessarily continue — but it must be consistent with the Judicial Services Rules, as noted above. The necessary correlation is already established, as we have seen, and determines whether an officer is conferred equivalence of an entry-level District Judge, or, for example, is designated a Deputy Registrar, entitled to

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234

ACP-I. The guidelines on the administrative side cannot alter what is set by law. It is true that there are certain physical infrastructure perquisites available to district judges after a certain level — the allotment of a vehicle, for instance. We do not suggest that High Court employees should stand entitled to such perquisites. But that allotment comes with an allowance expressed in monetary terms, and that parity is therefore to be maintained.

47. Lastly, we clarify that we have not by this order accepted any plea for a retrospective filling of *posts*. No person can demand a post with retrospective effect; that would unseat those who have, in the meantime, come to occupy the posts. The salary and pay revisions made *pay scales* applicable. If there is, therefore, a mention of a post it is only a descriptor and for showing the corresponding connection for the purposes of pay scales, benefits, ACP, etc. The judgment relates only to the applicability of pay scales and benefits to officers working in the High Court.

48. The Writ Petition is disposed of in these terms with no order as to costs.

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[1] (1992) 1 SCC 119.

[2] (1993) 4 SCC 288.

[3] (2002) 4 SCC 247.

[4] (2013) 6 Mah LJ 14.

[5] Writ Petition No. 1712 of 2016.

[6] Notification dated 25th August 2008, published on 27th August 2008.

[7] (2004) 6 SCC 218.

[8] (1983) 1 SCC 305 : (1983) 2 SCR 165.

[9] (2022) 4 SCC 404.

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EXH-T'
235

2024 DGLS(Bom.) 914
(BOMBAY HIGH COURT)

Equivalent Citations :-

Before :- G.S. Patel : K.R. Khata :JJ

Charushila M.Vaidya and Others
Versus
State of Maharashtra and Others

Case No. : Writ Petition No. 4759 of 2022
Date of Decision : 29-02-2024

Acts Referred :

Constitution of India,Art.14
Constitution of India,Art.226
Constitution of India,Art.229
Constitution of India,Art.32

Advocates Appeared :

Anil Anturkar, Senior Advocate, S.C. Naidu, Manoj Gujar, T.R. Yadav, Pradeep Kumar Abhishek Ingale i/b Sudeshkumar Naidu and Divya Yajurvedi, Advocates For the Appellant Rafique Dada, Senior Advocate, Rahul Nerlekar, Manish Upadhye and Himanshu Takke AGPs Advocates For the Respondents

ORAL JUDGMENT

Per G.S. Patel, J.

1. Rule, returnable forthwith.

2. We propose to dispose of this Petition, having heard Mr. Anturkar for the Petitioners and Mr. Dada for the 5th and 6th Respondents, not with an order in terms of the relief sought but rather with a moulded relief in the form of a direction to reconsider the matter to which we will presently advert. Having said that, we do not believe that merely asking for a reconsideration is

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sufficient or will serve the purpose on either side. We believe it is necessary, therefore to summarize briefly the contentions and to set out why we believe a reconsideration is necessary .

3. Before we proceed to that, we note the reason why we do not think it is possible in the present circumstances for us to fully grant the relief that is sought. Prayers (a), (b) and (c) of the Petition at pages is 58 to 60 read as follows:

"a) This Hon'ble Court in exercising of its extra ordinary jurisdiction under Article 226 call for the records and proceedings from the office of the Respondent No.4 in relation to the Representations dated 26th August 2016 and 9th April 2018 and thereafter be pleased to hold, decide and declare that three posts viz. Associates (OS), Senior Private Secretaries to the Hon'ble Judges and one post at Appellate Side i.e. post of Deputy Registrar are at par and entitled to identical pay scale with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable with effect from 1st October 2007;

b) This Hon'ble Court in its extra ordinary jurisdiction under Article 226 be pleased to issue a Writ of Mandamus or a writ in the nature of mandamus commanding the Respondent Nos. 1 to 3 to extend to the post of Associates (O.S.) same pay scale with effect from 1st October 2007, with admissible allowances and perquisites including retirement benefits and service conditions as may be revised and made applicable to the post of Senior Private Secretaries to the Hon'ble Judges and Master and Assistant Prothonotary (Adm.) on Original Side as well one post at Appellate Side i.e. post of Deputy Registrar;

c) This Hon'ble Court in its extra ordinary jurisdiction under Article 226 be pleased to issue a Writ of Mandamus or a writ in the nature of mandamus commanding the Respondent Nos. 4 to 6 to submit to the Hon'ble Governor a proposal for amendment to the Bombay High Court Service Rules, 2002 incorporating the pay scale of Civil Judge Senior Division (ACP-I) i.e. Rs. 43,690-1080-49,090- 1230-56. Senior Private Secretaries to the Hon'ble Judges as well Deputy Registrars at Appellate Side;"

4. The difficulty with this is that however the prayers may be worded, the very real risk to a Writ Court is succumbing to a temptation to effectively legislate, i.e., to frame a substitute rule in place of the impugned rule. That is not something we are prepared to do.

5. We must also have regard to the two distinct constitutional provisions namely the Powers of the High Court under Article 226, and the wording of Article 229 of the Constitution of India.

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"226. Power of High Courts to issue certain writs.-

(1) Notwithstanding anything in article 32, every High Court shall have power, throughout the territories in relation to which it exercises jurisdiction, to issue to any person or authority, including in appropriate cases, any Government, within those territories directions, orders or writs, including writs in the nature of *habeas corpus, mandamus,* prohibition, *quo warranto* and *certiorari,* or any of them, for the enforcement of any of the rights conferred by Part III and for any other purpose.

(2) The power conferred by clause (1) to issue directions, orders or writs to any Government authority or person may also be exercised by any High Court exercising jurisdiction in relation to the territories within which the cause of action, wholly or in part, arises for the exercise of such power, notwithstanding that the seat of such Government or authority or the residence of such person is not within those territories.

(3) Where any party against whom an interim order, whether by way of injunction or stay or in any other manner, is made on, or in any proceedings relating to, a petition under clause (1), without-

(a) furnishing to such party copies of such petition and all documents in support of the plea for such interim order; and

(b) giving such party an opportunity of being heard, makes an application to the High Court for the vacation of such order and furnishes a copy of such application to the party in whose favour such order has been made or the counsel of such party, the High Court shall dispose of the application within a period of two weeks from the date on which it is received or from the date on which the copy of such application is so furnished, whichever is later, or where the High Court is closed on the last day of that period, before the expiry of the next day afterwards on which the High Court is open; and if the application is not so disposed of, the interim order shall, on the expiry of that period, or, as the case may be, the expiry of the said next day, stand vacated.

(4) The power conferred on a High Court by this article shall not be in derogation of the power conferred on the Supreme Court by clause (2) of article 32.

229. Officers and servants and the expenses of High Courts.-

NOTARY GOVT. OF INDIA

238

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(1) Appointments of officers and servants of a High Court shall be made by the Chief Justice of the Court or such other Judge or officer of the Court as he may direct:

Provided that the Governor of the State may by rule require that in such cases as may be specified in the rule no person not already attached to the Court shall be appointed to any office connected with the Court save after consultation with the State Public Service Commission.

(2) Subject to the provisions of any law made by the Legislature of the State, the conditions of service of officers and servants of a High Court shall be such as may be prescribed by rules made by the Chief Justice of the Court or by some other Judge or officer of the Court authorised by the Chief Justice to make rules for the purpose:

Provided that the rules made under this clause shall, so far as they relate to salaries, allowances, leave or pensions, require the approval of the Governor of the State.

(3) The administrative expenses of a High Court, including all salaries, allowances and pensions payable to or in respect of the officers and servants of the Court, shall be charged upon the Consolidated Fund of the State, and any fees or other moneys taken by the Court shall form part of that Fund."

6. The 18 Petitioners are all Class-I Gazetted Officers who work on the establishment of the Original Side of the High Court as Associates. The challenge in the Petition is that these persons have been denied various benefits including pay and career progression although these were previously assured to the Petitioners (or to that class) as long ago as 18th June 2009. That was the time when substantially these grievances of these petitioners were taken up by a Committee of Justice VC Daga and Justice VM Kanade as they then were. A copy of this Committee's recommendations has been provided by the Registry. It is in the compilation. It inter alia notes the question of disparities in incomes, the provisions of Article 229 of the Constitution of India and at page 8 of this Report is the recommendation. It says that officers, namely First Assistant to Official Assignee, Second Assistant to Court Receiver, Second Assistant Master and Third Assistant Master and Associates be upgraded in their pay scales from Rs 10,000-325-15,200 to Rs 12,000-375-16,500 by placing this recommendation before the Hon'ble the Chief Justice under Article 229 of the Constitution of India and by directing the Principal Secretary Law and Judiciary to move the Government to a Court approval.

7. Mr. Anturkar for the Petitioners submits that the conclusions of this report compared the post of Associate on the one hand with the post of Private Secretaries and the post of eight Senior

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Private Secretaries on the other. The report clearly indicated that in the view of that Committee, the work of an Associate carries greater responsibility, work volumes and more onerous duties as compared to the eight Senior Private Secretaries. It also says that before upgrading the pay scales of the eight Senior Private Secretaries, the pay scales of those Senior Private Secretaries and the Associates were the same. Under the High Court (OS) Service Rules 2002, Private Secretaries and Senior Private Secretaries were clearly defined as being the feeder posts for the promotional posts of Associates under Rule 14(i).

8. Pausing for a moment, this encapsulates Mr. Anturkar's submission that as a result of what is impugned in the present Writ Petition, those in the feeder post enjoyed greater benefits than those in the promotional posts. He describes this, in his typically mild manner, as a wholly anomalous situation. But he does point out that the consequences are indeed grave including for the proper management and administration of the High Court itself.

9. The submission is not necessarily that one be ranked above the other but that the promotional post could not under any circumstances have been positioned less than at parity with the feeder post. He points out that the two Judge Committee had eliminated the disparity by drawing precisely the comparison of the post of Associates with the post of eight Senior Private Secretaries.

10. Even if the Private Secretaries/Senior Private Secretaries are no longer the feeder cadre for Associates, yet the distinction made by the Justice Daga-Justice Kanade between their respective job descriptions and responsibilities remains. No one has ever argued, Mr. Anturkar says, and we think rightly because it cannot be so argued, that since 2009 the private secretaries/senior private secretaries now have duties far more onerous than that of Associates. Therefore, Mr. Anturkar submits, at the very least parity ought to be maintained.

11. Viewed from any perspective, therefore, the Associates could not be positioned at a lower pay scale/grade than senior private secretaries. We believe this to be correct.

12. Indeed, thereafter, these recommendations were acted upon and the necessary orders were passed, recommendations made, accepted and implemented following Article 229 of the Constitution of India. Consequently, Associates were given the same pay scale as given to Senior Private Secretaries with a retrospective effect from the year 2005.

13. This continued until 2021. It is in that year, Mr. Anturkar says, that a disparity crept in between the post of Associates and Senior Private Secretaries and this crept in possibly, inadvertently or through oversight, and resulted in a Government Resolution("GR") [illegible]

240

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2021.

14. This is the canvas of the Petition. At this stage, it is not necessary to consider any more detailed challenge, whether under Article 14 of the Constitution of India otherwise. Mr. Dada points out that under the Service Rules, Rule 3 provides for the constitution of classes and categories of the service. Entry 15A is Senior Private Secretary to Judges. Entry 20 is Associates. Then Rules 3(b) and (b)(i) provide for pay scales at various levels. In Rule (b)(iv) it is provided that those posts at Sr No 16 to 20 namely, Second Assistant Master, First Assistant to Official Assignee, Second Assistant to Court Receiver, Third Assistant Master and Associate shall carry the pay scale applicable to a Civil Judge Junior Division, ACP-1, with the pay scale that is mentioned and admissible allowances.

15. But as far as the Private Secretaries are concerned, they are covered by a High Court Appellate Side Rule 3(b)(2) which puts them in the pay scale of a *Senior* Civil Judge ACP-1. Meanwhile, Rule 8-a of the Original Side Service Rules says that Senior Private Secretaries may be appointed by promotion from those Private Secretaries who have served as such for not less than two years provided they hold a university degree, preference being given to holders of a degree in law.

16. Most importantly, Mr. Anturkar submits, there is no material at all before us to indicate that anyone has ever suggested that suddenly in 2021 it was found that the work and responsibilities of Private Secretaries and Senior Private Secretaries was more than that of Associates. That is untrue even today. Since 2009, that position is not shown to have been altered. Abruptly, however, those who were discerned to have responsibilities less than Associates were in 2021 advanced to the Senior Civil Judge level, but Associates, who responsibilities were and continue to be more, were left languishing at the level of a Civil Judge, Junior Division.

17. This, then, is the disparity of which Mr. Anturkar speaks. This is the disconnect that must be rectified, in his submission.

18. Mr. Dada for the High Court points out that the 19th April 2022 GR was based on a recommendation and a communication from the High Court. This clearly applied the pay scale of a Civil Judge *Junior* Division (ACP-1) to Associates as can be seen from entry 5 in the table.

19. Mr. Dada submits that this GR did not come out of context. He points out that draft Rules were in fact placed before a Rules Committee and that having been approved then followed the usual process. Mr. Dada states on instructions that he believes that the recommendations

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of the Justice VC Daga and Justice VM Kanade Committee were or at least must have been placed before the later Committee in 2020-2021. Mr. Dada points out that the rule in question passed through at least three sets of committees before the final GR was issued.

20. Whether or not that is so, it is clear that there is no detailed assessment of why they should now be a departure from the recommendations of Justice VC Daga and Justice VM Kanade Committee Report especially when that is of vintage of 2009 and was acted upon and implemented till 2021. We do not mean to suggest that these matters are forever written in stone or that they can never be a change from a position previously held. But once a recommendation has been made, accepted, acted upon, implemented and has held the field for a long period of 11 or 12 years, it would be exceedingly strange if this was to be entirely reversed and the earlier disparity was to be brought back without any explanation at all or sufficient reasons for the departure at all. Indeed, nowhere on record are we able to find any justification for a reversal of the disparity-dispelling recommendations of the Justice VC Daga and Justice VM Kanade Committee and which, as we noted were fully implemented without complaint until 2021.

21. Mr. Dada is correct in saying that it is not for a Writ Court to specify what the Rule should be, let alone frame it. We are endeavouring nothing of that kind. Even if we were to make rule absolute, the maximum that would happen would be that it would revert to the position as it stood before the impugned GR. There is no question of us framing any special rule.

22. But having regard to these circumstances and the administrative factors that Mr. Dada has pointed out, we believe a more prudent and wiser cause of action would be to dispose of the Petition by requiring a reconsideration of the GR and the underlying Rule and its amendment i.e., Rule 3 (b)(4) and the corresponding Rule on the Appellate Side Service Rules so that at least parity is maintained between the two sets of posts in question.

23. We should not be misunderstood to have expressed any opinion on the merits of the challenge that is before us. We have only summarized the rival contentions.

24. We now leave it to the Registry to take the necessary steps in accordance with the usual practices and protocols but we would only emphasize that the matter be given some priority and be dealt with some urgency. This is after all also a question of not only the morale of our staff but of reiterating that very popular phase where especially the High Court and especially with its own staff justice was not only be done but must be seen to be done.

25. In light of this, we would direct the Registry to place the matter before the Hon'ble

NOTARY GOVT. OF

242

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Justice for suitable direction within 10 days from today.

26. The Petition is disposed of in these terms. There will be no orders as to costs.

27. Mr. Dada submits that while Senior Private Secretaries may have been feeder posts for Associates at the time in 2009 at the time of Justice VC Daga and Justice VM Kanade Report, today is no longer a feeder post. But this argument to our mind perhaps raises more questions than it answers because that is not all that the Justice VC Daga and Justice VM Kanade Committee said. It did not rest merely on a hierarchical structure but looked at the nature of the duties and responsibilities and it can hardly be suggested today that the Private Secretaries or Senior Private Secretaries has greater responsibilities, duties or burdens than an Associate of this Court on the Original Side.

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EXH-U' 243

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 31073 GOVT. OF INDIA

D.S. NAKARA v. UNION OF INDIA

(1983) 1 Supreme Court Cases 305

(BEFORE Y.V. CHANDRACHUD, C.J. AND V.D. TULZAPURKAR, D.A. DESAI, O. CHINNAPPA REDDY AND BAHARUL ISLAM, JJ.)

D.S. NAKARA AND OTHERS .. Petitioners;

Versus

UNION OF INDIA .. Respondent.

Writ Petitions Nos. 5939-5941 of 1980†, decided on December 17, 1982

Labour and Services — Pension — Revision of non-contributory retirement pension scheme — All pensioners have equal right to receive the benefits of liberalised pension scheme — Pensioners form a class as a whole and cannot be micro-classified by an arbitrary, unprincipled and unreasonable eligibility criterion for the purpose of grant of revised pension — Criterion of date of enforcement of the revised scheme entitling benefits of the revision to those retiring after that date while depriving the benefits to those retiring prior to that date, held, violative of Article 14 — Such unconstitutional part can be severed from the otherwise constitutional provision by reading down the provision — Omitting the offending criterion will not make the scheme, having financial implications, retrospective in operation — The specified date is to be retained only for the purpose of recomputation of pension of those retired earlier to it — No arrears can be claimed by such pensioners — Government of India Notifications No. F-19(3)-EV-79, dated March 31, 1979 and No. B-40725/AG/PS4-C/1816/AD(Pension)/Services, dated September 28, 1979 — Central Services (Pension) Rules, 1972, Rule 34 — Constitution of India, Article 14

Labour and Services — Pension — Government servants have right to receive pension under statutory rules (Paras 20, 27, 29, 30 and 36)

Constitution of India — Article 13 — Reading down the provision — Does not amount to judicial legislation — An unconstitutional portion which is unrelated to the object sought to be achieved, can be severed and omitted from the otherwise constitutional provision by reading down process — Statute Law (Paras 49, 56 and 60)

Constitution of India — Article 13 — Severability, doctrine of — Need not only limit the scope of legislation — Can in effect enlarge the scope of the impugned measure (Para 60)

Constitution of India — Article 14 — Making of classification and further classification must be for a valid purpose — Over-classification may be hit by Article 14 (Para 9)

The Central Government servants on retirement from service are entitled to receive pension under the Central Civil Services (Pension) Rules, 1972. Under the earlier pension scheme the pension was related to the average emoluments during 36 months just preceding retirement. On May 25, 1979, the Government of India, Ministry of Finance issued Office Memorandum No. F-19(3)-EV-79 whereby the formula for computation of pension was liberalised but made it applicable to government servants who were in service on March 31, 1979 and retired from service on or after that specified

†Under Article 32 of the Constitution of India

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date. By the Memorandum of the Ministry of Defence No. B/40725/AG/PS4-C/1816/AD (Pension)/Services dated September 28, 1979, the liberalised pension formula introduced for the government servants governed by the 1972 Rules was extended to the Armed Forces personnel subject to limitations set out in the memorandum with a condition that the new rules of pension would be effective from April 1, 1979, and may be applicable to all service officers who become/became non-effective on or after that date. The liberalised scheme introduced a slab system for computation of pension, raised pension ceiling and provided for average emoluments with reference to last 10 months' service. Consequently, the pensioners who retired prior to the specified date had to earn pension on the average emoluments of 36 months' salary just preceding the date of retirement. Thus they suffered triple jeopardy viz. lower average emoluments, absence of slab system and lower ceiling. Being so aggrieved they filed the present writ petitions in Supreme Court contending that the memoranda were in violation of Article 14. Petitioners 1 and 2 are retired pensioners of the Central Government who retired prior to the specified date and petitioner 3 is a society registered under the Societies Registration Act, 1860, formed to ventilate the legitimate public problems and consistent with its objective it is espousing the cause of the pensioners all over the country. Allowing the petitions the Supreme Court

Held :

(1) Pension is neither a bounty not a matter of grace depending upon the sweet will of the employer, nor an ex gratia payment. It is a payment for the past service rendered. It is a social welfare measure rendering socio-economic justice to those who in the hey-day of their life ceaselessly toiled for the employer on an assurance that in their old age they would not be left in lurch. Pension as a retirement benefit is in consonance with and furtherance of the goals of the Constitution. The most practical raison d'etre for pension is the inability to provide for oneself due to old age. It creates a vested right and is governed by the statutory rules such as the Central Civil Services (Pension) Rules which are enacted in exercise of power conferred by Articles 309 and 148(5) of the Constitution.

(Paras 20, 27, 29, 31 and 36)

Deokinandan Prasad v. State of Bihar, (1971) 2 SCC 330 : 1971 Supp SCR 634 : AIR 1971 SC 1409 : (1971) 1 LLJ 557 ; State of Punjab v. Iqbal Singh, (1976) 2 SCC 1 : 1976 SCC (L&S) 172 : (1976) 3 SCR 360 : 1976 Lab IC 474 and Douge v. Board of Education, 302 US 74 : 83 L Ed 57, relied on

Gerald Rhodes : Public Sector Pensions, pp. 18-19 and Encyclopaedia Britannica, Vol. 17, p. 575, referred to

The expression 'pensioner' is generally understood in contradistinction to the one in service. Those who render service and retire on superannuation or any other mode of retirement and are in receipt of pension are comprehended in the expression 'pensioners'. They for the purpose of pension benefits form a homogeneous class, which cannot be divided by arbitrarily fixing an eligibility criterion unrelated to the purpose of revision of pension.

(Paras 8 and 42)

In the present case Article 14 is wholly violated inasmuch as the pension rules being statutory in character, the amended rules, since the specified date, accord differential and discriminatory treatment to equals in the matter of commutation of pension. It would have a traumatic effect on those who

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245

retired just before that date. This division which classified pensioners into two classes is artificial and arbitrary, is not based on any rational principle and whatever principle, if there be any, has not only no nexus to the objects sought to be achieved by liberalising the pension rules, but is counter-productive and runs counter to the whole gamut of the pension scheme. Further, there is not a single acceptable or persuasive reason for this division. Therefore, the classification does not stand the test of Article 14. (Paras 42 and 43)

D.R. Nim v. Union of India, (1967) 2 SCR 325 : AIR 1967 SC 1301 : (1967) 2 SCJ 347 : (1968) 1 LLJ 264 and Jaila Singh v. State of Rajasthan, (1976) 1 SCC 602 : 1975 Supp SCR 428 : AIR 1975 SC 1436, applied

Union of India v. Parameswaran Match Works, (1975) 1 SCC 305 : (1975) 2 SCR 573 : AIR 1974 SC 2349 and D.C. Gouse and Co. v. State of Kerala, (1980) 2 SCC 410 : (1980) 1 SCR 804 : AIR 1980 SC 271, explained and distinguished

Louisville Gas Co. v. Alabama Power Co., 240 US 30, 32 (1927), explained

[The Supreme Court's decision in Parameswaran Match Works case, is not an authority for the proposition that whenever a date is chosen, or an eligibility criterion which divides a class, the purpose of choice unrelated to the objects sought to be achieved must be accepted as valid.] (Para 56)

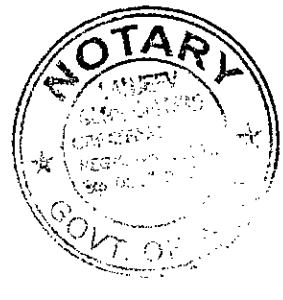
Date of retirement cannot form a valid criterion for classification, for if that be the criterion those who retire at the end of every month shall form a class by themselves. This is too microscopic a classification to be upheld for any valid purpose. (Para 9)

The pension scheme herein being non-contributory, extension of the same to those retired before the specified date will not affect the share available to others since there is no pension fund involved here. It is a statutory liability and the sum due is to be regularly budgeted for. (Paras 46, 45 and 63)

(2) If the event is certain but its occurrence at a point of time is considered wholly irrelevant and arbitrarily selected having no rationale for selecting it and having an undesirable effect of dividing a homogeneous class and of introducing the discrimination, the same can be easily severed and set aside. (Para 50)

The words "who were in service on March 31, 1979 and retiring from service on or after that date" are words of limitation introducing the mischief and are vulnerable as denying equality. Therefore, the impugned memoranda must be read down severing the objectionable portion which introduces an arbitrary fortuitous circumstance. The reading down would not render the liberalised pension scheme vague, unenforceable or unworkable; nor that would amount to legislation by the Court. By reading down the memoranda, the Court merely sets at naught the unconstitutional portion, retaining the constitutional portion. Parliament itself would not have hesitated to extend the benefit otherwise considered eminently just. (Paras 49, 50 and 58 to 62)

There is no principle that 'severance' limits the scope of legislation and can never enlarge it. The court can strike down an unconstitutional part of a legislative action which may have the tendency to enlarge the width and coverage of the measure. Whenever classification is held to be impermissible and the measure can be retained by removing the unconstitutional portion of classification, by striking down words of limitation, the resultant effect may be of enlarging the class. In such a situation, the court can strike down the words of limitation in an enactment. That is what is called reading down the measure. (Para 60)



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Page 4 Tuesday, October 13, 2026
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Jaila Singh v. State of Rajasthan, (1976) 1 SCC 602 : 1975 Supp SCR 428 : AIR 1975 SC 1436 and Randhir Singh v. Union of India, (1982) 1 SCC 618 : 1982 SCC (L&S) 119 : AIR 1982 SC 879: (1982) 1 LLJ 344 : 1982 Lab IC 806, relied on

It is wrong to suggest that by so reading down the memoranda and extending the benefit of the liberalised pension scheme as well to those retired earlier is to make it retroactive. It is not a new scheme but a upward revision of an existing benefit. Pension is a reward for past service and so revision of an existing benefit must stand on a different footing than a new retiral benefit. Of course any liberalisation would pro tanto be retroactive in the narrow sense of the term. Otherwise it is always prospective. Also a statute cannot be termed retroactive if a part of its requisites for its action is drawn from a time antecedent to its passing. (Para 46)

Craies on Statute Law, 6th Edn., p. 387, relied on

However, the specified date has to be retained without qualification only for the limited purpose to avoid payment of arrears which may impose heavy burden on the State. That would take care of the grievance of retrospectivity. Effective from the specified date future pension of earlier retired government servants can be computed afresh and paid on the analogy of fitments in revised pay scales becoming prospectively operative. No arrears are payable for the period prior to March 31, 1979. That removes the nefarious unconstitutional part and retains the beneficial portion.

(Paras 49, 50 and 60)

By removing the illegitimate classification the Court is not changing the date of retirement and imposing fresh commutation benefits. The date of retirement of each employee remains as it is. The average emoluments have to be worked out keeping in view the emoluments drawn by him before retirement but in accordance with the principles of the liberalised pension scheme. There is no question of fresh commutation of pension of the pensioners who retired prior to March 31, 1979 and have already availed of the benefit of commutation. It is not open to them to get that benefit at this late date because commutation has to be availed of within specified time limit from the date of actual retirement. Maybe some marginal retirees may earn the benefit. That is inevitable. (Paras 61 and 63)

In Notification No. E-19(3)-EV-79, dated March 31, 1979, the words :

> "that in respect of the government servants who were in service on March 31, 1979 and retiring from service on or after that date"

and in Notification No. B-40725/AG/PS4-C/1816/AD (Pension)/Services, dated September 28, 1979 the words :

> "the new rates of pension are effective from April 1, 1979 and will be applicable to all service officers who became/become non-effective on or after that date"

are unconstitutional and are struck down with this specification that the date mentioned therein will be relevant as being one from which the liberalised pension scheme becomes operative to all pensioners governed by 1972 Rules irrespective of the date of retirement. Omitting the unconstitutional part it is declared that all pensioners governed by the 1972 Rules and Army Pension Regulations shall be entitled to pension as computed under the liberalised pension scheme from the specified date, irrespective of the date of retirement. Arrears of pension prior to the specified date as per fresh computation is not admissible. (Para 65)

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Page 5 Tuesday, October 13, 2026
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247

Labour and Services — "Pension" — Meaning — Reasons for grant of — Words and Phrases

Pension is a term applied to periodic money payments to a person who retires at a certain age considered age of disability; payments usually continue for the rest of the natural life of the recipient. The quantum of pension is a certain percentage correlated to the average emoluments drawn during last certain years of service. Its payment is dependent upon an additional condition of impeccable behaviour even subsequent to retirement, that is, since the cessation of the contract of service. It can be reduced or withdrawn as a disciplinary measure. (Paras 27 and 31)

Broadly, the reason underlying the grant of pension are (i) as compensation to former members of the armed forces or their dependents for old age, disability, or death (usually from service causes), (ii) as old age retirement or disability benefits for civilian employees, and (iii) as social security payments for the aged, disabled, or deceased citizens made in accordance with the rules governing social service programmes of the country. (Para 27)

Constitution of India — Article 14 — Concept of equality in and test restated — Burden to justify the legislative/administrative action lies on the State

Held :

The basic principle which informs both Articles 14 and 16 is equality and inhibition against discrimination. Article 14 strikes at arbitrariness because any action that is arbitrary must necessarily involve negation of equality. Article 14 forbids class legislation but permits reasonable classification for the purpose of legislation which classification must satisfy the twin tests of classification being founded on an intelligible differentia which distinguishes persons or things that are grouped together from those that are left out of the group and that differentia must have a rational nexus to the object sought to be achieved by the statute in question. (Paras 13 to 15)

Maneka Gandhi v. Union of India, (1978) 1 SCC 248 : (1978) 2 SCR 621 : AIR 1978 SC 597; Ram Krishna Dalmia v. Justice S.R. Tendolkar, 1959 SCR 279 : AIR 1958 SC 538; In re Special Courts Bill, 1978, (1979) 1 SCC 380 : (1979) 2 SCR 476 : AIR 1979 SC 478; E.P. Royappa v. State of T.N., (1974) 4 SCC 3 : (1974) 2 SCR 348 : 1974 SCC (L&S) 165 : (1974) 1 LLJ 172; Ajay Hasia v. Khalid Mujib Sehravardi, (1981) 1 SCC 722 : 1981 SCC (L&S) 258 : (1981) 2 SCR 79 : (1981) 1 LLJ 103 and Air India v. Nergesh Meerza, (1981) 4 SCC 335 : 1981 SCC (L&S) 599 : (1982) 1 SCR 438 : 1981 UPSC 137 : AIR 1981 SC 1829, relied on

Legislative and executive action may accordingly be sustained if it satisfies the twin tests of reasonable classification and the rational principle correlated to the object sought to be achieved. The burden of proof lies on the State to affirmatively establish that these twin tests have been satisfied. The State must therefore not only establish the rational principle on which classification is founded but correlate it to the objects sought to be achieved. (Para 16)

Ramana Dayaram Shetty v. International Airport Authority of India, (1979) 3 SCC 489 : (1979) 3 SCR 1014 : AIR 1979 SC 1628 : (1979) 2 LLJ 217, relied on

Jurisprudence — Stare decisis — New legal concepts evolved in the changing socio-economic context cannot be struck down merely on ground of absence of precedents — Constitution of India, Article 141



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Page 6 Tuesday, October 13, 2026
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248

Held :

Socio-economic justice stems from the concept of social morality coupled with abhorrence for economic exploitation. And the advancing society converts in course of time moral or ethical code into enforceable legal formulations. Overemphasis on precedent furnishes an insurmountable road-block to the onward march towards the promised millennium. (Para 41)

Constitution of India — Article 32 — Standing — Public interest litigation — Registered society, a non-political, non-profit making and voluntary organisation, espousing cause of old infirm pensioners, has locus standi — Labour and Services

Held :

Any member of the public having sufficient interest can maintain an action for judicial redress for public injury arising from breach of public duty or from violation of some provision of the Constitution or the law and seek enforcement of such public duty and observance of such constitutional or legal provision. Third petitioner seeks to enforce rights that may be available to a large number of old infirm retirees. Therefore, its locus standi is unquestionable. (Para 64)

S.P. Gupta v. Union of India, 1981 Supp SCC 87, followed

Interpretation of Statutes — Constitutionality of legislative or administrative action should be examined in the context of the Preamble of the Constitution and the Directive Principles — Constitution of India, Preamble and Articles 38(1), 39(d), (e), 41 and 43 — Labour and Services — Pension

Labour and Services — Interpretation — Object of pension scheme should be liberally construed — Interpretation of Statutes — Liberal construction

Held :

Since the advent of the Constitution, the State action must be directed towards attaining the goals set out in Part IV of the Constitution. While interpreting or examining the constitutional validity of legislative/administrative action, the touchstone of Directive Principles of State Policy in the light of the Preamble will provide a reliable yardstick to hold one way or the other. The discernible purpose thus underlying pension scheme or a statute introducing the pension scheme must inform interpretative process and accordingly it should receive a liberal construction and the courts may not so interpret such statute as to render them inane. (Paras 32, 34 and 30)

Therefore, the interpretation must be in consonance with these principles and the constitutional goal of setting up a socialist State (Preamble of the Constitution) and the assurance in the Directive Principles of State Policy especially of security in old age at least to those who have rendered useful service during their active years. [Articles 38(1), 39(d) & (e), 41 and 43]. (Para 36)

Minerva Mills Ltd. v. Union of India, (1980) 3 SCC 625 : (1981) 1 SCR 206 : AIR 1980 SC 1789 and Randhir Singh v. Union of India, (1982) 1 SCC 618 : 1982 SCC (L&S) 119 : AIR 1982 SC 879 : (1982) 1 LLJ 344 : 1982 Lab IC 806, relied on

Statute Law — Retrospectivity — A statute does not become retroactive merely because a part of the requisites for its action is drawn from a time antecedent to its passing (Para 46)

Craies on Statute Law, 6th Edn., p. 387, relied on



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Page 7 Tuesday, October 13, 2026
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249

Constitution of India — Articles 14 and 13 — Severability, doctrine of — Application of — Court can remove the discriminatory portion and retain the beneficial portion **(Para 50)**

R-M/6052/CLU

Advocates who appeared in this case :

Anil B. Divan, Senior Advocate (Mrs Vineeta Sen Gupta and P.H. Parekh, Advocates, with him), for the Petitioners ;

L.N. Sinha, Attorney-General and M.M. Abdul Khader, Senior Advocate (N. Nettar and Miss A. Subashini, Advocates, with them), for the Union of India ;

G.L. Sanghi, Senior Advocate (Randhir Jain, Advocate, with him), for the Intervener ;

S.R. Srivastava, Advocate, for the Intervener ;

K.K. Gupta, Advocate, for the Intervener.

The Judgment of the Court was delivered by

DESAI, J.—With a slight variation to suit the context Woolesey's prayer : "had I served my God as reverently as I did my King, I would not have fallen on these days of penury" is chanted by petitioners in this group of petitions in the Shellian tune : 'I fall on the thorns of life I bleed'. Old age, ebbing mental and physical prowess, atrophy of both muscle and brain powers permeating these petitions, the petitioners in the fall of life yearn for equality of treatment which is being meted out to those who are soon going to join and swell their own ranks.

2. Do pensioners entitled to receive superannuation or retiring pension under Central Civil Services (Pension) Rules, 1972 ('1972 Rules', for short) form a class as a whole ? Is the date of retirement a relevant consideration for eligibility when a revised formula for computation of pension is ushered in and made effective from a specified date ? Would differential treatment to pensioners related to the date of retirement qua the revised formula for computation of pension attract Article 14 of the Constitution and the element of discrimination liable to be declared unconstitutional as being violative of Article 14 ? These and the related questions debated in this group of petitions call for an answer in the backdrop of a welfare State and bearing in mind that pension is a socio-economic justice measure providing relief when advancing age gradually but irrevocably impairs capacity to stand on one's own feet.

3. Factual matrix has *little* relevance to the issues raised and canvassed at the hearing. Petitioners 1 and 2 are retired pensioners of the Central Government, the first being a civil servant and the second being a member of the service personnel of the Armed Forces. The 3rd petitioner is a society registered under the Societies Registration Act, 1860, formed to ventilate the legitimate public problems

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Page 8 Tuesday, October 13, 2026
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250

and consistent with its objective it is espousing the cause of the pensioners all over the country. Its locus standi is in question but that is a different matter. The 1st petitioner retired in 1972 and on computation, his pension worked out at Rs 675 p.m. and along with the dearness relief granted from time to time, at the relevant time he was in receipt of monthly pension of Rs 935. The 2nd petitioner retired at or about that time and at the relevant time was in receipt of a pension plus dearness relief of Rs 981 p.m. The Union of India has been revising and liberalising the pension rules from time to time. Some landmark changes may be noticed.

4. The First Central Pay Commission (1946-47) recommended that the age of retirement in future should be uniformly 58 years for all services and the scale of pension should be 1/80 of the emoluments for each year of service, subject to a limit of 35/80 with a ceiling of Rs 8000 per year for 35 years of service, which the Government of India while accepting the recommendation raised to Rs 8100 per year which would earn a monthly pension of Rs 675 at the maximum. The Second Central Pay Commission (1957-58) reaffirmed that the age of superannuation should be 58 years for all classes of public servants but did not recommend any increase in the non-contributory retirement benefits and recommended that if in future any improvement is to be made, it was the considered view of the Commission that these benefits should be on a contributory basis. The Administrative Reforms Commission ('ARC', for short) set up by the Government of India in 1969 took note of the fact that the cost of living has shot up and correspondingly the possibility of savings has gone down and consequently the drop in wages on retirement is in reality much steeper than what the quantum of pension would indicate, and accordingly the ARC recommended that the quantum of pension admissible may be raised to 3/6 of the emoluments of the last three years of service as against the existing 3/8 and the ceiling should be raised from Rs 675 p.m. to Rs 1000 p.m. Before the Government could take its decision on the recommendations of the ARC, the Third Central Pay Commission was set up. One of the terms of reference of the Third Pay Commission was 'death-cum-retirement benefits of Central Government employees'. The Third Pay Commission did not examine the question of relief to pensioners because in its view unless the terms of reference were suitably amended it would not be within their jurisdiction to examine this question and on a reference by them, the Government of India decided not to amend the terms of reference. With regard to the future pensioners the Third Pay Commission while reiterating that the age of superannuation should continue to be 58 years further recommended that no change in the existing formula for computing pension is considered necessary. The only important recommenda

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Page 9 Tuesday, October 13, 2026
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251

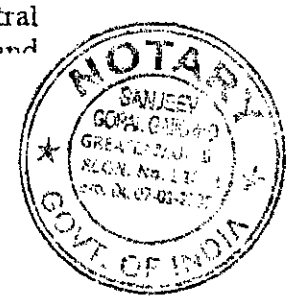
tion worth noticing is that the Commission recommended that the existing ceiling of maximum pension should be raised from Rs 675 to Rs 1000 p.m. and the maximum of the gratuity should be raised from Rs 24,000 to Rs 30,000.

5. On May 25, 1979, Government of India, Ministry of Finance, issued Office Memorandum No. F-19(3)-EV-79 whereby the formula for computation of pension was liberalised but made it applicable to government servants who were in service on March 31, 1979 and retire from service on or after that date ('specified date', for short). The formula introduced a slab system for computation of pension. This liberalised pension formula was applicable to employees governed by the 1972 Rules retiring on or after the specified date. The pension for the service personnel which will include Army, Navy and Air Force staff is governed by the relevant regulations. By the Memorandum of the Ministry of Defence bearing No. B/40725/AG/PS4-C/1816/AD (Pension)/Services dated September 28, 1979, the liberalised pension formula introduced for the government servants governed by the 1972 Rules was extended to the Armed Forces personnel subject to limitations set out in the memorandum with a condition that the new rules of pension would be effective from April 1, 1979, and may be applicable to all service officers who become/became non-effective on or after that date (for short 'specified date').

6. The chronology of events herein narrated would bring to surface the contentions raised in these petitions. The liberalised pension formula shall be applicable prospectively to those who retired on or after March 31, 1979 in case of government servants covered by 1972 Rules and in respect of defence personnel those who became/become non-effective on or after April 1, 1979. Consequently those who retired prior to the specified date would not be entitled to the benefits of the liberalised pension formula.

7. Petitioners accordingly contend that this Court may consider the raison d'etre for payment of pension. If the pension is paid for past satisfactory service rendered, and to avoid destitution in old age as well as a social welfare or socio-economic justice measure, the differential treatment for those retiring prior to a certain date and those retiring subsequently, the choice of the date being wholly arbitrary, would be according differential treatment to pensioners who form a class irrespective of the date of retirement and, therefore, would be violative of Article 14. It was also contended that classification based on fortuitous circumstance of retirement before or subsequent to a date, fixing of which is not shown to be related to any rational principle, would be equally violative of Article 14.

8. Primary contention is that the pensioners of the Central Government form a class for purpose of pensionary benefits and



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Page 10 Tuesday, October 13, 2026
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252

there could not be mini-classification within the class designated as pensioners. The expression 'pensioner' is generally understood in contradistinction to the one in service. Government servants in service, in other words, those who have not retired, are entitled to salary and other allowances. Those who retire and are designated as 'pensioners' are entitled to receive pension under the relevant rules. Therefore, this would clearly indicate that those who render service and retire on superannuation or any other mode of retirement and are in receipt of pension are comprehended in the expression 'pensioners'.

9. Is this class of pensioners further divisible for the purpose of 'entitlement' and 'payment' of pension into those who retired by certain date and those who retired after that date ? If date of retirement can be accepted as a valid criterion for classification, on retirement each individual government servant would form a class by himself because the date of retirement of each is correlated to his birth date and on attaining a certain age he had to retire. It is only after the recommendations of the Third Central Pay Commission were accepted by the Government of India that the retirement dates have been specified to be 12 in number being last day of each month in which the birth date of the individual government servant happens to fall. In other words, all government servants who retire correlated to birth date on attaining the age of superannuation in a given month shall not retire on that date but shall retire on the last day of the month. Now, if date of retirement is a valid criterion for classification, those who retire at the end of every month shall form a class by themselves. This is too microscopic a classification to be upheld for any valid purpose. Is it permissible or is it violative of Article 14 ?

10. The scope, content and meaning of Article 14 of the Constitution has been the subject-matter of intensive examination by this Court in a catena of decisions. It would, therefore, be merely adding to the length of this judgment to recapitulate all those decisions and it is better to avoid that exercise save and except referring to the latest decision on the subject in *Maneka Gandhi* v. *Union of India*[1] from which the following observation may be extracted : (SCC pp. 283-84, para 7)

> [W]hat is the content and reach of the great equalising principle enunciated in this article ? There can be no doubt that it is a founding faith of the Constitution. It is indeed the pillar on which rests securely the foundation of our democratic republic. And, therefore, it must not be subjected to a narrow, pedantic or lexicographic approach. No attempt should be made to

1. (1978) 2 SCR 621 : (1978) 1 SCC 248 : AIR 1978 SC 597

NOTARY GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 11 Tuesday, October 13, 2026
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253

truncate its all-embracing scope and meaning, for to do so would be to violate its activist magnitude. Equality is a dynamic concept with many aspects and dimensions and it cannot be imprisoned within traditional and doctrinaire limits.... Article 14 strikes at arbitrariness in State action and ensures fairness and equality of treatment. The principle of reasonableness, which legally as well as philosophically, is an essential element of equality or non-arbitrariness pervades Article 14 like a brooding omnipresence....

11. The decisions clearly lay down that though Article 14 forbids class legislation, it does not forbid reasonable classification for the purpose of legislation. In order, however, to pass the test of permissible classification, two conditions must be fulfilled, viz., (i) that the classification must be founded on an intelligible differentia which distinguishes persons or things that are grouped together from those that are left out of the group; and (ii) that that differentia must have a rational relation to the objects sought to be achieved by the statute in question (see *Ram Krishna Dalmia* v. *Justice S.R. Tendolkar*[2]). The classification may be founded on differential basis accordnig to objects sought to be achieved but what is implicit in it is that there ought to be a nexus i.e. causal connection between the basis of classification and object of the statute under consideration. It is equally well settled by the decisions of this Court that Article 14 condemns discrimination not only by a substantive law but also by a law of procedure.

12. After an exhaustive review of almost all decisions bearing on the question of Article 14, this Court speaking through Chandrachud, C.J. in *In re Special Courts Bill,* 1978[3] restated the settled propositions which emerged from the judgments of this Court undoubtedly insofar as they were relevant to the decision on the points arising for consideration in that matter. Four of them are apt and relevant for the present purpose and may be extracted. They are: (SCC pp. 424-25, para 72)

* * *

(3) The constitutional command to the State to afford equal protection of its laws sets a goal not attainable by the invention and application of a precise formula. Therefore, classification need not be constituted by an exact or scientific exclusion or inclusion of persons or things. The courts should not insist on delusive exactness or apply doctrinaire tests for determining the validity of classification in any

2. 1959 SCR 279, 296 : AIR 1958 SC 538 : 1959 SCJ 147
3. (1979) 2 SCR 476, 534 : (1979) 1 SCC 380 : AIR 1979 SC 478

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Page 12 Tuesday, October 13, 2026
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254

given case. Classification is justified if it is not palpably arbitrary.

(4) The principle underlying the guarantee of Article 14 is not that the same rules of law should be applicable to all persons within the Indian territory or that the same remedies should be made available to them irrespective of differences of circumstances. It only means that all persons similarly circumstanced shall be treated alike both in privileges conferred and liabilities imposed. Equal laws would have to be applied to all in the same situation, and there should be no discrimination between one person and another if as regards the subject-matter of the legislation their position is substantially the same.

* * *

(6) The law can make and set apart the classes according to the needs and exigencies of the society and as suggested by experience. It can recognise even degree of evil, but the classification should never be arbitrary, artificial or evasive.

(7) The classification must not be arbitrary but must be rational, that is to say, it must not only be based on some qualities or characteristics which are to be found in all the persons grouped together and not in others who are left out but those qualities or characteristics must have a reasonable relation to the object of the legislation. In order to pass the test, two conditions must be fulfilled, namely, (1) that the classification must be founded on an intelligible differentia which distinguishes those that are grouped together from others and (2) that that differentia must have a rational relation to the object sought to be achieved by the Act.

* * *

13. The other facet of Article 14 which must be remembered is that it eschews arbitrariness in any form. Article 14 has, therefore, not to be held identical with the doctrine of classification. As was noticed in *Maneka Gandhi case*[1] in the earliest stages of evolution of the constitutional law, Article 14 came to be identified with the doctrine of classification because the view taken was that Article 14 forbids discrimination and there will be no discrimination where the classification making the differentia fulfils the aforementioned two conditions. However, in *E.P. Royappa* v. *State of T.N.*[4], it was held that the basic principle which informs both Article 14 and

4. (1974) 2 SCR 348 : (1974) 4 SCC 3 : 1974 SCC (L&S) 165 : AIR 1974 SC 555 : (1974) 1 LLJ 172

NOTARY GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 13 Tuesday, October 13, 2026
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255

16 is equality and inhibition against discrimination. This Court further observed as under : (SCC p. 38, para 85)

> From a positivistic point of view, equality is antithetic to arbitrariness. In fact equality and arbitrariness are sworn enemies ; one belongs to the rule of law in a republic while the other, to the whim and caprice of an absolute monarch. Where an act is arbitrary, it is implicit in it that it is unequal both according to political logic and constitutional law and is therefore violative of Article 14, and if it affects any matter relating to public employment, it is also violative of Article 16. Articles 14 and 16 strike at arbitrariness in State action and ensure fairness and equality of treatment.

14. Justice Iyer has in his inimitable style dissected Article 14 in *Maneka Gandhi case*[4] as under at SCR p. 728 : (SCC p. 342, para 94)

> That article has a pervasive processual potency and versatile quality, egalitarian in its soul and allergic to discriminatory diktats. Equality is the antithesis of arbitrariness and ex cathedra ipse dixit is the ally of demagogic authoritarianism. Only knight-errants of 'executive excesses' — if we may use current cliche — can fall in love with the Dame of despotism, legislative or administrative. If this Court gives in here it gives up the ghost. And so it is that I insist on the dynamics of limitations on fundamental freedoms as implying the rule of law : Be you ever so high, the law is above you.[5]

Affirming and explaining this view, the Constitution Bench in *Ajay Hasia* v. *Khalid Mujib Sehravardi*[6] held that it must, therefore, now be taken to be well settled that what Article 14 strikes at is arbitrariness because any action that is arbitrary must necessarily involve negation of equality. The Court made it explicit that where an act is arbitrary it is implicit in it that it is unequal both according to political logic and constitutional law and is, therefore, violative of Article 14. After a review of large number of decisions bearing on the subject, in *Air India* v. *Nergesh Meerza*[6] the Court formulated propositions emerging from an analysis and examination of earlier decisions. One such proposition held well established is that Article 14 is certainly attracted where equals are treated differently without any reasonable basis.

15. Thus the fundamental principle is that Article 14 forbids

5. (1981) 2 SCR 79 : (1981) 1 SCC 722 : 1981 SCC (L&S) 258 : (1981) 1 LLJ 103
6. (1982) 1 SCR 438 : (1981) 4 SCC 335 : 1981 SCC (L&S) 599 : 1981 UPSC 137 : AIR 1981 SC 1829 : (1981) 2 LLJ 314

NOTARY SANJEEV GOPAL GARWAD GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 14 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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256

class legislation but permits reasonable classification for the purpose of legislation which classification must satisfy the twin tests of classification being founded on an intelligible differentia which distinguishes persons or things that are grouped together from those that are left out of the group and that differentia must have a rational nexus to the object sought to be achieved by the statute in question.

16. As a corollary to this well established proposition, the next question is, on whom the burden lies to affirmatively establish the rational principle on which the classification is founded correlated to the object sought to be achieved ? The thrust of Article 14 is that the citizen is entitled to equality before law and equal protection of laws. In the very nature of things the society being composed of unequals a welfare State will have to strive by both executive and legislative action to help the less fortunate in the society to ameliorate their condition so that the social and economic inequality in the society may be bridged. This would necessitate a legislation applicable to a group of citizens otherwise unequal and amelioration of whose lot is the object of State affirmative action. In the absence of doctrine of classification such legislation is likely to flounder on the bed rock of equality enshrined in Article 14. The Court realistically appraising the social stratification and economic inequality and keeping in view the guidelines on which the State action must move as constitutionally laid down in Part IV of the Constitution, evolved the doctrine of classification. The doctrine was evolved to sustain a legislation or State action designed to help weaker sections of the society or some such segments of the society in need of succour. Legislative and executive action may accordingly be sustained if it satisfies the twin tests of reasonable classification and the rational principle correlated to the object sought to be achieved. The State, therefore, would have to affirmatively satisfy the Court that the twin tests have been satisfied. It can only be satisfied if the State establishes not only the rational principle on which classification is founded but correlate it to the objects sought to be achieved. This approach is noticed in *Ramana Dayaram Shetty* v. *International Airport Authority of India*[7] when at SCR page 1034 (SCC p. 506), the Court observed that a discriminatory action of the Government is liable to be struck down, unless it can be shown by the Government that the departure was not arbitrary, but was based on some valid principle which in itself was not irrational, unreasonable or discriminatory.

17. The basic contention as hereinbefore noticed is that the pensioners for the purpose of receiving pension form a class and there is no criterion on which classification of pensioners retiring prior to

7. (1979) 3 SCR 1014, 1034 : (1979) 3 SCC 489, 506 : AIR 1979 SC 1628 : (1979) 2 LLJ 217

NOTARY GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 15 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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257

specified date and retiring subsequent to that date can provide a rational principle correlated to object, viz., object underlying payment of pensions. In reply to this contention set out in para 19 of the petition, Mr S.N. Mathur, Director, Ministry of Finance in para 17 of his affidavit-in-opposition on behalf of the respondents has averred as under :

> The contentions in paras 18 and 19 that all pensioners form one class is not correct and the petitioners have not shown how they form one class. Classification of pensioners on the basis of their date of retirement is a valid classification for the purpose of pensionary benefits.

These averments would show at a glance that the State action is sought to be sustained on the doctrine of classification and the criterion on which the classification is sought to be sustained is the date of retirement of the government servant which entitled him to pension. Thus according to the respondents, pensioners who retire from Central Government service and are governed by the relevant pension rules all do not form a class but pensioners who retire prior to a certain date and those who retire subsequent to a certain date form distinct and separate classes. It may be made clear that the date of retirement of each individual pensioner is not suggested as a criterion for classification as that would lead to an absurd result, because in that event every pensioner relevant to his date of retirement will form a class unto himself. What is suggested is that when a pension scheme undergoes a revision and is enforced effective from a certain date, the date so specified becomes a sort of a rubicon and those who retire prior to that date form one class and those who retire on a subsequent date form a distinct and separate class and no one can cross the rubicon. And the learned Attorney-General contended that this differentiation is grounded on a rational principle and it has a direct correlation to the object sought to be achieved by liberalised pension formula.

18. The approach of the respondents raises a vital and none too easy of answer, question as to why pension is paid. And why was it required to be liberalised ? Is the employer, which expression will include even the State, bound to pay pension ? Is there any obligation on the employer to provide for the erstwhile employee even after the contract of employment has come to an end and the employee has ceased to render service ?

19. What is a pension ? What are the goals of pension ? What public interest or purpose, if any, it seeks to serve ? If it does seek to serve some public purpose, is it thwarted by such artificial division of retirement pre and post a certain date ? We need seek



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Page 16 Tuesday, October 13, 2026
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answer to these and incidental questions so as to render just justice between parties to this petition.

20. The antequated notion of pension being a bounty, a gratuitous payment depending upon the sweet will or grace of the employer not claimable as a right and, therefore, no right to pension can be enforced through Court has been swept under the carpet by the decision of the Constitution Bench in *Deokinandan Prasad* v. *State of Bihar*[8] wherein this Court authoritatively ruled that pension is a right and the payment of it does not depend upon the discretion of the Government but is governed by the rules and a government servant coming within those rules is entitled to claim pension. It was further held that the grant of pension does not depend upon anyone's discretion. It is only for the purpose of quantifying the amount having regard to service and other allied matters that it may be necessary for the authority to pass an order to that effect but the right to receive pension flows to the officer not because of any such order but by virtue of the rules. This view was reaffirmed in *State of Punjab* v. *Iqbal Singh*[9].

21. There are various kinds of pensions and there are equally various methods of funding pension programmes. The present enquiry is limited to non-contributory superannuation or retirement pension paid by Government to its erstwhile employee and the purpose and object underlying it. Initially this class of pension appears to have been introduced as a reward for loyal service. Probably the alien rulers who recruited employees in lower echelons of service from the colony and exported higher level employees from the seat of Empire, wanted to ensure in the case of former continued loyalty till death to the alien rulers and in the case of latter, an assured decent living standard in old age ensuring economic security at the cost of the colony.

22. In the course of transformation of society from feudal to welfare and as socialistic thinking acquired respectability, State obligation to provide security in old age, an escape from undeserved want was recognised and as a first step pension was treated not only as a reward for past service but with a view to helping the employee to avoid destitution in old age. The quid pro quo was that when the employee was physically and mentally alert, he rendered unto master the best, expecting him to look after him in the fall of life. A retirement system therefore exists solely for the purpose of providing

8. 1971 Supp SCR 634 : (1971) 2 SCC 330 : AIR 1971 SC 1409 : (1971) 1 LLJ 557
9. (1976) 3 SCR 360 : (1976) 2 SCC 1 : 1976 SCC (L&S) 172 : AIR 1976 SC 667

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Page 17 Tuesday, October 13, 2026
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259

benefits. In most of the plans of retirement benefits, everyone who qualifies for normal retirement receives the same amount (see *Retirement Systems for Public Employees* by Bleakney, p. 33).

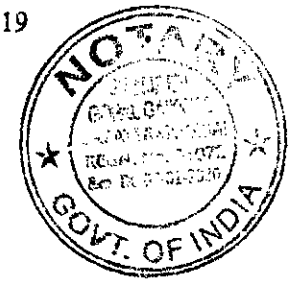
23. As the present case is concerned with superannuation pension, a brief history of its initial introduction in early stages and continued existence till today may be illuminating. Superannuation is the most descriptive word of all but has become obsolescent because it seems ponderous. Its genesis can be traced to the first Act of Parliament (in U.K.) to be concerned with the provision of pensions generally in the public offices. It was passed in 1810. The Act which substantively devoted itself exclusively to the problem of superannuation pension was Superannuation Act of 1834. These are landmarks in pension history because they attempted for the first time to establish a comprehensive and uniform scheme for all whom we may now call civil servants. Even before the 19th century, the problem of providing for public servants who are unable, through old age or incapacity, to continue working, has been recognised, but methods of dealing with the problem varied from society to society and even occasionally from department to department.

24. A political society which has a goal of setting up of a welfare State, would introduce and has in fact introduced as a welfare measure wherein the retiral benefit is grounded on 'considerations of State obligation to its citizens who having rendered service during the useful span of life must not be left to penury in their old age. but the evolving concept of social security is a later day development'. And this journey was over a rough terrain. To note only one stage in 1856 a Royal Commission was set up to consider whether any changes were necessary in the system established by the 1834 Act. The Report of the Commission is known as "Northcote-Trevelyan Report". The Report was pungent in its criticism when it says that :

> [I]n civil services comparable to lightness of work and the certainty of provision in case of retirement owing to bodily incapacity, furnish strong inducements to the parents and friends of sickly youths to endeavour to obtain for them employment in the service of the Government, and the extent to which the public are consequently burdened, first with the salaries of officers who are obliged to absent themselves from their duties on account of ill health, and afterwards with their pensions when they retire on the same plea, would hardly be credited by those who have not had opportunities of observing the operation of the system.[10]

25. This approach is utterly unfair because in modern times

10. See Gerald Rhodes : Public Sector Pensions, pp. 18-19



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Page 18 Tuesday, October 13, 2026
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public services are manned by those who enter at a comparatively very young age, with selection through national competitive examination and ordinarily the best talent gets the opportunity.

26. Let us therefore examine what are the goals that pension scheme seeks to subserve? A pension scheme consistent with available resources must provide that the pensioner would be able to live: (i) free from want, with decency, independence and self-respect, and (ii) at a standard equivalent at the pre-retirement level. This approach may merit the criticism that if a developing country like India cannot provide an employee while rendering service a living wage, how can one be assured of it in retirement? This can be aptly illustrated by a small illustration. A man with a broken arm asked his doctor whether he will be able to play the piano after the cast is removed. When assured that he will, the patient replied, 'that is funny, I could not before'. It appears that determining the minimum amount required for living decently is difficult, selecting the percentage representing the proper ratio between earnings and the retirement income is harder. But it is imperative to note that as self-sufficiency declines the need for his attendance or institutional care grows. Many are literally surviving now than in the past. *We owe it to them and ourselves that they live, not merely exist.* The philosophy prevailing in a given society at various stages of its development profoundly influences its social objectives. These objectives are in turn a determinant of a social policy. The law is one of the chief instruments whereby the social policies are implemented and

> pension is paid according to rules which can be said to provide social security law by which it is meant those legal mechanisms primarily concerned to ensure the provision for the individual of a cash income adequate, when taken along with the benefits in kind provided by other social services (such as free medical aid) to ensure for him a culturally acceptable minimum standard of living when the normal means of doing so failed. (See *Social Security Law* by Prof. Harry Calvert, p. 1)

27. Viewed in the light of the present day notions pension is a term applied to periodic money payments to a person who retires at a certain age considered age of disability; payments usually continue for the rest of the natural life of the recipient. The reasons underlying the grant of pension vary from country to country and from scheme to scheme. But broadly stated they are (i) as compensation to former members of the Armed Forces or their dependents for old age, disability, or death (usually from service causes), (ii) as old age retirement or disability benefits for civilian employees, and (iii) as social security payments for the aged, disabled, or deceased citizens made in accordance with the rules governing social service

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 19 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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261

programmes of the country. Pensions under the first head are of great antiquity. Under the second head they have been in force in one form or another in some countries for over a century but those coming under the third head are relatively of recent origin, though they are of the greatest magnitude. There are other views about pensions such as charity, paternalism, deferred pay, rewards for service rendered, or as a means of promoting general welfare (see *Encyclopaedia Britannica*, Vol. 17, p. 575). But these views have become otiose.

28. Pensions to civil employees of the Government and the defence personnel as administered in India appear to be a compensation for service rendered in the past. However, as held in *Douge* v. *Board of Education*[11] a pension is closely akin to wages in that it consists of payment provided by an employer, is paid in consideration of past service and serves the purpose of helping the recipient meet the expenses of living. This appears to be the nearest to our approach to pension with the added qualification that it should ordinarily ensure freedom from undeserved want.

29. Summing up it can be said with confidence that pension is not only compensation for loyal service rendered in the past, but pension also has a broader significance, in that it is a measure of socio-economic justice which inheres economic security in the fall of life when physical and mental prowess is ebbing corresponding to aging process and, therefore, one is required to fall back on savings. One such saving in kind is when you give your best in the hey-day of life to your employer, in days of invalidity, economic security by way of periodical payment is assured. The term has ben judicially defined as a stated allowance or stipend made in consideration of past service or a surrender of rights or emoluments to one retired from service. Thus the pension payable to a government employee is earned by rendering long and efficient service and therefore can be said to be a deferred portion of the compensation or for service rendered. In one sentence one can say that the most practical raison d'etre for pension is the inability to provide for oneself due to old age. One may live and avoid unemployment but not senility and penury if there is nothing to fall back upon.

30. The discernible purpose thus underlying pension scheme or a statute introducing the pension scheme must inform interpretative process and accordingly it should receive a liberal construction and the courts may not so interpret such statute as to render them inane (see *American Jurisprudence*, 2d, 881).

11. 302 US 74 : 83 L Ed 57



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Page 20 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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262

31. From the discussion three things emerge : (i) that pension is neither a bounty nor a matter of grace depending upon the sweet will of the employer and that it creates a vested right subject to 1972 Rules which are statutory in character because they are enacted in exercise of powers conferred by the proviso to Article 309 and clause (5) of Article 148 of the Constitution ; (ii) that the pension is not an ex gratia payment but it is a payment for the past service rendered ; and (iii) it is a social welfare measure rendering socio-economic justice to those who in the hey-day of their life ceaselessly toiled for the employer on an assurance that in their old age they would not be left in lurch. It must also be noticed that the quantum of pension is a certain percentage correlated to the average emoluments drawn during last three years of service reduced to 10 months under liberalised pension scheme. Its payment is dependent upon an additional condition of impeccable behaviour even subsequent to retirement, that is, since the cessation of the contract of service and that it can be reduced or withdrawn as a disciplinary measure.

32. Having succinctly focussed our attention on the conspectus of elements and incidents of pension the main question may now be tackled. But, the approach of court while considering such measure is of paramount importance. Since the advent of the Constitution, the State action must be directed towards attaining the goals set out in Part IV of the Constitution which, when achieved, would permit us to claim that we have set up a welfare State. Article 38(1) enjoins the State to strive to promote welfare of the people by securing and protecting as effective as it may a social order in which justice — social, economic and political — shall inform all institutions of the national life. In particular the State shall strive to minimise the inequalities in income and endeavour to eliminate inequalities in status, facilities and opportunities. Article 39(*d*) enjoins a duty to see that there is equal pay for equal work for both men and women and this directive should be understood and interpreted in the light of the judgment of this Court in *Randhir Singh* v. *Union of India*[12]. Revealing the scope and content of this facet of equality, Chinnappa Reddy, J. speaking for the Court observed as under : (SCC p. 619, para 1)

> Now, thanks to the rising social and political consciousness and the expectations aroused as a consequence, and the forward-looking posture of this Court, the underprivileged also are clamouring for their rights and are seeking the intervention of the court with touching faith and confidence in the court. The Judges of the court have a duty to redeem their constitutional

12. (1982) 1 SCC 618 : 1982 SCC (L&S) 119

NOTARY GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 21 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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263

> oath and do justice no less to the pavement-dweller than to the guest of the five-star hotel.

Proceeding further, this Court observed that where all relevant considerations are the same, persons holding identical posts may not be treated differently in the matter of their pay merely because they belong to different departments. If that can't be done when they are in service, can that be done during their retirement? Expanding this principle, one can confidently say that if pensioners form a class, their computation cannot be by different formula affording unequal treatment solely on the ground that some retired earlier and some retired later. Article 39(*e*) requires the State to secure that the health and strength of workers, men and women, and children of tender age are not abused and that citizens are not forced by economic necessity to enter avocations *unsuited to their age or strength*. Article 41 obligates the State within the limits of its economic capacity and development, to make effective provision for securing the right to work, to education and to provide assistance in *cases of unemployment, old age, sickness and disablement,* and *in other cases of undeserved want*. Article 43(3) requires the State to endeavour to secure amongst other things full enjoyment of leisure and social and cultural opportunities.

33. Recall at this stage the Preamble, the flood light illuminating the path to be pursued by the State to set up a Sovereign Socialist Secular Democratic Republic. Expression 'socialist' was intentionally introduced in the Preamble by the Constitution (Forty-second amendment) Act, 1976. In the objects and reasons for amendment amongst other things, ushering in of socio-economic revolution was promised. The clarion call may be extracted :

> The question of amending the Constitution for removing the difficulties which have arisen in achieving the objective of socio-economic revolution, which would end poverty and ignorance and disease and inequality of opportunity, has been engaging the active attention of Government and the public for some time. . . .
>
> It is, therefore, proposed to amend the Constitution to spell out expressly the high ideals of socialism. . . to make the directive principles more comprehensive. . . .

What does a Socialist Republic imply? Socialism is a much misunderstood word. Values determine contemporary socialism pure and simple. But it is not necessary at this stage to go into all its ramifications. The principal aim of a socialist State is to eliminate inequality in income and status and standards of life. The basic framework of socialism is to provide a decent standard of life to the working people and especially provide security from cradle to grave. This amongst others on economic side envisaged economic equality and



SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 22 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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equitable distribution of income. This is a blend of Marxism and Gandhism leaning heavily towards Gandhian socialism. During the formative years, socialism aims at providing all opportunities for pursuing the educational activity. For want of wherewithal or financial equipment the opportunity to be fully educated shall not be denied. Ordinarily, therefore, a socialist State provides for free education from primary to Ph.D. but the pursuit must be by those who have the necessary intelligence quotient and not as in our society where a brainy young man coming from a poor family will not be able to prosecute the education for want of wherewithal while the ill equipped son or daughter of a well-to-do father will enter the portals of higher education and contribute to national wastage. After the education is completed, socialism aims at equality in pursuit of excellence in the chosen avocation without let or hindrance of caste, colour, sex or religion and with full opportunity to reach the top not thwarted by any considerations of status, social or otherwise. But even here the less equipped person shall be assured a decent minimum standard of life and exploitation in any form shall be eschewed. There will be equitable distribution of national cake and the worst off shall be treated in such a manner as to push them up the ladder. Then comes the old age in the life of everyone, be he a monarch or a mahatma, a worker or a pariah. The old age overtakes each one, death being the fulfilment of life providing freedom from bondage. But here socialism aims at providing an economic security to those who have rendered unto society what they were capable of doing when they were fully equipped with their mental and physical prowess. In the fall of life the State shall ensure to the citizens a reasonably decent standard of life, medical aid, freedom from want, freedom from fear and the enjoyable leisure, relieving the boredom and the humility of dependence in old age. This is what Article 41 aims when it enjoins the State to secure public assistance in old age, sickness and disablement. It was such a socialist State which the Preamble directs the centres of power — Legislative, Executive and Judiciary — to strive to set up. From a wholly feudal exploited slave society to a vibrant, throbbing socialist welfare society is a long march but during this journey to the fulfilment of goal every State action whenever taken must be directed, and must be so interpreted, as to take the society one step towards the goal.

34. To some extent this approach will find support in the judgment in *Minerva Mills Ltd.* v. *Union of India*[13]. Speaking for the majority, Chandrachud, C.J. observed as under : (SCC p. 654, para 57)

> This is not mere semantics. The edifice of our Constitu-

13. (1981) 1 SCR 206 : (1980) 3 SCC 625 : AIR 1980 SC 1789

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Page 23 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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265

> tion is built upon the concepts crystallised in the preamble. We resolved to constitute ourselves into a Socialist State which carried with it the obligation to secure to our people justice — social, economic and political. We, therefore, put Part IV into our Constitution containing directive principles of State policy which specify the socialistic goal to be achieved.

At a later stage it was observed that the fundamental rights are not an end in themselves but are the means to an end, the end is specified in Part IV. Bhagwati, J. in his minority judgment after extracting a portion of the speech of the then Prime Minister Jawahar Lal Nehru, while participating in a discussion on the Constitution (First Amendment) Bill, observed that the directive principles are intended to bring about a socio-economic revolution and to create a new socio-economic order where there will be social and economic justice for all and everyone, not only a fortunate few but the teeming millions of India, would be able to participate in the fruits of freedom and development and exercise the fundamental rights. It, therefore, appears to be well established that while interpreting or examining the constitutional validity of legislative/administrative action, the touchstone of Directive Principles of State Policy in the light of the Preamble will provide a reliable yardstick to hold one way or the other.

35. With this background let us now turn to the challenge posed in these petitions. The challenge is not to the validity of the pension liberalisation scheme. The scheme is wholly acceptable to the petitioners, *nay* they are ardent supporters of it, *nay* further they seek the benefit of it. The petitioners challenge only that part of the scheme by which its benefits are admissible to those who retired from service after a certain date. In other words, they challenge that the scheme must be uniformly enforced with regard to all pensioners for the purpose of computation of pension irrespective of the date when the government servant retired subject to the only condition that he was governed by the 1972 Rules. No doubt, the benefit of the scheme will be available from the specified date, irrespective of the fact when the concerned government servant actually retired from service.

36. Having set out clearly the society which we propose to set up, the direction in which the State action must move, the welfare State which we propose to build up, the constitutional goal of setting up a socialist State and the assurance in the Directive Principles of State Policy especially of security in old age at least to those who have rendered useful service during their active years, it is indisputable, nor was it questioned, that pension as a retirement benefit is in consonance with and in furtherance of the goals of the Constitution. The goals for which pension is paid themselves give a fillip and push

NOTARY GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 24 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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266

to the policy of setting up a welfare State because by pension the socialist goal of security of cradle to grave is assured at least when it is mostly needed and least available, namely, in the fall of life.

37. If such be the goals of pension, if such be the welfare State which we propose to set up, if such be the goals of socialism and conceding that any welfare measure may consistent with economic capacity of the State be progressively augmented with wider width and a longer canvas yet when the economic means permit the augmentation, should some be left out for the sole reason that while in the formative years of the nascent State they contributed their mite but when the fruits of their labour led to the flowering of economic development and higher gross national produce bringing in larger revenue and therefore larger cake is available, they would be denied any share of it? Indisputably, viewed from any angle pensioners for payment of pension form a class. Unquestionably pension is linked to length of service and the last pay drawn but the last pay does not imply the pay on the last day of retirement but average emoluments as defined in the scheme. Earlier average emoluments of 36 months' service provided the measure of pension because the pension was related to the average emoluments during 36 months just preceding retirement. By the liberalised scheme it is now reduced to average emoluments of 10 months preceding the date. Any one in government service would appreciate at a glance that with an average of 10 months it would be on the higher side on account of the two fortuitous circumstances that the pay scales, if one has not reached the maximum, permit annual increments and there are promotions in the last one or two years. With a view to giving a higher average the scheme was liberalised to provide for average emoluments with reference to last 10 months' service. Coupled with it, a slab system for computation is introduced and the ceiling is raised. This is liberalisation. Now, if the pensioners who retired prior to the specified date and had to earn pension on the average emoluments of 36 months' salary just preceding the date of retirement, naturally the average would be lower and they will be doubly hit because the slab system as now introduced was not available and the ceiling was at a lower level. Thus they suffer triple jeopardy, viz., lower average emoluments, absence of slab system and lower ceiling.

38. What then is the purpose in prescribing the specified date vertically dividing the pensioners between those who retired prior to the specified date and those who retire subsequent to that date? That poses the further question, why was the pension scheme liberalised? What necessitated liberalisation of the pension scheme?

39. Both the impugned memoranda do not spell out the raison d'etre for liberalising the pension formula. In the affidavit in opposi-

NOTARY GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 25 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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26T

tion by Shri S.N. Mathur, it has been stated that the liberalisation of pension of retiring government servants was decided by the Government in view of the persistent demand of the Central Government employees represented in the scheme of Joint Consultative Machinery. This would clearly imply that the pre-liberalised pension scheme did not provide adequate protection in old age and that a further liberalisation was necessary as a measure of economic security. When Government favourably responded to the demand it thereby ipso facto conceded that there was a larger available national cake part of which could be utilised for providing higher security to erstwhile government servants who would retire. The Government also took note of the fact that continuous upward movement of the post of living index as a sequel of inflationary inputs and diminishing purchasing power of rupee necessitated upward revision of pension. If this be the underlying intendment of liberalisation of pension scheme, can anyone be bold enough to assert that it was good enough only for those who would retire subsequent to the specified date but those who had already retired did not suffer the pangs of rising prices and falling purchasing power of the rupee? What is the sum total of picture? Earlier the scheme was not that liberal keeping in view the definition of average emoluments and the absence of slab system and a lower ceiling. Those who rendered the same service earned less pension and are exposed to the vagary of rising prices consequent upon the inflationary inputs. If, therefore, those who are to retire subsequent to the specified date would feel the pangs in their old age, of lack of adequate security, by what stretch of imagination the same can be denied to those who retired earlier with lower emoluments and yet are exposed to the vagaries of the rising prices and the falling purchasing power of the rupee. And the greater misfortune is that they are becoming older and older compared to those who would be retiring subsequent to the specified date. The Government was perfectly justified in liberalising the pension scheme. In fact it was overdue. But we find no justification for arbitrarily selecting the criteria for eligibility for the benefits of the scheme dividing the pensioners all of whom would be retirees but falling on one or the other side of the specified date.

40. Therefore, let us proceed to examine whether there was any rationale behind the eligibility qualification. The learned Attorney-General contended that the scheme is one whole and that the date is an integral part of the scheme and the Government would have never enforced the scheme devoid of the date and the date is not severable from the scheme as a whole. Contended the learned Attorney-General that the Court does not take upon itself the function of legislation for persons, things or situations omitted by the legislature. It was said that when the legislature has expressly defined

NOTARY SANJEEV GOPAL GARGWAL GREATER NOIDA REGN. No. 31072 GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd
Page 26 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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the class with clarity and precision to which the legislation applies, it would be outside the judicial function to enlarge the class and to do so is not to interpret but to legislate which is the forbidden field. Alternatively it was also contended that where a larger class comprising two smaller classes is covered by a legislation of which one part is constitutional, the court examines whether the legislation must be invalidated as a whole or only in respect of the unconstitutional part. It was also said that severance always cuts down the scope of legislation but can never enlarge it and in the present case the scheme as it stands would not cover pensioners such as the petitioners and if by severance an attempt is made to include them in the scheme it is not cutting down the class or the scope but enlarge the ambit of the scheme which is impermissible even under the doctrine of severability. In this context it was lastly submitted that there is not a single case in India or elsewhere where the court has included some category within the scope of provisions of a law to maintain its constitutionality.

41. The last submission, the absence of precedent need not deter us for a moment. Every new norm of socio-economic justice, every new measure of social justice commenced for the first time at some point of history. If at that time it is rejected as being without a precedent, the law as an instrument of social engineering would have long since been dead and no tears would have been shed. To be pragmatic is not to be unconstitutional. In its onward march law as an institution ushers in socio-economic justice. In fact, social security in old age commended itself in earlier stages as a moral concept but in course of time it acquired legal connotation. The rules of natural justice owed their origin to ethical and moral code. Is there any doubt that they have become the integral and inseparable parts of rule of law of which any civilised society is proud? Can anyone be bold enough to assert that ethics and morality are outside the field of legal formulations? Socio-economic justice stems from the concept of social morality coupled with abhorrence for economic exploitation. And the advancing society converts in course of time moral or ethical code into enforceable legal formulations. Over-emphasis on precedent furnishes an insurmountable road-block to the onward march towards promised millennium. An overdose of precedents is the bane of our system which is slowly getting stagnant, stratified and atrophied. Therefore, absence of a precedent on this point need not deter us at all. We are all the more happy for the chance of scribbling on a clean slate.

42. If it appears to be undisputable, as it does to us that the pensioners for the purpose of pension benefits form a class, would its upward revision permit a homogeneous class to be divided by

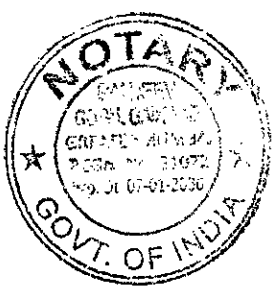
SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd..
Page 27 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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269

arbitrarily fixing an eligibility criteria unrelated to purpose of revision, and would such classification be founded on some rational principle? The classification has to be based, as is well settled, on some rational principle and the rational principle must have nexus to the objects sought to be achieved. We have set out the objects underlying the payment of pension. If the State considered it necessary to liberalise the pension scheme, we find no rational principle behind it for granting these benefits only to those who retired subsequent to that date simultaneously denying the same to those who retired prior to that date. If the liberalisation was considered necessary for augmenting social security in old age to government servants then those who retired earlier cannot be worst off than those who retire later. Therefore, this division which classified pensioners into two classes is not based on any rational principle and if the rational principle is the one of dividing pensioners with a view to giving something more to persons otherwise equally placed, it would be discriminatory. To illustrate, take two persons, one retired just a day prior and another a day just succeeding the specified date. Both were in the same pay bracket, the average emolument was the same and both had put in equal number of years of service. How does a fortuitous circumstance of retiring a day earlier or a day later will permit totally unequal treatment in the matter of pension? One retiring a day earlier will have to be subject to ceiling of Rs 8100 p.a. and average emolument to be worked out on 36 months' salary while the other will have a ceiling of Rs 12,000 p.a. and average emolument will be computed on the basis of last 10 months' average. The artificial division stares into face and is unrelated to any principle and whatever principle, if there be any, has absolutely no nexus to the objects sought to be achieved by liberalising the pension scheme. In fact this arbitrary division has not only no nexus to the liberalised pension scheme but it is counter-productive and runs counter to the whole gamut of pension scheme. The equal treatment guaranteed in Article 14 is wholly violated inasmuch as the pension rules being statutory in character, since the specified date, the rules accord differential and discriminatory treatment to equals in the matter of commutation of pension. A 48 hours' difference in matter of retirement would have a traumatic effect. Division is thus both arbitrary and unprincipled. Therefore, the classification does not stand the test of Article 14.

43. Further the classification is wholly arbitrary because we do not find a single acceptable or persuasive reason for this division. This arbitrary action violated the guarantee of Article 14. The next question is what is the way out?

44. The learned Attorney-General contended that the scheme is to be taken as a whole or rejected as a whole and the date from



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Page 28 Tuesday, October 13, 2026
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which it came into force is an integral and inseparable part of the scheme. The two sub-limbs of the submissions were that, (i) the Court cannot make a scheme having financial implications retroactive, and (ii) this Court cannot grant any relief to the pensioners who retired prior to a specified date because if more persons divide the available cake, the residue falling to the share of each especially to those who are likely to be benefitted by the scheme will be comparatively smaller and as they are not before the Court, no relief can be given to the pensioners.

45. Let us clear one misconception. The pension scheme including the liberalised scheme available to the government employees is non-contributory in character. It was not pointed out that there is something like a pension fund. It is recognised as an item of expenditure and it is budgeted and voted every year. At any given point of time there is no fixed or predetermined pension fund which is divided amongst eligible pensioners. There is no artificially created fund or reservoir from which pensioners draw pension within the limits of the fund, the share of each being co-extensive with the available fund. The payment of pension is a statutory liability undertaken by the Government and whatever becomes due and payable is budgeted for. One could have appreciated this line of reasoning where there is a contributory scheme and a pension fund from which alone pension is disbursed. That being not the case, there is no question of pensioners dividing the pension fund which, if more persons are admitted to the scheme, would pro rata affect the share. Therefore, there is no question of dividing the pension fund. Pension is a liability incurred and has to be provided for in the budget. Therefore, the argument of division of a cake, larger the number of sharers, smaller the share and absence of residue and therefore by augmentation of beneficiaries, pro rata share is likely to be affected and their absence making relief impermissible, is an argument born of desperation, and is without merits and must be rejected as untenable.

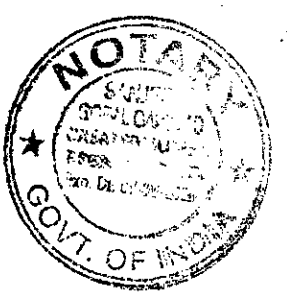
46. By our approach, are we making the scheme retroactive? The answer is emphatically in the negative. Take a government servant who retired on April 1, 1979. He would be governed by the liberalised pension scheme. By that time he had put in qualifying service of 35 years. His length of service is a relevant factor for computation of pension. Has the Government made it retroactive, 35 years backward compared to the case of a government servant who retired on March 30, 1979? Concept of qualifying service takes note of length of service, and pension quantum is correlated to qualifying service. Is it retroactive for 35 years for one and not retroactive for a person who retired two days earlier. It must be remembered that pension is relatable to qualifying service. It has correlation to the average emoluments and the length of service.

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 29 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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271

Any liberalisation would pro tanto be retroactive in the narrow sense of the term. Otherwise it is always prospective. A statute is not properly called a retroactive statute because a part of the requisites for its action is drawn from a time antecedent to its passing (see *Craies on Statute Law*, 6th Edn., p. 387). Assuming the Government had not prescribed the specified date and thereby provided that those retiring pre and post the specified date would all be governed by the liberalised pension scheme, undoubtedly, it would be both prospective and retroactive. Only the pension will have to be recomputed in the light of the formula enacted in the liberalised pension scheme and effective from the date the revised scheme comes into force. And beware that it is not a new scheme, it is only a revision of existing scheme. It is not a new retiral benefit. It is an upward revision of an existing benefit. If it was a wholly new concept, a new retiral benefit, one could have appreciated an argument that those who had already retired could not expect it. It could have been urged that it is an incentive to attract the fresh recruits. Pension is a reward for past service. It is undoubtedly a condition of service but not an incentive to attract new entrants because if it was to be available to new entrants only, it would be prospective at such distance of thirty-five years since its introduction. But it covers all those in service who entered thirty-five years back. Pension is thus not an incentive but a reward for past service. And a revision of an existing benefit stands on a different footing than a new retiral benefit. And even in case of new retiral benefit of gratuity under the Payment of Gratuity Act, 1972 past service was taken into consideration. Recall at this stage the method adopted when pay scales are revised. Revised pay scales are introduced from a certain date. All existing employees are brought on to the revised scales by adopting a theory of fitments and increments for past service. In other words, benefit of revised scale is not limited to those who enter service subsequent to the date fixed for introducing revised scales but the benefit is extended to all those in service prior to that date. This is just and fair. Now if pension as we view it, is some kind of retirement wages for past service, can it be denied to those who retired earlier, revised retirement benefits being available to future retirees only. Therefore, there is no substance in the contention that the court by its approach would be making the scheme retroactive, because it is implicit in theory of wages.

47. That takes us to the last important contention of the learned Attorney-General. It was urged that the date from which the scheme becomes operative is an integral part of the scheme and the doctrine of severability cannot be invoked. In other words, it was urged that that date cannot be severed from the main object of the scheme because the Government would have never offered the scheme unless



SCC Online Web Edition, © 2026 EBC Publishing P.t. Ltd.
Page 30 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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the date was an integral part of it. Undoubtedly when an upward revision is introduced, a date from which it becomes effective has to be provided. It is the event of retirement subsequent to the specified date which introduces discrimination in one otherwise homogeneous class of pensioners. This arbitrary selection of the happening of event subsequent to specified date denies equality of treatment to persons belonging to the same class, some preferred and some omitted. Is this eligibility qualification severable?

48. It was very seriously contended, remove the event correlated to date and examine whether the scheme is workable. We find no difficulty in implementing the scheme omitting the event happening after the specified date retaining the more humane formula for computation of pension. It would apply to all existing pensioners and future pensioners. In the case of existing pensioners, the pension will have to be recomputed by applying the rule of average emoluments as set out in Rule 34 and introducing the slab system and the amount worked out within the floor and the ceiling.

49. But we make it abundantly clear that arrears are not required to be made because to that extent the scheme is prospective. All pensioners whenever they retired would be covered by the liberalised pension scheme, because the scheme is a scheme for payment of pension to a pensioner governed by 1972 Rules. The date of retirement is irrelevant. But the revised scheme would be operative from the date mentioned in the scheme and would bring under its umbrella all existing pensioners and those who retired subsequent to that date. In case of pensioners who retired prior to the specified date, their pension would be computed afresh and would be payable in future commencing from the specified date. No arrears would be payable. And that would take care of the grievance of retrospectivity. In our opinion, it would make a marginal difference in the case of past pensioners because the emoluments are not revised. The last revision of emoluments was as per the recommendation of the Third Pay Commission (Raghubar Dayal Commission). If the emoluments remain the same, the computation of average emoluments under amended Rule 34 may raise the average emoluments, the period for averaging being reduced from last 36 months to last 10 months. The slab will provide slightly higher pension and if someone reaches the maximum the old lower ceiling will not deny him what is otherwise justly due on computation. The words "who were in service on March 31, 1979 and retiring from service on or after that date" excluding the date for commencement of revision are words of limitation introducing the mischief and are vulnerable as denying equality and introducing an arbitrary fortuitous circumstance can be severed without impairing the formula. Therefore

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 31 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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273

there is absolutely no difficulty in removing the arbitrary and discriminatory portion of the scheme and it can be easily severed.

50. There is nothing immutable about the choosing of an event as an eligibility criteria subsequent to a specified date. If the event is certain but its occurrence at a point of time is considered wholly irrelevant and arbitrarily selected having no rationale for selecting it and having an undesirable effect of dividing homogeneous class and of introducing the discrimination, the same can be easily severed and set aside. While examining the case under Article 14, the approach is not : 'either take it or leave it', the approach is removal of arbitrariness and if that can be brought about by severing the mischievous portion the court ought to remove the discriminatory part retaining the beneficial portion. The pensioners do not challenge the liberalised pension scheme. They seek the benefit of it. Their grievance is of the denial to them of the same by arbitrary introduction of words of limitation and we find no difficulty in severing and quashing the same. This approach can be legitimised on the ground that every government servant retires. State grants upward revision of pension undoubtedly from a date. Event has occurred revision has been earned. Date is merely to avoid payment of arrears which may impose a heavy burden If the date is wholly removed, revised pension will have to be paid from the actual date of retirement of each pensioner. That is impermissible. The State cannot be burdened with arrears commencing from the date of retirement of each pensioner But effective from the specified date future pension of earlier retired government servants can be computed and paid on the analogy of fitments in revised pay scales becoming prospectively operative. That removes the nefarious unconstitutional part and retains the beneficial portion. It does not adversely affect future pensioners and their presence in these petitions becomes irrelevant. But before we do so, we must look into the reasons assigned for eligibility criteria, namely, 'in service on the specified date and retiring after that date'. The only reason we could find in affidavit of Shri Mathur is the following statement in paragraph 5 :

> The date of effect of the impugned orders has been selected on the basis of relevant and valid considerations.

51. We repeatedly posed a question : what are those relevant and valid considerations and waited for the answer in vain. We say so because in the written submissions filed on behalf of the Union of India, we find not a single valid or relevant consideration much less any consideration relevant to selection of eligibility criteria. The tenor is "we select the date and it is unquestionable ; either take it or leave it as a whole". The only submission was that the date is not severable and some submissions in support of it.



SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 32 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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52. Having examined the matter on principle, let us turn to some precedents. In *D.R. Nim* v. *Union of India*[14] the appellant questioned his seniority which was to be determined in accordance with the provisions contained in Indian Police Service (Regulation of Seniority) Rules, 1954. These Rules required first to ascertain the year of allotment of the person concerned for the determination of his seniority. In doing so, the Government of India directed that officers promoted to the Indian Police Service should be allowed the benefit of their continuous officiation with effect only from May 19, 1951. The appellant challenged the order because the period of officiation from June 1947 to May 1951 was excluded for the purpose of fixation of his seniority. His grievance was that there was no rationale behind selecting this date. After taking into consideration affidavit in opposition, this Court held as under :

> It would be noticed that the date, May 19, 1951, to begin with had nothing to do with the finalisation of the Gradation List of the Indian Police Service because it was a date which had reference to the finalisation of the Gradation List for the IAS. Further this date does not seem to have much relevance to the question of avoiding the anomalous position mentioned in para 9 of the affidavit, reproduced above. This date was apparently chosen for the IAS because on this date the Gradation List for all the earlier persons recruited to the Service had been finalised and issued in a somewhat stable stage. But why should this date be applied to the Indian Police Service has not been adequately explained. Mr B.R.L. Iyengar, the learned counsel for the appellant, strongly urges that selection of May 19, 1951, as a crucial date for classifying people is arbitrary and irrational. We agree with him in this respect. It further appears from the affidavit of Mr D.K. Guha, Deputy Secretary to the Government of India, Ministry of Home Affairs, dated December 9, 1966, that "the Government of India have recently decided in consultation with the Ministry of Law that the Ministry of Home Affairs letter No. 2/32/51-AIS, dated August 25, 1955, will not be applicable to those SCS/SPS officers, who were appointed to IAS/IPS prior to the promulgation of IAS/IPS (Regulation of Seniority) Rules, 1954, and the date of the issue of the above letter if their earlier continuous officiation was approved by the Ministry of Home Affairs and Union Public Service Commission". It further appears that "in the case of Shri C.S. Prasad also, an IPS officer of Bihar, a decision has been taken to give the benefit of full continuous officiation in senior posts and to revise his year of allotment accordingly". But, it is stated that

14. (1967) 2 SCR 325 : AIR 1967 SC 1301 : (1967) 2 SCJ 347 : (1968) 1 LLJ 264

NOTARY GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 33 Tuesday, October 13, 2026
Printed For: Mr. Anil V. Anturkar
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275

"as Shri Nim was appointed to IPS on October 22, 1955, i.e. after the promulgation of IPS (Regulation of Seniority) Rules, 1954, and after the issue of letter dated August 25, 1955, his case does not fall even under this category". The above statement of the case of the Government further shows that the date, May 19, 1951 was an artificial and arbitrary date having nothing to do with the application of the first and the second provisos to Rule 3(3). It appears to us that under the second proviso to Rule 3(3) the period of officiation of a particular officer has to be considered and approved or disapproved by the Central Government in consultation with the Commission considering all the relevant facts. The Central Government cannot pick out a date from a hat — and that is what it seems to have done in this case — and say that a period prior to that date would not be deemed to be approved by the Central Government within the second proviso.

53. The Court held that the Central Government cannot pick out a date from a hat and that is what it seems to have done in saying that a period prior to that date would not be deemed to be approved by the Central Government within the second proviso. In case before us, the eligibility criteria for being eligible for liberalised pension scheme have been picked out from where it is difficult to gather and no rationale is discernible nor one was attempted at the hearing. The ratio of the decision would squarely apply to the facts of this case.

54. Similarly in *Jaila Singh* v. *State of Rajasthan*[15], this Court struck down as discriminatory the division of pre-1955 and post-1955 tenants for the purpose of allotment of land made by the Rules under the Rajasthan Colonisation Act, 1954 observing that the various provisions indicate that the pre-1955 and post-1955 tenants stand on the same footing and therefore do not form different classes and hence the division was held to be based on wholly irrelevant consideration. The Court further observed that it is difficult to appreciate how it would make any difference from the point of view of allotment of land, whether a tenant has been in occupation for 16 years or 18 or 20 years and why differentiation should be made with reference to the date when Rajasthan Tenancy Act came into force. This division for the purpose of allotment of land with reference to certain date was considered both arbitrary and discriminatory on the ground that it was wholly unrelated to the objects sought to be achieved.

55. As against this the learned Attorney-General invited our attention to *Union of India* v. *Parameswaran Match Works*[16]. By

15. 1975 Supp SCR 428 : (1976) 1 SCC 602 : AIR 1975 SC 1436
16. (1975) 2 SCR 573 : (1975) 1 SCC 305 : AIR 1974 SC 2349

NOTARY GOVT. OF INDIA

SCC Online Web Edition, © 2026 EBC Publishing Pvt. Ltd.
Page 34 Tuesday, October 13, 2026
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a notification dated July 21, 1967, benefit of a concessional rate of duty was made available if a manufacturer of matches made a declaration that the total clearance of matches from a factory would not exceed 75 million during a financial year. As framed the notification extended the benefit to manufacturers with higher capacity to avail of the concessional rate of duty by filing a declaration as visualised in the proviso to the notification by restricting their clearance to 75 million matches. This notification was amended on September 4, 1967 with a view to giving bona fide small manufacturers, whose total clearance was not estimated to be in excess of 75 million matches, the benefit of concessional rate of duty prescribed under notification dated July 21, 1967. The respondent in the case applied for a licence for manufacturing matches on September 5, 1967, that is, a day after the date on which amended notification was issued and filed a declaration that the estimated manufacture for the financial year would not exceed 75 million matches, but this was rejected. In a writ petition filed by the respondent, the High Court held that the classification was unreasonable inasmuch as the fixation of the date for making a declaration had no nexus with the object of the Act. In the appeal by the Union of India, this Court held that the concessional rate of duty was intended for small bona fide units who were in the field when the notification dated September 4, 1967 was issued. The concessional rate of duty was not intended to benefit the large units which had split up into smaller units to earn the concession. With reference to selection of the date this Court observed as under : (SCC p. 311, para 10)

> The choice of a date as a basis for classification cannot always be dubbed as arbitrary even if no particular reason is forthcoming for the choice unless it is shown to be capricious or whimsical in the circumstances. When it is seen that a line or a point there must be and there is no mathematical or logical way of fixing it precisely, the decision of the legislature or its delegate must be accepted unless we can say that it is very wide of the reasonable mark.

56. In reaching this conclusion the Court relied on *Louisville Gas Co.* v. *Alabama Power Co.*[17] This decision[16] is not an authority for the proposition that whenever a date is chosen, or an eligibility criteria which divides a class, the purpose of choice unrelated to the objects sought to be achieved must be accepted as valid. In fact it is made clear in the decision itself that even if no particular reason is forthcoming for the choice unless it is shown to be capricious or whimsical, the choice of the legislature may be accepted. Therefore, the choice of the date cannot be wholly divorced from the objects

17. 240 US 30, 32 (1927)

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Page 35 Tuesday, October 13, 2026
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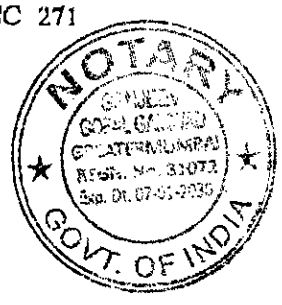
277

sought to be achieved by the impugned action. In other words, if the choice is shown to be thoroughly arbitrary and introduces discrimination violative of Article 14, the date can be struck down. What facts influenced the Court's decision in that case for upholding the choice of the date are worth recalling. The Court held that the object of granting the concessional rate of duty was to protect the smaller units in the industry from the competition by the larger ones and that object would have been frustrated, if, by adopting the device of fragmentation, the larger units could become the ultimate beneficiaries of the bounty. This was the weighty consideration which prompted the court to uphold the date.

57. The learned Attorney General next referred to *D.C. Gouse and Co.* v. *State of Kerala*[18]. This Court while repelling the contention that the choice of April 1, 1973 as the date of imposition of the building tax is discriminatory with reference to Article 14 of the Constitution, approved the ratio in the case of *Parameswaran Match Works*[16]. Even while reaching this conclusion the Court observed that it is not shown how it could be said that the date (April 1, 1973) for the levy of the tax was wide of the reasonable mark. What appealed to the Court was that earlier an attempt was made to impose the building tax with effect from March 2, 1961 under the Kerala Building Tax Act, 1961 but the Act was finally struck down as unconstitutional by this Court as per its decision dated August 13, 1968. While delivering the budget speech, at the time of introduction of the 1970-71 budget, the intention to introduce a fresh Bill for the levy of tax was made clear. The Bill was published in June 1973 in which it was made clear that the Act would be brought into force from April 1, 1970. After recalling the various stages through which the Bill passed before being enacted as Act, this Court held that the choice of date April 1, 1973 was not wide of the reasonable mark. The decision proceeds on the facts of the case. But the principle that when a certain date or eligibility criteria is selected with reference to legislative or executive measure which has the pernicious tendency of dividing an otherwise homogeneous class and the choice of beneficiaries of the legislative/executive action becomes selective, the division or classification made by choice of date or eligibility criteria must have some relation to the objects sought to be achieved. And apart from the first test that the division must be referable to some rational principle, if the choice of the date or classification is wholly unrelated to the objects sought to be achieved, it cannot be upheld on the specious plea that that was the choice of the legislature.

58. Now if the choice of date is arbitrary, eligibility criteria

18. (1980) 1 SCR 804 : (1980) 2 SCC 410 : AIR 1980 SC 271



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Page 36 Tuesday, October 13, 2026
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is unrelated to the object sought to be achieved and has the pernicious tendency of dividing an otherwise homogeneous class, the question is whether the liberalised pension scheme must wholly fail or that the pernicious part can be severed, cautioning itself that this Court does not legislate but merely interprets keeping in view the underlying intention and the object, the impugned measure seeks to subserve ? Even though it is not possible to oversimplify the issue, let us read the impugned memoranda deleting the unconstitutional part. Omitting it, the memoranda will read like this :

> At present, pension is calculated at the rate of 1/80th of average emoluments for each completed year of service and is subject to a maximum of 33/80 of average emoluments and is further restricted to a monetary limit of Rs 1000 per month. The President is, now, pleased to decide that with effect from March 31, 1979 the amount of pension shall be determined in accordance with the following slabs.

If from the impugned memoranda the event of being in service and retiring subsequent to specified date is severed, all pensioners would be governed by the liberalised pension scheme. The pension will have to be recomputed in accordance with the provisions of the liberalised pension scheme as salaries were required to be recomputed in accordance with the recommendation of the Third Pay Commission but becoming operative from the specified date. It does therefore appear that the reading down of impugned memoranda by severing the objectionable portion would not render the liberalised pension scheme vague, unenforceable or unworkable.

59. In reading down the memoranda, is this Court legislating ? Of course 'not'. When we delete basis of classification as violative of Article 14, we merely set at naught the unconstitutional portion retaining the constitutional portion.

60. We may now deal with the last submission of the learned Attorney-General on this point. Said the learned Attorney-General that principle of severability cannot be applied to augment the class and to adopt his words 'severance always cuts down the scope, never enlarges it'. We are not sure whether there is any principle which inhibits the court from striking down an unconstitutional part of a legislative action which may have the tendency to enlarge the width and coverage of the measure. Whenever classification is held to be impermissible and the measure can be retained by removing the unconstitutional portion of classification, by striking down words of limitation, the resultant effect may be of enlarging the class. In such a situation, the court can strike down the words of limitation in an enactment. That is what is called reading down the

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Page 37 Tuesday, October 13, 2026
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279

measure. We know of no principle that 'severance' limits the scope of legislation and can never enlarge it. To refer to the *Jaila Singh case*[15], when for the benefit of allotment of land the artificial division between pre-1955 and post-1955 tenant was struck down by this Court, the class of beneficiaries was enlarged and the cake in the form of available land was a fixed quantum and its distribution amongst the larger class would pro tanto reduce the quantum to each beneficiary included in the class. Similarly when this Court in *Randhir Singh case*[12] held that the principle of 'equal pay for equal work' may be properly applied to cases of unequal pay based on no classification or irrational classification it enlarged the class of beneficiaries. Therefore, the principle of 'severance' for taking out the unconstitutional provision from an otherwise constitutional measure has been well recognised. It would be just and proper that the provision in the memoranda while retaining the date for its implementation, but providing 'that in respect of government servants who were in service on March 31, 1979 but retiring from service on or after that date' can be legally and validly severed and must be struck down. The date is retained without qualification as the effective date for implementation of scheme, it being made abundantly clear that in respect of all pensioners governed by 1972 Rules, the pension of each may be recomputed as on April 1, 1979 and future payments be made in accordance with fresh computation under the liberalised pension scheme as enacted in the impugned memoranda. No arrears for the period prior to March 31, 1979 in accordance with revised computation need be paid.

61. In this context the last submission of the learned Attorney-General was that as the pension is always correlated to the date of retirement, the court cannot change the date of retirement, and impose fresh commutation benefit. We are doing nothing of this kind. The apprehension is wholly unfounded. The date of retirement of each employee remains as it is. The average emoluments have to be worked out keeping in view the emoluments drawn by him before retirement but in accordance with the principles of the liberalised pension scheme. The two features which make the liberalised pension scheme more attractive is the redefining of average emoluments in Rule 34, and introduction of slab system simultaneously raising the ceiling. Within these parameters, the pension will have to be recomputed with effect from the date from which the liberalised pension scheme came into force i.e. March 31, 1979. There is no question of fresh commutation of pension of the pensioners who retired prior to March 31, 1979 and have already availed of the benefit of commutation. It is not open to them to get that benefit at this late date because commutation has to be availed of within specified time limit from the date of actual retirement. Maybe some marginal

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 10172 Exp. DL 07-10-2030 GOVT. OF INDIA

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Page 38 Tuesday, October 13, 2026
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retirees may earn the benefit. That is inevitable. To say that by our approach we are restructuring the liberalised pension scheme, is to ignore the constitutional mandate. Similarly, the court is not conferring benefits by this approach, the court only removes the illegitimate classification and after its removal the law takes its own course.

62. But in this context the learned Attorney submitted the following quotation which appears to have been extracted from a decision of American court, citation of which was not available. The quotation may be extracted from the written submission. It reads as under :

> It remains to enquire whether this plea that Congress would have enacted the legislation and the Act being limited to employees engaged in commerce within the district of Columbia and the Territory. If we are satisfied that it would not or that the matter is in such doubt that we are unable to say what Congress would have done omitting the unconstitutional features then the statute must fail.

We entertain no such apprehension. The executive with parliamentary mandate liberalised the pension scheme. It is implicit in liberalising the scheme that the need to grant little higher rate of pension to the pensioners was considered eminently just. One could have understood persons in the higher pay bracket being excluded from the benefits of the scheme because it would have meant that those in higher pay bracket could fend for themselves. Such is not the exclusion. The exclusion is of a whole class of people who retire before a certain date. Parliament would not have hesitated to extend the benefit otherwise considered eminently just, and this becomes clearly discernible from page 35 of 9th Report of Committee on Petitions (Sixth Lok Sabha) April, 1979. While examining their representation for better pensionary benefit, the Committee concluded as under :

> The Committee are of the view that Government owe a moral responsibility to provide adequate relief to its retired employees including pre-January 1, 1973 pensioners, whose actual value of pensions has been eroded by the phenomenal rise in the prices of essential commodities. In view of the present economic conditions in India and constant rise in the cost of living due to inflation, it is all the more important even from purely humanitarian considerations, if not from the standpoint of fairness and justice, to protect the actual value of their meagre pensions to enable the pensioners to live in their declining years with dignity and in reasonable comfort.

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Page 39 Tuesday, October 13, 2026
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281

Therefore, we are not inclined to share the apprehension voiced by the learned Attorney that if we strike down the unconstitutional part, the Parliament would not have enacted the measure. Our approach may have a parliamentary flavour to sensitive noses.

63. The financial implication in such matters has some relevance. However in this connection, we want to steer clear of a misconception. There is no pension fund as it is found either in contributory pension schemes administered in foreign countries or as in insurance-linked pensions. Non-contributory pensions under 1972 Rules is a State obligation. It is an item of expenditure voted year to year depending upon the number of pensioners and the estimated expenditure. Now when the liberalised pension scheme was introduced, we would justifiably assume that the government servants would retire from the next day of the coming into operation of the scheme and the burden will have to be computed as imposed by the liberalised scheme. Further Government has been granting since nearly a decade temporary increases from time to time to pensioners. Therefore, the difference will be marginal. Further, let it not be forgotten that the old pensioners are on the way out and their number is fast decreasing. While examining the financial implication, this Court is only concerned with the additional liability that may be imposed by bringing in pensioners who retired prior to April 1, 1979 within the fold of liberalised pension scheme but effective subsequent to the specified date. That it is a dwindling number is indisputable. And again the large bulk comprises pensioners from lower echelons of service such as Peons, L.D.C., U.D.C., Assistant etc. In a chart submitted to us, the Union of India has worked out the pension to the pensioners who have retired prior to the specified date and the comparative advantage, if they are brought within the purview of the liberalised pension scheme. The difference up to the level of Assistant or even Section Officer is marginal keeping in view that the old pensioners are getting temporary increases. Amongst the higher officers, there will be some difference because the ceiling is raised and that would introduce the difference. It is however necessary to refer to one figure relied upon by respondents. It was said that if pensioners who retired prior to March 31, 1979 are brought within the purview of the liberalised pension scheme, Rs 253 crores would be required for fresh commutation. The apparent fallacy in the submission is that if the benefit of commutation is already availed of, it cannot and need not be reopened. And availability of other benefits is hardly a relevant factor because pension is admissible to all retirees. The figures submitted are thus neither frightening nor the liability is supposed to be staggering which would deflect us from going to the logical and of constitutional mandate. Even according to the most liberal estimate, the average yearly increase is worked out to be Rs 51 crores but that assumes that every pensioner

NOTARY SANJEEV GOPAL GHOND GREATER MUMBAI REGN. No. 51075 Dt. 07-01-2020 GOVT. OF INDIA

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Page 40 Tuesday, October 13, 2026
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has survived till date and will continue to survive. Therefore, we are satisfied that the increased liability consequent upon this judgment is not too high to be unbearable or such as would have detracted the Government from covering the old pensioners under the scheme.

64. Locus standi of 3rd petitioner was questioned. Petitioner 3 is a Society registered under the Societies Registration Act of 1860. It is a non-political non-profit and voluntary organisation. Its members consist of public-spirited citizens who have taken up the cause of ventilating legitimate public problems. This Society received a large number of representations from old pensioners, individually unable to undertake the journey through labyrinths of legal judicial process, costly and protracted, and, therefore, approached petitioner 3 which espoused their cause. Objects for which the 3rd petitioner-Society was formed were not questioned. The majority decision of this Court in *S.P. Gupta* v. *Union of India*[19] rules that any member of the public having sufficient interest can maintain an action for judicial redress for public injury arising from breach of public duty or from violation of some provision of the Constitution or the law and seek enforcement of such public duty and observance of such constitutional or legal provision. Third petitioner seeks to enforce rights that may be available to a large number of old infirm retirees. Therefore, its locus standi is unquestionable. But it is a point of academic importance because locus standi of petitioners 1 and 2 was never questioned.

65. That is the end of the journey. With the expanding horizons of socio-economic justice, the Socialist Republic and welfare State which we endeavour to set up and largely influenced by the fact that the old men who retired when emoluments were comparatively low and are exposed to vagaries of continuously rising prices, the falling value of the rupee consequent upon inflationary inputs, we are satisfied that by introducing an arbitrary eligibility criterion : 'being in service and retiring subsequent to the specified date' for being eligible for the liberalised pension scheme and thereby dividing a homogeneous class, the classification being not based on any discernible rational principle and having been found wholly unrelated to the objects sought to be achieved by grant of liberalised pension and the eligibility criteria devised being thoroughly arbitrary, we are of the view that the eligibility for liberalised pension scheme of 'being in service on the specified date and retiring subsequent to that date' in impugned memoranda, Exs. P-1 & P-2, violates Article 14 and is unconstitutional and is struck down. Both the memoranda shall be enforced and implemented as

19. 1981 Supp SCC 87, 218

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Page 41 Tuesday, October 13, 2026
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283

read down as under : In other words, in Ex. P-1, the words :

> "that in respect of the government servants who were in service on March 31, 1979 and retiring from service on or after that date"

and in Ex. P-2, the words :

> "the new rates of pension are effective from April 1, 1979 and will be applicable to all service officers who became/become non-effective on or after that date"

are unconstitutional and are struck down with this specification that the date mentioned therein will be relevant as being one from which the liberalised pension scheme becomes operative to all pensioners governed by 1972 Rules irrespective of the date of retirement. Omitting the unconstitutional part it is declared that all pensioners governed by the 1972 Rules and Army Pension Regulations shall be entitled to pension as computed under the liberalised pension scheme from the specified date, irrespective of the date of retirement. Arrears of pension prior to the specified date as per fresh computation is not admissible. Let a writ to that effect be issued. But in the circumstances of the case, there will be no order as to costs.

(1983) 1 Supreme Court Cases 345

(BEFORE D.A. DESAI AND A.P. SEN, JJ.)

DR. ASIM KUMAR BOSE .. Appellant ;

Versus.

UNION OF INDIA AND OTHERS .. Respondents.

Civil Appeal No. 598 of 1980†, decided on December 15, 1982

Labour and Services — Appointment — Qualifications — Experience, requirement of — Working in ex officio capacity, held, can be considered — Doctor holding substantive non-teaching Specialists' post (Radiologist) in a teaching hospital, actually functioning as ex officio Associate Professor in the medical college to which the hospital is attached — Held, teaching experience acquired by him as such is to be counted while considering his eligibility for a substantive teaching post of Associate Professor/Professor — Experience of working 'as' Associate Professor/Assistant Professor — Meaning of — Central Health Service Rules, 1963 [as amended by Central Health Service (Amendment) Rules, 1966], Rule 8(2) & (2-A) and Second Schedule, Annexure I, Paragraphs 2(b) and 3 — Words and Phrases

The appellant was appointed to the Specialists' Grade in substantive capacity as Radiologist in Irwin Hospital, Delhi, which is a teaching hospital

†Appeal by special leave from the Judgment and Order dated November 9, 1979 of the Delhi High Court in C.W.P. No. 885 of 1974

TRUE COPY
Advocate

NOTARY
GOVT. OF INDIA

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO._____ OF 2026

Rekha Vijaykumar Rane **PETITIONER**

VERSUS

The State of Maharashtra and another **RESPONDENTS**

AFFIDAVIT

1. I, Rekha Vijaykumar Rane, Age 50 Years, Occupation : Service, at present working as Insolvency Registrar, in the High Court of Judicature of Bombay, on the Original Side, residing at : 701 Girivihar CHS Ram Maruti cross road Thane West.602, being the Petitioner, do hereby solemnly state as under:-

2. I say that I am the Petitioner above I am fully conversant with the facts of the case. I repeat, reiterate and confirm each and every statement, averment and contention made in the Petition. I say that this affidavit is a part and parcel of the above Writ Petition.

3. I say that I have filed the aforesaid Writ Petition inter alia praying that the necessary direction in the nature of mandamus may be issue under Article 226 of the Constitution of India 1950:

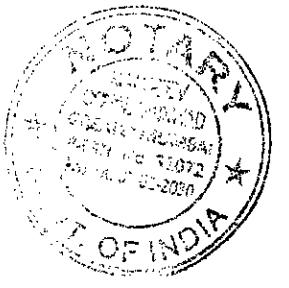
[A] That this Hon'ble Court be pleased to Issue a writ of mandamus or a writ in the nature of mandamus or any other appropriate writ, order, or direction, quashing and

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No. 31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

setting aside the letter dated 6th June 2025 issued by the Law and Judiciary Department, Government of Maharashtra, signed by Smt. Meena Koli, Desk Officer, addressed to the Registrar (Original Side), High Court of Judicature at Bombay, Mumbai–400032, and the consequential communication dated 15th July 2025 issued by the Registrar (Original Side) to Petitioner No. 1 and others.

[B] That this Hon'ble Court be pleased to Issue a writ of mandamus or a writ in the nature of mandamus or any other appropriate writ, order, or direction under Article 226 of the Constitution of India, directing the Respondents to allow and grant the reliefs prayed for in the representations made by the Petitioners dated 30th September 2023,5th December 2023 and 4th June 2024, and to implement the Old Pension Scheme in favour of the Petitioners.

[C] That this Hon'ble Court be pleased to Issue a writ of mandamus or a writ in the nature of mandamus or any other appropriate writ, order, or direction under Article 226 of the Constitution of India, declaring that the Petitioners are entitled to all retirement benefits and service conditions as are applicable to Civil Judge, Junior Division (ACP-1), on a true and correct interpretation of the Government Resolution dated 19th April 2022 issued by the Law and Judiciary Department, Government of Maharashtra.



[D] In view of the law laid down in D. S. Nakara (supra) that pension is an incident of the right to life under Article 21 of the Constitution of India, it is prayed that the Hon'ble Court may consider and dispose of the present Writ Petition finally at the stage of admission.

[E] Award costs of this Petition in favour of the Petitioners and against the Respondent–State of Maharashtra.

[F] Grant such further and other reliefs as this Hon'ble Court may deem fit, just, and proper in the facts and circumstances of the present case. And for this act of kindness, the Petitioners as in duty bound shall ever pray.

4. I say that the reliefs a prayed for by the Petitioner is not granted, irreparable harm, injury and loss caused to the Petitioner. the balance of convenience is in favour of the Petitioner. I therefore pray that the reliefs as prayed for be granted to the Petitioner and the Petition be made absolute with costs.

Solemnly affirmed at Mumbai]
on this 13th day of October 2026]

Rekha Vijaykumar Rane

I KNOW AFFIANT

ADVOCATE

BEFORE ME

SANJEEV GOPAL GAIKWAD
ADVOCATE & NOTARY
GOVT. OF INDIA
Reg. No. 31072
BLDG. No. 8/1356, GOVT. COLONY
HARNE GURUJI MARG,
NEAR NEW ENGLISH SCHOOL,
BANDRA (E), MUMBAI - 400 051.

NOTARY SANJEEV GOPAL GAIKWAD GREATER MUMBAI REGN. No.-31072 Exp. Dt. 07-01-2030 GOVT. OF INDIA

Notarial Reg. No. 1-A
Sr. No. 274 Page No. 38
Date 13 OCT 2026

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO._____ OF 2026

Rekha Vijaykumar Rane — **PETITIONER**

VERSUS

The State of Maharashtra and another — **RESPONDENTS**

To,

The Prothonotary & Senior Master,
O.O.C.J., High Court
Bombay.

ADVOCATE'S CERTIFICATE

I, Shubham Misar, Advocate for the Petitioner do hereby Certify and state that the issues involved in the present Writ Petition is required to be entertained by the Hon'ble Division Bench mainly because in the aforesaid Writ Petition the Petitioners are seeking to issue certain directions under Article 226 of the Constitution of India, 1950, on several grounds and more particularly described in the Writ Petition and as such, contemplated under the amended Rule 636(I)(B) of the Bombay High Court Original Side Rules, the aforesaid Writ Petition is required to be placed before the Division Bench as the issues involved in this Writ Petition can be adjudicated by the Division Bench.

ADVOCATE FOR THE PETITIONERS

PLACE: BOMBAY
DATE: 13/10/2026

IN THE HIGH COURT OF JUDICATURE OF BOMBAY, ORIDINARY ORIGINAL CIVIL JURISDICTION

WRIT PETITION NO. _____ OF 2026

W.P.[LODGING]NO.35697 OF 2026

Rekha Vijaykumar Rane
And others

PETITIONERS

VERSUS

The State of Maharashtra
and another

RESPONDENTS

WRIT PETITION

Filed on 13th Day of the October 2026

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